HISTORY

A History of Rome to 565 A. D.

Arthur E. R. Boak

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[Illustration: The Roman Empire in the Second Century A. D.]

A HISTORY OF ROME TO 565 A. D.

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PREFACE

This sketch of the History of Rome to 565 A. D. is primarily intended to meet the needs of introductory college courses in Roman History. However, it is hoped that it may also prove of service as a handbook for students of Roman life and literature in general. It is with the latter in mind that I have added the bibliographical note. Naturally, within the brief limits of such a text, it was impossible to defend the point of view adopted on disputed points or to take notice of divergent opinions. Therefore, to show the great debt which I owe to the work of others, and to provide those interested in particular problems with some guide to more detailed study, I have given a list of selected references, which express, I believe, the prevailing views of modern scholarship upon the various phases of Roman History.

I wish to acknowledge my general indebtedness to Professor W. S. Ferguson of Harvard University for his guidance in my approach to the study of Roman History, and also my particular obligations to Professor W. L. Westermann of Cornell, and to my colleagues, Professors A. L. Cross and J. G. Winter, for reading portions of my manuscript and for much helpful criticism.

A. E. R. BOAK. University of Michigan, October, 1921

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INTRODUCTION

THE SOURCES FOR THE STUDY OF EARLY ROMAN HISTORY

The student beginning the study of Roman History through the medium of the works of modern writers cannot fail to note wide differences in the treatment accorded by them to the early centuries of the life of the Roman State. These differences are mainly due to differences of opinion among moderns as to the credibility of the ancient accounts of this period. And so it will perhaps prove helpful to give a brief review of these sources, and to indicate the estimate of their value which is reflected in this book.

The earliest Roman historical records were in the form of annals, that is, brief notices of important events in connection with the names of the consuls or other eponymous officials for each year. They may be compared to the early monastic chronicles of the Middle Ages. Writing was practised in Rome as early as the sixth century B. C. and there can be no doubt that the names of consuls or their substitutes

were recorded from the early years of the republic, although the form of the record is unknown. It is in the annals that the oldest list of the consuls was preserved, the Capitoline consular and triumphal Fasti or lists being reconstructions of the time of Augustus.

The authorship of the earliest annals is not recorded. However, at the opening of the second century B. C. the Roman pontiffs had in their custody annals which purported to run back to the foundation of the city, including the regal period. We know also that as late as the time of the Gracchi it was customary for the Pontifex Maximus to record on a tablet for public inspection the chief events of each year. When this custom began is uncertain and it can only be proven for the time when the Romans had commenced to undertake maritime wars. From these pontifical records were compiled the so-called _annales Maximi_, or chief annals, whose name permits the belief that briefer compilations were also in existence. There were likewise commentaries preserved in the priestly colleges, which contained ritualistic formulæ, as well as attempted explanations of the origins of usages and ceremonies.

Apart from these annals and commentaries there existed but little historical material before the close of the third century B. C. There was no Roman literature; no trace remains of any narrative poetry, nor of family chronicles. Brief funerary inscriptions, like that of Scipio Barbatus, appear in the course of the third century, and laudatory funeral orations giving the records of family achievements seem to have come into vogue about the end of the same century.

However, the knowledge of writing made possible the inscription upon stone or other material of public documents which required to be preserved with exactness. Thus laws and treaties were committed to writing. But the Romans, unlike the Greeks, paid little attention to the careful preservation of other documents and, until a late date, did not even keep a record of the minor magistrates. Votive offerings and other dedications were also inscribed, but as with the laws and treaties, few of these survived into the days of historical writing, owing to neglect and the destruction wrought in the city by the Gauls in 387 B. C.

Nor had the Greeks paid much attention to Roman history prior to the war with Pyrrhus in 281 B. C., although from that time onwards Greek historians devoted themselves to the study of Roman affairs. From this date the course of Roman history is fairly clear. However, as early as the opening of the fourth century B. C. the Greeks had sought to bring the Romans into relation with other civilized peoples of the ancient world by ascribing the foundation of Rome to Aeneas and the exiles from Troy; a tale which had gained acceptance in Rome by the close of the third century.

The first step in Roman historical writing was taken at the close of the Second Punic War by Quintus Fabius Pictor, who wrote in Greek a history of Rome from its foundation to his own times. A similar work, also in Greek, was composed by his contemporary, Lucius Cincius Alimentus. The oldest traditions were thus wrought into a connected version, which has been preserved in some passages of Polybius, but to a larger extent in the fragments of the _Library of Universal History_ compiled by Diodorus the Sicilian about 30 B. C. Existing portions of his work (books 11 to 20)

cover the period from 480 to 302 B. C.; and as his library is little more than a series of excerpts his selections dealing with Roman history reflect his sources with little contamination.

Other Roman chroniclers of the second century B. C. also wrote in Greek and, although early in that century Ennius wrote his epic relating the story of Rome from the settlement of Aeneas, it was not until about 168 that the first historical work in Latin prose appeared. This was the _Origins_ of Marcus Porcius Cato, which contained an account of the mythical origins of Rome and other Italian cities, and was subsequently expanded to cover the period from the opening of the Punic Wars to 149 B. C.

Contemporary history soon attracted the attention of the Romans but they did not neglect the earlier period. In their treatment of the latter new tendencies appear about the time of Sulla under patriotic and rhetorical stimuli. The aim of historians now became to provide the public with an account of the early days of Rome that would be commeasurate with her later greatness, and to adorn this narrative, in Greek fashion, with anecdotes, speeches, and detailed descriptions, which would enliven their pages and fascinate their readers. Their material they obtained by invention, by falsification, and by the incorporation into Roman history of incidents from the history of other peoples. These writers were not strictly historians, but writers of historical romance. Their chief representative was Valerius Antias.

The Ciceronian age saw great vigor displayed in antiquarian research, with the object of explaining the origin of ancient Roman customs, ceremonies, institutions, monuments, and legal formulæ, and of establishing early Roman chronology. In this field the greatest activity was shown by Marcus Terentius Varro, whose _Antiquities_ deeply influenced his contemporaries and successors.

In the age of Augustus, between 27 B. C. and 19 A. D., Livy wrote his great history of Rome from its beginnings. His work summed up the efforts of his predecessors and gave to the history of Rome down to his own times the form which it preserved for the rest of antiquity. Although it is lacking in critical acumen in the handling of sources, and in an understanding for political and military history, the dramatic and literary qualities of his work have ensured its popularity. Of it there have been preserved the first ten books (to 293 B. C.), and books 21 to 45 (from 218 to 167 B. C.). A contemporary of Livy was the Greek writer Dionysius of Halicarnassus, who wrote a work called _Roman Antiquities_, which covered the history of Rome down to 265 B. C. The earlier part of his work has also been preserved. In general he depended upon Varro and Livy, and gives substantially the same view of early Roman history as the latter.

What these later writers added to the meagre annalistic narrative preserved in Diodorus is of little historical value, except in so far as it shows what the Romans came to believe with regard to their own past. The problem which faced the later Roman historians was the one which faces writers of Roman history today, namely, to explain the origins and early development of the Roman state. And their explanation does not deserve more credence than a modern reconstruction simply because they

were nearer in point of time to the period in question, for they had no wealth of historical materials which have since been lost, and they were not animated by a desire to reach the truth at all costs nor guided by rational principles of historical criticism. Accordingly we must regard as mythical the traditional narrative of the founding of Rome and of the regal period, and for the history of the republic to the time of the war with Pyrrhus we should rely upon the list of eponymous magistrates, whose variations indicate political crises, supplemented by the account in Diodorus, with the admission that this itself is not infallible. All that supplements or deviates from this we should frankly acknowledge to be of a hypothetical nature. Therefore we should concede the impossibility of giving a complete and adequate account of the history of these centuries and refrain from doing ourselves what we criticize in the Roman historians.

PART I

THE FORERUNNERS OF ROME IN ITALY

A HISTORY OF ROME TO 565 A. D.

CHAPTER I

THE GEOGRAPHY OF ITALY

Italy, ribbed by the Apennines, girdled by the Alps and the sea, juts out like a “long pier-head” from Europe towards the northern coast of Africa. It includes two regions of widely differing physical characteristics: the northern, continental; the southern, peninsular. The peninsula is slightly larger than the continental portion: together their area is about 91,200 square miles.

Continental Italy. The continental portion of Italy consists of the southern watershed of the Alps and the northern watershed of the Apennines, with the intervening lowland plain, drained, for the most part, by the river Po and its numerous tributaries. On the north, the Alps extend in an irregular crescent of over 1200 miles from the Mediterranean to the Adriatic. They rise abruptly on the Italian side, but their northern slope is gradual, with easy passes leading over the divide to the southern plain. Thus they invite rather than deter immigration from central Europe. East and west continental Italy measures around 320 miles; its width from north to south does not exceed seventy miles.

The peninsula. The southern portion of Italy consists of a long, narrow peninsula, running northwest and southeast between the Mediterranean and Adriatic seas, and terminating in two promontories, which form the toe and heel of the “Italian boot.” The length of the peninsula is 650 miles; its breadth is nowhere more than 125 miles. In striking contrast to the plains of the Po, southern Italy is traversed throughout by the parallel ridges of the Apennines, which give it an endless diversity of hill and valley. The average height of these mountains, which form a sort of vertebrate system

for the peninsula (_Apennino dorso Italia dividitur_, Livy xxxvi, 15), is about 4,000 feet, and even their highest peaks (9,500 feet) are below the line of perpetual snow. The Apennine chain is highest on its eastern side where it approaches closely to the Adriatic, leaving only a narrow strip of coast land, intersected by numerous short mountain torrents. On the west the mountains are lower and recede further from the sea, leaving the wide lowland areas of Etruria, Latium and Campania. On this side, too, are rivers of considerable length, navigable for small craft; the Volturnus and Liris, the Tiber and the Arno, whose valleys link the coast with the highlands of the interior.

*The **coast-line**.* In comparison with Greece, Italy presents a striking regularity of coast-line. Throughout its length of over 2000 miles it has remarkably few deep bays or good harbors, and these few are almost all on the southern and western shores. Thus the character of the Mediterranean coast of Italy, with its fertile lowlands, its rivers, its harbors, and its general southerly aspect, rendered it more inviting and accessible to approach from the sea than the eastern coast, and determined its leadership in the cultural and material advancement of the peninsula.

Climate. The climate of Italy as a whole, like that of other Mediterranean lands, is characterized by a high average temperature, and an absence of extremes of heat or cold. Nevertheless, it varies greatly in different localities, according to their northern or southern situation, their elevation, and their proximity to the sea. In the Po valley there is a close approach to the continental climate of central Europe, with a marked difference between summer and winter temperatures and clearly marked transitional periods of spring and autumn. On the other hand, in the south of the peninsula the climate becomes more tropical, with its periods of winter rain and summer drought, and a rapid transition between the moist and the dry seasons.

Malaria. Both in antiquity and in modern times the disease from which Italy has suffered most has been the dreaded malaria. The explanation is to be found in the presence of extensive marshy areas in the river valleys and along the coast. The ravages of this disease have varied according as the progress of civilization has brought about the cultivation and drainage of the affected areas or its decline has wrought the undoing of this beneficial work.

Forests. In striking contrast to their present baldness, the slopes of the Apennines were once heavily wooded, and the well-tilled fields of the Po valley were also covered with tall forests. Timber for houses and ships was to be had in abundance, and as late as the time of Augustus Italy was held to be a well-forested country.

Minerals. The mineral wealth of Italy has never been very great at any time. In antiquity the most important deposits were the iron ores of the island of Elba, and the copper mines of Etruria and Liguria. For a time, the gold washings in the valleys of the Graian Alps were worked with profit.

Agriculture. The true wealth of Italy lay in the richness of her soil, which generously repaid the labor of agriculturist or horticulturist. The lowland areas yielded large crops of grain of all sorts—millet, maize, wheat, oats and barley—while

legumes were raised in abundance everywhere. Campania was especially fertile and is reported to have yielded three successive crops annually. The vine and the olive flourished, and their cultivation eventually became even more profitable than the raising of grain.

The valleys and mountain sides afforded excellent pasturage at all seasons, and the raising of cattle and sheep ranked next in importance to agricultural pursuits among the country's industries.

*The **islands**: Sicily, Sardinia, Corsica.* The geographical location of the three large islands, Sicily, Sardinia and Corsica, links their history closely with that of the Italian peninsula. The large triangle of Sicily (11,290 sq. mi.) is separated from the southwest extremity of Italy by the narrow straits of Rhegium, and lies like a stepping-stone between Europe and Africa. Its situation, and the richness of its soil, which caused it to become one of the granaries of Rome, made it of far greater historical importance than the other two islands. Sardinia (9,400 sq. mi.) and Corsica (3,376 sq. mi.), owing to their rugged, mountainous character and their greater remoteness from the coast of Italy, have been always, from both the economic and the cultural standpoint, far behind the more favored Sicily.

The historical significance of Italy's configuration and location. The configuration of the Italian peninsula, long, narrow, and traversed by mountain ridges, hindered rather than helped its political unification. Yet the Apennine chain, running parallel to the length of the peninsula, offered no such serious barriers to that unification as did the network of mountains and the long inlets that intersect the peninsula of Greece. And when once Italy had been welded into a single state by the power of Rome, its central position greatly facilitated the extension of the Roman dominion over the whole Mediterranean basin.

The name Italia. The name Italy is the ancient _Italia_, derived from the people known as the _Itali_, whose name had its origin in the word _vitulus_ (calf). It was applied by the Greeks as early as the fifth century B. C. to the southwestern extremity of the peninsula, adjacent to the island of Sicily. It rapidly acquired a much wider significance, until, from the opening of the second century, _Italia_ in a geographical sense denoted the whole country as far north as the Alps. Politically, as we shall see, the name for a long time had a much more restricted significance.

CHAPTER II

PREHISTORIC CIVILIZATION IN ITALY

Accessibility of Italy to external influences. The long coast-line of the Italian peninsula rendered it peculiarly accessible to influences from overseas, for the sea united rather than divided the peoples of antiquity. Thus Italy was constantly subjected to immigration by sea, and much more so to cultural stimuli from the lands whose shores bordered the same seas as her own. Nor did the Alps and the forests and swamps of the Po valley oppose any effectual barrier to migrations and cultural influences from central Europe. Consequently we have in Italy the meeting ground of

peoples coming by sea from east and south and coming over land from the north, each bringing a new racial, linguistic, and cultural element to enrich the life of the peninsula. These movements had been going on since remote antiquity, until, at the beginning of the period of recorded history, Italy was occupied by peoples of different races, speaking different languages, and living under widely different political and cultural conditions.

As yet many problems connected with the origin and migrations of the historic peoples of Italy remain unsolved; but the sciences of archaeology and philology have done much toward enabling us to present a reasonably clear and connected picture of the development of civilization and the movements of these peoples in prehistoric times.

The Old Stone Age. From all over Italy come proofs of the presence of man in the earliest stage of human development—the Paleolithic or Old Stone Age. The chipped flint instruments of this epoch have been found in considerable abundance, and are chiefly of the Moustérien and Chelléen types. With these have been unearthed the bones of the cave bear, cave lion, cave hyena, giant stag, and early types of the rhinoceros, hippopotamus, and elephant, which Paleolithic man fought and hunted. In the Balzi Rossi caves, near Ventimiglia in Liguria, there have been found human skeletons, some of which, at least, are agreed to be of the Paleolithic Age. But the caves in Liguria and elsewhere, then the only habitations which men knew, do not reveal the lifelike and vigorous mural drawings and carvings on bone, which the Old Stone Age has left in the caves of France and Spain.

The New Stone Age. With the Neolithic or New Stone Age there appears in Italy a civilization characterized by the use of instruments of polished stone. Axes, adzes, and chisels, of various shapes and sizes, as well as other utensils, were shaped by polishing and grinding from sandstone, limestone, jade, nephrite, diorite, and other stones. Along with these, however, articles of chipped flint and obsidian, for which the workshops have been found, and also instruments of bone, were in common use. The Neolithic people were also acquainted with the art of making pottery, an art unknown to the Paleolithic Age.

Like the men of the preceding epoch, those of the Neolithic Age readily took up their abode in natural caves. However, they also built for themselves villages of circular huts of wicker-work and clay, at times erected over pits excavated in the ground. Such village sites, the so-called _fonde di capanne_, are widely distributed throughout Italy.

They buried their dead in caves, or in pits dug in the ground, sometimes lining the pit with stones. The corpse was regularly placed in a contracted position, accompanied by weapons, vases, clothing, and food. Second burials and the practice of coloring the bones of the skeletons with red pigment were in vogue.

Climatic change. The climate of Italy had changed considerably from that of the preceding age, and a new fauna had appeared. In place of the primitive elephant and his associates, Neolithic men hunted the stag, beaver, bear, fox, wolf and wild boar. Remains of such domestic animals as the ox, horse, sheep, goat, pig, dog, and ass,

show that they were a pastoral although not an agricultural people.

A new racial element. The use of polished stone weapons, the manufacture of pottery, the hut villages and a uniform system of burial rites distinguished the Neolithic from the Paleolithic civilization. And, because of these differences, especially because of the introduction of this system of burial which argues a distinctive set of religious beliefs, in addition to the fact that the development of this civilization from that which preceded cannot be traced on Italian soil, it is held with reason that at the opening of the Neolithic Age a new race entered Italy, bringing with it the Neolithic culture. Here and there men of the former age may have survived and copied the arts of the newcomers, but throughout the whole peninsula the racial unity of the population is shown by the uniformity of their burial customs. The inhabitants of Sicily and Sardinia in this age had a civilization of the same type as that on the mainland.

The Ligurians probably a Neolithic people. It is highly probable that one of the historic peoples of Italy was a direct survival from the Neolithic period. This was the people called the Ligures (Ligurians), who to a late date maintained themselves in the mountainous district around the Gulf of Genoa. In support of this view it may be urged (1) that tradition regarded them as one of the oldest peoples of Italy, (2) that even when Rome was the dominant state in Italy they occupied the whole western portion of the Po valley and extended southward almost to Pisa, while they were believed to have held at one time a much wider territory, (3) that at the opening of our own era they were still in a comparatively barbarous state, living in caves and rude huts, and (4) that the Neolithic culture survived longest in this region, which was unaffected by the migrations of subsequent ages.

The Aeneolithic Age. The introduction of the use of copper marks the transition from the Neolithic period to that called the Aeneolithic, or Stone and Copper Age. This itself is but a prelude to the true Bronze Age. Apparently copper first found its way into Italy along the trade routes from the Danube valley and from the eastern Mediterranean, while the local deposits were as yet unworked. In other respects there is no great difference between the Neolithic civilization and the Aeneolithic, and there is no evidence to place the entrance of a new race into Italy at this time.

The Bronze Age. The Bronze Age proper in Italy is marked by the appearance of a new type of civilization—that of the builders of the pile villages. There are two distinct forms of pile village. The one, called _palafitte_, is a true lake village, raised on a pile structure above the waters of the surrounding lake or marsh. The other, called _terramare_, is a pile village constructed on solid ground and surrounded by an artificial moat.

The palafitte. The traces of the _palafitte_ are fairly closely confined to the Alpine lake region of Italy from Lake Maggiore to Lake Garda. In general, these lake villages date from an early stage of Bronze Age culture, for later on, in most cases, their inhabitants seem to have abandoned them for sites on dry land further to the south. The lake-dwellers were hunters and herdsmen, but they practised agriculture as well, raising corn and millet. In addition to their bronze implements, they continued to use

those of more primitive materials—bone and stone. They, too, manufactured a characteristic sort of pottery, of rather rude workmanship, which differs strikingly from that of the Neolithic Age. In the late Bronze Age, at any rate, they cremated their dead and buried the ashes in funerary urns. For their earlier practice evidence is lacking.

The terramare. The _terramare_ settlements are found chiefly in the Po valley; to the north of that river around Mantua, and to the south between Piacenza and Bologna. Scattered villages have been found throughout the peninsula; one as far south as Taranto. The _terramare_ village was regularly constructed in the form of a trapezoid, with a north and south orientation. It was surrounded by an earthen wall, around the base of which ran a wide moat, supplied with running water from a neighboring stream. Access to the settlement was had by a single wooden bridge, easy to destroy in time of danger. The space within the wall was divided in the center by a main road running north and south the whole length of the settlement. It was paralleled by some narrower roads and intersected at right angles by others. On one side of this main highway was a space surrounded by an inner moat, crossed by a bridge. This area was uninhabited and probably devoted to religious purposes. The dwellings were built on pile foundations along the roadways. Outside the moat was placed the cemetery. The dead were cremated and the ashes deposited in ossuary urns, which were laid side by side in the burial places. The remains were rarely accompanied by anything but some smaller vases placed in the ossuary.

The terramare civilization. With the _terramare_ people bronze had almost completely supplanted stone instruments. Bronze daggers, swords, axes, arrowheads, spearheads, razors, and pins have been preserved in abundance. However, articles of bone and of horn were also in general use. The _terramare_ civilization had likewise its special type of hand-made pottery of peculiar shapes and ornamentation. A characteristic form of ornamentation was the crescent-shaped handle (_ansa lunata_). The _terramare_ peoples were both agricultural and pastoral, cultivating wheat and flax and raising the better known domestic animals; while they also hunted the stag and the wild boar.

The peoples of the palafitte and the terramare. Owing to their custom of dwelling in pile villages, their practice of cremating their dead, and other characteristics peculiar to their type of civilization, the peoples of the _palafitte_ and the _terramare_ are believed to have introduced a new racial element into Italy. The former probably descended from the Swiss lake region, while the latter probably came from the valley of the Danube. These peoples, abandoning the lakes and marshes of the Po valley, spread southward over the peninsula. Because of this expansion and because of the striking similarity between the design of the _terramare_ settlements and that of the Roman fortified camps, it has been suggested that they were the forerunners of the Italian peoples of historic times.

Other types of Bronze Age culture in Italy. The Neolithic population of northern Italy developed a Bronze Age civilization under the stimulus of contact with the _terramare_ people and the lake-dwellers. In the southern part of the peninsula and in Sicily, however, the Bronze Age developed more independently, although showing

decided traces of influences from the eastern Mediterranean. Only in its later stages does it show the effect of the southward migration of the builders of the pile villages.

The Iron Age. The prehistoric Iron Age in Italy has left extensive remains in the northern and central regions, but such is by no means the case in the south. The most important center of this civilization was at Villanova, near Bologna. Here, again, we have to do with a new type of civilization, which is not a development of the _terramare_ culture. In addition to the use of iron, this age is marked by the practice of cremation, with the employment of burial urns of a distinctive type, placed in well tombs (_tombe a pozzo_). In Etruria, to the south of the Apennines, the Early Iron Age is of the Villanova type. It seems fairly certain that both in Umbria and in Etruria this civilization is the work of the Umbrians, who at one time occupied the territory on both sides of the Apennines. Regarding the migration of the Umbrians into Italy we know nothing, but it seems probable that their civilization had its rise in central Europe. The later Iron Age civilization both in Etruria and northward of the Apennines has been identified as that of the Etruscans.

Latium. In Latium the Iron Age civilization is a development under Villanovan influences. Here a distinctive feature is the use of a hut-shaped urn to receive the ashes of the dead. This urn was itself deposited in a larger burial urn. This civilization is that of the historic Latins, to whom belong also the hill villages of Latium and the walled towns, constructed between the eighth and the sixth centuries B. C.

Elsewhere in the northern part of Italy in the Iron Age we have to do with a culture developing out of that of the _terramare_ period. Likewise in the east and south of the peninsula the Iron Age is a local development under outside stimulus.

The preceding sketch of the rise of civilization in Italy has brought us down to the point where we have to do with the peoples who occupied Italian soil at the beginning of the historic period, for from the sixth century it is possible to attempt a connected historical record of the movements of these Italian races.

CHAPTER III

THE PEOPLES OF HISTORIC ITALY: THE ETRUSCANS; THE GREEKS

I. THE PEOPLES OF ITALY

At the close of the sixth century B. C., the soil of Italy was occupied by many peoples of diverse language and origin.

The Ligurians. The northwest corner of Italy, including the Po valley as far east as the river Ticinus and the coast as far south as the Arno, was occupied by the Ligurians.

The Veneti. On the opposite side of the continental part of Italy, in the lowlands to the north of the Po between the Alps and the Adriatic, dwelt the Veneti, whose

name is perpetuated in modern Venice. They are generally believed to have been a people of Illyrian origin.

The Euganei. In the mountain valleys, to the east and west of Lake Garda, lived the Euganei, a people of little historical importance, whose racial connections are as yet unknown.

The Etruscans. The central plain of the Po, between the Ligurians to the west and the Veneti to the east, was controlled by the Etruscans. Their territory stretched northwards to the Alps and eastwards to the Adriatic coast. They likewise occupied the district called after them, Etruria, to the south of the Apennines, between the Arno and the Tiber. Throughout all this area the Etruscans were the dominant element, although it was partly peopled by subject Ligurians and Italians. Etruscan colonies were also established in Campania.

[Illustration: The Peoples of Italy about 500 B. C.]

The Italians. Over the central and southwestern portion of the peninsula were spread a number of peoples speaking more or less closely related dialects of a common, Indo-germanic, tongue. Of these, the Latini, the Aurunci (Ausones), the Osci (Opici), the Oenotri, and the Itali occupied, in the order named, the western coast from the Tiber to the Straits of Rhegium. Between the valley of the upper Tiber and the Adriatic were the Umbri, while to the south of these, in the valleys of the central Apennines and along the Adriatic coast, were settled the so-called Sabellian peoples, chief of whom were the Sabini, the Picentes, the Vestini, the Frentani, the Marsi, the Aequi, the Hernici, the Volsci, and the Samnites. As we have noted, one of these peoples, the Itali, gave their name to the whole country to the south of the Alps, and eventually to this group of peoples in general, whom we call Italians, as distinct from the other races who inhabited Italy in antiquity.

The Iapygians. Along the eastern coast from the promontory of Mt. Garganus southwards were located the Iapygians; most probably, like the Veneti, an Illyrian folk.

The Greeks. The western and southern shores of Italy, from the Bay of Naples to Tarentum, were fringed with a chain of Hellenic settlements.

The peoples of Sicily. The Greeks had likewise colonized the eastern and southern part of the island of Sicily. The central portion of the island was still occupied by the Sicans and the Sicels, peoples who were in possession of Sicily prior to the coming of the Greeks, and whom some regard as an Italian, others as a Ligurian, or Iberian, element. In the extreme west of Sicily were wedged in the small people of the Elymians, another ethnographic puzzle. Here too the Phoenicians from Carthage had firmly established themselves.

Iberians in Sardinia and Corsica. The inhabitants of Sardinia and Corsica, islands which were unaffected by the migrations subsequent to the Neolithic Age, are believed to have been of the same stock as the Iberians of the Spanish peninsula. The Etruscans had their colonies in eastern Corsica and the Carthaginians had obtained a footing on the southern and western coasts of Sardinia.

From this survey of the peoples of Italy at the close of the sixth century B. C., we can see that to the topographical obstacles placed by nature in the path of the political unification of Italy there was added a still more serious difficulty—that of racial and cultural antagonism.

II. THE ETRUSCANS

Etruria. About the opening of the eighth century, the region to the north of the Tiber, west and south of the Apennines, was occupied by the people whom the Greeks called Tyrseni or Tyrreni, the Romans Etrusci or Tusci, but who styled themselves Rasenna. Their name still clings to this section of Italy (_la Toscana_), which to the Romans was known as Etruria.

The origin of the Etruscans. Racially and linguistically the Etruscans differed from both Italians and Hellenes, and their presence in Italy was long a problem to historians. Now, however, it is generally agreed that their own ancient tradition, according to which they were immigrants from the shores of the Aegean Sea, is correct. They were probably one of the pre-Hellenic races of the Aegean basin, where a people called Tyrreni were found as late as the fifth century B. C., and it has been suggested that they are to be identified with the _Tursha_, who appear among the Aegean invaders of Egypt in the thirteenth century. Leaving their former abode during the disturbances caused by the Hellenic occupation of the Aegean islands and the west coast of Asia Minor, they eventually found a new home on the western shore of Italy. Here they imposed their rule and their civilization upon the previous inhabitants. The subsequent presence of the two elements in the population of Etruria is well attested by archaeological evidence.

Walled towns. The Etruscans regularly built their towns on hill-tops which admitted of easy defence, but, in addition, they fortified these towns with strong walls of stone, sometimes constructed of rude polygonal blocks and at other times of dressed stone laid in regular courses.

Tombs. However, the most striking memorials of the presence of the Etruscans are their elaborate tombs. Their cemeteries contain sepulchres of two types—trench tombs (_tombe a fossa_) and chamber tombs (_tombe a camera_). The latter, a development of the former type, are hewn in the rocky hillsides. The Etruscans practised inhumation, depositing the dead in a stone sarcophagus. However, under the influence of the Italian peoples with whom they came into contact, they also employed cremation to a considerable extent. Their larger chamber tombs were evidently family burial vaults, and were decorated with reliefs cut on their rocky walls or with painted friezes, from which we derive most of our information regarding the Etruscan appearance, dress, and customs. Objects of Phoenician and Greek manufacture found in these tombs show that the Etruscans traded with Carthage and the Greeks as early as the seventh century.

Etruscan industries. The Etruscans worked the iron mines of Elba and the copper deposits on the mainland. Their bronzes, especially their mirrors and candelabra, enjoyed high repute even in fifth-century Athens. Their goldsmiths, too, fashioned

elaborate ornaments of great technical excellence. Etruria also produced the type of black pottery with a high polish known as _bucchero nero_.

Etruscan art. In general, Etruscan art as revealed in wall paintings and in the decorations of vases and mirrors displays little originality in choice of subjects or manner of treatment. In most cases it is a direct and not too successful imitation of Greek models, rarely attaining the grace and freedom of the originals.

Architecture. In their architecture, however, although even here affected by foreign influences, the Etruscans displayed more originality and were the teachers of the Romans and other Italians. They made great use of the arch and vault, they created distinctive types of column and _atrium_ (both later called Etruscan) and they developed a form of temple architecture, marked by square structures with a high _podium_ and a portico as deep as the _cella_. Their mural architecture has been referred to already.

Writing. Knowledge of the art of writing reached the Etruscans from the Greek colony of Cyme, whence they adopted the Chalcidian form of the Greek alphabet. Several thousand inscriptions in Etruscan have been preserved, but so far all attempts to translate their language have failed.

Religion. The religion of the Etruscans was characterized by the great stress laid upon the art of divination and augury. Certain features of this art, especially the use of the liver for divination, appear to strengthen the evidence that connects the Etruscans with the eastern Mediterranean. For them the after-world was peopled by powerful, malicious spirits: a belief which gives a gloomy aspect to their religion. Their circle of native gods was enlarged by the addition of Hellenic and Italian divinities and their mythology was greatly influenced by that of Greece.

Commerce. The Etruscans were mariners before they settled on Italian soil and long continued to be a powerful maritime people. They early established commercial relations with the Carthaginians and the Greeks, as is evidenced by the contents of their tombs and the influence of Greece upon their civilization in general. But they, as well as the Carthaginians, were jealous of Greek expansion in the western Mediterranean, and in 536 a combined fleet of these two peoples forced the Phoceans to abandon their settlement on the island of Corsica. For the Greeks their name came to be synonymous with pirates, on account of their depredations which extended even as far as the Aegean.

Government. In Etruria there existed a league of twelve Etruscan cities. However, as we know of as many as seventeen towns in this region, it is probable that several cities were not independent members of the league. This league was a very loose organization, religious rather than political in its character, which did not impair the sovereignty of its individual members. Only occasionally do several cities seem to have joined forces for the conduct of military enterprises. The cities at an early period were ruled by kings, but later were under the control of powerful aristocratic families, each backed by numerous retainers.

Expansion north of the Apennines, in Latium and in Campania. In the course of the sixth century the Etruscans crossed the Apennines and occupied territory in the

Po valley northwards to the Alps and eastwards to the Adriatic. Somewhat earlier, towards the end of the seventh century, they forced their way through Latium, established themselves in Campania, where they founded the cities of Capua and Nola, and gradually completed the subjugation of Latium itself. This marks the extreme limits of their expansion in Italy, and before the opening of the fifth century their power was already on the wane.

The decline of the Etruscan power. It was about this time that Rome freed itself from Etruscan domination, while the other Latins, aided by Aristodemus, the Greek tyrant of Cyme, inflicted a severe defeat upon the Etruscans at Aricia (505 B. C.). A land and sea attack upon Cyme itself, in 474, resulted in the destruction of the Etruscan fleet by Hieron, tyrant of Syracuse. The year 438 B. C. saw the end of the Etruscan power in Campania with the fall of Capua before a Samnite invasion. Not long afterwards, as we shall see, a Celtic invasion drove them from the valley of the Po. The explanation of this rapid collapse of the Etruscan power outside Etruria proper is that, owing to the lack of political unity, these conquests were not national efforts but were made by independent bands of adventurers. These failed to assimilate the conquered populations and after a few generations were overthrown by native revolutions or outside invasions, especially since there was no Etruscan nation to protect them in time of need. Thus failure to develop a strong national state was the chief reason why the Etruscans did not unite Italy under their dominion, as they gave promise of doing in the course of the sixth century.

The significance of the Etruscans in the history of Italy. Our general impression of the Etruscans is that they were a wealthy, luxury-loving people, quick to appreciate and adopt the achievements of others, but somewhat lacking in originality themselves. Cruel, they took delight in gladiatorial combats, especially in Campania, where the Romans learned this custom. Bold and energetic warriors, as their conquests show, they lacked the spirit of discipline and coöperation, and were incapable of developing a stable political organization. Nevertheless, they played an important part in the cultural development of Italy, even though here their chief mission was the bringing of the Italian peoples into contact with Hellenic civilization.

III. THE GREEKS

Greek colonization. As early as the eighth century the Greeks had begun their colonizing activity in the western Mediterranean, and, in the course of the next two centuries, they had settled the eastern and southern shores of Sicily, stretched a chain of settlements on the Italian coast from Tarentum to the Bay of Naples, and established themselves at the mouth of the Rhone and on the Riviera. The opposition of Carthage shut them out from the western end of Sicily, and from Spain; the Etruscans closed to them Italy north of the Tiber; while the joint action of these two peoples excluded them from Sardinia and Corsica.

In the fifth century these Greek cities in Sicily and Italy were at the height of their power and prosperity. In Sicily they had penetrated from the coast far into the interior where they had brought the Sicels under their domination. By the victory of

Himera, in 480 B. C., Gelon of Syracuse secured the Sicilian Greeks in the possession of the greater part of the island and freed them from all danger of Carthaginian invasion for over seventy years. Six years later, his brother and successor, Hieron, in a naval battle off Cyme, struck a crushing blow at the Etruscan naval power and delivered the mainland Greeks from all fear of Etruscan aggression. The extreme southwestern projection of the Italian peninsula had passed completely under Greek control, but north as far as Posidonia and east to Tarentum their territory did not extend far from the seaboard. In these areas they had occupied the territory of the Itali and Oenotrians, while on the north of the Bay of Naples Cyme, Dicaearchia, and Neapolis (Naples) were established in the land of the Opici (Osci). The name Great Greece, given by the Hellenes to South Italy, shows how firmly they were established there.

Lack of political unity. However, the Greeks possessed even less political cohesion than did the Etruscans. Each colony was itself a city-state, a sovereign independent community, owning no political allegiance to its mother city. Thus New Greece reproduced all the political characteristics of the Old. Only occasionally, in times of extreme peril, did even a part of the Greek cities lay aside their mutual jealousies and unite their forces in the common cause. Such larger political structures as the tyrants of Syracuse built up by the subjugation of other cities were purely ephemeral, barely outliving their founders. The individual cities also were greatly weakened by incessant factional strife within their walls. The result of this disunion was to restrict the Greek expansion and, eventually, to pave the way for the conquest of the western Greeks by the Italian “barbarians.”

The decline of the Greek power in Italy and Sicily. Even before the close of the fifth century, the decline of the Western Greeks had begun. In Italy their cities were subjected to repeated assaults from the expanding Samnite peoples of the central Apennines. In 421, Cyme fell into the hands of a Samnite horde, and from that time onwards the Greek cities further south were engaged in a struggle for existence with the Lucanians and the Bruttians, peoples of Samnite stock. In Sicily the Carthaginians renewed their assault upon the Greeks in 408 B. C. For a time (404–367) the genius and energy of Dionysius I, tyrant of Syracuse, welded the cities of the island and the mainland into an empire which enabled them to make head against their foes. But his empire had only been created by breaking the power of the free cities, and after his death they were left more disunited and weaker than ever. After further warfare, by 339, Carthage remained in permanent occupation of the western half of the island of Sicily, while in Italy only a few Greek towns, such as Tarentum, Thurii, and Rhegium, were able to maintain themselves, and that with ever increasing difficulty, against the rising tide of the Italians. Even by the middle of the fourth century an observant Greek predicted the speedy disappearance of the Greek language in the west before that of the Carthaginians or Oscans. However, their final struggles must be postponed for later consideration.

The rôle of the Greeks in Italian history. It was the coming of the Greeks that brought Italy into the light of history, and into contact with the more advanced civilization of the eastern Mediterranean. From the Greek geographers and historians

we derive our earliest information regarding the Italian peoples, and they, too, shaped the legends that long passed for early Italian history. The presence of the Greek towns in Italy gave a tremendous stimulus to the cultural development of the Italians, both by direct intercourse and indirectly through the agency of the Etruscans. In this spreading of Greek influences, Cyme, the most northerly of the Greek colonies and one of the earliest, played a very important part. It was from Cyme that the Romans as well as the Etruscans took their alphabet. The more highly developed Greek political institutions, Greek art, Greek literature, and Greek mythology found a ready reception among the Italian peoples and profoundly affected their political and intellectual progress. Traces of this Greek influence are nowhere more noticeable than in the case of Rome itself, and the cultural ascendancy which Greece thus early established over Rome was destined to last until the fall of the Roman Empire.

PART II

THE PRIMITIVE MONARCHY AND THE REPUBLIC: FROM PREHISTORIC TIMES TO 27 B. C.

[Illustration: The Environs of Rome]

CHAPTER IV

EARLY ROME TO THE FALL OF THE MONARCHY

I. THE LATINS

Latium and the Latins. The district to the south of the Tiber, extending along the coast to the promontory of Circeii and from the coast inland to the slopes of the Apennines, was called in antiquity Latium. Its inhabitants, at the opening of the historic period, were the Latins (_Latini_), a branch of the Italian stock, perhaps mingled with the remnants of an older population.

They were mainly an agricultural and pastoral people, who had settled on the land in _pagi_, or cantons, naturally or artificially defined rural districts. The _pagus_ constituted a rude political and religious unit. Its population lived scattered in their homesteads. If some few of the homesteads happened to be grouped together, they constituted a _vicus_, which, however, had neither a political nor a religious organization.

At one or more points within the cantons there soon developed small towns (_oppida_), usually located on hilltops and fortified, at first with earthen, later with stone, walls. These towns served as market-places and as points of refuge in time of danger for the people of the _pagus_. There developed an artisan and mercantile element, and there the aristocratic element of the population early took up their abode, i. e., the wealthier landholders, who could leave to others the immediate oversight of their estates. And so these _oppida_ became the centers of government

for the surrounding _pagi_. It is very doubtful if the Latins as a whole were ever united in a single state. But even if that had once been the case, this loosely organized state must early have been broken up into a number of smaller units. These were the various _populi_; that is, the cantons with their _oppida_. The names of some sixty-five of these towns are known, but before the close of the sixth century many of the smaller of them had been merged with their more powerful neighbors.

The Latin League. The realization of the racial unity of the Latins was expressed in the annual festival of Jupiter Latiaris celebrated on the Alban Mount. For a long time also the Latin cities formed a league, of which there were thirty members according to tradition. Actually, about the middle of the fifth century there were only some eight cities participating in the association upon an independent footing. The central point of the league was the grove and temple of Diana at Aricia, and it was in the neighborhood of Aricia that the meetings of the assembly of the league were held. The league possessed a very loose organization, but we know of a common executive head—the Latin dictator.

II. THE ORIGINS OF ROME

The site of Rome. Rome, the Latin _Roma_, is situated on the Tiber about fifteen miles from the sea. The Rome of the later Republic and the Empire, the City of the Seven Hills, included the three isolated eminences of the Capitoline, Palatine and Aventine, and the spurs of the adjoining plateau, called the Quirinal, Viminal, Esquiline, and Caelian. Other ground, also on the left bank of the river, and likewise part of Mount Janiculum, across the Tiber, were included in the city. But this extent was only attained after a long period of growth, and early Rome was a town of much smaller area.

The growth of the city. Late Roman historians placed the founding of Rome about the year 753 B. C., and used this date as a basis for Roman chronology. However, it is absolutely impossible to assign anything like a definite date for the establishment of the city. Excavations have revealed that in the early Iron Age several distinct settlements were perched upon the Roman hills, separated from one another by low, marshy ground, flooded by the Tiber at high water. These were probably typical Latin walled villages (_oppida_).

At a very early date some of these villages formed a religious union commemorated in the festival of the Septimontium or Seven Mounts. These _montes_ were crests of the Palatine, Esquiline and Caelian hills, perhaps each the site of a separate settlement.

But the earliest city to which we can with certainty give the name of Rome is of later date than the establishment of the Septimontium. It is the Rome of the Four Regions—the Palatina, Esquilina, Collina and Sucusana (later Suburana)—which included the Quirinal, Viminal, Esquiline, Caelian and Palatine hills, as well as the intervening low ground. Within the boundary of this city, but not included in the four regions, was the Capitoline, which had separate fortifications and served as the citadel (_arx_). It may be that the organization of this city of the Four Regions was

effected by Etruscan conquerors, for the name Roma seems to be of Etruscan origin, and, for the Romans, an _urbs_, as they called Rome, was merely an _oppidum_ of which the limits had been marked out according to Etruscan ritual. The consecrated boundary line drawn in this manner was called the _pomerium_.

The Aventine Hill, as well as the part of the plateau back of the Esquiline, was only brought within the city walls in the fourth century, and remained outside the _pomerium_ until the time of Claudius.

The location of Rome, on the Tiber at a point where navigation for sea-going vessels terminated and where an island made easy the passage from bank to bank, marked it as a place of commercial importance. It was at the same time the gateway between Latium and Etruria and the natural outlet for the trade of the Tiber valley. Furthermore, its central position in the Italian peninsula gave it a strategic advantage in its wars for the conquest of Italy. But the greatness of Rome was not the result of its geographic advantages: it was the outgrowth of the energy and political capacity of its people, qualities which became a national heritage because of the character of the early struggles of the Roman state.

Although it is very probable that the historic population of Rome was the result of a fusion of several racial elements—Latin, Sabine, Etruscan, and even pre-Italian, nevertheless the Romans were essentially a Latin people. In language, in religion, in political institutions, they were characteristically Latin, and their history is inseparably connected with that of the Latins as a whole.

III. THE EARLY MONARCHY

The tradition. The traditional story of the founding of Rome is mainly the work of Greek writers of the third century B. C., who desired to find a link between the new world-power Rome and the older centers of civilization: while the account of the reign of the Seven Kings is a reconstruction on the part of Roman annalists and antiquarians, intended to explain the origins of Roman political and religious institutions. And, in fact, owing to the absence of any even relatively contemporaneous records (a lack from which the Roman historians suffered as well as ourselves) it is impossible to attempt an historical account of the period of kingly rule. We can improve but little on the brief statement of Tacitus (i, 1 _Ann._)—“At first kings ruled the city Rome.”

The kingship. The existence of the kingship itself is beyond dispute, owing to the strength of the Roman tradition on this point and the survival of the title _rex_ or king in the priestly office of _rex sacrorum_. It seems certain, too, that the last of the Roman kings were Etruscans and belong to the period of Etruscan domination in Rome and Latium. As far as can be judged, the Roman monarchy was not purely hereditary but elective within the royal family, like that of the primitive Greek states, where the king was the head of one of a group of noble families, chosen by the nobles and approved by the people as a whole. About the end of the sixth century the kingship was deprived of its political functions, and remained at Rome solely as a lifelong priestly office. It is possible that there had been a gradual decline of the royal

authority before the growing power of the nobles as had been the case at Athens, but it is very probable that the final step in this change coincided with the fall of an Etruscan dynasty and the passing of the control of the state into the hands of the Latin nobility (about 508 B. C.).

Institutions of the regal period. The royal power was not absolute, for the exercise thereof was tempered by custom, by the lack of any elaborate machinery of government, and by the practical necessity for the king to avoid alienating the good will of the community. The views of the aristocracy were voiced in the Senate (_senatus_) or Council of Elders, which developed into a council of nobles, a body whose functions were primarily advisory in character. From a very early date the Roman people were divided into thirty groups called _curiae_, and these _curiae_ served as the units in the organization of the oldest popular assembly—the _comitia curiata_. Membership in the _curiae_ was probably hereditary, and each _curia_ had its special cult, which was maintained long after the _curiae_ had lost their political importance. The primitive assembly of the _curiae_ was convoked at the pleasure of the king to hear matters of interest to the whole community. It did not have legislative power, but such important steps as the declaration of war or the appointment of a new _rex_ required its formal sanction.

Expansion under the kings. Under the kings Rome grew to be the chief city in Latium, having absorbed several smaller Latin communities in the immediate neighborhood, extended her territory on the left bank of the Tiber to the seacoast, where the seaport of Ostia was founded, and even conquered Alba Longa, the former religious center of the Latins. It is possible that by the end of the regal period Rome exercised a general suzerainty over the cities of the Latin plain. The period of Etruscan domination failed to alter the Latin character of the Roman people and left its traces chiefly in official paraphernalia, religious practices (such as the employment of _haruspices_), military organization, and in Etruscan influences in Roman art.

IV. EARLY ROMAN SOCIETY

The Populus Romanus. The oldest name of the Romans was _Quirites_, a name which long survived in official phraseology, but which was superseded by the name _Romani_, derived from that of the city itself. The whole body of those who were eligible to render military service, to participate in the public religious rites and to attend the meetings of the popular assembly, with their families, constituted the Roman state—the _populus Romanus_.

Patricians and Plebeians. At the close of the regal period the _populus Romanus_ comprised two distinct social and political classes. These were the Patricians and the Plebeians. A very considerable element of the latter class was formed by the Clients. These class distinctions had grown up gradually under the economic and social influences of the early state; and, in antiquity, were not confined to Rome but appeared in many of the Greek communities also at a similar stage of their development.

The Patricians were the aristocracy. Their influence rested upon their wealth as great landholders, their superiority in military equipment and training, their clan organization, and the support of their clients. Their position in the community assured to them political control, and they had early monopolized the right to sit in the Senate. The members of the Senate were called collectively _patres_, whence the name _patricii_ (patricians) was given to all the members of their class. The patricians formed a group of many _gentes_, or clans, each an association of households (_familiae_) who claimed descent from a common ancestor. Each member of a _gens_ bore the gentile name and had a right to participate in its religious practices (_sacra_).

Patrons and clients. Apparently, the clients were tenants who tilled the estates of the patricians, to whom they stood for a long time in a condition of economic and political dependence. Each head of a patrician household was the patron of the clients who resided on his lands. The clients were obliged to follow their patrons to war and to the political arena, to render them respectful attention, and, on occasion, pecuniary support. The patron, in his turn, was obliged to protect the life and interests of his client. For either patron or client to fail in his obligations was held to be sacrilege. This relationship, called _patronatus_ on the side of the patron, _clientela_ on that of the client, was hereditary on both sides. The origin of this form of clientage is uncertain and it is impossible for us to form a very exact idea of position of the clients in the early Roman state, for the like-named institution of the historic republican period is by no means the one that prevailed at the end of the monarchy. The older, serf-like, conditions had disappeared; the relationship was voluntarily assumed, and its obligations, now of a much less serious nature, depended for their observance solely upon the interest of both parties.

The patrician aristocracy formed a social caste, the product of a long period of social development, and this caste was enlarged in early times by the recognition of new _gentes_ as possessing the qualifications of the older clans (_patres maiorum_ and _minorum gentium_). But eventually it became a closed order, jealous of its prerogatives and refusing to intermarry with the non-patrician element.

The Plebs. This latter constituted the plebeians or _plebs_. They were free citizens—the less wealthy landholders, tradesmen, craftsmen, and laborers—who lacked the right to sit in the Senate and so had no direct share in the administration. Beyond question, however, they were included in the _curiae_ and had the right to vote in the _comitia curiata_. Nor is there any proof of a racial difference between plebeians and patricians. It is not easy to determine to what degree the clients participated in the political life of the community, yet, in the general use of the term, the plebs included the clients, who later, under the republic, shared in all the privileges won by the plebeians and who, consequently, must have had the status of plebeians in the eye of the state.

The sharp social and political distinction between nobles and commons, between patricians and plebeians, is the outstanding feature of early Roman society, and affords the clue to the political development of the early republican period.

[Illustration: Roman Expansion in Italy to 265 B. C.]

CHAPTER V

THE EXPANSION OF ROME TO THE UNIFICATION OF THE ITALIAN PENINSULA: c. 509–265 B. C.

I. TO THE CONQUEST OF VEII—392 B. C.

The alliance of Rome and the Latin League, about 486 B. C. At the close of the regal period Rome appears as the chief city in Latium, controlling a territory of some 350 sq. miles to the south of the Tiber. But the fall of the monarchy somewhat weakened the position of Rome, for it brought on hostilities with the Etruscan prince Lars Porsena of Clusium, which resulted in a defeat for Rome and the forced acceptance of humiliating conditions.

This defeat naturally broke down whatever suzerainty Rome may have exercised over Latium and necessitated a readjustment of the relations between Rome and the Latin cities. A treaty attributed by tradition to Spurius Cassius was finally concluded between Rome on the one hand and the Latin league on the other, which fixed the relations of the two parties for nearly one hundred and fifty years. By this agreement the Romans and the Latin league formed an offensive and defensive military alliance, each party contributing equal contingents for joint military enterprises and dividing the spoils of war, while the Latins at Rome and the Romans in the Latin cities enjoyed the private rights of citizenship. The small people called the Hernici, situated to the east of Latium, were early included in this alliance. This union was cemented largely through the common dangers which threatened the dwellers in the Latin plain from the Etruscans on the north and the highland Italian peoples to the east and south. For Rome it was of importance that the Latin cities interposed a barrier between the territory of Rome and her most aggressive foes, the Aequi and the Volsci.

Wars with the Aequi and Volsci. Of the details of these early wars we know practically nothing. However, archæological evidence seems to show that about the beginning of the fifth century B. C. the Latins sought an outlet for their surplus population in the Volscian land to the south east. Here they founded the settlements of Signia, Norba and Satricum. But this expansion came to a halt, and about the middle of the fifth century the Volsci still held their own as far north as the vicinity of Antium, while the Aequi were in occupation of the Latin plain as far west as Tusculum and Mt. Algidus. Towards the end of the century, however, under Roman leadership the Latins resumed their expansion at the expense of both these peoples.

Veii. In addition to these frequent but not continuous wars, the Romans had to sustain a serious conflict with the powerful Etruscan city of Veii, situated about 12 miles to the north of Rome, across the Tiber. The causes of the struggle are uncertain, but war broke out in 402, shortly after the Romans had gained possession of Fidenae, a town which controlled a crossing of the Tiber above the city of Rome. According to tradition the Romans maintained a blockade of Veii for eleven years before it fell into their hands. It was in the course of this war that the Romans

introduced the custom of paying their troops, a practice which enabled them to keep a force under arms throughout the entire year if necessary. Veii was destroyed, its population sold into slavery, and its territory incorporated in the public land of Rome. By this annexation the area of the Roman state was nearly doubled.

Recent excavations have shown that Veii was a place of importance from the tenth to the end of the fifth century B. C., that Etruscan influence became predominant there in the course of the eighth century, and that, at the time of its destruction, it was a flourishing town, which, like Rome itself, was in contact with the Greek cultural influences then so powerful throughout the Italian peninsula.

II. THE GALLIC INVASION

The Gauls in the Po Valley. But scarcely had the Romans emerged victorious from the contest with Veii when a sudden disaster overtook them from an unexpected quarter. Towards the close of the fifth century various Celtic tribes crossed the Alpine passes and swarmed down into the Po valley. These Gauls overcame and drove out the Etruscans, and occupied the land from the Ticinus and Lake Maggiore southeastwards to the Adriatic between the mouth of the Po and Ancona. This district was subsequently known as Gallia Cisalpina. The Gauls formed a group of eight tribes, which were often at enmity with one another. Each tribe was divided into many clans, and there was continual strife between the factions of the various chieftains. They were a barbarous people, living in rude villages and supporting themselves by cattle-raising and agriculture of a primitive sort. Drunkenness and love of strife were their characteristic vices: war and oratory their passions. In stature they were very tall; their eyes were blue and their hair blond. Brave to recklessness, they rushed naked into battle, and the ferocity of their first assault inspired terror even in the ranks of veteran armies. Their weapons were long, two-edged swords of soft iron, which frequently bent and were easily blunted, and small wicker shields. Their armies were undisciplined mobs, greedy for plunder, but disinclined to prolonged, strenuous effort, and utterly unskilled in siege operations. These weaknesses nullified the effects of their victories in the field and prevented their occupation of Italy south of the Apennines.

The sack of Rome. In 387 B. C., a horde of these marauders crossed the Apennines and besieged Clusium. Thence, angered, as was said, by the hostile actions of Roman ambassadors, they marched directly upon Rome. The Romans marched out with all their forces and met the Gauls near the Allia, a small tributary of the Tiber above Fidenae. The fierce onset of the Gauls drove the Roman army in disorder from the field. Many were slain in the rout and the majority of the survivors were forced to take refuge within the ruined fortifications of Veii. Deprived of their help and lacking confidence in the weak and ill-planned walls, the citizen body evacuated Rome itself and fled to the neighboring towns. The Capitol, however, with its separate fortifications, was left with a small garrison. The Gauls entered Rome and sacked the city, but failed to storm the citadel. Apparently they had no intention of settling in Latium and therefore, after a delay of seven months, upon information that the Veneti were attacking their new settlements in the Po valley, they accepted a ransom of

1000 pounds of gold (about $225,000) for the city and marched off home. The Romans at once reoccupied and rebuilt their city, and soon after provided it with more adequate defences in the new wall of stone later known as the Servian wall.

Later Gallic invasions. For some years the Gauls ceased their inroads, but in 368 another raid brought them as far as Alba in the land of the Aequi, and the Romans feared to attack the invaders. However, when a fresh horde appeared in 348 the Romans were prepared. They and their allies blocked the foe's path, and the Gauls retreated, fearing to risk a battle. Rome thus became the successful champion of the Italian peoples, their bulwark against the barbarian invaders from the north. In 334 the Gauls and the Romans concluded peace and entered upon a period of friendly relations which lasted for the rest of the fourth century.

III. THE DISRUPTION OF THE LATIN LEAGUE AND THE ROMAN ALLIANCE WITH THE CAMPANIANS: 387–334 B. C.

Wars with the Aequi, Volsci, and Etruscans. The disaster that overtook Rome created a profound impression throughout the civilized world and was noted by contemporary Greek writers. But the blow left no permanent traces, for only the city, not the state, had been destroyed. It is true that, encouraged by their enemy's defeat, the Aequi, Volsci and the Etruscan cities previously conquered by Rome took up arms, but each met defeat in turn. Rome retained and consolidated her conquests in southern Etruria. Part of the land was allotted to Romans for settlement and four tribal districts were organized there. On the remainder, two Latin colonies, Sutrium (383) and Nepete (372), were founded. The territory won from the Volsci was treated in like manner.

In 354 the Romans concluded an alliance with the Samnite peoples of the south central Apennines. Probably this agreement was reached in view of the common fear of Gallic invasions and because both parties were at war with the smaller peoples dwelling between Latium and Campania, so that a delimitation of their respective spheres of action was deemed advisable. At any rate, it was in the course of the next few years that Rome completely subdued the Volsci and Aurunci, while the Samnites overran the land of the Sidicini.

The Latin War, 338–336 B. C. Not long afterwards, the Latins, allied with the Campanians, were at war with Rome. Even before this, subsequent to the Gallic capture of Rome, the Romans had fought with individual Latin cities, but now practically all the cities of the Latin league were in arms against them. It is possible that both Latins and Campanians felt their independence threatened by the expansion and alliance of the Romans and the Samnites and that this was the underlying cause of hostilities. However that may be, within two years the Latins had been completely subdued. The Latin league ceased to exist. The individual cities, except Tibur and Praeneste, lost their independence and were incorporated in the Roman state. These two cities preserved their autonomy and concluded new treaties with Rome.

Alliance with the Campanians, about 334 B. C. At about the same time, the majority of the cities of Campania, including Capua, concluded an alliance with Rome

upon the conditions of the Roman alliance with the old Latin league. These cities retained their independence, and extended and received the rights of _commercium_ and _connubium_ with Rome. This meant that the citizen of one city could transact any business in another that was party to this agreement with the assurance that his contract would be protected by the law of the second city, while if he married a woman of that city his children would be considered legitimate heirs to his property. By virtue of this close alliance, the military resources of Campania were arrayed on the side of Rome, and Rome and Campania presented a united front against their common foes. The Roman sphere of influence was thus extended as far south as the Bay of Naples.

After the Latin war, the territory previously won from the Volsci and Aurunci was largely occupied by settlements of Roman citizens or by Latin colonies, for even after the dissolution of the Latin league the Romans made use of this type of colony to secure their conquests, as well as to relieve the surplus population of Rome and Latium.

IV. WARS WITH THE SAMNITES, GAULS AND ETRUSCANS: 325–280 B. C.

The conflict of Rome and the Samnites in Campania. The alliance of Rome and Campania brought the Romans into immediate contact with the Samnites and converted these former friends into enemies, since the Samnites regarded Campania as their legitimate field for expansion and refused to submit to its passing under the aegis of Rome. However, they had been unable to prevent the union of Rome with Capua and other cities, for at the time they were engaged with another enemy, the Tarentines, who were assisted by Alexander, king of the Molossians (334–331).

The Samnites formed a loose confederacy of kindred peoples, with no strong central authority. Therefore, although bold and skilful warriors, they were at a disadvantage in a long struggle where unity of control and continuity of policy became of decisive importance. Here Rome had the advantage, an advantage that was increased by the alliances Rome was able to form in the course of her wars against this enemy. For generations the excess population of the Samnite valleys had regularly overflowed into the lowland coast areas, and such migrations had given rise to the Lucanians, Bruttians, and a large part of the Campanians themselves. However, the danger of being submerged by fresh waves of Samnites caused the peoples whose territories bordered on Samnium to look to Rome for support, and so Rome found allies in the Central Italian peoples, and in the Apulians and the Lucanians.

The beginning of hostilities, 325–4. Hostilities broke out over the occupation of Naples by the Romans and its incorporation in the Roman alliance. This step was taken in the interests of the party in the city that sought Roman protection, and was accomplished in spite of Samnite opposition. The war was waged chiefly in Campania, in the valley of the upper Liris, and in Apulia. In 318, a Roman army attempting to penetrate from Campania into Samnium was cut off and compelled to surrender at the Caudine Pass. It is probable that as a result of this defeat the Romans gave up Fregellae (occupied in 328) and other territory on the Liris, and they may even have

made a temporary truce. However, hostilities were soon resumed. Once again, in 314, the Samnites won a great victory, this time at Lautulae not far south of Circeii, and their party acquired control in Campania. But this temporary success was quickly counterbalanced by Roman victories in Campanian territory.

The war was prolonged by an Etruscan attack upon Roman territory that necessitated a division of the Roman forces. But in two campaigns (309–7 B. C.), in the course of which a Roman army advanced through Umbria and invaded northern Etruria, the cities which had taken up arms against Rome were forced to make peace.

The war against the Samnites could be energetically prosecuted again. By the construction of the Via Appia the Romans secured a military highway from Rome to Capua which greatly facilitated the conduct of operations in Campania. It is probable, too, that the reorganization of the Roman army, which dates from this period, was beginning to bear fruit. From both Campania and Apulia the Romans took the offensive, and several severe defeats forced the Samnites to seek peace in 304. They retained their independence, but the disputed territory on their borders fell to Rome.

It was about the close of this war that the Aequi, Marsi, Marrucini, Frentani, Paeligni, some of the Umbrians, and other of the peoples of Central Italy became federate allies of Rome. Apulia likewise passed under Roman control. New Latin colonies and new tribal districts marked the expansion of Roman territory.

Wars with the Samnites, Gauls and Etruscans, 298–80 B. C. In 298 war broke out again between the Romans and Samnites, apparently because the Lucanians had deserted the Roman alliance for the Samnites. Soon the Samnites allied themselves with the Etruscans and Gauls, and succeeded in uniting the forces of the three peoples in Umbria. But this host was annihilated by the Romans in the battle of Sentinum (295). With this victory all danger for Rome was over. By systematically ravaging the enemy’s country the Roman consuls in 290 B. C. forced the Samnites to sue for peace. They entered the Roman alliance, and a portion of their land was incorporated in the _ager publicus_ of Rome. A similar fate overtook the Sabines and Picentes, who had taken sides with the Samnites.

The war with the Etruscans and the Gauls still dragged on. But in 285, after suffering a severe blow at the hands of the Gallic Senones, the Romans took vigorous action and drove this people from the land between Ancona and the Rubicon—the _ager Gallicus_. In the same year the tribe of the Boii, with Etruscan allies, penetrated as far as the Vadimonian Lake, where the Romans inflicted upon them a crushing defeat. Another Roman victory in the next year brought the Boii to terms, and soon the Etruscan cities one by one submitted to Rome, until by 280 all were Roman allies.

V. THE ROMAN CONQUEST OF SOUTH ITALY: 281–270 B. C.

Italians and Greeks in South Italy. The only parts of the peninsula that had not yet acknowledged the Roman overlordship were the lands of the Lucanians and Bruttians and the few Greek cities in the south that still maintained their independence. Of these latter the chief was Tarentum, a city of considerable commercial importance. From the middle of the fourth century these cities had been

engaged in continual warfare with the Lucanians and Messapians, and in the course of their struggles Tarentum had come to assume the rôle of protector of the Hellenes in Italy. But even this city had only been able to make head against its foes through assistance obtained from Greece. In 338, King Archidamus of Sparta, and in 331 Alexander, king of Epirus and uncle of Alexander the Great, fell fighting in the service of the Italian Greeks. In 303, Cleonymus of Sparta, more fortunate than his predecessors, compelled the Lucanians to conclude a peace, which probably included the Romans, at that moment their allies. A little later (c. 300 B. C.) Agathocles, king of Syracuse, assisted the Tarentines against the same foe, and incorporated in his own kingdom the Bruttians and the Greek cities in the southwest. But with his death in 289, his kingdom, like that of Dionysius I, fell apart and the Greeks in the west were left again without a protector. Consequently, when the Lucanians renewed their attacks upon Thurii, that city, being unable to find succor in Greece and distrusting Tarentum, appealed to Rome (282). Rome gave ear to the call, relieved and garrisoned Thurii. But this action brought Roman ships of war into the Gulf of Tarentum contrary to an agreement between the two cities (perhaps that of 303). Enraged, the Tarentines attacked the Roman fleet, sank some Roman triremes, and then occupied Thurii. The ensuing Roman demands for reparation were rejected, their ambassadors insulted, and war began (281).

The war with Pyrrhus and Tarentum. The Tarentines were able to unite against Rome the Messapians, Lucanians, Samnites and Bruttians, but Roman successes in the first campaign forced them to call in the aid of Pyrrhus, king of Epirus. Pyrrhus was probably the most skilful Greek general of the time, and he brought with him into Italy an army organized and equipped according to the Macedonian system of Alexander the Great, which had become the standard in the Greek world. His force comprised 20,000 heavy-armed infantry forming the phalanx, and 3,000 Thessalian cavalry. Besides, he had a number of war elephants; animals which had figured on Greek battlefields since Ipsus (301). The first engagement was fought near Heraclea (280) and after a severe struggle the Romans were driven from the field. The superior generalship of Pyrrhus, and the consternation caused by his war elephants, won the day, but his losses were very heavy, and he himself was wounded. As fighters the Romans had shown themselves the equal of the foe, and their tactical organization, perfected in the Samnite Wars, had proved its value in its first encounter with that developed by the military experts of Greece. As a result of his victory at Heraclea, Pyrrhus was able to advance as far north as Latium, but withdrew again without accomplishing anything of importance. The next year, he won another hard-fought battle near Ausculum in Apulia. Thereupon the Romans began negotiations which Pyrrhus welcomed, sending the orator Cineas to Rome to represent him. But, before an agreement was reached, the Carthaginians, who feared the intervention of Pyrrhus in Sicily, offered the Romans assistance. Their proffer was accepted; the negotiations with Pyrrhus ended; and Rome and Carthage bound themselves not to make a separate agreement with the common foe, while the Carthaginian fleet was to coöperate with the Romans.

Pyrrhus in Sicily, 278–5 B. C. Nevertheless, Pyrrhus determined to answer an appeal from the Sicilian Greeks and to leave Italy for Sicily. After the death of

Agathocles, tyrant and king of Syracuse (317–289), who had played the rôle of another Dionysius I, the Greeks in Sicily had fallen upon evil days. The Carthaginians had renewed their attacks upon them, and a new foe had appeared in the Mamertini, Campanian mercenary soldiers who had seized Messana and made it their headquarters for raiding the territory of the Greek cities. Caught between these two enemies, the Greeks appealed to Pyrrhus who came to their aid, possibly with the hope of uniting Sicily under his own control. His success was immediate. The Carthaginians were forced to give up all their possessions except Lilybaeum, and Pyrrhus stood ready to carry the war into Africa. But, at this juncture, the exactions that he laid upon his Sicilian allies and their fear that his victory would make him their permanent master caused them to desert his cause and make peace with their foes. Deprived of their assistance, and seeing that his allies in Italy were hard pressed by the Romans, he abandoned his Sicilian venture.

The end of the war. Pyrrhus returned to Italy, with the loss of his fleet in a naval battle with the Carthaginians, reorganized his forces, and advanced into Lucania or Samnium to meet the Romans. While manœuvering for an attack, one of his divisions sustained a severe repulse at Beneventum (275), whereupon he abandoned the offensive and retired to Tarentum. Leaving a garrison in that city he withdrew the rest of his forces to Greece, with the intention of attacking Antigonus Gonatas in Macedonia. His initial successes in this enterprise led him to withdraw his garrison from Tarentum and abandon the Western Greeks to their fate. Thereupon the Romans soon reduced the Samnites and Lucanians, while Tarentum and the other Greek cities, one after another, were forced to submit and enter the Roman alliance. By 270 B. C., all South Italy had in this way been added to the Roman dominions.

By 265 B. C. after a few more brief struggles with revolting or still unsubdued communities in central and northern Italy, the Romans had completed the subjugation of the entire Italian peninsula.

VI. THE ROMAN CONFEDERACY

Roman foreign policy. By wars and alliances Rome had united Italy. But it is not to be supposed that this was a goal consistently pursued through many generations by Roman statesmen. Probably it was not until the end was nearly within sight that the Romans realized whither their policy was leading them. Indeed, it is certain that many of Rome’s wars were waged in defence of Rome’s territory or that of the Roman allies. This seems particularly true of the period prior to the Gallic inroad of 387. According to the ancient Roman formula employed in declaring war, that uttered by the Fetiales, war was looked upon as the last means to obtain reparation for wrongs that were suffered at the hands of the enemy. Yet, although the Roman attitude in such matters was doubtless at one time sincere, we may well question how long this sincerity continued, and whether the injuries complained of were not sometimes the result of Roman provocation. Such attempts to place the moral responsibility for a war upon the enemy are common to all ages and are not always convincing. However, if we may not convict the Romans of aggressive imperialism prior to 265, at any rate the methods which they pursued in their relations with the other peoples of Italy

made their domination inevitable in view of the Roman national character and their political and military organization. These methods early became established maxims of Roman foreign policy. The Romans, whenever possible, waged even their defensive wars offensively, and rarely made peace save with a beaten foe. As a rule, the enemy was forced to conclude a treaty with Rome which placed his forces at the disposal of the Roman state. This treaty was regarded as perpetually binding, and any attempt to break off the relationship it established was regarded as a _casus belli_. Possibly, the Romans looked upon this as the only policy which would guarantee peace on their borders, but it inevitably led to further wars, for it resulted in the continuous extension of the frontiers defended by Rome and so continually brought Rome into contact and conflict with new peoples. Nor were the voluntary allies of Rome allowed to leave the Roman alliance: such action was treated as equivalent to a declaration of war and regularly punished with severity. This practice gradually transformed Rome’s independent into dependent allies. From the middle of the fourth century, it seems that Rome deliberately sought to prevent the development of a strong state in the southern part of Italy, and to this end gladly took under her protection weaker communities that felt themselves threatened by stronger neighbors, although such action inevitably led to war with the latter. Furthermore, a conquered state frequently lost a considerable part of its territory. Portions of this land were set aside for the foundation of fortress colonies to protect the Roman conquests and overawe the conquered. The rest was incorporated in the _ager Romanus_ to the profit of both the rich proprietors and the landless citizens. Usually, the Roman soldiers shared directly in the distribution of the movable spoils of war; sometimes a huge booty, as after the subjugation of the Sabines and Picentes in 290. A long series of successful and profitable wars, for Rome was ultimately victorious in every struggle after 387, had engendered in the Roman people a self-confidence and a martial spirit which soon led them to conquests beyond the confines of Italy. During this period of expansion within Italy, Roman policy had been guided by the Senate, a body of unrecorded statesmen of wide outlook and great determination, who not only made Rome mistress of the peninsula but succeeded in laying enduring foundations for the Roman power.

Rome and Italy. But although Italy was united under the Roman hegemony it by no means formed a single state. Rather it was an agglomerate of many states and many peoples, speaking different tongues and having different political institutions. The largest single element, however, was formed by the Roman citizens. These were to be found not only in the city of Rome and its immediate neighborhood, but also settled in the rural tribal districts (35 in number after 241) organized on conquered territory throughout the peninsula. In addition, groups of 300 citizens had been settled in various harbor towns as a sort of resident garrison to protect Roman interests. In all, down to 183 B. C., 22 of these maritime colonies were established, whose members in view of their special duties were excused from active service with the Roman legions. All these were full Roman citizens, but there were others who, while enjoying the private rights of Roman citizenship, lacked the right to vote or to hold office (_cives sine suffragio_). Such were the inhabitants of most of the old Latin communities and some others which had been absorbed in the Roman state. Such

communities were called _municipia_ (municipalities). Some of these were permitted to retain their own magistrates and city organization: others lacked this privilege of local autonomy. Of the former class, Gabii, conquered during the monarchy, is said to have been the prototype. This municipal system had the advantage of providing for local administration and at the same time reconciling the conquered city to the loss of its freedom. It was a distinctly Roman institution, and shows the wisdom of the early Roman statesmen who thus marked out the way for the complete absorption of the vanquished into the Roman citizen body, which was thus strengthened to meet its continually increasing military burdens. By 265, the Roman territory in Italy had an area of about 10,000 square miles. It extended along the west coast from the neighborhood of Caere southwards to the southern border of Campania, and from the latitude of Rome it stretched northeastwards through the territory of the Sabini to the Adriatic coast, where the lands of the Picentes and the Senones had been incorporated in the _ager Romanus_.

The Latin colonies. Of the non-Romans in Italy the people most closely bound to Rome by ties of blood and common interests were the Latin allies. Outside the few old Latin cities, that had not been absorbed by Rome in 338, these were the inhabitants of the Latin colonies, of which thirty-five were founded on Italian soil. Prior to the destruction of the Latin League seven of these colonies had been established, whose settlers had been drawn half from the Latin cities and half from Rome. After 338, these colonies remained in alliance with Rome, and those subsequently founded received the same status. But for these the colonists were all supplied by Rome. These colonists had to surrender their Roman citizenship and become Latins, but if any one of them left a son of military age in his place he had the right to return to Rome. Each colony had its own administration, usually modelled upon that of Rome, and enjoyed the rights of _commercium_ and _connubium_ both with Rome and with the other Latin colonies. These settlements were towns of considerable size, having 2,500, 4,000 or 6,000 colonists, each of whom received a grant of 30 or 50 _iugera_ (20 or 34 acres) of land. Founded at strategic points on conquered territory, they formed one of the strongest supports of the Roman authority: at the same time colonization of this character served to relieve over-population and satisfy land-hunger in Rome and Latium. In all their internal affairs the Latin cities were sovereign communities, possessing, in addition to their own laws and magistrates, the rights of coinage and census. Their inhabitants constituted the _nomen Latinum_, and, unlike the Roman _cives sine suffragio_, did not serve in the Roman legions but formed separate detachments of horse and foot.

The Italian allies. The rest of the peoples of Italy, Italian, Greek, Illyrian and Etruscan, formed the federate allies of Rome—the _socii Italici_. These constituted some 150 separate communities, city or tribal, each bound to Rome by a special treaty (_foedus_), whereby its specific relations to Rome were determined. In all these treaties, however, there was one common feature, namely, the obligation to lend military aid to Rome and to surrender to Rome the control over their diplomatic relations with other states. Their troops were not incorporated in the legions, but were organized as separate infantry and cavalry units (_cohortes_ and _alae_), raised, equipped and officered by the communities themselves. However, they were under

the orders of the Roman generals, and if several allied detachments were combined in one corps the whole was under a Roman officer. The allied troops, moreover, received their subsistence from Rome and shared equally with the Romans in the spoils of war. In the case of the seaboard towns, especially the Greek cities, this military obligation took the form of supplying ships and their crews, whence these towns were called naval allies (_socii navales_). All the federate allies had _commercium_, and the majority _connubium_ also, with Rome. Apart from the foregoing obligations towards Rome, each of the allied communities was autonomous, having its own language, laws and political institutions.

However, a strong bond of sympathy existed between the local aristocracies of many of the Italian towns and the senatorial order at Rome. As we have seen, the foreign relations of Rome were directed by the Senate, which represented the views of the wealthier landed proprietors, and it was only natural that the senators should have sought to ally themselves with the corresponding social class in other states. This class represented the more conservative, and, from the Roman point of view, more dependable element, while the support of Rome assured to the local aristocracies the control within their own communities. Consequently there developed a community of interest between the Senate and the propertied classes among the Roman allies.

Thus Rome was at the head of a military and diplomatic alliance of many separate states, whose sole point of contact was that each was in alliance with Rome. As yet there was no such thing as an Italian nation. Still it was from the time that this unity was effected that the name _Italia_ began to be applied to the whole of the peninsula and the term _Italici_ was employed, at first by foreigners, but later by themselves, to designate its inhabitants.(1)

CHAPTER VI

THE CONSTITUTIONAL DEVELOPMENT OF ROME TO 287 B. C.

I. THE EARLY REPUBLIC

While the Romans were engaged in acquiring political supremacy in Italy, the Roman state itself underwent a profound transformation as the result of severe internal struggles between the patrician and the plebeian elements.

The constitution of the early republic: the magistrates. Upon the overthrow of the monarchy, the Romans set up a republican form of government, where the chief executive office was filled by popular election. At the head of the state were two annually elected magistrates, or presidents, called at first praetors but later consuls. They possessed the _auspicium_ or the right to consult the gods on behalf of the state, and the _imperium_, which gave them the right of military command, as well as administrative and judicial authority. Both enjoyed these powers in equal measure and, by his veto, the one could suspend the other’s action. Thus from the beginning of the Republic annuality and collegiality were the characteristics of the Roman

magistracy. Nevertheless, the Romans recognized the advantage of an occasional concentration of all power in the state in the hands of a single magistrate and so, in times of emergency, the consuls, acting upon the advice of the senate, nominated a dictator, who superseded the consuls themselves for a maximum period of six months. The dictator, or _magister populi_, as he was called in early times, appointed as his assistant a master of the horse (_magister equitum_).

The Senate. At the side of the magistrates stood the Senate, a body of three hundred members, who acted in an advisory capacity to the officials, and possessed the power of sanctioning or vetoing laws passed by the Assembly of the People. The senators were nominated by the consuls from the patrician order and held office for life.

The comitia curiata. During the early years of the Republic, the popular Assembly, which had the power of electing the consuls and passing or rejecting such measures as the latter brought before it, was probably the old _comitia curiata_. But, as we shall see, it was soon superseded in most of its functions by a new primary assembly.

The priesthoods. In Rome a special branch of the administration was that of public religion, which dealt with the official relations of the community towards its divine protectors. This sphere was under the direction of a college of priests, at whose head stood the _pontifex maximus_. Special priestly brotherhoods or guilds cared for the performance of particular religious ceremonies, while the use of divination in its political aspect was under the supervision of the college of augurs. With the exception of the _pontifex maximus_, who was elected by the people from an early date, the priesthoods were filled by nomination or coöptation. The Roman priesthood did not form a separate caste in the community but, since these priestly offices were held by the same men who, in another capacity, acted as magistrates and senators, the Roman official religion was subordinated to the interests of the state and tended more and more to assume a purely formal character.

The lines of constitutional development. Both the consulate and the priestly offices, like the senate, were open only to patricians, who thus enjoyed a complete monopoly of the administration. They had been responsible for the overthrow of the monarchy, and, consequently, at the beginning of the Republic they formed the controlling element in the Roman state.

From conditions such as these the constitutional development in Rome to 287 B. C. proceeded along two distinct lines. In the first place there was a gradual change in the magistracy by the creation of new offices with functions adapted to the needs of a progressive, expanding, community; and, secondly, there was a long struggle between the patricians and the plebeians, resulting from the desire of the latter to place themselves in a position of political, legal, and social equality with the former.

II. THE ASSEMBLY OF THE CENTURIES AND THE DEVELOPMENT OF THE MAGISTRACY

The Assembly of the Centuries. At a time which cannot be determined with precision, but most probably early in the fifth century, the Assembly of the Curiae was superseded for elective and legislative purposes by a new assembly, called the Assembly of the Centuries (_comitia centuriata_), of which the organization was modelled upon the contemporary military organization of the state. The land-holding citizens were divided into five classes, according to the size of their properties, and to each class was allotted a number of voting groups, divided equally between the men under 46 years of age (_juniores_) and those who were 46 and over (_seniores_). The number of voting groups, called centuries, in each class was possibly in proportion to the total assessment of that class. Thus the first class had eighty centuries, the second, third, and fourth classes had twenty each, while the fifth class had thirty. Outside of the classes, at first six but later eighteen centuries were allotted to those eligible to serve as cavalry (_equites_) whose property qualification was at least that of the first class; four centuries were given to musicians and mechanics who performed special military service; and one century was assigned to the landless citizens (_proletarii_). Of the total of 193 centuries, the first class had eighty and the equestrians eighteen: together ninety-eight, or a majority of the voting units. As they had the privilege of voting before the other classes, they could, if unanimous, control the Assembly. The term century, it must be noted, which in its original military sense had been applied to a detachment of 100 men, in political usage was applied to a voting group of indefinite numbers. The organization of this Assembly probably was not completed until near the end of the fourth century, when the basis for enrollment in the five census classes was changed from landed estate to the total property assessment reckoned in terms of the copper _as_.

The old Assembly of the Curiae was not abolished, but lost all its political functions except the right to pass a law conferring the _imperium_ upon the magistrates elected by the Assembly of the Centuries. In addition to electing these magistrates the Centuriate Assembly had the sole right of declaring war, voted upon measures presented to it by the consuls, and acted as a supreme court of appeal for citizens upon whom a magistrate had pronounced the death penalty. However, the measures which the Assembly approved had for a long time to receive subsequent ratification by the patrician senators (the _patrum auctoritas_) before they became laws binding on the community. Finally, the importance of this sanction was nullified by the requirement of the Publilian (339?) and Maenian Laws that it be given before the voting took place.

The magistracy: quaestors and aediles. It has been indicated already that the expansion of the Roman magistracy was effected through the creation of new offices, to which were assigned duties that had previously been performed by the consular pair or new functions required by the rise of new conditions in the Roman state.

The first change came in connection with the quaestorship. About the middle of the fifth century, the officials called quaestors, who had previously been appointed by the consuls to act as their assistants, were raised to the status of magistrates and elected by popular vote. Their number was originally two, but in 421 it was increased to four, two of whom acted as officers of the public treasury (_quaestores aerarii_), while two

were assigned to assist the consuls when the latter took the field.

At approximately the same time that the quaestorship became an elective office, the two curators of the temple of Ceres, called aediles, likewise attained the position of public officials. They henceforth acted as police magistrates, market commissioners, and superintendents of public works. As we shall have occasion to note in another connection, these aediles were elected from among the plebeians.

The censors: 443, 435? The next new office to be created was that of censor. The censorship was a commission called into being at five-year intervals and exercised by two men for a period of eighteen months. The original duty of the censors was to take the census of the citizens and their property as a basis for registering the voters in the five classes, for compiling the roster of those eligible for military service, and for levying the property tax (_tributum_). Probably the reason for the establishment of this office is to be sought in the heavy demands that such duties made upon the services of the consuls and the inability of the latter to complete the census within any one consular year. The censors further had charge of the letting of public contracts, and, by the end of the fourth century had acquired the right to compile the list of the senators. As this latter duty involved an enquiry into the habits of life of the senators, there arose that aspect of the censors' power which alone has survived in the modern conception of a censorship.

The military tribunes with consular power. During the period 436 to 362, on fifty-one occasions the consular college of two was displaced by a board of military tribunes with consular power (_tribuni militum consulari potestate_). The number of these military tribunes varied: there were never less than three, more often four or six, while two boards had eight and nine tribunes respectively. As their name indicates, these were essentially military officers, and this lends support to the tradition that they were elected because the military situation frequently demanded the presence in the state of more than two magistrates who could exercise the _imperium_.

The praetorship. However, by 362 this method of meeting the increased burdens of the magistracy was definitely abandoned. For the future two consuls were annually elected, and, in addition, a magistrate called the praetor, to whom was assigned the administration of the civil jurisdiction within the city. The praetor was regarded as a minor colleague of the consuls and held the _imperium_. Consequently, if need arose, he could take command in the field or exercise the other consular functions.

The curule aediles. In the same year there was established the curule aedileship. The two curule aediles were at first elected from the patricians only, and, although their duties seem to have been the same as those of the plebeian aediles, their office was considered more honorable than that of the latter.

Promagistrates. The Roman magistrates were elected for one year only, and after 342 reëlection to the same office could only be sought after an interval of ten years. This system entailed some inconveniences, especially in the conduct of military operations, for in the case of campaigns that lasted longer than one year the consul in command had to give place to his successor as soon as his own term of office had

expired. Thus the state was unable to utilize for a longer period the services of men who had displayed special military capacity. The difficulty was eventually overcome by the prolongation, at the discretion of the Senate, of the command of a consul in the field for an indefinite period after the lapse of his consulship. The person whose term of office was thus extended was no longer a consul, but acted “in the place of a consul” (_pro consule_). This was the origin of the promagistracy. It first appeared in the campaign at Naples in 325, and, although for a time employed but rarely, its use eventually became very widespread.

Characteristics of the magistracy. Thus the Roman magistracy attained the form that it preserved until the end of the Republic. It consisted of a number of committees, each of which, with the exception of the quaestorship, had a separate sphere of action. But among these committees there was a regularly established order of rank, running, from lowest to highest, as follows: quaestors, aediles, censors, praetors, consuls. With the exception of the censorship that was regularly filled by ex-consuls, the magistracies were usually held in the above order. Magistrates of higher rank enjoyed greater authority than all those who ranked below them, and as a rule could forbid or annul the actions of the latter. A magistrate could also veto the action of his colleague in office. In this way the consuls were able to control the activities of all other regular magistrates. However, the extraordinary office of the dictatorship outranked the consulship and consequently the dictator could suspend the action of the consuls themselves. The unity that was thus given to the administration by this conception of _maior potestas_ was increased by the presence of the Senate, a council whose influence over the magistracy grew in proportion as the consulate lost in power and independence through the creation of new offices.

III. THE PLEBEIAN STRUGGLE FOR POLITICAL EQUALITY

The causes of the struggle. Of greater moment in the early history of the republic than the development of the magistracy was the persistent effort made by the plebeians to secure for themselves admission to all the offices and privileges that at the beginning of the republic were monopolized by the patricians. Their demands were vigorously opposed by the latter, whose position was sustained by tradition, by their control of the organs of government, by individual and class prestige, and by the support of their numerous clients. But among the plebeians there was an ever increasing number whose fortunes ranked with those of the patricians and who refused to be excluded from the government. These furnished the leaders among the plebs. However, a factor of greater importance than the presence of this element in determining the final outcome of the struggle was the demand made upon the military resources of the state by the numerous foreign wars. The plebeian soldiers shared equally with the patricians in the dangers of the field, and equality of political rights could not long be withheld from them. As their services were essential to the state, the patrician senators were farsighted enough to make concessions to their demands whenever a refusal would have led to civil warfare. A great cause of discontent on the part of the plebs was the indebtedness of the poorer landholders,

caused in great part by their enforced absence from their lands upon military service and the burden of the _tributum_ or property tax levied for military purposes. Their condition was rendered the more intolerable because of the operation of the harsh debtor laws, which permitted the creditor to seize the person of the debtor and to sell him into slavery.

Evidence that discontent was rife at Rome may be found in the tradition of three unsuccessful attempts to set up a tyranny, that is, to seize power by unconstitutional means, made by Spurius Cassius (478), Spurius Maelius (431), and Marcus Manlius (376), patricians who figure in later tradition as popular champions.

The tribunes of the plebs (466 B. C.), and the assembly of the tribes. The first success won by the plebeians was in securing protection against unjust or oppressive acts on the part of the patrician magistrates. In 466, they forced the patricians to acquiesce in the appointment of four tribunes of the plebs, officers who had the right to extend protection to all who sought their aid, even against the magistrate in the exercise of his functions.(2) The tribunes received power to make effective use of this right from an oath taken by the plebeians that they would treat as accursed and put to death without trial any person who disregarded the tribune’s veto or violated the sanctity of his person. The character of the tribunate and the basis of its power reveal it as the result of a revolutionary movement and as existing in defiance of the patricians. The tribunes were elected in an assembly in which the voting units were tribes, and the number of the tribunes (four) suggests that this assembly was at first composed of the citizens of the four city regions or tribes, and that it was the city plebs who were responsible for the establishment of the tribunate. In this assembly we have the origin of the _comitia tributa_ or Assembly of the Tribes.

The origin of these tribes is uncertain, but by the middle of the fifth century the Roman state was divided into twenty or twenty-one districts, each of which with the citizens resident therein constituted a _tribus_. Four of these were located in the city: the remainder were rural. In the preceding chapter we have seen how the number of the tribes was increased with the incorporation of conquered territory within the Roman state and its occupation by Roman colonists. The tribes were artificial divisions of the community, and served as a basis for the raising of the levy and the _tributum_.

Plebeian aediles. Associated with the tribunes as officers of the plebs were two aediles (_aediles plebi_). It has been conjectured that they were originally the curators of the temple of Ceres (established 492?), which was in a special sense a plebeian shrine. As we have seen they later became magistrates of the whole people.

The codification of the law. About the middle of the fifth century the plebeians secured the codification and publication of the law. Hitherto the law, which consisted essentially of customs and precedents, and was largely sacral in character, had been known only to the magistrates and to the priests, that is to members of the patrician order. At this time, two commissions of ten men each, working in successive years (444–2?) drew up these customs into a code, which, with subsequent additions, formed what was later called the Law of the XII Tables. This code was in no sense a

constitution, but embodied provisions of both civil and criminal law, with rules for legal procedure and police regulations. Notable is the provision which guaranteed the right of appeal to the Assembly of the Centuries in capital cases.

Development of the tribunate and the comitia tributa. The years which saw the publication of the code mark an important stage in the struggle of the orders. Serious trouble arose between the patricians and the plebs under the second college of law-givers, and the difference was only settled by a treaty which restored the tribunate, that had been suspended when the decemvirs were first elected. Henceforth the number of tribunes was ten instead of four and their position and powers received legal recognition from the patricians. From this time on, too, the _comitia tributa_, now embracing all the tribes, the rural as well as the urban, was a regular institution of the state. The Assembly of the Tribes was originally, and perhaps always remained in theory, restricted to the plebeians. And it is improbable that the patricians ever sought to participate in it. At any rate, there is no adequate reason for believing in the existence of two assemblies of this sort, the one composed of both patricians and plebeians and the other of plebeians only.

The Assembly of the Tribes not only elected the plebeian tribunes and aediles, but soon chose the quaestors also. Furthermore, the patrician magistrates, finding this Assembly in many ways more convenient for the transaction of public business than the Assembly of the Centuries which met in the Campus Martius outside the _pomerium_ and required more time to register its opinion because of the greater number of voting units, began to convene it to approve measures, which, if previously sanctioned by a decree of the Senate, became law. The tribunes likewise presented resolutions to the Assembly of the Tribes, and these, too, if sanctioned by the Senate, were binding on the whole community. Such laws were called plebiscites (_plebi scita_) in contrast with the _leges_ passed by an assembly presided over by a magistrate with _imperium_. It became the ambition of the tribunes to obtain for their plebiscites the force of law without regard to the Senate’s approval.

The lex Canuleia. The social stigma which rested upon the plebeians because they could not effect a legal marriage with the patricians, a disability that had been maintained by the law of the XII Tables, was removed by the Canuleian Law in 437.

The plebs and the magistracy. The plebeians did not rest content with having spokesmen and defenders in the tribunes: they also demanded admission to the consulate and the Senate. In 421 plebeians were admitted to the quaestorship, and by that time the plebeian aediles could be looked upon as magistrates, but the patricians tenaciously maintained their monopoly of the _imperium_ until, in 396, a plebeian was elected a military tribune with consular power.(3)

Perhaps the appearance of plebeian military tribunes at this time may be explained on the ground that the vicissitudes of the war with Veii forced the patricians to accept as magistrates the ablest available men in the state even if of plebeian origin.

With the military tribunate the plebeians had held an office that conferred the right to the _imperium_. Consequently, when the consulship was definitely reëstablished in 362, they could not logically be excluded from it. In 362 the first

plebeian consul was elected, but it was not until 340 that the practice became established that one consul must, and the other might, be a plebeian.

After their admission to the consulship the plebeians were eligible to all the other magistracies. They gained the dictatorship in 356, the censorship in 351, and the praetorship in 337. Eventually, the curule aedileship also was opened to them, and was held by patricians and plebeians in alternate years.

The plebs and the Senate. Since the custom was early established that ex-consuls, and later ex-praetors, should be enrolled in the Senate, with the opening of these offices to the plebs the latter began to have an ever-increasing representation in that body. As distinguished from the _patres_ or patrician senators, the plebeians were called _conscripti_, “the enrolled,” and this distinction was preserved in the official formula _patres conscripti_ used in addressing the Senate. In this fusion of the leading plebeians with the patricians in the Senate we have the origin of a new aristocracy in the Roman state: the so-called senatorial aristocracy or _nobilitas_. This consisted of a large group of influential patrician and plebeian families which, for some time at least, was continuously quickened and revivified by the accession of prominent plebeians who entered the Senate by way of the magistracies. Thus the Senate, by opening its ranks to the leaders of the plebs, contrived to emerge from the struggle with its prestige and influence increased rather than impaired.

Appius Claudius, censor, 310 B. C. An episode which illustrates the growing democratic tendencies of the time is the censorship of Appius Claudius, in 310, whose office is memorable for the construction of the Via Appia and the Aqua Appia, Rome’s first aqueduct. In his revision of the Senate, Appius ventured to include among the senators persons who were the sons of freedmen, and he permitted the landless population of the city to enroll themselves in whatever tribal district they pleased. This latter step was taken to increase the power of the city plebs, who had previously been confined to the four city tribes, but who might now spread their votes over the rural districts, of which there were now twenty-seven. However, the work of Appius was soon undone. The consuls refused to recognize the senatorial list prepared by him and his colleague, and the following censors again restricted the city plebs to the urban tribes.

The plebs and the priesthood. The last stronghold of patrician privilege was the priesthood which was opened to the plebeians by the Ogulnian Law of 300 B. C. The number of pontiffs and augurs was increased and the new positions were filled by plebeians. The patricians could no longer make use of religious law and practice to hamper the political activity of the plebs.

*The Hortensian **Law**, 287 B. C.* The end of the struggle between the orders came with the secession of 287 B. C. Apparently this crisis was produced by the demands of the farming population who had become heavily burdened with debt as a result of the economic strain put upon them by the long Samnite wars. Refusal to meet their demands led to a schism, and the plebeian soldiers under arms seceded to the Janiculum. A dictator, Quintus Hortensius, appointed for the purpose, settled the

differences and passed a _lex Hortensia_, which provided that for the future all measures passed in the _comitia tributa_, even without the previous approval of the Senate, should become binding on the whole state. Thus the Assembly of the Tribes as a legislative body acquired greater independence than the Assembly of the Centuries.

The two assemblies of the people. Henceforth, the Assembly of the Tribes tended to become more and more the legislative assembly _par excellence_, while the Assembly of the Centuries remained the chief elective assembly. For legislative purposes the Assembly of the Tribes could be convened by a magistrate with _imperium_ or by a tribune; for the election of the plebeian tribunes and aediles it had to be summoned by a tribune; while to elect the quaestors and curule aediles it must be called together by a magistrate. For all purposes the Assembly of the Centuries had to be convened and presided over by a magistrate. It elected the consuls, praetors, censors and, eventually, twenty-four military tribunes for the annual levy. It must be kept in mind that these were both primary assemblies, that each comprised the whole body of Roman citizens, but that they differed essentially in the organization of the voting groups. As we have seen the wealthier classes dominated the Assembly of the Centuries, but in the Assembly of the Tribes, which was the more democratic body, a simple majority determined the vote of each tribe.

The increased importance of the tribunate. The importance of the tribunes was greatly enhanced by the Hortensian Law, as well as by various privileges which they had already acquired by 287 or gained shortly after that date. The more important of these powers were the right to sit in the Senate, to address, and even to convene that body, and the right to prosecute any magistrate before the _comitia tributa_. The first of these powers was a development of the tribunician veto, whereby this was given to a proposal under discussion in the Senate rather than upon a magistrate’s attempt to execute it after it had taken the form of a law or a senatorial decree. To permit the tribunes to interpose their veto at this stage they had to be allowed to hear the debates in the Senate. At first they did so from their bench which they set at the door of the meeting-place, but finally they were permitted to enter the council hall itself. The power of prosecution made the tribunes the guardians of the interests of the state against any misconduct on the part of a magistrate. From this time on the tribunes have practically the status of magistrates of the Roman people.

The struggle of the orders left its mark on the Roman constitution in providing Rome with a double set of organs of government. The tribunate, plebeian aedileship, and _comitia tributa_ arose as purely plebeian institutions, but they came to be incorporated in the governmental organization of the state along with the magistracies and the assemblies that had always been institutions of the whole Roman people.

IV. THE ROMAN MILITARY SYSTEM

Upon the history of no people has the character of its military institutions exercised a more profound effect than upon that of Rome. The Roman military system rested

upon the universal obligation of the male citizens to render military service, but the degree to which this obligation was enforced varied greatly at different periods. For the mobilization of the man power of the state was dependent upon the type of equipment, methods of fighting, and organization of tactical units in vogue at various times, as well as upon the ability of the state to equip its troops and the strength of the martial spirit of the people.

The army of the primitive state. In all probability the earliest Roman army was one of the Homeric type, where the nobles who went to the battlefield on horseback or in chariots were the decisive factor and the common folk counted for little.

The phalanx organization. However, at an early date, under Etruscan influences according to tradition, the Romans adopted the phalanx organization, making their tactical unit the long deep line of infantry armed with lance and shield. Those who were able to provide themselves with the armor necessary for taking their place in the phalanx formed the _classis_ or “levy.” The rest were said to be _infra classem_, and were only called upon to act as light troops. But military necessities compelled the state to incorporate with the heavy-armed infantry increasingly large contingents of the less wealthy citizens, who could not provide themselves with the full equipment of those in the _classis_, but who could form the rear ranks of the phalanx. As a result of this step the citizens were ultimately divided into five orders or classes on the basis of their property, and probably in raising the levy the required number of soldiers of each class was drafted in equal proportions from the several tribes. The first three classes constituted the phalanx, while the fourth and fifth continued to serve as light troops (_rorarii_). Those who lacked the property qualification of the lowest class were only called into service in cases of great emergency. For such a system the taking of an accurate census was essential, and it is more than likely that the office of censor was instituted for this purpose. As we have seen, it was from this organization of the people for military purposes that there developed the Assembly of the Centuries.

The introduction of pay for the troops in the field at the time of the siege of Veii both lessened the economic burden which service entailed upon the poorer soldiers and enabled the Romans to undertake campaigns of longer duration, even such as involved winter operations.

The manipular legion. How long the phalanx organization was maintained we do not know: at any rate it did not survive the Samnite wars. In its place appeared the legionary formation, in which the largest unit was the legion of about four thousand infantry, divided into maniples of one hundred and twenty (or sixty) men, each capable of manœuvering independently. This arrangement admitted of increased flexibility of movement in broken country, and of the adoption of the _pilum_, or javelin, as a missile weapon. Both the _pilum_ and the _scutum_, or oblong shield, were of Samnite origin. While reorganizing their infantry, the Romans strengthened the _equites_ and developed them as a real cavalry force.

Apparently property qualifications no longer counted for much in the army organization, as the men were assigned to their places in the ranks on the basis of

age and experience, and the state furnished the necessary weapons to those who did not provide their own. By the third century, all able-bodied men holding property valued at 4000 asses were regularly called upon for military service. The others were liable to naval service, but only in cases of great need were they enrolled in the legions. Ordinarily, the service required amounted to sixteen campaigns in the infantry and ten in the cavalry. The field army was raised from those between seventeen and forty-six years of age: those forty-six and over were liable only for garrison duty in the city. The regular annual levy consisted of four legions, besides 1800 cavalry. This number could be increased at need, and the Roman forces in the field were supplemented by at least an equal number in the contingents from the Italian allies.

The Roman army was thus a national levy: a militia. It was commanded by the consuls, the annually elected presidents of the state. Yet it avoided the characteristic weaknesses of militia troops, for the frequency of the Roman wars and the length of the period of liability for service assured the presence of a large quota of veterans in each levy and maintained a high standard of military efficiency. Furthermore, the consuls, if not always good generals, were generally experienced soldiers, for a record of ten campaigns was required of the candidate for public office. Likewise their subordinates, the military tribunes, were veterans, having seen some five and others ten years' service. But the factor that contributed above all else to the success of the Roman armies was their iron discipline. The consular _imperium_ gave its holder absolute power over the lives of the soldiers in the field, and death was the penalty for neglect of duty, disobedience, or cowardice. The most striking proof of the discipline of the Roman armies is that after every march they were required to construct a fortified camp, laid out according to fixed rules and protected by a ditch, a wall of earth, and a palisade for which they carried the stakes. No matter how strenuous their labors had been, they never neglected this task, in striking contrast to the Greek citizen armies which could not be induced to construct works of this kind. The fortified camp rendered the Romans safe from surprise attacks, allowed them to choose their own time for joining battle, and gave them a secure refuge after a defeat. It played a very large part in the operations of the Roman armies, especially such as were conducted in hostile territory.

CHAPTER VII

EARLY RELIGION AND SOCIETY

I. EARLY ROMAN RELIGION

Animism. The Roman religion of the historic republic was a composite of beliefs and ceremonies of various origins. The basic stratum of this system was the Roman element: religious ideas that the Romans probably held in common with the other Latin and Italian peoples. Although traces of a belief in magic; and of the worship of natural objects and animals, survived from earlier stages of religious development, it

was “animism” that formed the basis of what we may call the characteristic Roman religious ideas. Animism is the belief that natural objects are the abode of spirits more powerful than man, and that all natural forces and processes are the expression of the activity of similar spirits. When such powers or _numina_ were conceived as personalities with definite names they became ‘gods,’ _dei_. And because the primitive Roman gods were the spirits of an earlier age, for a long time the Romans worshipped them without images or temples. But each divinity was regarded as residing in a certain locality and only there could his worship be conducted. The true Roman gods lacked human attributes: their power was admitted but they inspired no personal devotion. Consequently, Roman theology consisted in the knowledge of these deities and their powers and of the ceremonial acts necessary to influence them.

The importance of ritual. The Romans, while recognizing their dependence upon divine powers, considered that their relation to them was of the nature of a contract. If man observed all proper ritual in his worship, the god was bound to act propitiously: if the god granted man’s desire he must be rewarded with an offering. If man failed in his duty, the god punished him: if the god refused to hearken, man was not bound to continue his worship. Thus Roman religion consisted essentially in the performance of ritual, wherein the correctness of the performance was the chief factor.

But since the power of the gods could affect the community as well as the individual, it was necessary for the state to observe with the same scrupulous care as the latter its obligations towards them. The knowledge of these obligations and how they were to be performed constituted the sacred law of Rome, which became a very important part of the public law. This sacred law was guarded by the priesthood, and here we have the source of the power of the pontiffs in the Roman state. The pontiffs not only preserved the sacred traditions and customs but they also added to them by interpretation and the establishment of new precedents. The pontiffs themselves performed or supervised the performance of all public acts of a purely religious nature, and likewise prescribed the ritual to be observed by the magistrate in initiating public acts.

On the other hand the power of the augurs rested upon the belief that the gods issued their warnings to men through natural signs, and that it was possible to discover the attitude of the gods towards any contemplated human action by the observation of natural phenomena. For the augurs were the guardians of the science of the interpretation of such signs or auspices in so far as the state was concerned. The magistrate initiating any important public act had to take the auspices, and if the augurs declared any flaw therein or held that any unfavorable omen had occurred during the performance of the said act, they could suspend the magistrate’s action or render it invalid.

So we see that the Roman priests were not intermediaries between the individual Roman and his gods, but rather, as has been pointed out before, officers in charge of one branch of the public administration. They were responsible for the due observance of the public religious acts, just as the head of the household supervised

the performance of the family cult.

The cult of the household. It is in the cult of the household that we can best see the true Roman religious ideas. The chief divinities of the household were: Janus, the spirit of the doorway; Vesta, the spirit of the fire on the hearth; the Penates, the guardian spirits of the store-chamber; the Lar Familiaris, which we may perhaps regard as the spirit of the cultivated land; and the Genius of the head of the house, originally, it is probable, the spirit of his generative powers, which became symbolic of the life of the family as a whole.

The Romans, strictly speaking, did not practice ancestor-worship. But they believed that the spirits of the departed were affected by the ministrations of the living, and, in case these were omitted, might exercise a baneful influence upon the fortunes of their descendants. Hence came the obligation to remember the dead with offerings at stated times in the year.

The cult of the fields. As early Rome was essentially an agricultural community, most of its divinities and festivals had to do with the various phases of agricultural life. Festivals of the sowing, the harvest, the vineyard and the like, were annually celebrated in common, at fixed seasons, by the households of the various _pagi_.

The state cult. The public or state cult of Rome consisted mainly in the performance of certain of the rites of the household and of the _pagi_ by or for the people as a whole. The state cult of Vesta and of the Penates, as well as the festival of the Ambarvalia, the annual solemn purification of the fields, are of this nature. But, in addition, the state religion included the worship of certain divinities whose personalities and powers were conceived with greater distinctness. At the beginning of the Republic the chief of these gods were the triad Juppiter, Juno, and Minerva. Juppiter Optimus Maximus, called also Capitolinus from his place of worship, was originally a god of the sky. But, adorned with various other attributes, he was finally worshipped as the chief protecting divinity of the Roman State. Juno was the female counterpart of Juppiter and was the great patron goddess of women. Another important deity was Mars, at one time an agricultural divinity, who in the state religion developed into the god of warlike, “martial,” activities.

Foreign influences. It was in connection with the state worship that foreign influences were first felt. Indeed, it is probable that the association of Juppiter with Juno and Minerva was due to contact with Etruria. It was from the Etruscans also that the Romans derived their knowledge of temple construction, the earliest example of which was probably the temple of Juppiter on the Capitoline said to have been dedicated in 508 B. C. The use of images was likewise due to Etruscan influences, although here as in other respects Greek ideas may have been at work. In general the Romans did not regard the gods of strange people with hostility, but rather admitted their power and sought to conciliate them. Thus they frequently transferred to Rome the gods of states that they had conquered or absorbed. Other foreign divinities, too, on various grounds were added to the circle of the divine protectors of the Roman state.

Religion and morality. From the foregoing sketch it will be seen that the Roman religion did not have profound moral and elevating influences. Its hold upon the Roman people was chiefly due to the fact that it symbolized the unity of the various groups whose members participated in the same worship; i. e. the unity of the family and the unity of the state. Nevertheless, the idea of obligation inherent in the Roman conception of the relation between gods and men and the stress laid upon the exact performance of ritual inevitably developed among the Romans a strong sense of duty, a moral factor of considerable value. Further, the power of precedent and tradition in their religion helped to develop and strengthen the conservatism so characteristic of the Roman people.

II. EARLY ROMAN SOCIETY

The household. The cornerstone of the Roman social structure was the household (_familia_). That is to say, the state was an association of households, and it was the individual's position in a household that determined his status in the early community. The Roman household was a larger unit than our family. It comprised the father or head of the household (_pater familias_), his wife, his sons with their wives and children, if they had such, his unmarried daughters, and the household slaves.

The patria potestas. The _pater familias_ possessed authority over all other members of the household. His power over the free members was called _patria potestas_, "paternal authority"; over the slaves it was _dominium_, "lordship." This paternal authority was in theory unrestricted and gave the father the right to inflict the death penalty upon those under his power. But, in practice, the exercise of the _patria potestas_ was limited by custom and by the habit of consulting the older male members of the household before any important action was taken.

The household estate (_res familiaris_) was administered by the head of the household. At the death of a _pater familias_ his sons in turn became the head of _familiae_, dividing the estate. The mother and unmarried daughters, if surviving, now passed into the power of a son or the next nearest male relative of the deceased. Although the Roman women were thus continually in the position of wards, they nevertheless took a prominent part in the life of the household and did not live the restricted and secluded lives of the women of Athens and the Greek cities of Asia.

Membership in the household was reckoned only through male descent, for daughters when they married passed out of the _manus_ or "power" of the head of their own household into that of the head of the household to which their husbands belonged.

Education. The training of the Roman youth at this time was mainly of a practical nature. There was as yet little interest in intellectual pursuits and no Roman literature had been developed. The art of writing, it is true, had long been known and was employed in the keeping of records and accounts. Such instruction as there was, was given by the father to his sons. It consisted probably of athletic exercises, of practical training in agricultural pursuits, in the traditions of the state and of the Roman heroes, and in the conduct of public business through attendance at places

where this was transacted.

At the age of eighteen the young Roman entered upon a new footing in relation to the state. He was now liable to military service and qualified to attend the _comitia_. In these respects he was emancipated from the paternal authority. If he attained a magistracy, his father obeyed him like any other citizen.

The discipline and respect for authority which was acquired in the family life was carried with him by the Roman into his public relations, and this sense of duty was perhaps the strongest quality in the Roman character. It was supplemented by the characteristic Roman seriousness (_gravitas_), developed under the stress of the long struggles for existence waged by the early Roman state. In the Roman the highest virtue was piety (_pietas_), which meant the dutiful performance of all one's obligations, to the gods, to one's kinsmen, and to the state. The Romans were preëminently a practical people, and their practical virtues laid the foundation for their political greatness.

The mos maiorum. We have already referred to the conservatism of the Romans, and have seen how this characteristic was affected by their religious beliefs. It was further strengthened by the respect paid to parental authority and by the absence of intellectual training. In public affairs this conservatism was shown by the influence of ancestral custom—the _mos maiorum_. In the Roman government this became a very potent factor, since the Roman constitution was not a single comprehensive document but consisted of a number of separate enactments supplemented by custom and precedent and interpreted in the light thereof.

CHAPTER VIII

ROMAN DOMINATION IN THE MEDITERRANEAN; THE FIRST PHASE—THE STRUGGLE WITH CARTHAGE; 265–201 B. C.

I. THE MEDITERRANEAN WORLD IN 265 B. C.

Rome a world power. With the unification of the Italian peninsula Rome entered upon a new era in her foreign relations. She was now one of the great powers of the Mediterranean world and was inevitably drawn into the vortex of world politics. She could no longer rest indifferent to what went on beyond the confines of Italy. She assumed new responsibilities, opened up new diplomatic relations, developed a new outlook and new ambitions. At this time the other first-class powers were, in the east, the three Hellenistic monarchies—Egypt, Syria, and Macedon,—which had emerged from the ruins of the empire of Alexander the Great, and, in the west, the city state of Carthage.

Egypt. The kingdom of Egypt, ruled by the dynasty of the Ptolemies, comprised the ancient kingdom of Egypt in the Nile valley, Cyrene, the coast of Syria, Cyprus, and a number of cities on the shores and islands of the Aegean Sea. In Egypt the Ptolemies ruled as foreigners over the subject native population. They maintained their authority by a small mercenary army recruited chiefly from Macedonians and Greeks, and by a strongly centralized administration, of which the offices were in

Greek hands. As the ruler was the sole proprietor of the land of Egypt, the native Egyptians, the majority of whom were peasants who gained their livelihood by tilling the rich soil of the Nile valley, were for the most part tenants of the crown, and the restrictions and obligations to which they were subject rendered their status little better than that of serfs. A highly developed but oppressive system of taxation and government monopolies, largely an inheritance from previous dynasties, enabled the Ptolemies to wring from their subjects the revenues with which they maintained a brilliant court life at their capital, Alexandria, and financed their imperial policy.

[Illustration: The Expansion of Rome in the Mediterranean World 265–44 B. C.]

The aim of this policy was to secure Egyptian domination in the Aegean, among the states of Southern Greece, and in Phoenicia, whose value lay in the forests of the Lebanon mountains. To carry it into effect the Ptolemies were obliged to support a navy which would give them the command of the sea in the eastern Mediterranean. However, the occupation of their outlying possessions brought Egypt into perpetual conflict with Macedon and Syria, whose rulers made continued efforts to oust the Ptolemies from the Aegean and from the Syrian coast.

Syria. Syria, the kingdom of the Seleucids, with its capital at Antioch on the Orontes, was by far the largest of the Hellenistic monarchies in extent and population, and in wealth it ranked next to Egypt. It stretched from the Aegean to the borders of India, and included the southern part of Asia Minor, Mesopotamia, Persia, and northern Syria. But the very size of this kingdom was a source of weakness, because of the distances which separated its various provinces and the heterogeneous racial elements which it embraced. The power of the dynasty was upheld, as in Egypt, by a mercenary army, and also by the Greek cities which had been founded in large numbers by Alexander the Great and his successors. However, these islands of Greek culture did not succeed to any great extent in Hellenizing the native populations which remained in a state of subjection, indifferent or hostile to their conquerors. Furthermore the strength of the Seleucid empire was sapped by repeated revolts in its eastern provinces and dissensions between the members of the dynasty itself.

Macedon. The kingdom of Macedon, ruled by the house of the Antigonids, was the smallest of the three in extent, population and resources, but possessed an internal strength and solidarity lacking in the others. For in Macedon, the Antigonids, by preserving the traditional character of the patriarchal monarchy, kept alive the national spirit of the Macedonians and made them loyal to the dynasty. They also retained a military system which fostered the traditions of the times of Philip II and Alexander, and which, since the Macedonian people had not lost its martial character, furnished a small but efficient national army. Outside of Macedon, the Antigonids held sway over Thessaly and the eastern part of Greece as far south as the Isthmus of Corinth. Their attempts to dominate the whole peninsula were thwarted by the opposition of the Aetolian and Achaian Confederacies, who were supported in this by the Ptolemies.

The minor Greek states. In addition to these three great monarchies we should note as powers of minor importance the Confederacies mentioned before, the kingdom of Pergamon on the northwest coast of Asia Minor, the island republic of Rhodes, which was a naval power of considerable strength, and the kingdom of Syracuse in Sicily, the last of the independent Greek cities on that island.

Carthage. The fourth world power was Carthage, a city state situated on the northern coast of Africa, opposite the western end of the island of Sicily, which had created for itself an empire that controlled the western half of the Mediterranean. Carthage was founded as a colony of the Phoenician city of Tyre about 814 B. C. In the sixth century, with the passing of the cities of Phoenicia under the domination, first of Babylon, and later of the Persian Empire, their colonies in the western Mediterranean severed political ties with their mother land and had henceforth to maintain themselves by their own efforts.

The Carthaginian Empire. Their weakness was the opportunity of Carthage, which, in the sixth and following centuries, brought under her control the other Phoenician settlements, in addition to founding new colonies of her own. She also extended her sway over the native Libyan population in the vicinity of Carthage. These Libyans were henceforth tributary and under the obligation of rendering military service to the Carthaginians: similar obligations rested upon the dependent Phoenician allies. In the third century the Carthaginian empire included the northern coast of Africa from the Gulf of Syrtis westwards beyond the Straits of Gibraltar, the southern and eastern coasts of Spain as far north as Cape Nao, Corsica, Sardinia, and Sicily, with the exception of Messana in the extreme northeast and the Kingdom of Syracuse in the southeastern part of the island. The smaller islands of the western Mediterranean were likewise under Carthaginian control.

The government of Carthage. At this time the government of Carthage itself was republican in form and strongly aristocratic in tone. There was a primary Assembly for all Carthaginian citizens who could satisfy certain age and property requirements. This body annually elected the two chief magistrates or suffetes, and likewise the generals. For the former qualifications of wealth and merit were prescribed. There was also a Senate, and a Council, whose organization and powers are uncertain. The Council, the smaller body, prepared the matters to be discussed in the Senate, which was consulted by the Suffetes on all matters and usually gave the final decision, although the Assembly was supposed to be consulted in case the Senate and Suffetes disagreed. The Suffetes exercised judicial, financial and religious functions, and presided over the council and senate. The Carthaginian aristocracy, like that of Venice, was a group of wealthy families whose fortunes, made in commercial ventures, were handed down for generations in the same houses. From this circle came the members of the council and senate, who directed the policy of the state. The aristocracy itself was split into factions, struggling to control the offices and through them the public policy, which they frequently subordinated to their own particular interests.

The commercial policy of Carthage. The prosperity of Carthage depended upon her empire and the maintenance of a commercial monopoly in the western

Mediterranean. This policy of commercial exclusiveness had caused Carthage to oppose Greek colonial expansion in Spain, Sardinia and Sicily, and had led to treaties which placed definite limits upon the trading ventures of the Romans and their allies, and of the Greeks from Massalia and her colonies in France and northern Spain.

*Carthaginian naval and **military** strength.* Such a policy could only be maintained by a strong naval power, and, in fact, Carthage was the undisputed mistress of the seas west of the straits of Messana. Unlike Rome, however, Carthage had no organized national army but relied upon an army of mercenaries recruited from all quarters of the Mediterranean, among such warlike peoples as the Gauls, Spaniards, Libyans and Greeks. Although brave and skillful fighters, these, like all troops of the type, were liable to become dispirited and mutinous under continued reverses or when faced by shortage of pay and plunder.

Such was the state with which Rome was now brought face to face by the conquest of South Italy and which was the first power she was to challenge in a war for dominion beyond the peninsula. As we have seen, Rome had long ere this come into contact with this great maritime people.(4) Two treaties, one perhaps dating from the close of the sixth century, and the other from 348 B. C., regulated commercial intercourse between the two states and their respective subjects and allies. A third, concluded in 279, had provided for military coöperation against Pyrrhus, but this alliance had ceased after the defeat of the latter, and with the removal of this common enemy a feeling of coolness or mutual suspicion seems to have arisen between the erstwhile allies.

II. THE FIRST PUNIC WAR: 264–241 B. C.

The origins of the war. The first war between Rome and Carthage arose out of the political situation in the island of Sicily. There the town of Messana was occupied by the Mamertini, a band of Campanian mercenaries, who had been in the service of Syracuse but who had deserted and seized this town about 284 B. C. Because of their perpetual acts of brigandage they were a menace to their neighbors, the Syracusans. The latter, now under an energetic ruler, Hiero, who had assumed the title of king, in 265 succeeded in blockading Messana and its ultimate capture seemed certain. In despair the Mamertini sought help from the Carthaginians who sent a garrison to Messana, for they looked with jealousy upon any extension of Syracusan territory. However, the majority of the Mamertini sought to be taken under the protection of Rome and appealed to the Roman Senate for aid. The senators on the one hand saw that to espouse the cause of the Mamertini would be to provoke a war with Carthage, an eventuality before which they shrank, but on the other hand they recognized that the Carthaginian occupation of Messana would give them the control of the Straits of Messana and constitute a perpetual threat against southern Italy. The strength of these conflicting considerations made them unwilling to assume responsibility for a decision and they referred the matter to the Assembly of the Centuries. Here the people, elated, apparently, by their recent victorious wars in Italy, and led on by hopes of pecuniary advantage to be derived from the war, decided to admit the Mamertini to the Roman alliance. One consul, Appius Claudius, was sent with a small force to relieve the town (264).

The Mamertini induced the Carthaginian garrison to withdraw, and then admitted the Roman force which crossed the straits with the aid of vessels furnished by their Greek allies in Italy. Thereupon the Carthaginians made an alliance with the Syracusans, but the Romans defeated each of them.

Alliance of Rome and Syracuse. In the next year the Romans sent a larger army into Sicily to attack Syracuse and met with such success that Hiero became alarmed, and, making peace upon easy terms, concluded an alliance with them for fifteen years.(5) Aided by Hiero the Romans now began an attack upon Agrigentum, the Carthaginian stronghold which threatened Syracuse. When this was taken in 262, they determined to drive the Carthaginians from the whole island.

Rome builds a fleet. However, Roman operations in Sicily could only be conducted at considerable risk and the coasts of Italy remained exposed to continued raids as long as Carthage had undisputed control of the sea. Consequently the Romans decided to build a fleet that would put an end to the Carthaginian naval supremacy. They constructed 120 vessels, of which 100 were of the type called quinquiremes, the regular first class battleships of the day. The complement of each was three hundred rowers and one hundred and twenty fighting men.(6) With this armament, and some vessels from the Roman allies, the consul, Gaius Duilius, put to sea in 260 B. C. and won a decisive battle off Mylae on the north coast of Sicily. As a result of this battle in the next year the Romans were able to occupy Corsica and attack Sardinia, and finding it impossible to force a decision in Sicily, they were in a position to attack Carthage in Africa itself.

The Roman invasion of Africa, 256 B. C. Another naval victory, off Ecnomus, on the south coast of Sicily, cleared the way for the successful landing of an army under the consul Marcus Atilius Regulus. He defeated the Carthaginians in battle and reduced them to such extremities that they sought to make peace. But the terms which Atilius proposed were so harsh that in desperation they resumed hostilities. At this juncture there arrived at Carthage, with other mercenaries, a Spartan soldier of fortune, Xantippus, who reorganized the Carthaginian army. By the skilful use of cavalry and war elephants he inflicted a crushing defeat upon the Romans and took Atilius prisoner. A Roman fleet rescued the remnants of the expedition, but was almost totally lost in a storm off the southern Sicilian coast (255).

The war in Sicily, 254–241 B. C. The Romans again concentrated their efforts against the Carthaginian strongholds in Sicily, which they attacked from land and sea. In 254 they took the important city of Panormus, and the Carthaginians were soon confined to the western extremity of the island. There, however, they successfully maintained themselves in Drepana and Lilybaeum. Meantime the Romans encountered a series of disasters on the sea. In 253 they lost a number of ships on the voyage from Lilybaeum to Rome, in 250 the consul Publius Clodius suffered a severe defeat in a naval battle at Drepana, and in the next year a third fleet was destroyed by a storm off Phintias in Sicily.

In 247 a new Carthaginian general, Hamilcar Barca, took command in Sicily and infused new life into the Carthaginian forces. From the citadel of Hercte first, and

later from Eryx, he continually harassed the Romans not only in Sicily but even on the coast of Italy. Finally, in 242 B. C., when their public treasury was too exhausted to build another fleet, the Romans by private subscription equipped 200 vessels, which undertook the blockade of Lilybaeum and Drepana. A Carthaginian relief expedition was destroyed off the Aegates Islands, and it was impossible for their forces, now completely cut off in Sicily, to prolong the struggle. Carthage was compelled to conclude peace in 241 B. C.

The terms of peace. Carthage surrendered to Rome her remaining possessions in Sicily, with the islands between Sicily and Italy, besides agreeing to pay an indemnity of 3200 talents (about $3,500,000) in twenty years. For the Romans the long struggle had been very costly. At sea alone they had lost in the neighborhood of 500 ships and 200,000 men. But again the Roman military system had proven its worth against a mercenary army, and the excellence of the Roman soldiery had more than compensated for the weakness in the custom of annually changing commanders. Moreover, the military federation which Rome had created in Italy had stood the test of a long and weary war, without any disloyalty being manifest among her allies. On the other hand, the losses of Carthage had been even more heavy, and, most serious of all, her sea power was broken and Rome controlled the western Mediterranean.

The revolt of the Carthaginian mercenaries. Weakened as she was after the contest with Rome, Carthage became immediately thereafter involved in a life and death struggle with her mercenary troops. These, upon their return from Sicily, made demands upon the state which the latter found hard to meet and consequently refused. Thereupon the mercenaries mutinied and, joining with the native Libyans and the inhabitants of the subject Phoenician cities (Libyphoenicians), entered upon a war for the destruction of Carthage. After a struggle of more than three years, in which the most shocking barbarities were practised on either side and in which they were brought face to face with utter ruin, the Carthaginians under the leadership of Hamilcar Barca stamped out the revolt (238 B. C.).

Rome acquires Sardinia. Up to this point Rome had looked on without interference, but now, when Carthage sought to recover Sardinia from the mutinous garrison there, she declared war. Carthage could not think of accepting the challenge and bought peace at the price of Sardinia and Corsica and 1200 talents ($1,500,000). This unjustifiable act of the Romans rankled sore in the memories of the Carthaginians.

III. THE ILLYRIAN AND GALLIC WARS: 229–219 B. C.

The first Illyrian war: 229–228 B. C. In assuming control of the relations of her allies with foreign states, Rome had assumed responsibility for protecting their interests, and it was the fulfillment of this obligation which brought the Roman arms to the eastern shores of the Adriatic.

Under a king named Agron an extensive but loosely organized state had been formed among the Illyrians, a semibarbarous people inhabiting the Adriatic coast to the north of Epirus. These Illyrians were allied with the kingdom of Macedonia and sided with the latter in its wars with Epirus and the Aetolian and Achaean

Confederacies. In 231 Agron died and was succeeded by his queen Teuta, who continued his policy of attacking the cities on the west coast of Greece and practising piracy on a large scale in the Adriatic and Ionian seas. Among those who suffered thereby were the south Italian cities, which in 230 B. C. as the result of fresh and more serious outrages appealed to Rome for redress. Thereupon the Romans demanded satisfaction from Teuta and, upon their demands being contemptuously rejected, they declared war.

The Romans cross the Adriatic: 229 B. C. In the next spring, 229 B. C., the Romans sent against the Illyrians a fleet and an army of such strength that the latter could offer but little resistance and in the next year were forced to sue for peace. Teuta had to give up a large part of her territory, to bind herself not to send a fleet into the Ionian sea, and to pay tribute to Rome. Corcyra, Epidamnus, Apollonia, and other cities became Roman allies.

The fact that Rome first crossed the Adriatic to prosecute a war against the Illyrians placed her in hostility to their ally, Macedonia, the greatest of the Greek states. And although Macedonia had been unable to offer aid to the Illyrians because of dynastic troubles that had followed the death of King Demetrius (229 B. C.), the Macedonians regarded with jealous suspicion Rome's success and the establishment of a Roman sphere of influence east of the Adriatic. Conversely, the war had established friendly relations and coöperation between Rome and the foes of Macedon, the Aetolian and Achaean Confederacies, which rejoiced in the accession of such a powerful friend. The way was thus paved for the participation of Rome, as a partizan of the anti-Macedonian faction, in the struggles which had so long divided the Greek world.

The second Illyrian war: 220–219 B. C. The revival of Macedonian influence led indirectly to Rome's second Illyrian war. The alliance of Antigonus Doson with the Achaean Confederacy and his conquest of Sparta (222 B. C.) united almost the whole of Greece under Macedonian suzerainty. Thereupon Demetrius of Pharos, a despot whose rule Rome had established in Corcyra, went over to Macedonia, attacked the cities allied with Rome, and sent a piratical squadron into Greek waters (220 B. C.). Rome, now threatened with a second Carthaginian War, acted with energy. Macedonia, under Philip V, the successor of Antigonus Doson, was involved in a war with the Aetolians and their allies. Deprived of support from this quarter Demetrius was speedily driven to take refuge in flight. His subjects surrendered and Rome took possession of his chief fortresses, Pharos and Dimillos.

War with the Gauls in North Italy: 225–22 B. C. In the interval between these Illyrian Wars Rome became involved in a serious conflict with the Gallic tribes settled in the Po valley. For about half a century this people had lived at peace with Rome, ceasing their raids into the peninsula and becoming a prosperous agricultural and pastoral people. It is claimed that they became alarmed at the Roman assignment of the public land on their southern borders, called the Ager Gallicus, to individual colonists in 233 B. C., and that this caused them to take up arms. However, this territory had been Roman since 283 B. C. and its settlement could hardly have been interpreted as an hostile act. More probable is it that the cause of the new Gallic

invasion was the coming of fresh swarms from across the Alps, which some of the Cisalpine Gauls, who had forgotten the defeats of the previous generation, perhaps invited, and certainly joined, for the sake of plunder. In 238 such a band of Transalpines crossed the Roman frontier and penetrated as far as Ariminum, but serious dissensions broke out within their own ranks and they had to withdraw. There was no further inroad attempted until 225 B. C.

The Gallic invasion of 225 B. C. In that year a formidable horde, called the Gasatae, crossed the Alps and, joined by the Boii and Insubres, prepared to invade Roman territory with a force of 50,000 foot and 20,000 mounted men. The Romans and Italians were seriously alarmed, for the memory of the fatal day of the Allia had never been effaced. Rome called for a military census of her whole federation. The lists showed 700,000 infantry and 70,000 cavalry. Expecting the Gauls to advance into Umbria the Romans stationed an army under one consul at Ariminum. The other consul was sent to Sardinia, possibly from fear of a Carthaginian attack, while the defence of Etruria was left to a force of Roman allies. Alliances were concluded with the Cenomani, a Gallic tribe to the north of the Po, and with the Veneti.

Avoiding the army at Ariminum the Gauls crossed the Apennines into Etruria, defeated the Roman allies and plundered the country. But the consul from Ariminum hastened to the rescue, the army in Sardinia was recalled, and the Gauls began to withdraw northwards to place their spoils in safety. The Romans followed and as the army from Sardinia landed to the north of the foe and cut off their retreat, the latter were surrounded and brought to bay at Telamon. They were annihilated in a bloody battle won by the superiority of the Roman tactics and generalship. One of the Roman consuls fell on the field of battle.

War against the Boii and Insubres: 224–222 B. C. Italy was saved, and now the Romans decided to expel the Boii and the Insubres from the Po valley as a penalty for their conduct and to prevent future invasions of this sort by occupying their territory. In three hard-fought campaigns the Romans, while they failed to exterminate or dispossess these peoples, reduced them to subjection, forcing them to surrender part of their territory and to pay tribute. But the Romans did not conquer without suffering heavy losses, and their ultimate success was to a considerable degree due to the coöperation of the Cenomani.

The Roman frontier reaches the Alps. Between 221 and 219 the Romans subdued the peoples of the Adriatic coast as far as the peninsula of Istria. Thus, with the exception of Liguria and the upper valley of the Po, all Italy to the south of the Alps was brought within the sphere of Roman influence. The Latin colonies Placentia and Cremona were founded in the territory taken from the Insubres to secure the Roman authority in this region, but Hannibal’s invasion of 217 B. C. found the Cisalpine Gauls ready to revolt against the Roman yoke.

IV. THE SECOND PUNIC WAR: 218–202 B. C.

Carthaginian expansion in Spain. As we have seen, the Roman seizure of Sardinia and Corsica and the exaction of a fresh indemnity in 238 left a longing for revenge in the hearts of the dominant faction at Carthage. This faction was led by

Hamilcar Barca, the victor of the mercenary war, who saw in Spain the opportunity for repairing the fortunes of his state, for compensating Carthage for the loss of Sicily and Sardinia, and for developing an army that would enable him to face the Romans on an equal footing. The Phoenician subjects of Carthage were hard pressed by the attacks of the native Iberian peoples when he secured for himself the command of the Carthaginian forces in the peninsula (238 B. C.). By skilful generalship and able diplomacy he extended the Carthaginian dominion over many of the Spanish tribes, and created a strong army, devoted to himself and his family.

Hasdrubal. Consequently, when Hamilcar died in battle in 229 B. C. he was succeeded in the command by his son-in-law Hasdrubal, who carried on his predecessor's policy. He it was who founded the town of New Carthage (Carthagena) to serve as the center of Carthaginian influence in Spain. The annual revenue of from 2000 to 3000 talents ($2,400,000 to $3,000,000) derived from the Spanish silver mines readily induced the Carthaginians to acquiesce in the almost regal position that the Barcidae enjoyed in Spain. Thus the latter could carry out their plans without interference from the home government.

Hasdrubal's treaty with Rome, 226 B. C. But the Carthaginian advance in Spain aroused the alarm of the Greeks of Massalia, and of her colonies, Emporiae and Rhodae, whose commercial interests and independence were thereby endangered. Now the Massaliots had long been in alliance with Rome,—they were said to have contributed to the ransom which the Romans paid to the Gauls in 387 B. C.,—and there seems little doubt that they secured the intervention of Rome on their behalf. In 226 B. C. the Romans concluded a treaty with Hasdrubal which bound him not to send an armed force north of the river Ebro. A few years later the Romans entered into a defensive alliance with the Spanish town of Saguntum, which lay to the south of the Ebro, but which was not subject to Carthage. The motive of the Romans in making this alliance is obscure, but it was probably in answer to a request from the Saguntines.

Hannibal. Upon the assassination of Hasdrubal in 221, Hannibal, son of Hamilcar, then in his twenty-sixth year, was appointed to the command in Spain. Thereupon, relying upon the army which his predecessors and he himself had built up in Spain and upon the resources of the Carthaginian dominions there, he resolved to take a step which would inevitably lead to war with Rome, namely, to attack Saguntum.

The siege of Saguntum: 219 B. C. Using as a pretext a dispute between the Saguntines and some of his Spanish allies, he laid siege to the town in 219 B. C. and captured it after a siege of eight months. A Roman embassy appeared at Carthage to demand the surrender of Hannibal and his staff as the price of averting war with Rome. But the anti-Roman party was in the majority and the Carthaginian senate accepted the responsibility for the act of their general, whatever its consequences might be. The Roman ambassador replied with the declaration of war.

The Roman plan of campaign. The most fateful result of the First Punic War had been the destruction of the maritime supremacy of Carthage. She never subsequently

thought of contesting Rome's dominion on the sea, and consequently, while extending her empire in Spain and Africa she had neglected to rebuild her navy. This fact was to be of decisive importance in the coming struggle. Rome, relying upon it, planned an offensive war. One army, under the consul Publius Cornelius Scipio, was to proceed to Spain, supported by the fleet of Massalia, and to detain Hannibal there, while a second army, under the other consul, Tiberius Sempronius, was assembled in Sicily to embark for Africa.

The plan of Hannibal. But the Romans had not taken into account the military genius of Hannibal, whose audacious plan of carrying the war into Italy upset their calculations. Realizing that he could not transport his army to Italy by sea, he was prepared to cross the Pyrenees, traverse southern Gaul and, crossing the Alps, descend upon Italy from the north. Among the Gauls of the Po valley he hoped to find recruits for his army, and expected that, once he was in Italy, the Roman allies would seize this opportunity of recovering their independence. Deprived of their support Rome would have to yield. His ultimate object was not the destruction of Rome, but the breaking up of the Roman federation in Italy, and the reduction of the Roman state to the limits attained in 340 B. C. This purpose is apparent from the plan of campaign which he followed after his arrival in Italy.

Hannibal's march into Italy. Hannibal's preparations were more advanced than those of the Romans and, early in the spring of 218 B. C., he set out from New Carthage for the Pyrenees. Forcing a passage there, he left the passes under guard and resumed his march with a picked army of Spaniards and Numidians. His brother Hasdrubal was left in Spain to collect reinforcements and follow with them. Hannibal arrived at the Rhone and crossed it by the time that Scipio reached Massalia on his way to Spain. The latter, failing to force Hannibal to give battle on the banks of the Rhone, returned in person to Italy, but decided to send his army, under the command of his brother, to Spain, a decision which had the most serious consequences for Carthage. Meanwhile Hannibal continued his march and, overcoming the opposition of the peoples whose territory he traversed, as well as the more serious obstacles of bad roads, dangerous passes, cold, and hunger, he crossed the Alps and descended into the plain of North Italy in the autumn of 218, after a march of five months.(7) His army was reduced to 20,000 infantry and 6,000 cavalry. Practically all his elephants perished.

Hannibal at once found support and an opportunity to rest his weary troops among the Insubres and the Boii, the latter of whom had already taken up arms against the Romans. At the news of his arrival in Italy Sempronius was at once recalled from Sicily, but Scipio who had anticipated him ventured to attack Hannibal with the forces under his command. He was beaten in a skirmish at the river Ticinus, and Hannibal was able to cross the Po. Upon the arrival of Sempronius, both consuls attacked the Carthaginians at the Trebia, only to receive a crushing defeat (December, 218).

Hannibal invades the peninsula: 217 B. C. Hannibal wintered in north Italy and in the spring, with an army raised to 50,000 by the addition of Celtic recruits, prepared to invade the peninsula. The Romans divided their forces, stationing one

consul at Ariminum and the other at Arretium in Etruria. Hannibal chose to cross the Apennines and the marshes of Etruria, where he surprised and annihilated the army of the consul Flaminius at the Trasimene Lake (217 B. C.). Flaminius himself was among the slain. This victory was soon followed by a second in which the cavalry of the army of the second consul was cut to pieces. Hannibal began his attempt to detach the Italians from the Roman alliance by releasing his Italian prisoners to carry word to their cities that he had come to set them free. Thereupon he marched into Samnium, ravaging the Roman territory as he went.

The Romans in great consternation chose a dictator, Quintus Fabius Maximus. Fabius recognized the superiority of Hannibal's generalship and of the Carthaginian cavalry, and consequently refused to be drawn into a general engagement. But he followed the enemy closely and continually threatened an attack, so that Hannibal could not divide his forces for purposes of raiding and foraging. Still he was able to penetrate into Campania and thence to recross the mountains into Apulia, where he decided to establish winter quarters. The strategy of Fabius, which had not prevented the enemy from securing supplies and devastating wide areas, grew so irksome to the Romans that they violated all precedent in appointing Marcus Minucius, the master of the horse and an advocate of aggressive tactics, as a second dictator. But when the latter risked an engagement, he was badly beaten and only prompt assistance from Fabius saved his army from destruction.

Cannae: 216 B. C. Next spring found the Romans and Carthaginians facing each other in Apulia. The Romans were led by the new consuls, Lucius Aemilius Paulus and Gaius Terentius Varro. The over-confidence of Varro led to the battle of Cannae, one of the greatest battles of antiquity and the bloodiest of all Roman defeats. Of 50,000 Romans and allies, about 25,000 were slain and 10,000 captured by the numerically inferior Carthaginians. The consequences of the battle were serious. For the first time Rome's allies showed serious signs of disloyalty. In Apulia and in Bruttium Hannibal found many adherents; ambassadors from Philip of Macedon appeared at his headquarters, the prelude to an alliance in the next year; Syracuse also, where Hiero the friend of Rome had just died, wavered and finally went over to Carthage; and, most serious of all, Capua opened its gates to Hannibal.

Still the courage of the Romans never wavered. They at once levied a new force to replace the army destroyed at Cannae. The central Italian allies, the Greek cities in the south, and the Latins, remained true to their allegiance, and the fortified towns of the latter proved to be the pillars of the Roman strength. For Hannibal, owing to the smallness of his army and the necessity of maintaining it in a hostile country, had to be continually on the march and could not undertake siege operations, for which he also lacked engines of war. Thus the Romans, avoiding pitched battles, were able to attempt the systematic reduction of the towns which had yielded to Hannibal and to hamper seriously the provisioning of his forces. At the same time they still held command of the sea, kept up their offensive in Spain, and held their ground against Carthaginian attacks in Sicily and Sardinia.

Rome recovers Syracuse and Capua: 212–11 B. C. In 213 the Romans were able to invest Syracuse. The Syracusans with the aid of engines of war designed by the

physicist Archimedes resisted desperately, but Marcellus, the Roman general, pressed the siege vigorously, and treachery caused the city to fall (212 B. C.). Syracuse was sacked, its art treasures carried off to Rome, and for the future it was subject and tributary to Rome. And in Italy, although Hannibal defeated and killed the consul Tiberius Sempronius Gracchus, and was able to occupy the cities of Tarentum (although not its citadel), Heraclea and Thurii, he could not prevent the Romans from laying siege to Capua (212 B. C.). The next year he thought to force them to raise the blockade by a sudden incursion into Latium, where he appeared before the walls of Rome. But Rome was garrisoned, the army besieging Capua was not recalled, and Hannibal's march was in vain. Capua was starved into submission, its nobility put to the sword, its territory confiscated, and its municipal organization dissolved.

Operations against Philip V. of Macedon. Upon concluding his alliance with Hannibal, Philip of Macedon hastened to attack the Roman possessions in Illyria. Here he met with some successes, but failed to take Corcyra or Apollonia which were saved by the Roman fleet. Furthermore, Rome's command of the sea prevented his lending any effective aid to his ally in Italy. Before long the Romans were able to induce the Aetolians to make an alliance with them and attack Macedonia. Thereupon other enemies of Philip, among them Sparta and King Attalus of Pergamon, joined in the war on the side of Rome. The Achaean Confederacy, however, supported Philip. The coalition against the latter was so strong that he had to cease his attacks upon Roman territory and Rome could be content with supporting her Greek allies with a small fleet, while she devoted her energies to the other theatres of war.

The war in Spain: 218–207 B. C. The fall of Capua came at a moment most opportune for the Romans, since they had immediate need to send reinforcements to Spain. Thither, as we have seen, they had sent an army in 218 B. C. under Gnaeus Scipio, who obtained a foothold north of the Ebro. In the next year he was joined by his brother Publius Cornelius. Thereupon the Romans crossed the Ebro and invaded the Carthaginian dominions to the south. A revolt of the Numidians caused the recall of Hasdrubal to Africa, and the Romans were able to capture Saguntum and induce many Spanish tribes to desert the Carthaginian cause. However, upon the return of Hasdrubal and the arrival of reinforcements from Carthage, the Carthaginian commanders united their forces and crushed the two Roman armies one after the other (211 B. C.). Both the Scipios fell in battle and the Carthaginians recovered all their territory south of the Ebro.

Publius Cornelius Scipio sent to Spain: 210 B. C. Undismayed by these disasters the Romans determined to continue their efforts to conquer Spain because of its importance as a recruiting ground for the Carthaginian armies and because the continuance of the war there prevented reinforcements being sent to Hannibal in Italy. The fall of Capua and the fortunate turn of events in Sicily enabled them to release fresh troops for service in Spain, and in 210 B. C., being dissatisfied with the cautious strategy of the pro-praetor Nero, then commanding north of the Ebro, the Senate determined to send out a commander who would continue the aggressive tactics of the Scipios. As the most suitable person they fixed on Publius Cornelius Scipio, son of the like-named consul who had fallen in 211. However, he was only in

his twenty-fourth year and having filled no magistracy except the aedileship, he was technically disqualified from exercising the _imperium_. Therefore, his appointment was made the subject of a special law in the Comitia, which nominated him to the command in Spain with the rank of a pro-consul. This is the first authentic instance of the conferment of the _imperium_ upon a private citizen.

The capture of New Carthage: 209 B. C. Seeing that the armies of his opponents were divided and engaged in reconquering the Spanish tribes, Scipio resumed the offensive, crossed the Ebro, and by a daring stroke seized the chief Carthaginian base—New Carthage. Here he found vast stores of supplies and, more important still, the hostages from the Spanish peoples subject to Carthage. His liberation of these, and his generous treatment of the Spaniards in general was in such striking contrast with the oppressive measures of the Carthaginians, that he rapidly won over to his support both the enemies and the adherents of the former.

Hasdrubal's march to Italy: 208 B. C. Meanwhile in Italy the Romans proceeded steadily with the reduction of the strongholds in the hands of Hannibal. Tarentum was recovered in 210, and although Hannibal defeated and slew the consuls Gnaeus Fulvius (210) and Marcus Marcellus (208), his forces were so diminished that his maintaining himself in Italy depended upon the arrival of strong reinforcements. Since his arrival he had received but insignificant additions to his army from Carthage, whose energies had been directed to the other theatres of war. Up to this time also the Roman activities in Spain had prevented any Carthaginian troops leaving that country. But after the fall of New Carthage and the subsequent successes of Scipio, Hasdrubal, despairing of the situation there, determined to march to the support of his brother by the same route which the latter had taken. Scipio endeavored to bar his path, but although Hasdrubal was defeated in battle he and 10,000 of his men cut their way through the Romans and crossed the Pyrenees (208 B. C.).

The Metaurus: 207 B. C. The next spring he arrived among the Gauls to the south of the Alps. Reinforced by them he marched into the peninsula to join forces with Hannibal. For the Romans it was of supreme importance to prevent this. They therefore divided their forces; the consul Gaius Claudius faced Hannibal in Apulia, while Marcus Livius went to intercept Hasdrubal. Through the capture of messengers sent by the latter Claudius learned of his position and, leaving part of his army to detain Hannibal, he withdrew the rest without his enemy's knowledge and joined his colleague Livius. Together they attacked Hasdrubal at the Metaurus; his army was cut to pieces and he himself was slain. With the battle the doom of Hannibal's plans was sealed, and with them the doom of Carthage. Hannibal himself recognized that all was lost and withdrew into the mountains of Bruttium.

The conquest of Carthaginian Spain, and peace with Philip. For the first time in the war the Romans could breathe freely and look forward with confidence to the issue. In the two years (207–206 B. C.) following the departure of Hasdrubal Scipio completed the conquest of what remained to Carthage in Spain. In 205 he returned to Rome to enter upon the consulship, and thereupon went to Sicily to make preparations for the invasion of Africa, since the Romans were now able to carry out

their plan of 218 B. C. which Hannibal had then interrupted. At this moment, too, the Romans found themselves free from any embarrassment from the side of Macedonia. In Greece the war had dragged on without any decided advantage for either side until 207, when the temporary withdrawal of the Roman fleet enabled Philip and the Achaean Confederacy to win such successes that their opponents listened to the intervention of the neutral states and made peace (206 B. C.). In the next year the Romans also came to terms with Philip.

The invasion of Africa: 204 B. C. In 204 B. C. Scipio transported his army to Africa. At first, however, he was able to do nothing before the combined forces of the Carthaginians and the Numidian chief, Syphax, who had renewed his alliance with them. But in the following year he routed both armies so decisively that he was able to capture and depose Syphax, and to set up in his place a rival chieftain, Masinissa, whose adherence to the Romans brought them a welcome superiority in cavalry. The Carthaginians now sought to make peace. An armistice was granted them; Hannibal and all Carthaginian forces were recalled from Italy, and the preliminary terms of peace drawn up (203 B. C.). Hannibal left Italy with the remnant of his veterans after a campaign which had established his reputation as one of the world's greatest masters of the art of war. For nearly fifteen years he had maintained himself in the enemy's country with greatly inferior forces, and now after inflicting many severe defeats and never losing a battle he was forced to withdraw because of lack of resources, not because of the superior generalship of his foes. Before leaving Italian soil he set up a record of his exploits in the temple of Hera Lacinia in Bruttium.

Zama: 202 B. C. An almost incredible feeling of over-confidence seems to have been aroused in Carthage by the arrival of Hannibal. The Carthaginians broke the armistice by attacking some Roman transports and refused to meet Scipio's demand for an explanation. Hostilities were therefore resumed. At Zama the two greatest generals the war had developed met in its final battle. Hannibal's tactics were worthy of his reputation but his army was crushed by the flight of the Carthaginian mercenaries at a critical moment, and by the Roman superiority in cavalry(8).

Peace: 201 B. C. For Carthage all hope of resistance was over and she had to accept the Roman terms. These were: the surrender of all territory except the city of Carthage and the surrounding country in Africa, an indemnity of 10,000 talents ($12,000,000), the surrender of all vessels of war except ten triremes, and of all war elephants, and the obligation to refrain from carrying on war outside of Africa, or even in Africa unless with Rome's consent. The Numidians were united in a strong state on the Carthaginian borders, under the Roman ally Masinissa. Scipio returned to Rome to triumph "over the Carthaginians and Hannibal," and to receive, from the scene of his victory, the name of Africanus.

V. THE EFFECT OF THE SECOND PUNIC WAR UPON ITALY

The destruction of the Carthaginian empire left Rome mistress of the western Mediterranean and by far the greatest power of the time. But this victory had only

been attained after a tremendous struggle, the greatest probably that the ancient world ever witnessed, a struggle which called forth in Rome the patriotic virtues of courage, devotion, and self-sacrifice to a degree that aroused the admiration of subsequent generations, which drained her resources of men and treasure and which left ineffaceable scars upon the soil of Italy.

One of the main factors in deciding the issue was the Roman command of the sea which Carthage never felt able to challenge seriously. Another was the larger citizen body of Rome, and the friendly relations between herself and her federate allies. This, with the system of universal military service, gave her a citizen soldiery which in morale and numbers was superior to the armies of Carthage. As long as Hannibal was in Italy Rome kept from year to year upwards of 100,000 men in the field. Once only, after the battle of Cannae, was she unable to replace her losses by the regular system of recruiting and had to arm 8000 slaves who were promised freedom as a reward for faithful service. On the other hand, Carthage had to raise her forces from mercenaries or from subject allies. As her resources dwindled the former became ever more difficult to obtain, while the demands made upon the latter caused revolts that cost much effort to subdue. It required the personality of a Hannibal to develop an _esprit de corps_ and discipline such as characterized his army in Italy. A third factor was the absence in the Roman commanders of the personal rivalries and lack of coöperation which so greatly hampered the Carthaginians in Spain and in Sicily. Still one must not be led into the error of supposing that the Carthaginians did not display tenacity and patriotism to a very high degree. The senatorial class especially distinguished itself by courage and ability, and there are no evidences of factional strife hampering the conduct of the war. The Romans overcame the disadvantage of the annual change of commanders-in-chief by the use of the proconsulship and pro-praetorship often long prorogued, whereby officers of ability retained year after year the command of the same armies. This system enabled them to develop such able generals as Metellus and the Scipios.

The cost of maintaining her fleet and her armies taxed the financial resources of Rome to the utmost. The government had to make use of a reserve fund which had been accumulating in the treasury for thirty years from the returns of the 5% tax on the value of manumitted slaves, and the armies in Spain could only be kept in the field by the generosity and patriotism of several companies of contractors who furnished supplies at their own expense until the end of the war. An additional burden was the increased cost of the necessities of life and the danger of a grain famine, caused by the disturbed conditions in Italy and Sicily and the withdrawal of so many men from agricultural occupations. In 210 the situation was only relieved by an urgent appeal to Ptolemy Philopator of Egypt, from whom grain had to be purchased at three times the usual price. However, this crisis passed with the pacification of Sicily in the next year.

Furthermore, a heavy tribute had been levied upon the man power of the Roman state. The census list of citizens eligible for military service fell from about 280,000 at the beginning of the war to 237,000 in 209; and the federate allies must have suffered at least as heavily. The greatest losses fell upon the southern part of the

peninsula. There, year after year, the fields had been laid waste and the villages devastated by the opposing armies, until the rural population had almost entirely disappeared, the land had become a wilderness, and the more prosperous cities had fallen into decay. From the effects of these ravages southern Italy never recovered.

CHAPTER IX

ROMAN DOMINATION IN THE MEDITERRANEAN

THE SECOND PHASE: ROME AND THE GREEK EAST, 200–167 B. C.

I. THE SECOND MACEDONIAN WAR: 200–196 B. C.

The eastern crisis: 202 B. C. The Roman senate had been eager to conclude a satisfactory peace with Carthage as soon as possible in order to devote its undivided attention to a crisis which had arisen in the eastern Mediterranean. There Ptolemy IV of Egypt had died in 203 B. C., leaving the kingdom to an infant son who was in the hands of corrupt and dissolute advisors. Egypt had lost her command of the eastern Mediterranean at the time of Rome's First Carthaginian War, and later (217 B. C.) had only saved herself in a war against Syria by calling to arms a portion of the native population. This step had led to internal racial difficulties which weakened the position of the dynasty. At this juncture Philip V of Macedon, who had emerged with credit from his recent struggle with Rome and his foes in Greece, and Antiochus III of Syria, who had just returned from a series of successful campaigns (212–204 B. C.) which had recovered for his kingdom its eastern provinces as far as the Indus and had won for him the surname of "the Great," judged the moment favorable for the realization of long-cherished ambitions at the expense of their rival, Egypt. They formed an alliance for the conquest of the outlying possessions of the Ptolemies, whereby Philip was to occupy those in the Aegean, while Antiochus was to seize Phoenicia and Palestine. In 202 B. C. they opened hostilities.

The appeal for Roman intervention: 201 B. C. But the operations of the forces of Philip in the Aegean brought him into war with Rhodes and with Attalus, King of Pergamon, while in Greece a quarrel, which developed between some of his allies and the Athenians, involved him in hostilities with the latter. From these three states and from Egypt, which, having been unable to prevent Antiochus from occupying her Syrian possessions, was now threatened with invasion, envoys were sent to Rome, to request Roman intervention on their behalf, on the ground that they were friends (_amici_) of Rome.

The status of amicitia. The Romans had adopted the idea of international friendship (_amicitia_, _philia_) from the Greeks in the course of the third century. Previously, their only conception of friendly relations between states was that of alliance (_societas_) based upon a perpetual treaty (_foedus_), which bound each party to render military assistance to the other and which neither could terminate at discretion. However, under the influence of ideas current among the Hellenic states they began to form friendships, i. e. to open up diplomatic relations with states and rulers. These _amici_ (friends) could remain neutral in case Rome engaged in war, or

they could render Rome support, which was, however, voluntary and not obligatory. And Rome enjoyed a similar freedom of action with regard to them.

Rome intervenes: 200 B. C. The Roman Senate, influenced by mixed motives—sympathy for the Hellenes and their culture, ambition to appear as arbiters of the fate of the Greek world, a desire for revenge upon Philip for his partial successes in the late war, and fear of seeing him develop into a more powerful enemy—was anxious to intervene. But, although the Roman fetials, the members of the priestly college which was the guardian of the Roman traditions in international relations, decided that Attalus and the other Roman _amici_ might be regarded as allies (_socii_) and so be defended legitimately, the Roman people as a whole shrank from embarking upon another war. The Comitia once voted against the proposal, and at a second meeting was only induced to sanction it, when it was represented to them that they would have to face another invasion of Italy if they did not anticipate Philip’s action.

The Roman ultimatum. The Senate next sent ambassadors to the East to present an ultimatum to Philip, and at the same time to negotiate with Antiochus for the cessation of his attacks upon Egypt, for the Romans did not wish to have his forces added to those of the Macedonian king. When Philip was engaged in the siege of Abydos on the Hellespont he received the Roman terms, which were that he should abstain from attacking any cities of the Greeks or the possessions of Ptolemy, and should submit to arbitration his disputes with Attalus and the Rhodians. Upon his rejection of these proposals the war opened.

The Romans cross the Adriatic. Late in 200 B. C. a Roman army under the consul Sulpicius crossed into Illyricum and endeavored to penetrate into Macedonia. However, both in this and in the succeeding year, the Romans, although aided by the forces of the Aetolian Confederacy, Pergamon, Rhodes and Athens, were unable to inflict any decisive defeat upon Philip or to invade his kingdom.

However, with the arrival of the consul of 198, Titus Flamininus, the situation speedily changed. The Achaean Confederacy was won over to the side of Rome, and Flamininus succeeded in forcing Philip to evacuate his position in Epirus and to withdraw into Thessaly. In the following winter negotiations for peace were opened, but these led to nothing, for the Romans demanded the evacuation of Corinth, Chalcis and Demetrias, three fortresses known as “the fetters of Greece,” and Philip refused to make this concession.

Cynoscephalae: 197 B. C. The next year military operations were resumed with both armies in Thessaly. Early in the summer a battle was fought on a ridge of hills called Cynoscephalae (the Dog’s Heads) where the Romans won a complete victory. Although the Aetolians tendered valuable assistance in this engagement, the Macedonian defeat was due to the superior flexibility of the Roman legionary formation over the phalanx. Philip fled to Macedonia and sued for peace. The Aetolians and his enemies in Greece sought his utter destruction, but Flamininus realized the importance of Macedonia to the Greek world as a bulwark against the Celtic peoples of the lower Danube and would not support their demands. The terms

fixed by the Roman Senate were: the autonomy of the Hellenes, the evacuation of the Macedonian possessions in Greece, in the Aegean, and in Illyricum, and an indemnity of 1000 talents ($1,200,000). The conditions Philip was obliged to accept (196 B. C.).

The proclamation of Flamininus: 196 B. C. At the Isthmian games of the same year Flamininus proclaimed the complete autonomy of the peoples who had been subject to Macedonia. The announcement provoked a tremendous outburst of enthusiasm. After spending some time in carrying this proclamation into effect and in settling the claims of various states, Flamininus returned to Italy in 194, leaving the Greeks to make what use they could of their freedom.

II. THE WAR WITH ANTIOCHUS THE GREAT AND THE AETOLIANS: 192–189 B. C.

Antiochus in Asia Minor and Thrace. Even before Flamininus and his army had withdrawn from Greece the activities of Antiochus had awakened the mistrust of the Roman Senate and threatened to lead to hostilities. The Syrian king had completed the conquest of Lower Syria in 198, and then, profiting by the difficulties in which Philip of Macedon was involved, he turned his attention towards Asia Minor and Thrace with the hope of recovering the possessions once held by his ancestor, Seleucus I, in these quarters. The Romans were at the time too much occupied to oppose him, and, outwardly, he professed to be the friend of Rome and to be limiting his activities to the reëstablishing of his empire to its former extent. Eventually, in 195 B. C., he crossed over into Europe and proceeded to establish himself in Thrace. Negotiations with the Roman Senate seemed likely to lead to an agreement that the king should limit his expansion to Asia and recognize a sort of Roman suzerainty in Europe, when the action of the Aetolians precipitated a conflict.

The Aetolians and Rome. The Aetolians, who had been Rome’s allies in the war just concluded and who greatly exaggerated the importance of their services, were disgruntled because the kingdom of Macedonia had not been entirely dismembered and they had been restrained from enlarging the territory of the Confederacy at the expense of their neighbors. In short, they wished to take the place formerly held by Macedonia among the Greek states. Accustomed to regard war as a legitimate source of revenue, they did not easily reconcile themselves to Rome’s preservation of peace in Hellas. Ever since the battle of Cynoscephalae they had striven to undermine Roman influence among the Greeks, and now they sought to draw Antiochus into conflict with Rome.

Antiochus invades Greece: 192 B. C. In 192 B. C. they elected Antiochus as commander-in-chief of the forces of their confederacy and seized the fortress of Chalcis. This they offered to the king, to whom they also made an unauthorized promise of aid from Macedonia. Thereupon, trusting in the support promised by the Aetolians, Antiochus sailed to Greece with a small force of 10,000 men. It so happened that Hannibal, who in 196 B. C. had been forced to flee his native city owing to the machinations of his enemies and the Romans, was then at the court of Antiochus, where he had taken refuge. He advised his protector to invade the Italian peninsula, but Antiochus rejected the advice, probably with wisdom, for such a

course would have required him to win the control of the sea, which was a task beyond his resources. But when, throughout his whole campaign, he neglected to make use of the services of the greatest commander of the age, he committed a most serious blunder. Had Hannibal led the forces of Antiochus the task of the Romans would not have been so simple.

Antiochus driven from Greece: 191 B. C. In 191 a Roman army under the consul Acilius Glabrio appeared in Greece and attacked and defeated the forces of Antiochus at Thermopylae. The king fled to Asia. Contrary to his hopes he had found but little support in Greece. Philip of Macedon and the Achaean Confederacy adhered to the Romans, and the Aetolians were rendered helpless by an invasion of their own country. Furthermore, the Rhodians and Eumenes, the new King of Pergamon, joined their navies to the Roman fleet.

The Romans cross over to Asia Minor: 190 B. C. As Antiochus would not hearken to the terms of peace laid down by the Romans, the latter resolved upon the invasion of Asia Minor. Two naval battles, won by the aid of Rhodes and Pergamon, secured the control of the Aegean and in 190 B. C. a Roman force crossed the Hellespont. For its commander the Senate had wished to designate Scipio Africanus, the greatest of the Roman generals. However, as he had recently been consul he was now ineligible for that office. The obstacle of the law was accordingly circumvented by the election of his brother Lucius to the consulate and his assignment to this command, and by the appointment of Publius to accompany him as extraordinary proconsul, with power equal to his own.

Magnesia: 190 B. C. One decisive victory over Antiochus at Magnesia in the autumn of 190 B. C. brought him to terms. He agreed to surrender all territory to the north of the Taurus mountains and west of Pamphylia, to give up his war elephants, to surrender all but ten of his ships of war, to pay an indemnity of 15,000 talents ($18,000,000) in twelve annual instalments, and to abstain from attacking the allies of Rome. Still, unlike Carthage, he was at liberty to defend himself if attacked. The Romans then proceeded to establish order in Asia Minor. The territories of their friends, Rhodes and Pergamon, were materially increased, while the enemies of the latter, the Celts of Galatia were defeated and forced to pay a heavy indemnity. Rome retained no territory in Asia, but left the country divided among a number of small states whose mutual jealousies rendered impossible the rise of a strong power which could venture to set aside the Roman arrangements.

The subjugation of the Aetolians: 189 B. C. The Roman campaign of 191 against the Aetolians had caused the latter, who were also attacked by Philip of Macedon, to seek terms. However, as the Romans demanded an unconditional surrender, the Aetolians decided to continue the struggle. In the next year no energetic measures were taken against them, but in 189 the consul Fulvius Nobilior pressed the war vigorously and besieged their chief city, Ambracia. But since the obstinate resistance of its defenders defied all his efforts, and since the Athenians were trying to act as mediators in bringing the war to a close, the Romans abandoned their demand for an unconditional surrender and peace was made on the following conditions. The Aetolian Confederacy gave up all territory captured by its enemies during the war

and entered into a permanent alliance with Rome, whereby it was bound to send contingents to the Roman armies. Ambracia was surrendered and destroyed, and the Romans occupied the pirate nest of Cephallenia.

III. THE THIRD MACEDONIAN WAR: 171–167 B. C.

Rome and the Greek states. Although by her alliance with the Aetolians Rome had planted herself permanently on Greek soil, and in the war with Antiochus had claimed to exercise a sort of protectorate over the Greek world, still the Senate as yet gave no indication of reversing the policy of Flamininus, and the Greek states remained as the friends of Rome in the enjoyment of political independence. However, it was not long before these friendly relations became seriously strained and Rome was induced to embark upon a policy of interference in Greek affairs which ultimately put an end to the apparent freedom of Hellas. The fundamental cause of this change was that while Rome interpreted Greek freedom to mean liberty of action provided that the wishes and arrangements of Rome were respected, the Greeks understood it to mean the perfect freedom of sovereign communities, and resented bitterly any infringement of their rights. Keeping in mind these conflicting points of view, it is easy to see how difficulties were bound to arise which would inevitably be settled according to the wishes of the stronger power.

Rome and the Achaeans. The chief specific causes for the change in the Roman policy are to be found in the troubles of the Achaean Confederacy and the reviving ambitions of Macedonia. The Confederacy included many city-states which had been compelled to join it and which sought to regain their independence. This the Confederacy was determined to prevent. One such community was Sparta, and the policy of the Achaeans towards it in the matter of the restoration of Spartan exiles led to the Spartans appealing to Rome. The Roman decision wounded the susceptibilities of the Confederacy without settling the problem, and the tendency of the Achaeans to stand upon their rights provoked the anger of the Romans. Within the Confederacy there developed a pro-Roman party ready to submit to Roman dictatorship, and a national party determined to assert their right to freedom of action. From 180 B. C. the Romans deliberately fostered the aristocratic factions throughout the cities of Greece, feeling that they were the more stable element and more in harmony with the policy of the Senate. As a consequence the democratic factions began to look for outside support and cast their eyes towards Macedonia.

Rome and Macedonia. Philip V of Macedon considered that the assistance which he had furnished to Rome in the Syrian War was proof of his loyalty and warranted the annexation of the territory he had overrun in that conflict. But the Senate was not inclined to allow the power of Macedonia to attain dangerous proportions, and he was forced to forego his claims. Henceforth he was the bitter foe of the Romans. He devoted himself to the development of the military resources of his kingdom with the ultimate view of again challenging Rome’s authority in Greece. At his death in 179 B. C. he left an army of from 30,000 to 40,000 men and a treasure of 6,000 talents ($7,200,000). His son and successor Perseus inherited his father’s anti-Roman policy and entered into relations with the foes of Rome everywhere in Greece.

The Third Macedonian War: 171–167 B. C. But the Senate was kept well aware of his schemes by his enemies in Greece, especially Eumenes of Pergamon. Therefore they determined to forestall the completion of his plans and force him into war. In 172, a Roman commission visited Perseus and required of him concessions which meant the extinction of his independence. Upon his refusal to comply with the demands they returned home and Rome declared war. Now, when success depended upon energetic action, Perseus sought to avoid the issue and tried to placate the Romans, but in vain. In 171 a Roman force landed in Greece and made its way to Thessaly. But in the campaigns of this and the following year the Roman commanders were too incapable and their troops too undisciplined to make any headway. Nor did Perseus show ability to take advantage of his opportunities. Furthermore, by his parsimony he lost the chance to win valuable aid from the Dardanians, Gesatae, and Celts on his borders. Finally, in 168, the Romans found an able general in the consul Aemilius Paulus, who restored the morale of the Roman soldiers and won a complete victory over Perseus in the battle of Pydna. The Macedonian kingdom was at an end; its territory was divided into four autonomous republics, which were forbidden mutual privileges of _commercium_ and _connubium_; a yearly tribute of fifty talents was imposed upon them; and the royal mines and domains became the property of the Roman state.

The aftermath of the war. Having disposed of Macedon the Romans turned their attention to the other Greek states with the intention of rewarding their friends and punishing their enemies. Everywhere death or exile awaited the leaders of the anti-Roman party, many of whose names became known from the seizure of the papers of Perseus. Although the Achaeans had given no positive proof of disloyalty 1000 of their leading men, among them the historian Polybius, were carried off to Italy nominally to be given the chance of clearing themselves before the Senate but really to be kept as hostages in Italy for the future conduct of the Confederacy.

The Rhodians, because they had endeavored to secure a peaceful settlement between Rome and Perseus, were forced to surrender their possessions in Asia Minor, and a ruinous blow was dealt to their commercial prosperity by the establishment of a free port at the island of Delos. Eumenes of Pergamon, whose actions had aroused suspicions, had to recognize the independence of the Galatians whom he had subdued. Far worse was the fate of Epirus. There seventy towns were sacked and their inhabitants to the number of 150,000 carried off into slavery.

Henceforth it was clear that Rome was the real sovereign in the eastern Mediterranean and that her friends and allies only enjoyed local autonomy, while they were expected to be obedient to the orders of Rome. This is well illustrated by the anecdote of the circle of Popilius. During the Third Macedonian War, Antiochus IV, Epiphanes, King of Syria, had invaded Egypt. After the battle of Pydna a Roman ambassador, Popilius by name, was sent to make him withdraw. Popilius met Antiochus before Alexandria and delivered the Senate’s message. The king asked for time for consideration, but the Roman, drawing a circle around him in the sand, bade him answer before he left the spot. Antiochus yielded and evacuated Egypt.

The spoils of this war with Macedonia brought an enormous booty into the Roman treasury, and from this time the war tax on property—the _tributum civium Romanorum_—ceased to be levied. The income of the empire enabled the government to relieve Roman citizens of all direct taxation.

IV. CAMPAIGNS IN ITALY AND SPAIN

During the Macedonian and Syrian Wars the Romans were busy strengthening and extending their hold upon northern Italy and Spain.

Cisalpine Gaul. Cisalpine Gaul, which had been largely lost to the Romans since Hannibal's invasion, was recovered by wars with the Insubres and Boii between 198 and 191 B. C. A new military highway, the _via Flaminia_, was built from Rome to Ariminum in 187, and later extended under the name of the _via Aemilia_ to Placentia; another, the _via Cassia_ (171 B. C.), linked Rome and the Po valley by way of Etruria. New fortresses were established; Bononia (189) and Aquileia (181) as Latin colonies; Parma and Mutina (183) as colonies of Roman citizens. In this way Roman authority was firmly established and the way prepared for the rapid Latinization of the land between the Apennines and the Alps.

The Ligurians. In the same period falls the subjugation of the Ligurians. In successive campaigns, lasting until 172 B. C., the Romans gradually extended their sway over the various Ligurian tribes until they reached the territory of Massalia in southern Gaul. Roman colonies were founded at Pisa (180) and Luna (177).

Spain. The territory acquired from Carthage in Spain was organized into two provinces, called Hither and Farther Spain, in 197 B. C. But the allied and subject Spanish tribes were not yet reconciled to the presence of the Romans and serious revolts broke out. One of these was subdued by Marcus Porcius Cato in 196, another by Lucius Aemilius Paulus between 191 and 189, and a third by Tiberius Sempronius Gracchus in 179 and 178 B. C. The settlement effected by Gracchus secured peace for many years. In Spain were founded Rome's first colonies beyond the borders of Italy. Italica, near Seville, was settled in 206, and Carteia in 171; both as Latin colonies.

CHAPTER X

TERRITORIAL EXPANSION IN THREE CONTINENTS: 167–133 B. C.

Roman foreign policy. The foreign relations of Rome from 167 to 133 B. C. fall into two distinct periods. In the earlier, Roman foreign policy is directed towards securing Roman domination throughout the Mediterranean by diplomatic means. War and annexation of territory are avoided as causing too great a drain upon the resources of the state and creating difficult administrative problems. In the later period this policy is abandoned for one more aggressively imperialistic, which does not hesitate to appeal to armed force and aims at the incorporation of conquered territory within the empire. This change of policy was largely due to the influence of that group in the senate which was eager for foreign commands, the honors of a

triumph, and the spoils of war, as well as that of the non-senatorial financial interests which sought to open up new fields for exploitation. It was also felt that the prestige of Rome had suffered by the disregard of some of her diplomatic representations.

This policy of expansion resulted in prolonged wars in Spain, the annexation of Carthage and Macedon, the establishment of direct control over Greece, and the acquisition of territory in Asia Minor. The new tendencies become apparent shortly before 150 B. C.

I. THE SPANISH WARS: 154–133 B. C.

The revolts of the Celtiberians and the Lusitanians: 154–139 B. C. In 154 B. C. revolts broke out in both Hither and Farther Spain. A series of long and bloody campaigns ensued, which were prolonged by the incapacity, cruelty and faithlessness of the Roman commanders, and caused a heavy drain upon the military resources of Italy. The chief opponents of the Romans were the Celtiberians of Hither, and the Lusitanians of Farther Spain. The desperate character of these wars made service in Spain very unpopular, and levies for the campaign of 151 were raised with difficulty. The tribunes interceded to protect certain persons, and when their intercession was disregarded by the consuls they cast the latter into prison. In 150 B. C. the pro-consul Galba treacherously massacred thousands of Lusitanians with whom he had made a treaty. For this he was brought to trial by Cato, but was acquitted.

The massacre led to a renewed outbreak under Viriathus, an able guerilla leader who defied the power of Rome for about eight years (147–139 B. C.). Forced eventually to yield, he was assassinated during an armistice by traitors suborned by the Roman commander. The complete subjugation of the Lusitanians soon followed.

The war with Numantia: 143–133 B. C. Meantime, after an interval of some years, in 143 the war had broken out afresh in the nearer province where the struggle centered about the town of Numantia. In 140 the Roman general Pompeius made peace upon easy terms with the Numantines, but later repudiated it, and the Senate ignored his arrangements. Again in 138 the tribunes interfered with the levy, so great was the popular aversion to service in Spain. The next year witnessed the disgraceful surrender of the consul Mancinus and his army, comprising 20,000 Romans, to the Numantines. By concluding a treaty he saved the lives of his army. But the Roman Senate perfidiously rejected the sworn agreement of the consul, made him the scapegoat and delivered him bound to the Numantines, who would have none of him.

At length, weary of defeats, the Romans re-elected to the consulship for 134 B. C. their tried general Scipio Aemilianus, the conqueror of Carthage, and appointed him as commander in Spain. His first task was to restore the discipline in his army. Then he opened the blockade of Numantia. After a siege of fifteen months the city was starved into submission and completely destroyed. A commission of ten senators reorganized the country and Spain entered upon a long era of peace.

II. THE DESTRUCTION OF CARTHAGE: 149–146 B. C.

The Third Punic War: 149–146 B. C. Its causes. The treaty which ended the Second Punic War had forbidden the Carthaginians the right to make war outside of Africa, or within it without the consent of Rome. At the same time their enemy Masinissa had been established as a powerful prince on their borders. In such a situation future Roman intervention was inevitable. But for a generation Carthage was left in peace. A pro-Roman party was in control there and bent all its energies to the peaceful revival of Carthaginian commerce. And the Romans, after a period of suspicion which ended with the exile of Hannibal in 196, regarded Carthaginian prosperity without enmity. However, this prosperity in the end led to the ruin of the city, for it awakened the envy of the Senate and the financial interests of Rome, which became only too ready to seize upon any excuse for the destruction of their ancient rival.

Cato and Carthage. The opportunity came through the action of Masinissa. This chieftain, knowing the restrictions imposed upon Carthage by her treaty with Rome, and sensing the change in the Roman attitude towards that city after 167 B. C., revived old claims to Carthaginian territory. Carthage could only appeal to Rome for protection, but in 161 and 157 the Roman commissions sent to adjust the disputes decided in favor of Masinissa. A member of the commission of 157 was the old Marcus Porcius Cato, who was still obsessed with the fear which Carthage had inspired in his youth, and who returned from his mission filled with alarm at the wealth of the city and henceforth devoted all his energies to accomplish its overthrow. In the following years he concluded all his speeches in the Senate with the words, “Carthage must be destroyed.”

The Roman ultimatum: 149 B. C. A fresh attack by Masinissa occurred in 151 B. C. Enraged, the Carthaginians took the field against him, but suffered defeat. The Romans at once prepared for war. Conscious of having overstepped their rights and fearful of Roman vengeance, the Carthaginians offered unconditional submission in the hope of obtaining pardon. The Senate assured them of their lives, property and constitution, but required hostages and bade them execute the commands of the consuls who crossed over to Africa with an army and ordered the Carthaginians to surrender their arms and engines of war. The Carthaginians, desirous of appeasing the Romans at all costs, complied. Then came the ultimatum. They must abandon their city and settle at least ten miles from the sea coast. This was practically a death sentence to the ancient mercantile city. Seized with the fury of despair the Carthaginians improvised weapons and, manning their walls, bade defiance to the Romans.

The siege of Carthage: 149–146 B. C. For two years the Romans, owing to the incapacity of their commanders, accomplished little. Then disappointment and apprehension led the Roman people to demand as consul Scipio Aemilianus, who had already distinguished himself as a military tribune. He was only a candidate for the aedileship and legally ineligible for the consulate. But the restrictions upon his candidature were suspended, and he was elected consul for 147 B. C. A special law entrusted him with the conduct of the war in Africa. He restored discipline in the Roman army, defeated the Carthaginians in the field and energetically pressed the

siege of the city. The Carthaginians suffered frightfully from hunger and their forces were greatly reduced. In the spring of 146 B. C. the Romans forced their way into the city and captured it after desperate fighting in the streets and houses. The handful of survivors were sold into slavery, their city levelled to the ground and its site declared accursed. Out of the Carthaginian territory the Romans created a new province, called Africa. The last act in the dramatic struggle between the two cities was ended.

III. WAR WITH MACEDONIA AND THE ACHAEAN CONFEDERACY: 149–146 B. C.

The Fourth Macedonian War: 149–148 B. C. The mutual rivalries among the Greek states, which frequently evoked senatorial intervention, and the ill-will occasioned by the harshness of the Romans towards the anti-Roman party everywhere, caused a large faction among the Hellenes to be ready to seize the first favorable opportunity for freeing Greece from Roman suzerainty.

Relying upon this antagonism to Rome, a certain Andriscus, who claimed to be a son of Perseus, appeared in Macedonia in 149 and claimed the throne. He made himself master of the country and defeated the first Roman forces sent against him. However, he was crushed in the following year at Pydna by the praetor Metellus, and Macedonia was recovered. The four republics were not restored but the whole country was organized as a Roman province (148 B. C.).

The Achaeans assert their independence. The Achaean Confederacy was one of the states where the feeling against Rome ran especially high. There the irksomeness of the Roman protectorate was heightened by the return of the survivors of the political exiles of 167, 300 in number. The anti-Roman party, supported by the extreme democratic elements in the cities, was in control of the Confederacy when border difficulties with Sparta broke out afresh in 149 B. C. The matter was referred to the Senate for settlement, but the Achaeans did not await its decision. They attacked and defeated Sparta, confident that the hands of the Romans were tied by the wars in Spain, Africa and Macedonia.

The dissolution of the Confederacy: 146 B. C. The Roman Senate determined to punish the Confederacy by detaching certain important cities from its membership. But in 147 the Achaean assembly tempestuously refused to carry out the orders of the Roman ambassadors, in spite of the fact that the Macedonian revolt had been crushed. Their leaders, expecting no mercy from Rome, prepared for war and they were joined by the Boeotians and other peoples of central Greece. The next year they resolved to attack Sparta, whereupon the Romans sent a fleet and an army against them under the consul Lucius Mummius. Metellus, the conqueror of Macedonia, subdued central Greece and Mummius routed the forces of the Confederacy at Leucopetra on the Isthmus (146 B. C.). Corinth was sacked and burnt; its treasures were carried off to Rome; and its inhabitants sold into slavery. Its land, like that of Carthage, was added to the Roman public domain. Like Alexander’s destruction of Thebes this was a warning which the other cities of Greece could not misinterpret. A senatorial commission dissolved the Achaean Confederacy as well as the similar political combinations of the Boeotians and Phocians, The cities of Greece entered into individual relations with Rome. Those which had stood on the side of Rome, as

Athens and Sparta, retained their previous status as Roman allies; the rest were made subject and tributary. Greece was not organized as a province, but was put under the supervision of the governor of Macedonia.

IV. THE ACQUISITION OF ASIA

The province of Asia. In 133 B. C. died Attalus III, King of Pergamon, the last of his line. In his will he made the Roman people the heir to his kingdom, probably with the feeling that otherwise disputes over the succession would end in Roman interference and conquest. The Romans accepted the inheritance but before they took possession a claimant appeared in the person of an illegitimate son of Eumenes II, one Aristonicus. He occupied part of the kingdom, defeated and killed the consul Crassus in 131, but was himself beaten and captured by the latter's successor Perpena in 129.

Out of the kingdom of Pergamon there was then formed the Roman province of Asia (129 B. C.). The occupation of this country made Rome mistress of both shores of the Aegean and gave her a convenient bridgehead for an advance further eastward. The question of the financial administration of Asia and its relation to Roman politics will be discussed in a subsequent chapter.

CHAPTER XI

THE ROMAN STATE AND THE EMPIRE: 265–133 B. C.

The conquest of the hegemony of the Mediterranean world entailed the most serious consequences for the Roman state itself. Indeed, the wars which form the subject of the preceding chapters were the ultimate cause of the crisis that led to the fall of the Roman Republic. In the present chapter it will be our task to trace the changes and indicate the problems that had their origin in these wars and the ensuing conquests. Such a survey is best begun by considering the character of the Roman government during the epoch in question.

I. THE RULE OF THE SENATORIAL ARISTOCRACY

The Senate's control over the magistrates, tribunate, and assemblies. From the passing of the Hortensian Law in 287 B. C. to the tribunate of Tiberius Gracchus in 133 B. C. the Senate exercised a practically unchallenged control over the policy of the Roman state. For the Senate was able to guide or nullify the actions of the magistrates, the tribunate, and the assemblies; a condition made possible by the composition of the Senate, which, in addition to the ex-magistrates, included all those above the rank of quaestor actually in office, and by the peculiar organization and limitations of the Roman popular assemblies.

The higher magistrates were simply committees of senators elected by the assemblies. Their interests were those of the Senate as a whole, and constitutional practice required them to seek its advice upon all matters of importance. The Senate assigned to the consuls and praetors their spheres of duty, appointed pro-magistrates

and allotted them their commands, and no contracts let by the censors were valid unless approved by the Senate. Except when the consuls were in the city, the Senate controlled all expenditures from the public treasury.

The chief weapon of the tribunes, their right of veto, which had been instituted as a check upon the power of the Senate and the magistrates, became an instrument whereby the Senate bridled the tribunate itself. For, since after 287 the plebeians speedily came to constitute a majority in the senate chamber, it was not difficult for this body to secure the veto of the tribunes upon any measures of which it disapproved, whether they originated with a consul or a tribune.

And, because the popular assemblies could only vote upon such measures or for such candidates as were submitted to them by the presiding magistrates, the Senate through its influence over magistrates and tribunes controlled both the legislative and elective activities of the comitia.

The Senate and the public policy. Since the Senate was a permanent body, easily assembled and regularly summoned by the consuls to discuss all matters of public concern, it was natural that the foreign policy of the state should be entirely in its hands—subject, of course, to the right of the Assembly of the Centuries to sanction the making of war or peace—and hence the organization and government of Rome's foreign possessions became a senatorial prerogative. And, likewise, it fell to the Senate to deal with all sudden crises which constituted a menace to the welfare of the state, like the spread of the Bacchanalian associations which was ended by the _Senatus Consultum_ of 186 B. C. And, finally, the Senate claimed the right to proclaim a state of martial law by passing the so-called _Senatus Consultum ultimum_, a decree which authorized the magistrates to use any means whatsoever to preserve the state.

Polybius and the Roman Constitution. Thus in spite of the fact that the Greek historian and statesman, Polybius, who was an intimate of the governing circles in Rome about the middle of the second century B. C., in looking at the form of the Roman constitution could call it a nice balance between monarchy, represented by the consuls, aristocracy, represented by the Senate, and democracy, represented by the tribunate and assemblies, in actual practice the state was governed by the Senate. It is true that the Senate was not always absolute master of the situation. Between 233 and 217 B. C., the popular leader Caius Flaminius, as tribune, consul and censor, was able to carry out a democratic policy at variance with the Senate's wishes, but with his death the control of the Senate became firmer than ever. From what has been said it will readily be seen that the Senate's power rested mainly upon custom and precedent and upon the prestige and influence of itself as a whole and its individual members, not upon powers guaranteed by law. The Roman republic never was a true democracy, but was strongly aristocratic in character.

The aristocracy of office. The Senate was representative of a narrow circle of wealthy patrician and plebeian families, which constituted the new nobility that came into being with the cessation of the patricio-plebeian struggle and which was in truth an office-holding aristocracy. For, after the initial widening of the circle of families

enobled by admission to the Senate, the third century saw these create for themselves a real, if not legal, monopoly of the magistracies and thus of the regular gateway to the senate chamber. This they could do because the expense involved in holding public offices, which were without salary, and in conducting the election campaigns, which became increasingly costly as time went on, deterred all but persons of considerable fortune from seeking office, and because the exercise of personal influence and the right of the officer conducting an election to reject the candidature of a person of whom he disapproved, made it possible to prevent in most cases the election of any one not _persona grata_ to the majority of the senators. It was only individuals of exceptional force and ability, like Cato the Elder, and in later times Marius and Cicero, who could penetrate the barriers thus established. Such a person was signalled as a _novus homo_, a “new-comer.”

The goal of office. While Rome was hard-pressed by her enemies and while the issue of the struggle for world empire was still in doubt, the Senate displayed to a remarkable degree the qualities of self-sacrifice and steadfastness which so largely contributed to Rome’s ultimate triumph, as well as great political adroitness in the foreign relations of the state. But with the passing of all external dangers, personal ambition and class interest became more and more evident to the detriment of its patriotism and prestige. Office-holding, with the opportunities it offered for ruling over subject peoples and of commanding in profitable wars, became a ready means for securing for oneself and one’s friends the wealth which was needed to maintain the new standard of luxurious living now affected by the ruling class of the imperial city. The higher magistracies were rendered still more valuable in the eyes of the senators when the latter were prohibited from participating directly in commercial ventures outside of Italy by a law passed in 219 B. C., which forbade senators to own ships of seagoing capacity, with the object probably of preventing the foreign policy of the state from being directed by commercial interests. As a consequence the rivalry for office became extremely keen, and the customary canvassing for votes tended to degenerate into bribery both of individuals and of the voting masses. In the latter case it took the form of entertaining the public by the elaborate exhibition of lavish spectacles in the theatre and the arena.

Attempts to restrain abuses. However, the sense of responsibility was still strong enough in the Senate as a whole to secure the passing of legislation designed to check this evil. The Villian law (_lex Villia annalis_) of 180 B. C. established a regular sequence for the holding of the magistracies. Henceforth the quaestorship had to be held before the praetorship, and the latter before the consulate. The aedileship was not made imperative, but was regularly sought after the quaestorship, because it involved the supervision of the public games and festivals, and in this way gave a good opportunity for ingratiating oneself with the populace. The tribunate was not considered as one of the regular magistracies, and the censorship, according to the custom previously established, followed the consulship. The minimum age of twenty-eight years was set for the holding of the quaestorship, and an interval of two years was required between successive magistracies. Somewhat later, about 151 B. C., re-elections to the same office were forbidden. In the years 181 and 159 B. C. laws were passed which established severe penalties for the bribery of electors. Another

attempt to check the same abuse was the introduction of the secret ballot for voting in the assemblies. The Gabinian Law of 139 provided for the use of the ballot in elections; two years later the Cassian Law extended its use to trials in the _comitia_, and in 131 it was finally employed in the legislative assemblies.

But these laws accomplished no great results, as they dealt merely with the symptoms, and not with the cause of the disorder. And the Roman Senate, deteriorating in capacity and morale, was facing administrative, military, and social problems, which might well have been beyond its power to solve even in the days of its greatness. As we have indicated the Senate's power rested largely upon its successful foreign policy, but its initial failures in the last wars with Macedonia and Carthage, and the long and bloody struggles in Spain, had weakened its reputation and its claim to control the public policy was challenged, from the middle of the second century B. C., by the new commercial and capitalist class.

The Roman Constitution from 265 to 133 B. C. During the period in question there were few changes of importance in the political organization of the Roman state. The dictatorship had been discarded, although not abolished, before the close of the Hannibalic War, a step which was in harmony with the policy of the Senate which sought to prevent any official from attaining too independent a position. In 242 B. C. a second praetorship, the office of the _praetor peregrinus_ or alien praetor was established. The duty of this officer was to preside over the trial of disputes arising between Roman citizens and foreigners. Two additional praetorships were added in 227, and two more in 197 B. C., to provide provincial governors of praetorian rank. In 241 B. C. the last two rural tribal districts were created, making thirty-five tribes in all. Hereafter when new settlements of Roman colonists were undertaken, or new peoples admitted to citizenship, they were assigned to one or other of the old tribes, and membership therein became hereditary, irrespective of change of residence.

The reform of the centuries. At some time subsequent to the creation of these last two tribes, very probably in the censorship of Flaminius in 220 B. C., a change was made in the organization of the centuriate assembly. The centuries were organized on the basis of the tribes, an equal number of centuries of juniors and seniors of each class being assigned to each tribe.(9) The reform was evidently democratic in its nature, as it diminished the relative importance of the first class, deprived the equestrian centuries of the right of casting the first votes—a right now exercised by a century chosen by lot for each meeting—and placed in control of the Assembly of the Centuries the same elements as controlled the Assembly of the Tribes.

The comitia an antiquated institution. But by the second century B. C. the Roman primary assemblies had become antiquated as a vehicle for the expression of the wishes of the majority of the Roman citizens, because with the spread of the Roman citizen body throughout Italy it was impossible for more than a small percentage to attend the meetings of the Comitia, and this situation became much worse with the settlement of Romans in their foreign dependencies. It was the failure of the Romans to devise some adequate substitute for this institution of a primitive city-state, which was largely responsible for the people's loss of its sovereign powers. As it was, the

assemblies came to be dominated by the urban proletariat, a class absolutely unfitted to represent the Roman citizens as a whole.

The allies of Rome in Italy. The Latin and Italian allies, with the exception of such as were punished for their defection in the war with Hannibal, remained in their previous federate relationship with Rome. However, the Romans were no longer careful to adhere strictly to their treaty rights, and began to trespass upon the local independence of their allies. Roman magistrates did not hesitate to issue orders to the magistrates of federate communities, and to punish them for failure to obey or for lack of respect. The spoils of war, furthermore, were no longer divided in equal proportions between the Roman and allied troops. Added to these aggravations came the fact that the allies were after all dependents and had no share in the government or the financial administration of the lands they had helped to conquer. But their most serious grievance was their obligation to military service, which was exacted without relaxation, and which, owing to reasons which we shall discuss later, had become much more burdensome than when originally imposed. It is not surprising, then, to find that by 133 B. C. the federate allies were demanding to be admitted to Roman citizenship.

However, it was not in Rome or in Italy, but in Rome’s foreign possessions that the important administrative development of the third and second centuries occurred.

II. THE ADMINISTRATION OF THE PROVINCES

The status of the conquered peoples. The acquisition of Sicily in 241, and of Sardinia and Corsica in 238 B. C. raised the question whether Rome should extend to her non-Italian conquests the same treatment accorded to the Italian peoples and include them within her military federation. This question was answered in the negative and the status of federate allies was only accorded to such communities as had previously attained this relationship or merited it by zeal in the cause of Rome. All the rest were treated as subjects, not as allies, enjoying only such rights as the conquerors chose to leave them. The distinguishing mark of their condition was their obligation to pay a tax or tribute to Rome. Except on special occasions they were not called upon to render military service.

The provinces. At first the Romans tried to conduct the administration of Sicily, Sardinia and Corsica through the regular city magistrates, but finding this unsatisfactory in 227 B. C. they created two separate administrative districts—Sicily forming one, and the other two islands the second—called provinces from the word _provincia_, which meant the sphere of duty assigned to a particular official. And in fact special magistrates were assigned to them, two additional praetors being annually elected for this purpose. In like manner the Romans in 197 organized the provinces of Hither and Farther Spain, in 148 the province of Macedonia, in 146 that of Africa, and in 129 Asia. Subsequent conquests were treated in the same way. For the Spanish provinces new praetorships were created, “with consular authority” because of the military importance of their posts. But for those afterwards organized no new magistracies were added, and the practice was established of appointing as

governor an ex-consul or ex-praetor with the title of pro-consul or pro-praetor. This method of appointing provincial governors became, as we shall see, the rule for all provinces under the republican régime.

The provincial charter. Although each province had its own peculiar features, in general all were organized and administered in the following way. A provincial charter (_lex provinciae_) drawn up on the ground by a commission of ten senators and ratified by the Senate fixed the rights and obligations of the provincials. Each province was an aggregate of communities (_civitates_), enjoying city or tribal organization, which had no political bond of unity except in the representative of the Roman authority. There were three classes of these communities: the free and federate, the free and non-tributary, and the tributary (_civitates liberae et foederatae_, _liberae et immunes_, _stipendiariae_). The first were few in number and although within the borders of a province did not really belong to it, as they were free allies of Rome whose status was assured by a permanent treaty with the Roman state. The second class, likewise not very numerous, enjoyed exemption from taxation by virtue of the provincial charter, and this privilege the Senate could revoke at will. The third group was by far the most numerous and furnished the tribute laid upon the province. As a rule each of the communities enjoyed its former constitution and laws, subject to the supervision of the Roman authorities.

The Roman governor. Over this aggregate of communities stood the Roman governor and his staff. We have already seen how the governor was appointed and what was his rank among the Roman magistrates. His term of office was regularly for one year, except in the Spanish provinces where a term of two years was usual. His duties were of a threefold nature: military, administrative, and judicial. He was in command of the Roman troops stationed in the province for the maintenance of order and the protection of the frontiers; he supervised the relations between the communities of his province and their internal administration, as well as the collection of the tribute; he presided over the trial of the more serious cases arising among provincials, over all cases between provincials and Romans, or between Roman citizens. Upon entering his province the governor published an edict, usually modelled upon that of his predecessors or the praetor’s edict at Rome, stating what legal principles he would enforce during his term of office. The province was divided into judicial circuits (_conventus_), and cases arising in each of these were tried in designated places at fixed times.

The governor’s staff. The governor was accompanied by a quaestor, who acted as his treasurer and received the provincial revenue from the tax collectors. His staff also comprised three _legati_ or lieutenants, senators appointed by the senate, but usually nominated by himself, whose function it was to assist him with their counsel and act as his deputies when necessary. He also took with him a number of companions (_comites_), usually young men from the families of his friends, who were given this opportunity of gaining a knowledge of provincial government and who could be used in any official capacity. In addition, the governor brought his own retinue, comprising clerks and household servants.

The provincial taxes. The taxes levied upon the provinces were at first designed to pay the expenses of occupation and defence. Hence they bore the name _stipendium_, or soldiers' pay. At a later date the provinces were looked upon as the estates of the Roman people and the taxes as a form of rental. The term _tributum_ (tribute), used of the property tax imposed on Roman citizens did not come into general use for the provincial revenues until a later epoch. As a rule the Romans accepted the tax system already in vogue in each district before their occupancy, and exacted either a fixed annual sum from the province as in Spain, Africa and Macedonia or one tenth (_decuma_) of the annual produce of the soil, as in Sicily and Asia. The tribute imposed by the Romans was not higher, but usually lower than what had been exacted by the previous rulers. The public lands, mines, and forests, of the conquered state were incorporated in the Roman public domain, and the right to occupy or exploit them was leased to individuals or companies of contractors. Customs dues (_portoria_) were also collected in the harbors and on the frontiers of the provinces.

The tax collectors. Following the custom established in Italy, the Roman state did not collect its taxes in the provinces through public officials but leased for a period of five years the right to collect each particular tax to the private corporation of tax collectors (_publicani_) which made the highest bid for the privilege. These corporations were joint stock companies, with a central office at Rome and agencies in the provinces in which they were interested. It was this system which was responsible for the greatest evils of Roman provincial administration. For the _publicani_ were usually corporations of Romans, bent on making a profit from their speculation, and practised under the guise of raising the revenue, all manner of extortion upon the provincials. It was the duty of the governor to check their rapacity, but from want of sympathy with the oppressed and unwillingness to offend the Roman business interests this duty was rarely performed. Hand in hand with tax collecting went the business of money lending, for the Romans found a state of chronic bankruptcy prevailing in the Greek world and made loans everywhere at exorbitant rates of interest. To collect overdue payments the Roman bankers appealed to the governor, who usually quartered troops upon delinquent communities until they satisfied their creditors.

The rapacity of the governors. A further source of misgovernment lay in the greed of the governor and his staff. The temptations of unrestricted power proved too great for the morality of the average Roman. It is true that there were not wanting Roman governors who maintained the highest traditions of Roman integrity in public office, but there were also only too many who abused their power to enrich themselves. While the shortness of his term of office prevented a good governor from thoroughly understanding the conditions of his province, it served to augment the criminal zeal with which an avaricious proconsul, often heavily indebted from the expenses of his election campaigns, sought to wring a fortune from the hapless provincials. Bribes, presents, illegal exactions, and open confiscations were the chief means of amassing wealth. In this the almost sovereign position of the governor and his freedom from immediate senatorial control guaranteed him a free hand.

The quaestio rerum repetundarum: 149 B. C. The mischief became so serious that in 149 B. C. the public conscience awoke to the wrong and ruin inflicted upon the provinces, and by a Calpurnian Law a standing court was instituted for the trial of officials accused of extortion in the provinces. This court was composed of fifty jurors drawn from the Senate and was presided over by a praetor. From its judgment there was no appeal. Its establishment marks an important innovation in Roman legal procedure in criminal cases. It is possible also that the Senate was encouraged to undertake the organization of new provinces shortly after 149 because it believed that this court would serve as an adequate means of controlling the provincial governors. But it was useless to expect very much from such a tribunal. The cost of a long trial at Rome, the difficulty of securing testimony, the inadequacy of the penalty provided, which was limited to restitution of the damage inflicted, as well as the fear of vengeance from future governors, would deter the majority of sufferers from seeking reparation. Nor could an impartial verdict be expected from a jury of senators trying one of their own number for an offense which many of them regarded as their prerogative. And so till the end of the republic the provincials suffered from the oppression of their governors, as well as from that of the tax-collectors.

III. SOCIAL AND ECONOMIC DEVELOPMENT

Outstanding characteristics of the period. The epoch of foreign expansion which we are considering was marked by a complete revolution in the social and economic life of Rome and Italy. It witnessed the spread of the slave plantations, the decline of the free Italian peasantry, the growth of the city mob of Rome, the great increase in the power of the commercial and capitalist class, and the introduction of a new standard of living among the well-to-do.

*The slave **plantations.* The introduction of the plantation system, that is, of the cultivation of large estates (_latifundia_) by slave labor, was the result of several causes: the Roman system of administering the public domain, the devastation of the rural districts of South Italy in the Hannibalic War, the abundant supply of cheap slaves taken as prisoners of war, and the inability of the small proprietors to maintain themselves in the face of the demands of military service abroad and the competition of imported grain as well as that of the _latifundia_ themselves.

The public domain that was not required for purposes of colonization had always been open for pasturage or cultivation to persons paying a nominal rental to the state. Those who profited most from this system were the wealthier landholders who could occupy and cultivate very considerable areas. This fact explains the senatorial opposition to the division and settlement of the _ager Gallicus_ proposed and carried by the tribune Flaminius in 233 B. C. The dangers of the practice to the smaller proprietors caused the passing of laws, probably late in the third century, which limited the amount of public land to be occupied by any individual and his family. But these laws were disregarded, for the Senate administered the public domain and the senators were the wealthy landholders. After several generations the public lands occupied in this way came to be regarded as private property. The havoc wrought by Hannibal in South Italy, where he destroyed four hundred communities, caused the

disappearance of the country population and opened the way for the acquisition of large estates there, and the law which restricted the commercial activities of senators and forbade their engaging in tax collecting or undertaking similar state contracts encouraged them to invest their capital in Italian land and stimulated the growth of their holdings.

The change in agrarian conditions in Italy was also advantageous to large estates. The cheapness of Sicilian grain rendered it more profitable in Italy to cultivate vineyards and olive orchards, and to raise cattle and sheep on a large scale. For the latter wide acreages were needed: a summer pasturage in the mountains and a winter one in the lowlands of the coast. Abundant capital and cheap labor were other requisites. And slaves were to be had in such numbers that their labor was exploited without regard for their lives. Cato the Elder, who exemplified the vices as well as the virtues of the old Roman character, treated his slaves like cattle and recommended that they be disposed of when no longer fit for work. Often the slaves worked in irons, and were housed in underground prisons (_ergastula_). The dangers of the presence of such masses of slaves so brutally treated came to light in the Sicilian Slave War which broke out in 136 B. C., when over 200,000 of them rebelled and defied the Roman arms for a period of four years.

The decline of the free peasantry. Partly a cause and partly a result of the spread of the _latifundia_ was the decline of the free Italian peasantry. As we have seen, the competition of the slave plantations proved ruinous to those who tilled their own land. But another very potent cause contributing to this result was the burden imposed by Rome’s foreign wars. Since only those who had a property assessment of at least 4000 asses were liable to military service, and since the majority of Roman citizens were engaged in agricultural occupations, the Roman armies were chiefly recruited from the country population. And no longer for a part of each year only, but for a number of consecutive years, was the peasant soldier kept from his home to the inevitable detriment of his fields and his finances. Furthermore, a long period of military service with the chances of gaining temporary riches from the spoils of war unfitted men for the steady, laborious life of the farm. And so many discharged soldiers, returning to find that their lands had been mortgaged in their absence for the support of their families, and being unable or unwilling to gain a livelihood on their small estates, let these pass into the hands of their wealthier neighbors and flocked to Rome to swell the mob of idlers there. Then came the heavy losses of the Second Punic and the Spanish Wars. Although the census list of Roman citizens eligible for military service shows an increase in the first half of the second century B. C., between 164 and 136 it sank from 337,000 to 317,000. Yet the levies had to be raised, even if, as we have seen, they were unpopular enough to induce the tribunes to intercede against them. The Latin and Italian allies felt the same drain as the Roman citizens, but had no recourse to the tribunician intercession. The Senate was consequently brought face to face with a very serious military problem. The provinces, once occupied, had to be kept in subjection and defended. Since the Roman government would not, or dare not, raise armies in the provinces, it had to meet increasing military obligations with declining resources.

The urban proletariat. Another difficulty was destined to arise from the growth of a turbulent mob in Rome itself. This was in large measure due to Rome's position as the political and commercial center of the Mediterranean world. By the end of this period of expansion the city had a population of at least half a million, rivalling Alexandria and Antioch, the great Hellenistic capitals. Although not a manufacturing city, Rome had always been important as a market, and now her streets were thronged with traders from all lands, and with persons who could cater in any way to the wants and the appetites of an imperial city. There was a large proportion of slaves belonging to the mansions of the wealthy, and of freedmen engaged in business for themselves or for their patrons. Hither flocked also the peasants who for various reasons had abandoned their agricultural pursuits to pick up a precarious living in the city or to depend upon the bounty of the patron to whom they attached themselves. Owing to the slowness of transportation by land and its uncertainties by sea, the congestion of population in Rome made the problem of supplying the city with food one of great difficulty, since a rise in the price of grain, or a delay in the arrival of the Sicilian wheat convoy would bring the proletariat to the verge of starvation. And upon the popular assemblies the presence of this unstable element had an unwholesome effect. Dominated as these assemblies were by those who resided in the city, their actions were bound to be determined by the particular interests and passions of this portion of the citizen body. Furthermore, in the _contiones_ or mass meetings for political purposes, non-citizens as well as citizens could attend, and this afforded a ready means for evoking the mob spirit in the hope of overawing the Comitia. This danger would not have been present if the Roman constitution had provided adequate means for policing the city. As it was, however, beyond the magistrates and their personal attendants, there were no persons authorized to maintain order in the city. And since the consuls lacked military authority within the _pomerium_, there were no armed forces at their disposal.

The equestrian order. The Roman custom of depending as much as possible upon individual initiative for the conduct of public business, as in the construction of roads, aqueducts and other public works, the operation of mines, and the collection of taxes of all kinds, had given rise to a class of professional public contractors—the _publicani_. Their operations, with the allied occupations of banking and money-lending, had been greatly enlarged by the period of war and conquest which followed 265 B. C. through the opportunities it brought for the exploitation of subject peoples. Roman commerce, too, had spread with the extension of Roman political influence. The exclusion of senators from direct participation in these ventures led to the rise of a numerous, wealthy and influential class whose interests differed from and often ran counter to those of the senatorial order. In general they supported an aggressive foreign policy, with the ruthless exploitation of conquered peoples, and they were powerful enough to influence the destruction of Carthage and Corinth. In the course of the second century this class developed into a distinct order in the state—the equestrians. Since the Roman cavalry had practically ceased to serve in the field, the term _equites_ came to be applied to all those whose property would have permitted their serving as cavalry at their own expense. The majority of these was formed by the business class, although under the name of equestrians were still

included such members of the senatorial families as had not yet held office.

The new scale of living. In the course of their campaigns in Sicily, Africa, Greece, and Asia Minor, the Romans came into close contact with a civilization older and higher than their own, where the art of living was practised with a refinement and elegance unknown in Latium. In this respect the conquerors showed themselves only too ready to learn from the conquered, and all the luxurious externals of culture were transplanted to Rome. But the old Periclean motto, “refinement without extravagance,” did not appeal to the Romans who, like typical _nouveaux riches_ vied with one another in the extravagant display of their wealth. The simple Roman house with its one large _atrium_, serving at once as kitchen, living room, and bed chamber, was completely transformed. The _atrium_ became a pillared reception hall, special rooms were added for the various phases of domestic life; in the rear of the _atrium_ arose a Greek peristyle courtyard, and the house was filled with costly sculptures and other works of art, plundered or purchased in the cities of Hellas. Banquets were served on silver plate and exhibited the rarest and costliest dishes. The homes of the wealthy were thronged with retinues of slaves, each specially trained for some particular task; the looms of the East supplied garments of delicate texture. A wide gulf yawned between the life of the rich and the life of the poor.

Sumptuary legislation. But the change did not come about without vigorous opposition from the champions of the old Roman simplicity of life who saw in the new refinement and luxury a danger to Roman vigor and morality. The spokesman of the reactionaries was Cato the Elder, who in his censorship in 184 B. C. assessed articles of luxury and expensive slaves at ten times their market value and made them liable to taxation at an exceptionally high rate, in case the property tax should be levied. But such action was contrary to the spirit of the age; the next censors let his regulations fall into abeyance. Attempts to check the growth of luxury by legislation were equally futile. The Oppian Law, passed under stress of the need for conservation in 215 B. C., restricting female extravagance in dress and ornaments, was repealed in 195, and subsequent attempts at sumptuary legislation in 181, 161, and 143, were equally in vain.

To resume: in 133 B. C. the Roman state was faced with a bitter contest between the Senate and the equestrians for the control of the government, the Comitia was dominated by an unstable urban proletariat, the provisioning of Rome was a source of anxiety, dissatisfaction was rife among the Latin and Italian allies, the military resources of the state were weakening, while its military burdens were greater than ever, and the ruling circles had begun to display unmistakable signs of a declining public morality. With a constitution adapted to a city-state Rome was now forced to grapple with all the problems of imperial government.

IV. CULTURAL PROGRESS

Greek influences. In addition to creating new administrative problems and transforming the economic life of Italy, the expansion of Rome gave a tremendous impulse to its cultural development. The chief stimulus thereto was the close contact

with Hellenic civilization. We have previously mentioned that Rome had been subject to Greek influences both indirectly through Etruria and directly from the Greek cities of South Italy, but with the conquest of the latter, and the occupation of Sicily, Greece, and part of Asia Minor, these influences became infinitely more immediate and powerful. They were intensified by the number of Greeks who flocked to Rome as ambassadors, teachers, physicians, merchants and artists, and by the multitude of educated Greek slaves employed in Roman households. And as the Hellenic civilization was more ancient and had reached a higher stage than the Latin, it was inevitable that the latter should borrow largely from the former and consciously or unconsciously imitate it in many respects. In fact the intellectual life of Rome never attained the freedom and richness of that of Greece upon which it was always dependent. In this domain, as Horace phrased it, “Captive Greece took captive her rude conqueror.”

New tendencies in Roman education. A knowledge of Greek now became part of the equipment of every educated man, the training of the sons of the well-to-do was placed in the hands of Greek tutors, who were chiefly domestic slaves, and the study of the masterpieces of Greek literature created the genuine admiration for Greek achievements and the respect that men like Flamininus showed towards their Greek contemporaries—a respect which the political ineptitude of the latter soon changed to contempt. These tendencies were vigorously opposed by the conservative Cato, who regarded Greek influences as demoralizing. Following the old Roman custom he personally trained his sons, and had no sympathy with a philhellenic foreign policy. But even Cato in the end yielded so far as to learn Greek. The chief patrons of Hellenism were men of the type of Scipio Africanus the Elder; notably Titus Flamininus, Aemilius Paulus and Scipio Aemilianus, at whose house gathered the leading intellectuals of the day. Intimate associates there were the Achaean historian Polybius and the Stoic philosopher Panaetius of Rhodes.

Roman literature: I. Poetry. More than anything else Greek influences contributed to the rise of Roman literature. Prior to the war with Hannibal the Romans had no literature, although Latin prose had attained a certain development in the formulation of laws and treaties and a rude Latin verse had appeared.

Not unnaturally Roman literature began with translations from the Greek, and here poetry preceded prose. In the latter half of the third century B. C., Livius Andronicus, a Greek freedman, translated the _Odyssey_ into Latin Saturnian verse, as a text-book for school use. He also translated Greek comedies and tragedies. At about the same time Cnaeus Naevius wrote comedies and tragedies having Roman as well as Greek subjects. He also composed an epic poem on the First Punic War, still using the native Saturnian.

Dramatic literature developed rapidly under the demand for plays to be presented at the public festivals. In the second century appeared the great comic poet Plautus, who drew his subjects from the Greek New Comedy, but whose metre and language were strictly Latin. He was followed by Terence, a man of lesser genius, who depended largely upon Greek originals, but who was distinguished for the purity and elegance of his Latin. A later dramatist of note was Lucius Accius, who brought

Roman tragedy to its height. In both comedy and tragedy Greek plots and characters were gradually abandoned for those of native origin, but tragedy failed to appeal to the Roman public which was in general too uneducated to appreciate its worth and preferred the comedy, mime or gladiatorial combat. A notable figure is Ennius, a Messapian, who began to write at the close of the third century B. C. He created the Latin hexameter verse in which he wrote a great epic portraying the history of Rome from the migration of Aeneas. Another famous member of the Scipionic circle was Gaius Lucilius, a Roman of equestrian rank, who originated the one specifically Roman contribution to literary types, the satire. His poems were a criticism of life in all its aspects, public and private. He called them “talks” (_sermones_), but they received the popular name of satires because their colloquial language and the variety of their subjects recalled the native Italian medley of prose and verse, narrative and drama, known as the _satura_.

II. Prose. Latin prose developed more slowly. The earliest Roman historical works by Fabius Pictor (after 201 B. C.), Cincius Alimentus, and others, were written in Greek, for in that language alone could they find suitable models. It remained for Cato, here as elsewhere the foe of Hellenism, to create Latin historical prose in his _Origins_, an account of the beginnings of Rome and the Italian peoples written about 168 B. C. His earlier work on agriculture was the first book in Latin prose. The work of the Carthaginian Mago on the same subject was translated into Latin by a commission appointed by the Senate.

Oratory. The demands of public life in Rome had already created a native oratory. A speech delivered by Appius Claudius in 279 B. C. had been written down and published, as were several funeral orations from the close of the third century. But it was Cato who first published a collection of his speeches, about one hundred and fifty in number, which enjoyed a great reputation. A new impulse to this branch of literature was given by the introduction of the systematic study of rhetoric under the influence of Greek orators and teachers.

Juristic writings. In the field of jurisprudence the Romans at this period, were but little subject to Greek influences. The codification of the law in the fifth century B. C. had been followed by the introduction of new principles and forms of action, chiefly through the praetor’s edict. The necessity arose of harmonizing the old law and the new, and of systematizing the various forms of legal procedure. Roman juristic literature begins with Sextus Aelius Paetus (consul in 198 B. C.), surnamed Catus “the shrewd,” who compiled a work which later generations regarded as “the cradle of the law.” It was in three parts; the first contained an interpretation of the XII Tables, the second the development of the law by the jurists, and the third new methods of legal procedure. A knowledge of the law had always been highly esteemed at Rome and the position of a jurist consult, that is, one who was consulted on difficult legal problems, was one of especial honor. Consequently the study of the law, together with that of oratory, formed the regular preparation for the Roman who aimed at a public career.

Religion. Greek religion, like Greek literature, had attained a more advanced stage than that of Rome, and possessed a rich mythology when the Romans had

barely begun to ascribe distinct personalities to their gods. Hence there came about a ready identification between Greek and Roman divinities to whom similar powers were ascribed and the wholesale adoption of Greek mythological lore. By the close of the third century B. C. there was formally recognized in Rome a group of twelve greater divinities who were identical with the twelve Olympic gods of Greece. There ensued also a rapid neglect of the minor Latin divinities whose place was taken by those of Greek origin. The old impersonal Roman deities had given place to anthropomorphic Hellenic conceptions. This is reflected in the acceptance of Greek types for the plastic representations of the gods, a strong demand for which arose with the acquaintance of the works of art carried off from Syracuse and other Greek cities. An important factor in this hellenization of the Roman religion was the influence of the Sibylline Books, a collection of Greek oracles imported from Cumae in the days of the Roman kings and consulted in times of national danger.

The decree of the Senate against Bacchanalian societies: 186 B. C. But Greek influence in the sphere of religion went deeper than the identification of Greek and Roman divinities, for the emotional cult of Bacchus with its mystic ceremonies and doctrines made its way into Italy where religious associations for its celebration were formed even in Rome itself. The demoralizing effects of this worship called forth a senatorial investigation which resulted, as we have seen, in the suppression of these associations. A similar action was taken with regard to the Chaldean astrologers, banished from Italy in 139 B. C.

The worship of the Great Mother. Of a different character was the cult of the Great Mother officially introduced into Rome in the year 204 B. C. This was in essence a native nature worship of Asia Minor, disguised with a veneer of Hellenism. It was the first of the so-called Oriental cults to obtain a footing in the Roman world.

Skepticism and Stoicism. Although the formalities of religion in so far as they concerned public life were still scrupulously observed, there was an ever increasing skepticism with regard to the existence and power of the gods of the Graeco-Roman mythology. This was especially true of the educated classes, who were influenced to a certain extent by the rationalism of Euhemerus, whose work on the origin of the gods had been translated by Ennius, but much more by the pantheism of the Stoic philosophy. The Stoic doctrines, with their practical ethical prescriptions, made a strong appeal to the Roman character and found an able expositor in Panaetius of Rhodes who taught under the patronage of Scipio Aemilianus.

Public festivals. Of great importance in the life of the city were the annual public festivals or games, of which six came to be regularly celebrated by the middle of the second century, each lasting for several days. Five of these were celebrated by the aediles, one by the city praetor. A fixed sum was allotted by the state to defray the expenses of these exhibits, but custom required that this must be largely supplemented from the private purse of the person in charge. In this way the aedileship afforded an excellent opportunity to win public favor by an exhibition of generosity. To the original horse and chariot races there came to be added scenic productions, wild beast hunts, and gladiatorial combats, in imitation of those exhibited by private persons. The first private exhibition of gladiators was given at a

funeral in 264 B. C., and the first wild beast hunt in 186 B. C. These types of exhibitions soon became the most popular of all and exercised a brutalizing effect upon the spectators.

The city Rome. The growth of Rome in population and wealth brought about a corresponding change in the appearance of the city. Tenement houses of several stories and high rentals reflected the influx into the capital. Public buildings began to be erected on a large scale. The Circus Flaminius dates from the end of the third century, and several basilicas or large public halls, suitable as places for transacting business or conducting judicial hearings, were erected by 169 B. C. A new stone bridge was built across the Tiber, a quay to facilitate the unloading of ships was constructed on the bank of the river, a third aqueduct brought into the city, and stone paving laid on many streets. Many temples were erected, adorned with votive offerings, mainly spoils of war from Greek cities. But no native art or architecture arose that was worthy of the imperial position of Rome.

CHAPTER XII

THE STRUGGLE OF THE OPTIMATES AND THE POPULARES: 133–78 B. C.

Civil war and imperial expansion. The century which began with the year 133 B. C. is characterized by a condition of perpetual factional strife within the Roman state; strife which frequently blazed forth into civil war and which culminated in the fall of the republican system of government.

The question at issue was the right of the Senate to direct the policy of Rome, and this right was challenged by the tribunate and the Assembly of Tribes, by the equestrian order, and by the great military leaders who appeared in the course of civil and foreign wars.

For in spite of these unceasing internal disorders this century marks an imperial expansion which rivalled that of the era of the Punic and Macedonian Wars. In Gaul the Roman sway was extended to the Rhine and the Ocean; in the east practically the whole peninsula of Asia Minor, as well as Syria and Egypt, was incorporated in the Empire. With the exception of Mauretania (i. e. modern Morocco, which was really a Roman dependency) the Roman provinces completely encircled the Mediterranean.

At the same time a new Italian nation was created by the admission to Roman citizenship of all the peoples dwelling in Italy south of the Alps.

The period 133 to 78 B. C. covers the first stage in the struggle which brought the Republic to an end, and closes with the Senate in full possession of its old prerogatives, while the powers of the tribunate and Assembly have been seriously curtailed. In this struggle the Roman citizen body was aligned in two groups. The one, which supported the claims of the Senate, was called the party of the “Optimates” or aristocrats; the other, which challenged these claims, was known as the people’s party or the “Populares.”

I. THE AGRARIAN LAWS OF TIBERIUS GRACCHUS: 133 B. C.

Tiberius Gracchus, tribune, 133 B. C. The opening of the struggle was brought on by the agrarian legislation proposed by Tiberius Gracchus, a tribune for the year 133 B. C. Gracchus, then thirty years of age, was one of the most prominent young Romans of his time, being the son of the consul whose name he bore and of Cornelia, daughter of the great Scipio Africanus. Under his mother's supervision, he had received a careful education, which included rhetoric and Greek Stoic philosophy. As quaestor in Spain in 136 he had distinguished himself for courage and honesty in dealing with the native population and had acquainted himself with the military needs of Rome. He saw in the decline of the free peasantry of Italy the chief menace to the state, and when elected to the tribunate proposed legislation which aimed to re-establish the class of free Roman farmers, and thus provide new strength for the Roman armies.

The land law. His proposed land law took the form of a re-enactment of a previous agrarian measure dating, probably, from the end of the third century B. C. This law had restricted the amount of public land which any person might occupy to five hundred iugera (about three hundred and ten acres), an amount which Gracchus augmented by two hundred and fifty iugera for each of two grown sons. All land held in excess of this limit was to be surrendered to the state, further occupation of public land was forbidden, and what was within the legal limit was to be declared private property. Compensation for improvements on surrendered lands was offered to the late occupants, and a commission of three men was to be annually elected with judicial powers to decide upon the rights of possessors (_III vir agris iudicandis assignandis_). The land thus resumed by the state was to be assigned by the commissioners to landless Roman citizens in small allotments, incapable of alienation, and subject to a nominal rental to the state.

Deposition of the tribune Octavius. This proposal aroused widespread consternation among the Senators, who saw their holdings threatened. In many cases it had doubtless become impossible for them to distinguish between their private properties and the public lands occupied by their families for several generations. The Senate resorted to its customary procedure in protecting its prerogatives and induced a tribune named Octavius to veto the measure. But Gracchus was terribly in earnest with his project of reform and took the unprecedented step of appealing to the Assembly of the Tribes to depose Octavius, on the ground that he was thwarting the will of the people. The Assembly voiced their approval of Tiberius by depriving his opponent of his office. The land bill was thereupon presented to the Assembly and passed. The first commissioners elected to carry it into effect were Tiberius himself, his younger brother Caius, and his father-in-law, Appius Claudius.

Death of Tiberius Gracchus. To equip the allotments made to poor settlers, Tiberius proposed the appropriation of the treasure of King Attalus III of Pergamon, to which the Roman state had lately fallen heir. Here was a direct attack upon the Senate's customary control of such matters. But before this proposal could be presented to the Comitia, the elections to the tribunate for 132 fell due. Tiberius determined to present himself for re-election in order to ensure the carrying out of his land law and to protect himself from prosecution on the ground of the

unconstitutionality of some of his actions. Such a procedure was unusual, if not illegal, and the Senate determined to prevent it at any cost. The elections culminated in a riot in which Gracchus and three hundred adherents were massacred by the armed slaves and clients of the senators. Their bodies were thrown into the Tiber. A judicial commission appointed by the Senate sought out and punished the leading supporters of the murdered tribune.

The fate of the land commission. However, the land law remained in force and the commission set to work. But in 129 B. C. the commissioners were deprived of their judicial powers, and, since they could no longer expropriate land, their activity practically ceased.

Still, the Senate's opponents were not utterly crushed. In 131 an attempt was made to legalize re-election to the tribunate, and although the proposal failed at first, a law to that effect was passed some time prior to 123 B. C. In the year 129 died Scipio Aemilianus, the conqueror of Carthage and Numantia, the foremost Roman of the day. Upon returning from Spain in 132 he had energetically taken sides with the Senate and had caused the land commissioners to lose their right of jurisdiction. Thereby he had become exceedingly unpopular with the Gracchan party, and when he died suddenly in his fifty-sixth year, there were not wanting those who accused his wife Sempronia, sister of Tiberius and Caius Gracchus, and others of their family, of being responsible for his decease.

II. THE TRIBUNATE OF CAIUS GRACCHUS: 124–121 B. C.

Caius Gracchus, tribune, 123 B. C. The return of Caius Gracchus from his quaestorship in Sardinia in 124 B. C. and his immediate election to the tribunate for the ensuing year heralded the opening of a new phase in the conflict between the Optimates and the Populares. Caius was a passionate orator, and a man of greater energy and more violent temperament than his brother. He entered office pledged to support the agrarian policy of Tiberius, but likewise determined to avenge the latter's death and to wrest from the Senate its control of the government.

The legislation of Caius Gracchus, 123 B. C. Upon assuming office Caius developed an extensive legislative program. Extraordinary judicial commissions established by the Senate were declared illegal and the ex-consul Popilius who had been the leader in the prosecution of the followers of Tiberius, was forced into exile. A law was passed which provided for a monthly distribution of grain to the city populace at one half the current market price. In this way an expedient which had occasionally been resorted to in times of distress was laid as a permanent obligation upon the government. It has been pointed out above that the lower classes in the city lived in perpetual danger of famine, and Caius probably hoped to relieve the state of the perpetual menace of a hungry proletariat at the capital by improving the arrangements for the city's grain supply and lowering the cost of grain to the poor. But in the end this measure had the evil results of putting a severe drain upon the treasury and a premium upon idleness. For the moment, however, it made the city mob devoted adherents of Caius and strengthened his control of the Assembly. The land law of 133 B. C. was re-enacted and the land commissioners reclothed with

judicial authority. In connection therewith there was undertaken the extension and improvement of the road system of Italy. Caius then assured himself of the support of the financial interests by a law which provided that the whole revenue from the new province of Asia should be auctioned off at Rome in a lump to Roman contractors. A rich field was thus opened up to the Roman bankers.

Caius re-elected tribune for 122 B. C. The activity of Caius in supervising the execution of his legislation made him the leading figure in the government, and he was re-elected to the tribunate for 122 B. C. It seemed as though a sort of Periclean democracy had been established in Rome, where the statesman who commanded a majority in the popular assembly by securing his continuous re-election to the tribunate might supplant the Senate in directing the public policy.

The Judiciary Law, 123 B. C. Gracchus continued his legislative activity. One of his most important laws was that which deprived senators of the right to act as judges in the courts, including the permanent _quaestiones_, and transferred this prerogative to the equestrians. This was probably done by defining the qualifications of jurors in such a way as to exclude both senators and those not potentially able to maintain the equipment of a cavalryman at their own expense, i. e. those assessed at less than 400,000 sesterces ($20,000). By the Acilian Law of 123, which reorganized the _quaestio_ for the recovery of damages, the relatives of senators, who were still eligible to the eighteen equestrian centuries, were specifically excluded from serving as jurors. In this way the equestrian order in its widest sense was defined and, being given specific public duties, was rendered more conscious of its power and special interests. In consequence the permanent tribunal for trying officials charged with extortion in the provinces was manned by _equites_ instead of senators. But the change brought no relief to the subjects of Rome for this court was now composed of men who were interested in the financial exploitation of the provincials and who thus were in a position to intimidate a governor who endeavored to restrain the rapacity of tax collectors and money-lenders. The control of the law courts became a standing bone of contention between the Senate and the equestrian order. Another law, which further restricted the powers of the Senate, dealt with the allotment of the consular provinces. Previously these had been assigned by the Senate after the election of the consuls, so that the activities of one distrusted by the senators could be considerably restricted. For the future the consular provinces had to be designated prior to the elections and then assigned to the successful candidates. The Senate’s control over the consuls was thereby considerably weakened.

*Schemes for **colonization** and **extension** of Roman **citizenship**.* Caius also secured the passage of an extensive scheme of colonization, which provided for the establishment of Roman colonies at Capua and Tarentum, and, what was an innovation, for a colony outside of Italy on the site of Carthage. He further championed the cause of the Latin and Italian allies, for whom he sought to secure Roman citizenship. The Senatorial party thereupon endeavored to undermine his influence with the people by proposing through the tribune Livius Drusus a more extensive scheme of colonization, with exemption from rentals for colonists, and opposing the extension of the franchise to the allied communities, a measure

unpopular with the masses who were jealous of sharing their privileges with numbers of new citizens.

The overthrow of Caius Gracchus: 121 B. C. Caius personally undertook the foundation of the colony, named Junonia, which was located at Carthage, and his absence of seventy days on this mission gave the opposition time to organize their forces. His enemies accused him of aiming at a tyranny, his proposal for extension of the franchise was quashed by the veto of Drusus, and he himself failed to secure his election as tribune for 121. With the opening of that year the Senate initiated an attack upon some of his measures, especially the founding of Junonia. The senators were determined to impeach or kill Gracchus, while he and his friends organized themselves for defence. A riot in which one of the senatorial faction was killed gave the Senate the pretext to proclaim a state of martial law and authorize the consul Opimius to take any steps to safeguard the state. The followers of Gracchus assembled on the Aventine, their overtures were rejected and upon the refusal of Caius and his chief adherent Flaccus to appear before the Senate, Opimius attacked them at the head of the Senators, armed slaves and Cretan archers. The Gracchans were routed; Caius had himself killed by a faithful slave, and a judicial commission condemned three thousand of his followers.

The consequences of the Gracchan disorders. The memory of the Gracchi retained a lasting hold upon the affections of the Roman plebs. But although both were earnest patriots, who made a sincere attempt to reform existing abuses in the state, one cannot but feel that the success of their political aims would have brought about no permanent improvement. To substitute for the Senate the fickle Assembly as the governing force in the state was no true democratic measure owing to the fact that the Assembly did not properly represent the mass of the citizen body, and as the future years were to show, would merely have shifted the reins of power from one incompetent body to another more incompetent still. As it was, the Senate, although victorious, emerged from the contest weakened in authority and prestige, and having left a feeling of bitter resentment in the hearts of its opponents. It owed its success to violence and not to legal measures and thus offered a precedent which others might follow against itself. The alliance between the equestrians and the urban proletariat while it lasted had proven stronger than the Senate, and this lesson, too, was not lost upon future statesmen. Besides the loss of some of its prerogatives, the Senate was weakened by the consolidation of the business interests as a political party, with which it was brought into sharp opposition over the question of provincial government. Well might Caius Gracchus declare that by his judiciary law he had “thrust a dagger into the side of the Senate.” For the provincials, the result of this law was to usher in an era of increased oppression and misgovernment. The refusal of the Romans to grant the franchise to the allies served to estrange them still further from Rome. On the whole we may say that conditions in Rome, Italy and the provinces were worse after the time of the Gracchi than before.

Fate of the agrarian legislation. It is impossible to estimate how many Romans received allotments of land under the Gracchan laws. Although the census list rose from 317,000 in 136 to 394,000 in 125, we cannot ascribe this increase altogether to

an increase in the number of small proprietors. The admission of freedmen to citizenship doubtless accounts for many. Still there was beyond question a decided addition made to the free peasantry. The colony of Junonia was abandoned, but the settlers in Africa were left undisturbed on their lands. By 120 the restrictions on the sale of allotments in Italy were withdrawn; in 118 assignments ceased; and in 111 rentals to the state were abolished and all lands then held in possession were declared private property; an enactment which benefited greatly the wealthy proprietors.

III. THE WAR WITH JUGURTHA AND THE RISE OF MARIUS

Foreign wars of the Gracchan Age. While the Senate and the Gracchi were struggling for the mastery in Rome, the Roman state engaged in continual frontier struggles, particularly on the northern borders of Italy and Macedonia. Most of these wars were of slight importance, but one resulted in the occupation of the Balearic Islands, in 123–122, which gave Rome full command of the sea route to Spain. Another, still more important, was that waged between 125 and 123 in answer to an appeal from Massalia against the Ligurian Salyes to the north of that city. Their subjugation gave the Romans the command of the route across the Maritime Alps from Italy to Gaul. The fortress of Aquae Sextiae was established to guard this passage.

The Roman advance in Transalpine Gaul. It now became the object of the Romans to secure the land route to Spain. But beyond the territory of their ally Massalia the way was blocked by powerful coalitions of Gallic tribes. Chief among these were the Allobroges to the east of the Rhone, the Arverni the greatest of all, whose territory lay west of that river, from the Loire to the Pyrenees, and the Aedui, to the north of the Arverni. The Romans made an alliance with the latter people who were at enmity with the other two, and attacked the Allobroges because they had received fugitives from the Salyes. The Arverni were drawn into the conflict on the side of the Allobroges.

The province of Narbonese Gaul. In 121 B. C. both these peoples were decisively beaten in a great battle near the junction of the Isère and the Rhone by the consul Fabius Maximus and the proconsul Domitius. The Romans were now masters of all southern Gaul, except Massalia, and organized it as a province. In 118 B. C. a Roman colony was established at Narbo, which was with the exception of the abandoned settlement of Junonia, the first colony of Roman citizens sent beyond the Italian peninsula, although colonies with Latin rights had been founded in Spain long before. To link Italy with Spain there was constructed the _via Domitia_, a military road traversing the new province.

The Jugurthine War. It was not long before Rome became involved in a much more serious conflict that was destined to reveal to the world the rottenness and incapacity of its ruling class, and to reawaken internal political strife. In 118 B. C. occurred the death of Micipsa, who had succeeded Masinissa as king of Numidia.

Micipsa left his kingdom to be ruled jointly by his two sons, Adherbal and Hiempsal, and a nephew, Jugurtha. The latter was an able, energetic, but ambitious and unscrupulous prince, who had gained a good knowledge of Roman society through serving in the Roman army before Numantia. However, the three soon quarreled and divided the kingdom. It was not long before Jugurtha caused Hiempsal to be assassinated and drove Adherbal from the country. The latter fled to Rome to appeal for aid, on the basis of the alliance with Rome which he had inherited from his ancestors. Thereupon Jugurtha sent his agents, with well filled purses, to plead his case before the Senate. So successful was he that a Roman commission appointed to divide Numidia between himself and Adherbal gave him the western or richest part of the kingdom. But Jugurtha's aim was to rule over the whole of Numidia, and so he provoked Adherbal to war. In 113 B. C. he succeeded in besieging him in his capital, Cirta, which was defended chiefly by Italians who had settled there for commercial reasons. Two Roman commissions sent to investigate the situation succumbed to Jugurtha's diplomacy, and Cirta was forced to surrender. Adherbal and all its defenders were put to death.

Rome declares war. The slaughter of so many Italians raised a storm in Rome, where the business elements and populace forced the Senate, which was inclined to wink at Jugurtha's disregard of its African settlement, to declare war. In 111 a Roman army under the consul Bestia invaded Numidia. Again Jugurtha resorted to bribes and secured terms of peace from the consul after a sham submission. However, the opponents of the Senate saw through the trick and forced an investigation. Jugurtha was summoned to come to Rome under safe conduct to give evidence as to his relations with the Roman officials in Numidia. He came and contrived to buy the intervention of two tribunes who prevented his testimony from being taken. But, relying too much upon his ability to buy immunity for any action, he ventured to procure the assassination in Rome itself of a rival claimant to the Numidian throne (110 B. C.). His friends in the Senate dared protect him no longer and he had to leave Italy.

A Roman defeat, 109 B. C. The war reopened but the first operations ended in the early part of 109 B. C. with the defeat and capitulation of a Roman army, which was forced to pass under the yoke, to be released when its commander consented to a recognition of Jugurtha's position and an alliance between him and Rome. In this shameful episode bribery and treachery had played their part. The terms were rejected at Rome, and a tribunician proposal to try those guilty of misconduct with Jugurtha was ratified by the Assembly. In the same year the consul Metellus took command in Africa. One of his officers was Caius Marius. Marius was born of an equestrian family at Arpinum; he served in the cavalry under Scipio Aemilianus in the Numantine War; engaged with success in the handling of state contracts; became tribune in 119, praetor in 116, and propraetor in Spain in 115 B. C. He was able and ambitious and chafed under the disdain with which he as a "new man" was treated by the senatorial aristocrats.

Marius, consul: 107 B. C. Metellus, in contrast to the former commanders against Jugurtha, was both energetic and honorable. He began a methodical

devastation of Numidia, and forced Jugurtha to abandon the field and resort to guerilla warfare. He also tried to stir up disloyalty among the king's followers. But he failed to kill or capture the latter, which alone would terminate the war. Hence when he scornfully refused the request of Marius to be allowed to return and stand for the consulship in 108, Marius intrigued to get the command transferred to himself, alleging that Metellus was purposely prolonging the campaign. Finally, Metellus saw fit to let him go and he was elected consul for the following year. However, the Senate, wishing to keep Metellus in command, had not designated Numidia as a consular province. And so the popular party passed a law in the Assembly of the Tribes which conferred the command against Jugurtha upon Marius. The Senate yielded to this encroachment upon its prerogatives and Marius superseded Metellus in 107. His quaestor was Lucius Cornelius Sulla, scion of a decayed patrician family, who was destined to become the bitter rival of his chief.

The end of the war: 107–105 B. C. Marius continued the methodical subjugation of Numidia, but Jugurtha was strengthened by an alliance with his father-in-law Bocchus, king of Mauretania. However, Marius won several hard fought battles over the forces of both kings, and finally, through the agency of Sulla, detached Bocchus from the cause of Jugurtha. Bocchus treacherously seized his son-in-law and handed him over to the Romans. This brought the war to an end. Numidia was divided among princes friendly to Rome, and Marius returned to triumph in Rome, and to find himself elected consul for the year 104 in defiance of precedent, owing to the fear of a barbarian invasion of Italy from the north and the popular confidence in him engendered by his African successes. Jugurtha, after gracing his victor's triumph, perished in a Roman dungeon.

Consequences of the war. The corruptibility and incapacity, combined with an utter lack of public responsibility, displayed by the senators in this war contributed to further weaken the already diminished prestige of their order. Besides it had again been demonstrated that a coalition of the equestrians and the city populace could control the public policy, and in the person of Marius, the war had produced a leader upon whom they could unite.

IV. THE INVASION OF THE CIMBRI AND TEUTONS

The movements of the Cimbri and Teutons. The fear of a barbarian invasion of Italy which caused Marius to be elected to his second consulship was occasioned by the wanderings of a group of Germanic and Celtic peoples, chief of which were the Cimbri and the Teutons. In 113 B. C. the former, a Germanic tribe, invaded the country of the Taurisci, allies of Rome, who dwelt north of the Alps. A Roman army sent to the rescue was defeated. The Cimbri then moved westwards to the Rhine, where they were joined by the Teutons (Toygeni), who were probably a branch of the Celtic Helvetii, by the Tigurini, another division of the same people, and by the Ambrones, a tribe of uncertain origin. In 111, the united peoples crossed the Rhine into Gaul and came into conflict with the Romans in the new province. Two years later the consul Julius Silanus was defeated by the Cimbri, who demanded lands for settlement within Roman territory. Their demand was refused and hostilities

continued. In 107 another consul, Lucius Cassius, was defeated and slain by the Tigurini. In 106 Quintus Servilius Caepio recovered the town of Tolosa, which had deserted the Roman cause, and carried off its immense temple treasures. Three years later he was tried and condemned for defrauding the state of this booty. In 105, two Roman armies were destroyed by the united tribes in a battle at Arausio (Orange), in which 60,000 Romans were said to have fallen. This disaster, the greatest suffered by Rome since Cannae, was largely brought about by friction between the two Roman commanders. The way to Italy lay open but the barbarians failed to take advantage of their opportunity. The Cimbri invaded Spain and the rest remained in Gaul.

The army reforms of Marius. In this crisis Marius was appointed to the command against the Cimbri and their allies, and at once set to work to create an army for the defence of Italy. The increasing luxury and refinements of civilization in Italy had begun to undermine the military spirit among the Romans, especially the propertied classes, and this had led to a decline of discipline and efficiency in the Roman armies. Furthermore, the universal obligation to military service was no longer rigidly enforced, partly because of the residence abroad of so many citizens. Appeals to volunteers became more and more frequent. No longer were recruits enrolled for one year only, but took the oath of service for sixteen years. In building up his new army Marius recognized these new tendencies. He relied mainly upon voluntary enlistments, admitting to the ranks, as he had done already in the Jugurthine War, those whose lack of property had previously disqualified them for service in the legions. The soldiers now became recognized professionals, who upon their discharge looked to their commanders to provide for their future. Among the troops loyalty to the state was supplanted by devotion to a successful general, and the latter could rely upon his veterans to support him in his political career. Marius also introduced changes in the arms and equipment of the soldiers, and he is also credited, although with less certainty, with the increase in the size of the legion to 6000 men and its division into ten cohorts as tactical units.

Marius in Gaul. During the years 104 and 103 Marius kept his army in Gaul guarding the passage to Italy, while he completed the training of his troops and dug a new channel at the mouth of the Rhone to facilitate the passage of his transports into the river. He was re-elected to the consulship for 103 and again for 102 since the danger from the barbarians was not over. In 102 the Cimbri returned from Spain and, joining the other tribes, prepared to invade Italy. The Teutons and Ambrones followed the direct route from southern Gaul, while the Cimbri and Tigurini moved to the north of the Alps to enter Italy by the eastern Alpine passes. Marius permitted the Teutons and Ambrones to march by him, then he overtook and annihilated them at Aquae Sextiae. In the meantime, the Cimbri had forced the other consul, Quintus Lutatius Catulus, to abandon the defence of the eastern passes and had crossed the Adige into the Po Valley, where they wintered. Marius returned to Italy to join his colleague and face the new peril. In the next year, while consul for the fifth time, he met and destroyed the Cimbri on the Raudine plains near Vercellae. Thus Italy was saved from a repetition of the Gallic invasion of the fourth century B. C.

The vitality of the Roman state was by no means exhausted as the defeat of the barbarians shows, and men of energy and ability were not lacking, but under the existing régime it required a crisis to bring them to the front.

The Second Sicilian Slave War, 104–101 B. C. While the barbarians were knocking at the gates of Italy, Rome was called upon to suppress a series of disorders in other parts of her empire, some of which were only quelled after considerable effort. In 104 B. C. occurred a serious rebellion of the slaves in Sicily, headed by two leaders Salvius and Anthenion, the former of whom took the title of King Typhon. The rebels became masters of the open country, defeated the forces sent against them, reduced the Sicilian cities to the verge of starvation, and were only subdued by a consular army under Manius Aquillius in 101 B. C.

War with the Pirates. Before the slave war in Sicily had been brought to a close the Romans were forced to make an effort to suppress piracy in the Mediterranean. Piracy had been on the increase ever since the decline of the Rhodian sea power, following the Second Macedonian War, for as there were no longer any rival maritime powers Rome had neglected to maintain a navy adequate even for policing the seas. The pirates were at the same time slave traders, who made a business of kidnapping all over the Mediterranean but particularly in the east to supply the slave mart at Delos. In 104 B. C. the king of Bithynia complained to the Senate that one-half of his ablebodied men had been carried into slavery. This traffic was winked at by the Romans, since they needed slaves in great numbers for their plantations, and their business interests profited by the trade. However the depredations of the pirates at length became too serious to be ignored, and in 102 B. C. the praetor Marcus Antonius was given a special command against them. They had their chief strongholds on the Cilician coast and the island of Crete, and Antonius proceeded to Cilicia, where he destroyed several of their towns and annexed some territory, which became the province of Cilicia.

Besides these troubles the Romans had to face revolts in Spain which broke out spasmodically down to 95 B. C., as well as continual inroads of barbarians from Thrace into the provinces of Macedonia and Illyricum.

V. SATURNINUS AND GLAUCIA

*Popular **triumphs** in Rome.* The successes of their champion, Marius, emboldened the populares to undertake the prosecution of the corrupt and incapable generals of the _optimates_, a number of whom were brought to trial and convicted. Another popular victory was won in 104 B. C. when the _lex Domitia_ transferred the election of new members of the colleges of augurs and pontiffs from the colleges themselves to a Comitia of seventeen tribes chosen by lot.

The sixth consulship of Marius, 100 B. C. Upon Marius himself his present prestige had an unwholesome effect. In spite of the fact that he had violated the constitution by his five consulships, four of which were held in succession, he determined to seek a sixth term, although there was now no military danger to excuse his ambition. He leagued himself with the leaders of the _populares_, Lucius

Appuleius Saturninus, who as tribune had supported Marius in 103, and Caius Servilius Glaucia. Both were ambitious demagogues, who sought to imitate the rôle of the Gracchi by introducing a legislative program catering to the popular party. For the moment they were successful. Marius secured his sixth consulship for 100 B. C., Saturninus became tribune a second time, and Glaucia praetor. But violence had to be resorted to in order to carry the elections. Saturninus then introduced bills for the distribution of grain to the city proletariat at much less than half the market price, for the allotment of the lands in north Italy which had been ravaged by the Cimbri, and for the founding of colonies in the provinces. His corn law failed, but the others were forced through by the aid of the disbanded Marian soldiers. However, this appeal to mob violence caused the equestrians to desert the popular leaders, who also lost the sympathy of Marius. Saturninus then sought the consulship for the next year, and, when it seemed that he would be defeated, caused one of his most influential rivals to be killed. The Senate thereupon proclaimed a state of martial law and called upon Marius to restore order. Saturninus, Glaucia, and their followers occupied the Capitol, where they were attacked and forced to surrender upon promise that their lives would be spared. But Marius was unable to protect them from the vengeance of their foes who massacred all the captives. Again the Senate had conquered by a resort to force, but this time their opponents had first appealed to the same means. For the time Marius suffered a political eclipse; he had shown no political capacity and had been unable to control or protect his own party which was now divided and discredited.

VI. THE TRIBUNATE OF MARCUS LIVIUS DRUSUS, 91 B. C.

*The **trial** of Rutilius Rufus: 93 B. C.* The senators and the equestrians had combined for the moment against the terrorism instituted by the popular demagogues but the coalition was not lasting. As Caius Gracchus had foreseen the control of the law courts proved a standing bone of contention between the two orders. Especially aggravating to the senators was the use of the court established for the trial of cases of extortion to force the provincial governors to administer the provinces in the interest of the Roman financiers. A scandalous instance of this abuse was the case of Rutilius Rufus in 93 B. C. He had been quaestor under Mucius Scaevola, in 98 B. C. governor of Asia, where both had sternly checked any unjust exactions by the agents of the _publicani_. A trumped-up charge of extortion was now brought against Rutilius, and he was tried and adjudged guilty. His fate was to serve as a warning to officers who took their provincial obligations seriously. Rutilius retired to Asia and lived in great esteem among the people whom he was condemned for having oppressed.

*The **legislative program** of Livius Drusus: 91 B. C.* Two years later Marcus Livius Drusus, a tribune, of a prominent senatorial house, brought forward a proposal for the reform of the juries. He proposed to increase the number of the Senate to six hundred by the inclusion of three hundred prominent equestrians, and to have the juries chosen half from the new Senate and half from the remaining equestrians.(10) Equestrian _jurors_ were to be made liable to prosecution for accepting bribes. To secure support for his judiciary law, Drusus introduced a bill to found new colonies

and another to provide cheaper grain for the city populace.

However, when he encountered serious opposition to his judicial reform in the Senate as well as among the _equites_, Drusus combined this and his other reforms with a law for the enfranchisement of the Italian allies. He contrived to carry his measures through the Assembly, which was probably coerced by the presence of large numbers of Italians in the city, but since he had included several distinct proposals in one bill, which was unconstitutional, the Senate declared his law invalid. Drusus yielded but prepared to introduce the franchise bill to be voted on a second time. Before this could be done he was mysteriously assassinated, doubtless by an agent of his political opponents. Thus died the last civilian reformer of Roman history. Later reforms were carried by the power of the sword.

VII. THE ITALIAN OR MARSIC WAR, 90–88 B. C.

The Italian Confederacy. The death of Drusus was the signal for a revolt of the Italian allies. They had been in close alliance with him, and had taken steps for concerted action in arms if his bill should fail to pass. A confederacy was organized, the government of which was vested in a Senate of five hundred members with absolute powers, having as executive officers two annual consuls and twelve praetors. The capital of the confederacy was at Corfinium, in the territory of the Paeligni, which was renamed Italia. A federal coinage was issued. Before opening hostilities the Italians made a formal demand for Roman citizenship, which the Senate definitely refused. Thereupon they declared their independence.

The resources of the rivals. The Italian Confederacy embraced practically all the warlike peoples of central and southern Italy. Of particular importance were the Marsi who gave their name to the war. In numbers the Italians were a match for the Romans, and they had acquired Roman military tactics, organization and discipline through long service in the Roman armies. They also could count on leaders of approved ability. But the Latin colonies and the Greek cities in the south remained true to their allegiance, and thus the Italians were cut off from the coast. Furthermore Umbria and Etruria, although disaffected, did not at once take up arms. Rome’s control of the sea enabled her to draw upon the resources of the provinces in men, money, and supplies, and consequently she was in a much better position to sustain a prolonged struggle.

The first year of the war: 90 B. C. Hostilities opened in 90 B. C. with the Italian forces attempting to reach Etruria in the north and occupy Campania in the south and the Romans trying to forestall them by invading the territory of the allies. In the south the year’s campaign resulted in numerous Roman disasters. Much of Campania was won by the allies who succeeded in penetrating to the coast. In the north the Romans also suffered defeats, but were able to maintain themselves and win several successes. Here Marius, in the capacity of a _legatus_, rendered valuable service.

Before the close of the year the revolt began to spread to Etruria and Umbria. Thereupon the Romans, with the object of securing the support of their still faithful allies and of weakening the ranks of the rebels, passed the Julian Law which granted Roman citizenship to all who had not joined the revolt and all who should at once lay

down their arms. In this way the Umbrians and Etrurians were quieted, the Latins and the Greek allies rewarded, and many communities, which sought Roman citizenship but not independence, induced to surrender.

The second year of the war. In the following year the fortune of war changed. The Romans were everywhere successful. The consul Pompeius practically pacified the north, and the _legatus_ Sulla broke the power of the allies in south Italy. A second franchise law, the _lex Plautia Papiria_, helped thin the ranks of the allies by offering Roman citizenship to all citizens of Italian federate communities who would claim it within sixty days. A third, the Pompeian Law, gave the franchise to all non-Romans in Gaul south of the Po, and Latin rights to those north of the Po river. The Senate was now anxious to bring the war to a close because affairs in the East had assumed a threatening aspect.

The end of the war and its significance. In the course of the year 88 B. C. organized resistance among the rebels died out. The new citizens were not to be enrolled in all of the thirty-five Roman tribes, a step which might make them dominate the Assemblies, but they were to vote in certain tribes only, so that their influence could be restricted.(11) Naturally, they were dissatisfied with this arrangement and their enrollment became a burning question of Roman politics. Henceforth all Italians were Romans and in the course of the next generation the various racial elements of Italy were gradually welded into a Latin nation. As it was impossible for the magistrates of Rome to oversee the administration throughout so wide an area, the Romans organized the Italian towns into locally self-governing municipalities of the type previously established on Roman territory. At first these municipalities retained many of their ancestral laws, customs and institutions, but in time they conformed to a uniform type, the government of which was modelled upon that of the capital city Rome. The municipalities were powerful agents in the Latinization of the peninsula.

VIII. THE FIRST MITHRADATIC WAR

Mithradates VI., Eupator, King of Pontus. The danger which in 89 B. C. directed the attention of the Senate to the eastern Mediterranean was the result of the establishment of the Kingdom of Pontus under an able and ambitious ruler, Mithradates Eupator, who challenged the supremacy of Rome in Asia Minor. In 121 B. C. Mithradates had succeeded to the throne of northern Cappadocia, a small kingdom on the south shore of the Black Sea, whose Asiatic population was imbued with Hellenistic culture and whose rulers claimed descent from the ancient royal house of Persia and from Seleucus, the founder of the Macedonian kingdom of Syria. For seven years Mithradates shared the throne with his brother, under his mother’s regency, but in 114 when eighteen years of age, he seized the reins of government for himself. Subsequently he extended his power over the eastern and northern shores of the Black Sea as far west as the Danube and thus built up the kingdom of Pontus, i. e. the coast land of the Black Sea, a name which later was applied to his native state of north Cappadocia.

*His **conflict** with Rome.* However, Mithradates also sought to extend his sway in Asia Minor, where Greater Cappadocia became the object of his ambitions. This brought him into conflict with Rome, whose policy was to prevent the rise of any dangerous neighbor in the East and who refused to suffer her settlement of Asia Minor to be disturbed. No less than five times did Mithradates, between 112 and 92 B. C., attempt to bring this district under his control, but upon each occasion he was forced by Roman interference to forego the fruits of his victories, since he was not yet prepared for war with Rome. In 91 B. C. he occupied the kingdom of Bithynia, which lay between Pontus and the Roman province of Asia, but again he yielded to Rome's demands and withdrew. However, when Roman agents encouraged the King of Bithynia to raid his territory and refused him satisfaction he decided to challenge the Roman arms, seeing that Rome was now involved in the war with her Italian allies. War began late in 89 B. C.

The conquests of Mithradates in Asia, 89–88 B. C. Mithradates was well prepared; he had a trained army and a fleet of three hundred ships. He experienced no difficulty in defeating the local levies raised by the Roman governor of Asia, and speedily overran Bithynia and most of the Roman province. Meanwhile his fleet swept the Aegean Sea. The Roman provincials who had been unmercifully exploited by tax gatherers and money-lenders greeted Mithradates as a deliverer. At his order on a set date in 88 B. C. they massacred the Romans and Italians resident in Asia, said to have numbered 80,000, a step which bound them firmly to the cause of the king.

Athens and Delos. In the same year, 88 B. C. the populace of Athens, in the hope of overthrowing the oligarchic government which had been set up in the city with the support of Rome, seized control of the state and threw themselves into the hands of Mithradates. One of the king's generals, Archelaus, while on his way to Athens, exterminated the Italian colony at Delos, the center of the Roman commercial and banking interests in the East. From this blow the island port never fully recovered. Archelaus soon won over most of southern Greece to his master's cause, while Mithradates sent a large army to enter Hellas by the northerly route through Thrace and Macedonia.

Disorders in Rome. This situation produced a crisis in Rome. Sulla, who had been elected consul for 88 B. C., was allotted the command in the East upon the outbreak of hostilities. However, he had been unable to leave Italy where he was conducting the siege of Nola in Campania. Marius, although in his sixty-eighth year, was as ambitious as ever and schemed to secure the command against Mithradates for himself. In this he was supported by the equestrians, who knew Sulla to be a firm upholder of the Senate. Accordingly the Marians joined forces with the tribune Publius Sulpicius Rufus, who had brought forward a bill to enroll the new citizens and freedmen equally in each of the thirty-five tribes. Sulpicius organized a body-guard of equestrians and instituted a reign of terror. He passed his law by force in spite of the opposition of the consuls. When Sulla had left the city to join his army, a law was passed in the Assembly transferring his command in the East to Marius. But Sulla refused to admit the legality of the act, and, relying upon the support of his troops, marched on Rome. Having taken the city by surprise, he caused Sulpicius, Marius,

and others of their party to be outlawed. Sulpicius was slain; but Marius made good his escape to Mauretania. The Sulpician Laws were abrogated, and Sulla introduced a number of reforms, with the object of strengthening the position of the Senate. The most significant of these reforms was the revival of the Senatorial veto over laws proposed in the Assembly of the Tribes. This done, upon the conclusion of his consulate, Sulla embarked with his army for Greece early in 87 B. C.

Siege of Athens and Piraeus, 87–86 B. C. Driving the forces of Archelaus and the Athenians from the open country, Sulla began the siege of Athens and of its harbor town Piraeus in the autumn of 87. Athens was completely invested, but in spite of hunger the resistance was prolonged until March, 86, when Sulla's troops penetrated an unguarded spot on the walls and the city was sacked. A large number of the inhabitants were massacred but the public buildings were spared. Soon after Piraeus was taken by storm at terrific cost to the victors, but its citadel Munychia held out until evacuated by Archelaus.

Chaeronea and Orchomenus. From Athens Sulla hastened to meet the army of Mithradates which had penetrated as far as Boeotia. At Chaeronea the numerically inferior but better disciplined Romans won a complete victory. At this juncture there arrived in Greece the consul Flaccus at the head of another army, with orders to supersede Sulla. The latter, however, was not disposed to give up his command and as Flaccus feared to force the issue they came to an agreement whereby each pursued a separate campaign. This left Sulla free to meet a new Mithradatic army which had crossed the Aegean. At Orchomenus he attacked and annihilated it. But Mithradates still controlled the Aegean, and Sulla, being unable to cross into Asia, was forced to winter in Greece.

Peace with Mithradates, 85 B. C. In 85 B. C. Lucius Lucullus, Sulla's quaestor, appeared in the Aegean with a fleet that he had gathered among Rome's allies in the East. He defeated the fleet of Mithradates and secured Sulla's passage to Asia. The king's position was now precarious. His exactions had alienated the sympathies of the Greek cities which now began to desert his cause. Furthermore Flaccus, after recovering Macedonia and Thrace, had crossed the Bosphorus into Bithynia. There he was killed in a mutiny of his soldiers and was succeeded by his legate Fimbria, who was popular with the troops because he gratified their desire for plunder. But Fimbria was energetic; he defeated Mithradates and recovered the coast district as far south as Pergamon (86 B. C.). Mithradates was ready for peace and Sulla was anxious to have his hands free to return to Italy, where the Marians were again in power. Negotiations were opened by Mithradates with Sulla and after some delay peace was concluded in 85 B. C. on the following terms: The king was to surrender Cappadocia, Bithynia, the Roman province of Asia and his other conquests in Asia Minor, to pay an indemnity of 3000 talents, and give up a part of his fleet. His kingdom of Pontus remained intact.

Sulla's treatment of Asia and Greece, 85–83 B. C. Sulla spent the following winter in Asia, readjusting affairs in the province. The rebellious communities were punished by the quartering of troops upon them, and by being forced to contribute to Sulla the huge sum of 20,000 talents, or $24,000,000. To raise this amount they were

forced to borrow from Roman bankers and incur a crushing burden of debt. In 84 B. C. Sulla crossed to Greece, there to complete his preparations for a return to Italy. The Greek states had suffered heavily in the recent campaigns on her soil. Sulla had carried off the temple treasures of Olympia, Delphi and Epidaurus, Attica and Boeotia had been ravaged and depopulated, and the coasts had been raided by the Mithradatic fleet. From the devastations of the Mithradatic war Hellas never recovered.

IX. SULLA'S DICTATORSHIP

The Marian party in Rome 87–84 B. C. While Sulla had been conducting his successful campaign in Greece, in Italy the Marian party had again won the upper hand. Scarcely had Sulla left Italy with his army when the consul Cinna re-enacted the Sulpician Laws. His colleague Gnaeus Octavius and the senatorial faction drove him from the city and had him deposed from office. But Cinna received the support of the army in Campania, recalled Marius, and made peace with the Samnites still under arms by granting them Roman citizenship. Marius landed in Etruria, raised an army there, and he and Cinna advanced on Rome. They forced the capitulation of their opponents, had Cinna reinstated as consul, and had the banishment of Marius revoked; Sulla's laws were repealed, and his property confiscated. Then ensued a massacre of the leading senators, including Octavius the consul. On 1 January, 86, Marius entered upon his seventh consulship and died a few days later. His successor, Lucius Valerius Flaccus, was sent to supersede Sulla, a mission which cost him his life, as related before. In 85 B. C., the war with Mithradates was at an end and the Marians had to face the prospect of the return of Sulla at the head of a victorious army. The consuls Cinna and Carbo proceeded to raise troops to oppose him. They illegally prolonged their office for the next year (84) and made preparations to cross the Adriatic and meet Sulla in Macedonia. But the army gathered for this purpose at Brundisium mutinied and murdered Cinna. Carbo prevented the election of a successor and held office as sole consul. The Senate had previously begun negotiations with Sulla in an effort to prevent further civil war. He now demanded the restitution of property and honors both for himself and all those who had taken refuge with him. The Senate was inclined to yield, but was prevented by Carbo.

In the spring of 83 B. C. Sulla landed at Brundisium, with an army of 40,000 veterans from whom he exacted an oath of allegiance to himself. He made known his intentions of respecting all privileges granted to the Italians, to prevent their joining his enemies. Still the bulk of the new citizens, particularly in Samnium and Etruria, supported the Marian party. Sulla was joined at once by the young Cnaeus Pompey, who had raised an army on his own authority in Picenum, and by other men of influence. In the operations which followed the leaders of the Marians showed themselves lacking in coöperation and military skill. Sulla penetrated into Campania, where he defeated one consul Norbanus, at Mount Tifata. The other consul Scipio Asiaticus, entered into negotiations with him, and was deserted by his army which went over to Sulla.

In the following year Sulla advanced into Latium and won a hard fought victory over the younger Marius, now consul, at Sacriportus. Rome fell into his hands and Marius took refuge in Praeneste. Sulla then turned against the second consul, Carbo, in Etruria, and, after several victories forced him to flee to Africa. In a final effort the Marians, united with the Samnites, tried to relieve Praeneste; failing to accomplish this they made a dash upon Rome. But Sulla appeared in time to save the city and utterly defeat his enemies in a bloody contest at the Colline Gate. Praeneste fell soon after; Marius committed suicide, and except at a few isolated points all resistance in Italy was over.

Sulla's aims. Sulla was absolute master of the situation and at once proceeded to punish his enemies and reward his friends. In cold-blooded cruelty, without any legal condemnation, his leading opponents were marked out for vengeance; their names were posted in lists in the forum to indicate that they might be slain with impunity and that their goods were confiscated. Rewards were offered to informers who brought about the death of such victims, and many were included in the lists to gratify the personal enmities of Sulla's friends. The goods of the proscribed were auctioned off publicly under Sulla's direction, and their children and grandchildren declared ineligible for public office. From these proscriptions the equestrians suffered particularly; 2600 of them are said to have perished, together with ninety senators. The Italian municipalities also felt Sulla's avenging hand. Widespread confiscations of land, especially in Samnium and Etruria, enabled him to provide for 150,000 of his veterans, whose settlement did much to hasten the latinization of these districts. Ten thousand slaves of the proscribed were set free by Sulla and took the name of Cornelii from their patron. These arrangements were given the sanction of legality by a decree of the Senate and a law which confirmed all his acts as consul and proconsul and gave him full power for the future.

Sulla dictator: 82–79 B. C. But Sulla's aims went further than the destruction of the Marian party. He sought to recreate a stable government in the state. For this he required more constitutional powers than the right of might. Therefore, since both consuls were dead, he caused the appointment of an _interrex_ who by virtue of a special law appointed him a dictator for an unlimited term to enact legislation and reorganize the commonwealth (_dictator legibus scri__bundis et rei publicae constituendae_). Sulla's appointment occurred late in 82 B. C. The scope of his powers and their unlimited duration gave him monarchical or rather tyrannical authority.

Sulla's reforms. The general aim of Sulla's legislation was to restore the Senate to the position which it had held prior to 133 B. C. and to guarantee the perpetuation of this condition. His reforms fall into two classes; firstly, those directed to securing the rule of the _optimates_, which were not long-lived; secondly, those seeking to increase the efficiency of the administration, which being of a non-partizan character enjoyed greater permanency than the preceding. Those of the former sort constituted a renewal and extension of his reforms of 88 B. C. The senatorial veto over legislation in the Assembly of Tribes was renewed, and the tribunes' intercession restricted to interference with the exercise of the magistrate's _imperium_. To deter able and

ambitious men from seeking the tribunate, it was made a bar to further political office. The senators were once more made eligible for the juries, while the equestrians were disqualified. The Domitian Law of 104 B. C. was abrogated and the practise of co-opting the members of the priestly college was revived. Most important of Sulla's administrative reforms was that which concerned the magistracy. The established order of offices in the _cursus honorum_ was maintained, an age limit set for eligibility to each office, and an interval of ten years required between successive tenures of the same post. The number of quaestors was increased to twenty, that of the praetors raised from six to eight. In connection therewith the method of appointing provincial governors was regulated. By the organization of the province of Cisalpine Gaul, the number of provinces was raised to ten, and the two consuls and eight praetors, upon the completion of their year of office in Rome, were to be appointed to the provinces as pro-consuls and propraetors for one year. The pro-magistrates thus lost their original extraordinary character and this change marks the first step in the creation of an imperial civil service.

As before, the Senate designated the consular provinces before the election of the consuls who would be their proconsular governors. The consuls were not deprived of the right of military command, but, as before, regularly assumed control of military operations in Italy. The consular _imperium_ remained senior to that of the provincial governors, and might be exercised beyond the frontiers of Italy. However, in practise the consuls were not regularly employed for overseas campaigns, since the Senate now arrogated to itself what had previously been a prerogative of the Assembly, namely, the right of selecting any person whatever to exercise military _imperium_ in any sphere determined by itself. A new field for the activity of the praetors arose from the establishment of special jury courts for the trial of cases of bribery, treason, fraud, peculation, assassination and assault with violence. These were modelled on the court for damage suits brought against provincial officers, and superseded the old procedure with its appeal from the verdict of the magistrate to the Comitia. To provide a sufficient number of jurors for these tribunals the membership of the Senate was increased from three hundred to six hundred by enrolling equestrians who had supported Sulla. This increased number was maintained by the annual admission of the twenty ex-quaestors, whereby censors were rendered unnecessary for enrolling the Senators. The administration, especially in its imperial aspects, was more than ever concentrated in the Senate's hands.

*Pompey **"**the Great,**"** 79 B. C.* While Sulla was effecting his settlement of affairs in Rome and Italy, the Marians in Sicily and Africa were crushed by his lieutenant Cnaeus Pompey. Their leader Carbo was taken and executed. In 82 B. C. Sulla had caused the Senate to confer upon Pompey the command in this campaign with the _imperium_ of a propraetor, although he had not yet held any public office. Having finished his task Pompey demanded a triumph, an honor which previously had only been granted to regular magistrates. Sulla at first opposed his wishes, but as Pompey was insistent and defiant, he yielded to avoid a quarrel, and even accorded him the name of Magnus or the Great. Pompey celebrated his triumph 12 March, 79 B. C.

Sulla's retirement and death, 78 B. C. Sulla did not seek political power for its own sake, and, after carrying his reforms into effect, he resigned his dictatorship in 79 B. C. He retired to enjoy a life of ease and pleasure on his Campanian estate, relying for his personal security and that of his measures upon his veterans and the Cornelian freedmen. In the following year he died at the age of sixty. Sulla's genius was rather military than political. Fond though he was of sensual pleasures, he was possessed of great ambition which led him to such a position of prominence that he was forced to adopt the cause of one of the two political factions in the state. From that point he must crush his enemies or be crushed by them; and in this lies the explanation of his attempt to extirpate the Marian party. As a statesman he displayed little imagination or constructive ability. He could think of nothing better than to restore the Senate to a position which it had shown itself unable to maintain; and his persecutions of his political opponents had not crushed out opposition to the Senate, but left a legacy of hatred endangering the permanence of his reforms.

The epoch between the tribunate of Tiberius Gracchus and the death of Sulla revealed the incapacity of either the Senate or the tribunes and the Assembly to give a peaceful and stable government to the Roman state. Sulla's career, anticipating those of Caesar and Augustus, pointed the way to the ultimate solution.

CHAPTER XIII

THE RISE OF POMPEY THE GREAT: 78–60 B. C.

The extraordinary commands. For the period following the death of Sulla in 78 B. C. Roman history centers around the lives of a small group of eminent men, whose ambitions and rivalries are the determining factors in the political life of the state. This is due to the fact that neither the Senate nor the Assembly have the power to control the men to whom the needs of the empire compel them to give military authority. The generation of Marius and Sulla had seen the rise of the professional army which revealed itself as the true power in the state, and the disturbances of the Italian and Civil Wars supplied an abundance of needy recruits who sought service with a popular and successful general for the sake of the rewards which it lay in his power to bestow. As military achievements were the sole sure foundation for political success, able men made it the goal of their ambition to be entrusted with an important military command. The dangers of civil and foreign wars at first compelled the Senate to confer military power upon the few available men of recognized ability even when it distrusted their ulterior motives, and later such appointments were made by the Assembly through the coalition of the general and the tribunate. In this way arose the so-called extraordinary commands, that is, such as involved a military _imperium_ which in some way exceeded that of the regular constitutional officers and required to be created or defined by a special enactment of the Senate or Comitia.

The man who first realized the value of the extraordinary command as a path to power was Pompey the Great.

I. POMPEY'S COMMAND AGAINST SERTORIUS IN SPAIN: 77–71 B. C.

The revolt of Lepidus. It was not to be expected that Sulla's measures would long remain unassailed. Those dispossessed of their property, those disqualified for office, and the equestrians who sought to regain control of the courts, were all anxious to undo part of his work. They found a leader in Lepidus, who as consul in 78 B. C., the very year of Sulla's death, sought to renew the distribution of cheap grain to the masses in Rome, which Sulla had suppressed, to restore the Marian exiles, and reinstate those who had lost their lands. For the time he failed to carry his proposals, but in the next year, as proconsul of Cisalpine Gaul, he raised an army and marched on Rome to seize the consulate for a second term, since disorders had prevented the election of consuls for that year. However he was defeated by his former colleague, the proconsul Catulus, and Pompey, whom the Senate had appointed to a subordinate command in view of his military expedience. Lepidus crossed over to Sardinia where he died shortly after, and the bulk of his forces under Marcus Perperna withdrew to Spain, to join the Marians who were in revolt there.

Sertorius in Spain, 83–78 B. C. The rebellion in Spain was headed by Quintus Sertorius, who had been appointed governor of Hither Spain by Cinna in 83 B. C. Two years later he was driven out by Sulla's representative, but, after various adventures, returned in 80 B. C. to head a revolt of the Lusitanians. His ability as a guerrilla leader, and the confidence which he aroused among the native Spaniards soon created alarm in Rome. Sertorius professed to take the field not against Rome but against the Senate. He regarded himself as the legitimate governor of Spain, employed members of the Marian party as his military and civil subordinates and organized a Senate among the Romans of his following. To crush the revolt Sulla sent out to Farther Spain Metellus, the consul of 80 B. C., but he failed to make any headway, and Sertorius was able to overrun Hither Spain also. In 79 B. C. the praetor of that province was killed in battle, and the same fate befell the proconsul of Narbonese Gaul who came to the help of Metellus (78 B. C.).

Pompey sent to Spain, 78 B. C. It was imperative to send a new commander and a new army to Spain. As the consuls were unwilling to go, Pompey, who had refused to disband his army at the orders of Catulus, sought the command. The Senate could not help itself and, in spite of considerable opposition, passed a decree conferring upon him proconsular _imperium_ and entrusting him with the conduct of the war in Hither Spain. Even after the arrival of Pompey with an army of 40,000 men Sertorius was more than able to hold his own against his foes in 76 and 75 B. C. At the end of the latter year Pompey was forced to recross the Pyrenees and appeal to the Senate for reinforcements. At the same time Sertorius, through the agency of the pirates, entered into alliance with Mithradates, King of Pontus, who was again on the point of war with Rome.

The arrival of the desired reinforcements enabled Pompey in 74 and 73 B. C. to turn the tide against Sertorius. To prevent desertions the latter resorted to severe punishments which alienated the Spaniards, who were already estranged by the acts of his subordinates. He was further hampered by dissensions in the ranks of his Roman supporters. The center of disaffection was Perpenna, who treacherously assassinated Sertorius in 72 B. C. and assumed command of his forces. However he

was defeated by Pompey, taken captive and executed. The revolt was broken and pacification of Spain speedily accomplished. Pompey was able to return to Rome in 71 B. C.

II. THE COMMAND OF LUCULLUS AGAINST MITHRADATES: 74–66 B. C.

The situation in the Near East. After concluding peace with Sulla in 85 B. C., Mithradates Eupator directed his energies to consolidating his kingdom and reorganizing his forces in expectation of a renewal of the struggle with Rome. He recognised that Sulla had been ready to make peace only because of the situation in Italy and the fact that he had been unable to secure written confirmation of the terms of the treaty warned him that the Romans still contemplated his complete overthrow. Indeed he had been attacked in the years 83 and 82 B. C. by Lucius Murena, the proconsul of Asia, but had been able to defend himself and Sulla had once more brought about a cessation of hostilities. Meantime, Tigranes of Armenia, the ally of Mithradates, had enlarged his dominions by the annexation of Syria (83 B. C.), where he terminated the rule of the house of Seleucus, and of Greater Cappadocia.

The command of Lucullus and Cotta, 74 B. C. In 75 B. C. occurred the death of Nicomedes III, King of Bithynia, who left his kingdom to the Roman people. The Senate accepted the inheritance and made Bithynia a province, but Mithradates championed the claims of a son of Nicomedes and determined to dispute the possession of Bithynia with the Romans. He had raised an efficient army and navy, was leagued with the pirates, and in alliance with Sertorius, who supplied him with officers and recognized his claims to Bithynia and other districts in Asia Minor. Rome was threatened with another serious war. One of the senatorial faction, the consul Lucius Lucullus, contrived to have assigned to himself by a senatorial decree the provinces of Cilicia and Asia with command of the main operations against Mithradates, while his colleague Cotta received Bithynia and a fleet to guard the Hellespont. At the same time a praetor, Marcus Antonius, was given an extraordinary command against the pirates with an unlimited _imperium_ over the Mediterranean Sea and its coast. However, he proved utterly incompetent, was defeated in an attack upon Crete, and died there.

Siege of Cyzicus, 74–3 B. C. Early in 74 B. C., Mithradates invaded Bithynia. There he was encountered by Cotta, whom he defeated and blockaded in Chalcedon. Thereupon he invaded Asia and laid siege to Cyzicus. But Lucullus cut off his communications and in the ensuing winter he was forced to raise the siege and retire with heavy losses into Bithynia. The following year a fleet which Lucullus had raised defeated that of Mithradates. This enabled the Romans to recover Bithynia and invade Pontus. In 72 B. C. Lucullus defeated Mithradates and forced him to take refuge in Armenia. In the course of this and the two following years he completed the subjugation of Pontus by the systematic reduction of its fortified cities. Cotta undertook the siege of Heraclea in Bithynia and upon its fall in 71 B. C. returned to Rome. The winter of 71–70 B. C. Lucullus spent in Asia reorganizing the financial situation. There the cities were laboring under a frightful burden of indebtedness to Roman bankers and taxgatherers which had its origin in the exactions of Sulla. Lucullus interfered on behalf of the provincials and by reducing the accumulated

interest on their debts enabled them to pay off their obligations within four years. This care for the provincials won for himself the bitter enmity of the Roman financial interests which sought to deprive him of his command.

Invasion of Armenia, 69 B. C. As the war could not be regarded as terminated so long as Mithradates was at large, Lucullus demanded his surrender from Tigranes. When the latter refused Lucullus invaded Armenia, defeated him and took his capital, Tigranocerta, 69 B. C. In the following year Lucullus attempted to complete the subjugation of Armenia but was prevented by the mutinous conduct of his troops. He was unpopular with his men because he maintained discipline and protected the subject peoples from the excesses of the soldiers. Also some of his legions had come to the East with Fimbria in 86 B. C. and clamored for the discharge to which they were entitled. In 67 B. C. Mithradates reappeared in Pontus and Lucullus had to return from Armenia to face him, whereupon Tigranes began to recover lost ground. Because of the mutiny in his army Lucullus was forced to remain inactive. He had already been superseded in the command of Asia, Cilicia and Bithynia, which had come under his control with the return of Cotta, and his enemies in Rome deprived him of the remnants of his authority in 66 B. C.

III. THE REVOLT OF THE GLADIATORS: 73–71 B. C.

Spartacus. While Pompey was fighting Sertorius in Spain and Lucullus was pursuing Mithradates in Bithynia a serious slave war arose in Italy. It began in 73 B. C. with the revolt of a band of gladiators from a training school in Capua under the leadership of the Thracian Spartacus and the Gauls, Crixus and Onemaus. Taking refuge on the slopes of Vesuvius they rapidly recruited large numbers of runaway slaves. They defeated the armies of two Roman praetors and overran Campania, Lucania, and all southern Italy. By the end of the year 73 B. C. their number had grown to 70,000.

In the next year they divided their forces; the Gauls and Germans followed Crixus, the Thracians Spartacus. The two consuls took the field against them; Crixus and his horde were defeated in Apulia. Spartacus marched north, intending to make his way through the Alps to Thrace. The consuls pursued him, and he defeated them one after the other. Thereupon his followers refused to leave Italy and turned southwards, plundering as they went. Again Spartacus defeated the consuls but dared not attack Rome and retired to South Italy.

Crassus in command, 71 B. C. In 71 B. C. the consuls displayed no enthusiasm to undertake the command against Spartacus, and so the Senate appointed as extraordinary commander the praetor Marcus Licinius Crassus, one of Sulla’s veteran officers, who volunteered his services. After restoring discipline among his troops, Crassus succeeded in penning up Spartacus in the peninsula of Bruttium. Spartacus hired some Cilician pirates to transport him to Sicily, but, after receiving their price, they abandoned him to his fate. He succeeded in breaking through Crassus’ lines, but his forces divided into two detachments, each of which was caught and beaten. Spartacus fell in battle; while 6000 of his following were taken and crucified. Crassus had bent all his energies to bring the revolt to a close before the arrival of Pompey,

who was on his way from Spain. This he might fairly claim to have accomplished although a body of 5000 slaves who had escaped to North Italy were met by Pompey and annihilated.

IV. THE CONSULATE OF POMPEY AND CRASSUS: 70 B. C.

Pompey and Crassus consuls. Both Pompey and Crassus, flushed by their victories in Spain and in Italy, now demanded the right to stand for the consulship for 70 B. C. Both sought triumphs and under this pretext did not disband their armies. The Senate resisted their claims, for Pompey's candidature was clearly unconstitutional, and since Crassus was praetor in 71 he was not eligible for the consulate in the following year. Furthermore both were distrusted because of their ambitious natures. In view of this opposition Crassus, in spite of mutual jealousy between himself and Pompey, made overtures to the latter and they agreed to unite their forces. They also made a bid for the support of the _populares_ by promising to restore the tribunate to its former privileges and for that of the equestrians by promising to reinstate them in the jury courts. This combination overawed senatorial opposition, their candidatures were legalized by special bills and both were elected. In their consulate the tribunes were relieved of the restrictions which Sulla had placed upon their activities, and the jury courts were reorganized. However, the latter were not given over completely to the equestrians, but each panel of jurors was to consist of three equal sections, one drawn from the Senate, one from the _equites_, and one from the _tribuni aerarii_, the class of citizens whose assessment was next to that of the _equites_. The Sullan régime was at an end, and in the tribunate emancipated from the Senate's control the ambitious general of the future was to find his most valuable ally.

Trial of Verres. In the same year, prior to the passing of the Aurelian Law which reformed the juries, occurred the trial of Caius Verres, ex-propraetor of Sicily, a case notable because the prosecution was conducted by the young Marcus Tullius Cicero, whose accusation contained in his published _Orations against Caius Verres_ constitutes a most illuminating commentary upon provincial misgovernment under the Sullan régime. The senatorial juries after 82 B. C., had protected the interests of the provinces no better than had the equestrian juries established by Caius Gracchus. They had shown themselves shamelessly venal, and a provincial governor who made judicious disbursements could be confident that he would be acquitted of any charges of extortion brought against him. Relying upon this Verres, who was propraetor of Sicily in 73, 72 and 71 B. C., had carried off from that province money and valuables estimated at 40,000,000 sesterces ($2,000,000). He had openly boasted that he intended the profits of one year for himself, those of the second for his friends and patrons, and those of the third for his jurors. At the opening of the year 70 B. C. the Sicilian cities sued Verres for restitution of damages and chose Cicero as their advocate. Cicero was a native of Arpinum, the birthplace of Marius, and was now in his thirty-sixth year. His upright conduct as quaestor in western Sicily in 75 B. C. had earned him the confidence of the Sicilians, and his successful conduct of the defense in several previous trials had marked him as a pleader of exceptional ability. But Verres had entrusted his case to Quintus Hortensius Hortalus, regarded at the time

as the foremost of Roman orators, and every conceivable device was resorted to in order to prevent the case from coming to trial. Another prosecutor appeared, who claimed to have a better right than Cicero to bring suit against Verres. This necessitated a trial to decide which could better claim to represent the Sicilians. Cicero was able to expose the falsity of the claims of his rival, who was acting in collusion with Verres. He then proceeded to Sicily where he gathered his evidence in fifty of the hundred and ten days allowed him for the purpose. Before the hearing the elections for the next year were held and Hortensius elected consul, but Cicero was returned as aedile in spite of all the efforts of his opponents to weaken his prestige by a defeat at the polls.

The trial was set for the fifth of August, and as there were fifty holidays for various festivals between that date and the end of the year, the defense hoped to drag out the trial until after January first, when a praetor friendly to Verres would preside over the court for extortion. But Cicero defeated their hopes by abstaining from any long formal speech of accusation and contenting himself with a brief statement of the obstacles the defense had placed in his way, a threat to punish in his capacity of aedile any attempts at corruption, and a short statement of the charge against Verres. He then called his witnesses. Hortensius found himself without any arguments to combat and could not refute the evidence. Before the hearing of the witnesses was concluded Verres went into exile. He was condemned in his absence and Cicero became the leading advocate of the day. However, it must be admitted that the condemnation of Verres was also partly due to the danger of the loss of their privileges which threatened the senatorial jurors.

The crimes of Verres. The evidence which had been brought out against Verres was afterwards used by Cicero in composing his _Second Pleading against Verres_ (_actio secunda in Verrem_) which was of course never delivered, but was a political pamphlet in the form of a fictitious oration. From it we learn the devices of which the governor made use to amass a fortune at the expense of his province. By initiating false accusations, by rendering, or intimidating other judges to render unjust decisions, he secured the confiscation of property the value of which he diverted to his own pockets. He sold justice to the highest bidder. While saving himself expense by defrauding the collectors of port dues of the tax on his valuables shipped out of Sicily, he added to his profits by the sale of municipal offices and priesthoods. He entered into partnership with the _decumani_ or collectors of the ten per cent produce tax, and ordered the cultivators to pay whatever the collectors demanded, and then, if dissatisfied, seek redress in his court, a redress which, needless to say, was never gained. He loaned public funds at usurious rates of interest, and either did not pay in full or paid nothing for corn purchased from the Sicilian communities for the Roman government, while charging the state the market price. At the same time he insisted upon the cities commuting into money payments at rates far above current prices the grain allotted for the upkeep of the governor’s establishment. At times the demands made upon cultivators exceeded the total of their annual crop, and in despair they fled from their holdings. To the money gained by such methods Verres added a costly treasure of works of art, which he collected from both individuals and cities by theft, seizure and intimidation. Even the sacred ornaments of

temples were not spared. All who resisted or denounced him, even Roman citizens, were subjected to illegal imprisonment, torture or execution. These iniquities were carried out in defiance of the provincial charter, but there was no power in his province to restrain him, and the Senate, which should have done so, remained indifferent to the complaints which were carried to Rome. The sad truth was that after all Verres was only more shameless and unscrupulous than the average provincial governor, and consequently the sympathies of the Senate were with him rather than with his victims—the provincials.

V. THE COMMANDS OF POMPEY AGAINST THE PIRATES AND IN THE EAST: 67–62 B. C.

The pirate scourge. Both Pompey and Crassus had declined proconsular appointments at the close of 70 B. C., because there were no provinces open which promised an opportunity to augment their influence or military reputation. Accordingly they remained in Rome watching for some more favorable chance to employ their talents. Pompey found such an opportunity in the ravages of the Cilician pirates. After the failure of Marcus Antonius (74–72 B. C.), Caecilius Metellus had been sent to Crete in 69 B. C. and in the course of the next two years reduced the island to subjection and made it a province. But his operations there did little to check the pirate plague. So bold had these robbers become that they did not hesitate to raid the coasts of Italy and to plunder Ostia. When finally their depredations interrupted the importation of grain for the supply of the city, a famine threatened, and decisive measures had to be taken against them.

The Gabinian Law, 67 B. C. The only way to deal with the question was to appoint a commander with power to operate against the pirates everywhere, and the obvious man for the position was Pompey. However, the Senate mistrusted him and in addition feared the consequences of creating such an extensive extraordinary command. But since 71 B. C. Pompey had stood on the side of the _populares_ and now, like Marius, he found in the tribunate an ally able to aid him in attaining his goal. In 67 B. C. the tribune Aulus Gabinius proposed a law for the appointment of a single commander of consular rank who should have command over the whole sea within the pillars of Hercules and all Roman territory to a distance of fifty miles inland. His appointment was to be for three years, he was to have the power to nominate senatorial _legati_, to raise money in addition to what he received from the quaestors, and recruit soldiers and sailors at discretion for his fleet. This command was modelled upon that of Antonius the praetor in 74 B. C., but conveyed higher authority and greater resources. The Senate bitterly resisted the passage of the bill but it passed and the Senate had to relinquish its prerogative of creating the extraordinary commands. Although no person had been nominated for this command in the law of Gabinius, the opinion of the voters had been so clearly expressed in a _contio_ that the Senate had to appoint Pompey. He received twenty-four _legati_ and a fleet of five hundred vessels.

The pirates crushed. Pompey set to work energetically and systematically. In forty days he swept the pirates from the western Mediterranean. In forty-nine more he cornered them in Cilicia, where he forced the surrender of their strongholds. His

victory was hastened by the mildness shown to those who surrendered. They received their lives and freedom, and in many cases were used as colonists to revive cities with a declining population. Within three months he had brought the pirate war to a triumphant conclusion, but his _imperium_ would not terminate for three years and he was anxious to gather fresh laurels.

The Manilian Law, 66 B. C. It so happened that Pompey's success coincided with the temporary check to the Roman arms in Pontus, owing to the disaffection of the troops of Lucullus and the machinations of the latter's enemies in Rome. Pompey now sought to have the command of Lucullus added to his own, and in this he had the support of the equestrian order. Early in 66 B. C. one of the tribunes, Caius Manilius, proposed a law transferring to Pompey the provinces of Bithynia and Cilicia and the conduct of the war against Mithradates and Tigranes. Cicero, then a praetor, supported the measure in his speech, _For the Manilian Law_. His support was probably dictated by the fact that he was a man without family backing and consequently had to have the friendship of an influential personage if he was to secure the political advancement which he desired. The Senate strongly opposed any extension of Pompey's military authority, but the bill was passed and he took over the command of Lucullus. He was clothed with power to make peace or war with whom he chose, and enjoyed an unexampled concentration of authority in his hands.

The campaigns of Pompey in the East. Pompey at once advanced into Pontus and attacked Mithradates. The latter was forced to withdraw into Lesser Armenia where he was overtaken and his army scattered by Pompey. The king fled to the neighborhood of the Sea of Asov. Upon the defeat of Mithradates, Tigranes deserted his cause and submitted to Pompey. He was permitted to retain his kingdom as a Roman ally. In the following year, 65 B. C., Pompey reduced to submission the peoples situated south of the Caucasus, between the Black and the Caspian Seas, who had been in alliance with Mithradates, and so completed the subjugation of Pontus, which he made into a province (64 B. C.).

In 64 B. C. he turned his attention to Syria, where a state of chaos had reigned since Lucullus had wrested it from Tigranes and where a scion of the Seleucids had failed to find recognition. Pompey decided to treat Syria as a Roman conquest and incorporate it within the empire. He then interfered in a dynastic struggle in the kingdom of Judaea. After a brief struggle, in which the temple of Jerusalem was stormed by the Romans, he installed his nominee as High Priest at the head of the local government. Judaea was then annexed to the province of Syria (63 B. C.).

While Pompey was in Judaea the death of Mithradates occurred. Deserted by the Greek cities of the northern Euxine, he formed the plan of joining the Celtic peoples of the Danube valley and invading Italy. But his army deserted him for his son Pharnaces, who revolted against his father, and Mithradates committed suicide. Thereupon Pharnaces made peace with Pompey.

The Mithradatic war was finally over and Pompey, after organizing affairs in Asia Minor and the adjoining countries, started on a triumphal return to Italy with his victorious army and rich spoils of war (62 B. C.).

VI. THE CONSPIRACY OF CATILINE, 63 B. C.

The situation in Rome. While Pompey was adding to his military reputation in the East he was regarded with jealous and anxious eyes not only by the Senate but also by the other champions of the popular party, Crassus who found his wealth no match for Pompey's military achievements, and Caius Julius Caesar who was rapidly coming to be one of the leading figures in Roman public life. Caesar was born in 100 B. C., of the patrician _gens_ of the Julii, but since his aunt was the wife of Marius, and he himself had married the daughter of Cinna, his lot was cast with the Populares. As a young man he had distinguished himself by refusing to divorce his wife at Sulla's behest, whereat Sulla was with difficulty induced to spare his life, saying that he saw in him many a Marius. For the time being Caesar judged it prudent to withdraw from Rome to Rhodes. While in the East he was captured by pirates, and after being ransomed, fulfilled his threat to avenge himself by taking and executing his captors. After the death of Sulla, Caesar returned to Rome and devoted his more than average oratorical abilities to the cause of the Marians. In 69 or 68 B. C. he was quaestor in Farther Spain, and shortly afterwards he became closely associated with Crassus in the attempt to develop a counterpoise to Pompey's influence. While aedile in 65 B. C. he curried favor with the populace by the extraordinary lavishness with which he celebrated the public festivals, by the restoration of the public monuments of the campaign of Marius and by supporting the prosecution of agents in the Sullan proscriptions. The splendor of his shows had obliged Caesar to contract heavy debts, and Crassus was in all probability his chief creditor. Both were therefore interested in securing for Caesar a position in which he could secure the wealth to meet his obligations.

The unrest in Rome was heightened by the presence there of a number of men of ruined fortunes, both Marians dispossessed by Sulla and those of the opposite party who had squandered their resources or had been excluded from the Senate by the censors of 70 B. C. This element was ready to resort to any means, however desperate, to win wealth or office. Foremost among them was Lucius Sergius Catilina, a patrician who enjoyed an evil repute for his share in the Sullan proscriptions and the viciousness of his private life. Symptomatic of the weakening of the public authority was the organization of partizan gangs to terrorize opposition and control the Assembly.

Cicero elected consul, 64 B. C. In the year 64 B. C. three candidates presented themselves for the consulship, Catiline, Caius Antonius, a noble of the same type as Catiline, and Cicero. The first two were supported by Caesar and Crassus who hoped to use them for their own ends. Cicero, as a _novus homo_, was distasteful to the Optimates, but since they felt that Catiline must be defeated at all costs they supported the orator, who was elected with Antonius. From that time Cicero ranged himself on the side of the Optimates, and his political watchword was the "harmony of the orders," that is, of the senators and the equestrians. Of the consular provinces Cicero received by lot Macedonia and Antonius Cisalpine Gaul. As the latter was dissatisfied Cicero resigned Macedonia to him, in return for his public assurance of abstaining from opposing Cicero's acts during their year of office.

The land bill of Rullus, 63 B. C. On the first day of his consulate Cicero delivered a speech in which he scathingly criticized a land bill proposed by the tribune Servilius Rullus. This bill aimed to create a land commission of ten members of praetorian rank, elected in a special _comitia_ of seventeen tribes, which Rullus was to choose by lot. These commissioners were to be vested with extraordinary powers for five years, including the right to sell the public land in Italy and in Pompey's recent conquests, to exercise judicial authority, to confiscate lands, to found colonies, and to enroll and maintain troops. The bill would have placed in the hands of the commissioners extraordinary military authority both in Italy and in the provinces, guaranteed by the income derived from the sale of land. Pompey was excluded from the commission by a clause requiring the personal appearance of candidates. Everyone was aware that the measure was devised in the interests of Caesar and Crassus and that they would dominate the commission. However, the attack upon the Senate's control of the public land and the general mistrust of the purposes of a bill of this sort caused such strong opposition that its sponsors did not bring the matter to a vote.

*Caesar, **Pontifex** Maximus.* But Caesar could console himself with victory in another sphere. The position of Pontifex Maximus had become vacant, and by a tribunician bill the _lex Domitia_, revoked by Sulla, was again brought into effect and election to the priesthood entrusted to a _comitia_ of seventeen tribes. In the ensuing election Caesar was victorious.

The Catilinarian conspiracy: 63 B. C. In July, 63 B. C., occurred the consular elections for the next year. Catiline was again a competitor, but now he lacked the support of Crassus and Caesar and appealed directly to all needy and desperate characters throughout Italy, who hoped to enrich themselves by violent means. He was bitterly opposed by Cicero and the Optimates and was defeated. Thereupon he and his followers conspired to overthrow the government by armed force. Cicero, who was on the watch, got news of the conspiracy and induced the Senate to pass the "last decree" empowering him to use any means to save the state. Catiline then left the city to join the bands his supporters had raised in Etruria. He was declared a public enemy and a force under the consul Antonius dispatched against him. December seventeenth was the day set for a rising in Rome, when the city was to be fired, the consuls and others murdered, and a reign of terror instituted. But the plan was betrayed by a delegation of the Gallic Allobroges who happened to be in Rome and whom the conspirators endeavored to enlist on their side. The leading Catilinarians in Rome were arrested, and, in accordance with a decree of the Senate, put to death. Caesar had argued for a milder sentence, but the firm stand of the young Marcus Porcius Cato, a man of uncompromising uprightness and loyalty to the constitution, sealed the fate of the plotters. Upon the failure of his plans in Rome, Catiline endeavored to make his way with his army into Cisalpine Gaul, but was overtaken and forced to give battle to the forces of Antonius at Pistoria. He and most of his followers died sword in hand. The suppression of the conspiracy added to Cicero's reputation and greatly strengthened the position of the Senate and the Optimates.

But the whole episode bears testimony to the general weakness of the government and the danger of the absence of a regular police force for the maintenance of the public peace.

VII. THE COALITION OF POMPEY, CAESAR AND CRASSUS: 60 B. C.

Pompey's return. Towards the close of the year 62 B. C. Pompey landed in Italy and, contrary to the expectations of those who feared that he would prove a second Sulla, disbanded his army. The following September (61) he celebrated a memorable triumph. He was exceedingly anxious to crown his achievements by having the Senate ratify his eastern arrangements and securing land grants for his veterans. However, since the dismissal of his troops he was no longer feared by the Senate, which insisted on examining his acts in detail and not ratifying them _en bloc_ as he demanded. Thus the Optimates lost the opportunity of binding Pompey to their side, and at the same time they fell out with the equestrians over the demand made by the _publicani_ who had contracted for the taxes of Asia for a modification of the terms of their contract on the ground of poor harvests in the province.

The coalition of 60 B. C. No settlement had been reached when Caesar returned to Rome in 60 B. C. He had been praetor in 62 and for the following year governor of Further Spain, where he waged successful border wars, conciliated the provincials and yet contrived to find the means to satisfy his creditors. He now requested a triumph and the privilege of standing for the consulate while waiting outside the city for the former honor. However, when the Senate delayed its decision he gave up the triumph and became a candidate for the consulate. He now succeeded in reconciling Pompey and Crassus and the three formed a secret coalition to secure the election of Caesar and the satisfaction of their particular aims. This unofficial coalition is known as the First Triumvirate. Through the influence of his supporters Caesar was easily elected but his colleague was Calpurnius Bibulus, the nominee of the Optimates.

CHAPTER XIV

THE RIVALRY OF POMPEY AND CAESAR: CAESAR'S DICTATORSHIP; 59–44 B. C.

I. CAESAR CONSUL: 59 B. C.

A rule of force. At the beginning of his consulship Caesar tried to induce the Senate to approve his measures, but, when they failed to do so, he carried them directly to the Assembly. And when Bibulus and Cato essayed to obstruct legislation in the Comitia he crushed all opposition by the aid of Pompey's veterans. Bibulus, protesting against the illegality of Caesar's proceedings, shut himself up in his own house. Thus Caesar carried two land laws for the benefit of the soldiers of Pompey, induced the Senate to ratify the latter's eastern settlement, and secured for the equestrians, whose cause was championed by Crassus, the remission of one third of the contract price for the revenues of Asia.

The Vatinian Law. A lucky chance enabled Caesar to secure his own future by an extended military command. The Senate had taken pains to render him harmless by assigning as the consular provinces for 58 the care of forests and country roads in

Italy, but in February, 59, the death of Metellus Celer, proconsul of Cisalpine Gaul, left vacant a post of considerable importance in view of the imminent danger of war breaking out in Transalpine Gaul. Accordingly a law proposed by the tribune Vatinius transferred to Caesar the command of Cisalpine Gaul and Illyricum, with a garrison of three legions, for a term of five years beginning 1 March, 59. To this the Senate, at the suggestion of Pompey, added Transalpine Gaul and another legion.

The banishment of Cicero, 58 B. C. Caesar's consulship had been an open defiance of constitutional precedent, and had revealed the fact that the triumvirate was stronger than the established organs of government, and that the Roman Empire was really controlled by three men. Well might Cato say that the coalition was the beginning of the end of the Republic. Within the triumvirate itself Pompey was the dominant figure owing to his military renown and the influence of his veterans. Caesar appeared as his agent, yet displayed far greater political insight and succeeded in creating for himself a position which would enable him to play a more independent rôle in the future. The coalition did not break up at the end of Caesar's consulship; its members determined to retain their control of the state policy, and to this end secured for 58 B. C. the election of two consuls in whom they had confidence. To cement the alliance Pompey married Caesar's daughter Julia, and Caesar married the daughter of Piso, one of the consuls-elect. To secure themselves from attack they felt it necessary to remove from the city their two ablest opponents, Cato and Cicero. The latter had refused all proposals to join their side, and had sharply criticized them on several public occasions. His banishment was secured through the agency of the tribune Clodius, whose transfer from patrician to plebeian status Caesar had facilitated. Clodius was a man of ill repute who hated Cicero because the latter had testified against him when he was on trial for sacrilege. Early in 58 B. C. Clodius carried a bill which outlawed any person who had put to death Roman citizens without regular judicial proceedings. This law was aimed at Cicero for his share in the execution of the Catalinarian conspirators. Finding that he could not rely upon the support of his friends, Cicero went into exile without awaiting trial. He was formally banished, his property was confiscated, and he himself sought refuge in Thessalonica, where the governor of Macedonia offered him protection. Cato was entrusted with a special mission to accomplish the incorporation of Cyprus, then ruled by one of the Egyptian Ptolemies, into the Roman Empire, and his Stoic conception of duty prevented him from refusing the appointment. Caesar remained with his army in the vicinity of Rome until after Cicero's banishment and then set out for his province.

II. CAESAR'S CONQUEST OF GAUL: 58–51 B. C.

The defeat of the Helvetii and Ariovistus: 58 B. C. In 58 B. C., when Caesar entered upon his Gallic command, the Roman province in Transalpine Gaul (_Gallia __Narbonensis_) embraced the coast districts from the Alps to the borders of Spain and the land between the Alps and the Rhone as far north as Lake Geneva. The country which stretched from the Pyrenees to the Rhine, and from the Rhone to the ocean was called _Gallia comata_ or "long-haired Gaul," and was occupied by a large number of peoples of varying importance. These were usually regarded as falling into

three groups, (1) those of Aquitania, between the Pyrenees and the Loire, where there was a large Iberian element, (2) those called Celts, in a narrow sense of the word, stretching from the Loire to the Seine and the Marne, and (3) the Belgian Gauls, dwelling between these rivers and the Rhine. Among the latter were peoples of Germanic origin. Although conscious of a general unity of language, race and customs, the Gauls had not developed a national state, owing to the mutual jealousy of the individual peoples, and each tribe was perpetually divided into rival factions supporting different chiefs. Rome had sought to protect the province of Narbonensis by establishing friendly relations with some of these Gallic peoples and had long before (c. 121 B. C.) made an alliance with the Aedui. About 70 B. C. conditions in _Gallia comata_ had been disturbed by an invasion of Germanic Suevi, from across the Rhine, under their King Ariovistus. He united with the rivals of the Aedui, the Sequani, and after a number of years reduced the former to submission. In 59 B. C. he reached an agreement with Rome, became a “friend” of the Roman people, and, while abstaining from further aggression, remained firmly established in what is now Alsace. For some time the Roman province had been alarmed by the threat of a migration of the Helvetii, then settled in western Switzerland, and in March, 58 B. C., this people started in search of new abodes. Caesar reached Gaul in time to prevent their crossing the upper Rhone, and followed them as they turned westward into the lands of the Sequani and Aedui. Defeated in two battles, they were forced to return to their home and to become allies of Rome. The movement of the Helvetii had given Caesar the opportunity for intervention in _Gallia comata_, and a pretext for extending his influence there was found in the hostility of some of the Gauls to Ariovistus, and the knowledge that a band of Suevi was expected soon to cross the Rhine to reinforce the latter. To frustrate a German occupation of Gaul now became Caesar’s object. Ariovistus rejected the demands of Caesar, who thereupon attacked him, defeated him in the vicinity of Strassburg and drove him across the Rhine. Caesar was now the dominant power in Gaul, and many of the leading tribes entered into alliance with Rome. Of the Belgae, however, only the Remi came over to the side of Rome.

The conquest of the Belgae, Veneti, and Aquitanians, 57–56 B. C. In the next year, 57 B. C., Caesar marched against the united forces of the Belgae, defeated them, and subdued many tribes, chief of whom were the Nervii. At the same time his legates received the submission of the peoples of Normandy and Brittany. In the course of the following winter some of these, led by the Veneti, broke off their alliance and attacked Caesar’s garrisons. Thereupon he set to work to build a fleet, with which in the course of the next summer the fleet of the Veneti was destroyed and their strongholds on the coast taken (56 B. C.). The same year witnessed the submission of the Aquitanians, which brought practically the whole of Gaul under Roman sway.

Events in Rome, 58–55 B. C. Meanwhile important changes had taken place in the situation at Rome. Pompey had broken with Clodius, and supported the tribune Titus Annius Milo who pressed for Cicero’s recall. A law of the Assembly withdrew his sentence of outlawry, his property was restored, and the orator returned in September, 57 B. C., to enjoy a warm reception both in the municipal towns and at

the capital. For the moment Pompey and the Optimates were on friendly terms, and the former made use of a grain famine in the city to secure for himself an appointment as curator of the grain supply (_curator annonae_) for a period of five years. This appointment carried with it proconsular _imperium_ within and without Italy, and the control of the ports, markets and traffic in grain within the Roman dominions. It was really an extraordinary military command. Pompey relieved the situation but could do nothing to allay the disorders in Rome, where Clodius and Milo with their armed gangs set law and order at defiance. The news of Caesar's victories and the influence which he was acquiring in the city by a judicious distribution of the spoils of war fired the ambitions of Pompey and Crassus who were no longer on good terms with one another. Furthermore, the return of Cato in 56 B. C. had again given the Optimates an energetic leader. Consequently Caesar felt it necessary for the coalition to reach a new agreement. Accordingly while spending the winter in Cisalpine Gaul he arranged a conference at Luca in April, 56, where the three settled their differences and laid plans for the future. They agreed that Pompey and Crassus should be consuls in 55 B. C., that the former should be given the Spanish provinces and Libya for five years, that Crassus should have Syria for an equal period, and that Caesar's command in Gaul should be prolonged for another five year term to run from 1 March, 54.(12)

These arrangements were duly carried out. Since it was too late for Pompey and Crassus to be candidates at the regular elections in 56 B. C., they forcibly prevented any elections being held that year. The following January, after forcing the other candidates to withdraw, they secured their election. Thereupon a law of the tribune Gaius Trebonius made effective the assignment of provinces agreed upon at Luca. Once more it was made plain that the coalition actually ruled the empire. Cicero, who was indebted to Pompey for his recall, was forced to support the triumvirate, and the Optimates found their boldest leader in Cato, who had returned to Rome early in 56 B. C.

Caesar's crossing of the Rhine and invasion of Britain: 55–54 B. C. During the winter following the subjugation of the Veneti, two Germanic tribes, the Usipetes and the Tencteri, crossed the lower Rhine into Gaul. In the next summer, 55 B. C., Caesar attacked and annihilated their forces, only a few escaping across the river. As a warning against future invasion, Caesar bridged the Rhine and made a demonstration upon the right bank, destroying his bridge when he withdrew. Towards the close of the summer he crossed the Straits of Dover to Britain, to punish the Britons for aiding his enemies in Gaul. But owing to the lateness of the season and the smallness of his force he returned to Gaul after a brief reconnaissance.

In the following year, after gathering a larger fleet, he again landed on the island with a force of almost 30,000 men. This time he forced his way across the Thames and received the submission of Cassivellaunus, the chief who led the British tribes against the invaders. After taking hostages, and receiving promises of tribute, Caesar returned to Gaul. Britain was in no sense subdued, but the island had felt the power of Rome, and, besides enlarging the geographical knowledge of the time, Caesar had brought back numbers of captives. In Rome the exploit produced great excitement

and enthusiasm.

Revolts in Gaul: 54–53 B. C. Although the Gauls had submitted to Caesar, they were not yet reconciled to Roman rule, which put an end to their inter-tribal wars and to the feuds among the nobility. Consequently, many of the tribes were restive and not inclined to surrender all hopes of freedom without another struggle. In the course of the winter 54–53 B. C. the Nervii, Treveri and Eburones in Belgian Gaul attacked the Roman detachments stationed in their territories. One of these was cut to pieces but the rest held their ground until relieved by Caesar, who stamped out the rebellion.

Vercingetorix, 52 B. C. A more serious movement started in 52 B. C. among the peoples of central Gaul who found a national leader in Vercingetorix, a young noble of the Arverni. The revolt took Caesar by surprise when he was in Cisalpine Gaul and his troops still scattered in winter quarters. He recrossed the Alps with all haste, secured the Narbonese province and succeeded in uniting his forces. These he strengthened with German cavalry from across the Rhine. However, a temporary check in an attack upon the position of Vercingetorix at Gergovia caused the Aedui to desert the Roman cause, and the revolt spread to practically the whole of Gaul. Caesar was on the point of retiring to the province, but after repulsing an attack made upon him he was able to pen up Vercingetorix in the fortress of Alesia. A great effort made by the Gauls to relieve the siege failed to break Caesar’s lines, and the defenders were starved into submission. The crisis was over, although another year was required before the revolting tribes were all reduced to submission and the Roman authority re-established (51 B. C.). Caesar used all possible mildness in his treatment of the conquered and the Gauls were not only pacified but won over. In the days to come they were among his most loyal supporters. The conquest of Gaul was an event of supreme importance for the future history of the Roman empire, and for the development of European civilization as well. For the time _Gallia comata_ was not formed into a province. Its peoples were made allies of Rome, under the supervision of the governor of Narbonese Gaul, under obligation to furnish troops and for the most part liable to a fixed tribute. Caesar’s campaign in Gaul had given him the opportunity to develop his unusual military talents and to create a veteran army devoted to himself. His power had become so great that both Pompey and the Optimates desired his destruction and he was in a position to refuse to be eliminated without a struggle. The plots laid in Rome to deprive him of his power had made him hasten to quell the revolt of the Gauls with all speed. When this was accomplished he was free to turn his attention to Roman affairs.

Crassus in Syria, 55–53 B. C. After the assignment of the provinces by the Trebonian Law in 55 B. C., Crassus set out for Syria intending to win military power and prestige by a war against the Parthians, an Asiatic people who, once the subjects of the Persians and Seleucids, had established a kingdom which included the provinces of the Seleucid empire as far west as the Euphrates. Crassus had no real excuse for opening hostilities, but the Parthians were a potentially dangerous neighbor and a campaign against them gave promise of profit and glory. Accordingly, in 54 B. C., Crassus made a short incursion into Mesopotamia and then withdrew to

Syria. The next year he again crossed the Euphrates, intending to penetrate deeply into the enemy's country. But he had underestimated the strength of the Parthians and the difficulties of desert warfare. In the Mesopotamian desert near Carrhae his troops were surrounded and cut to pieces by the Parthian horsemen; Crassus himself was enticed into a conference and treacherously slain, and only a small remnant of his force escaped (53 B. C.). But the Parthians were slow in following up their advantage and Crassus' quaestor, Cassius Longinus, was able to hold Syria. Still Roman prestige in the East had received a severe blow and for the next three centuries the Romans found the Parthians dangerous neighbors. The death of Crassus tended to hasten a crisis in Rome for it brought into sharp conflict the incompatible ambitions of Pompey and Caesar, whose estrangement had already begun with the death of Pompey's wife Julia in 54 B. C.

Affairs in Rome, 54–49 B. C. At the end of his consulship Pompey left Rome but remained in Italy, on the pretext of his curatorship of the grain supply, and governed his province through his legates. In Rome disorder reigned; no consuls were elected in 54 B. C. nor before July of the following year; the partizans of Clodius and Milo kept everything in confusion. Pompey could have restored order but preferred to create a situation which would force the Senate to grant him new powers, so he backed Clodius, while Milo championed the Optimates. Owing to broils between the supporters of the candidates, no consuls or praetors could be elected for 52 B. C. In January of that year Clodius was slain by Milo's body-guard on the Appian Way, and the ensuing outburst of mob violence in the city forced the Senate to appeal to Pompey. He was made sole consul, until he should choose a colleague, and was entrusted with the task of restoring order. His troops brought quiet into the city; Milo was tried on a charge of public violence, convicted, and banished. Pompey had attained the height of his official career; he was sole consul, at the same time he had a province embracing the Spains, Libya, and the sphere assigned to him with the grain curatorship, he governed his provinces through _legati_, and his armies were maintained by the public treasury. In reality he was the chief power in the state, for without him the Senate was helpless, and he was justly regarded by contemporaries as the First Citizen or Princeps. In many ways his position foreshadowed the Principate of Augustus. However, Pompey did not wish to overthrow the republican régime; his ambition was to be regarded as the indispensable and permanent mainstay of the government and to enjoy corresponding power and honor. In such a scheme there was no room for a rival, and therefore he determined upon Caesar's overthrow. This decision put him on the side of the extreme Optimates, who were alarmed by Caesar's wealth, influence and fame and feared him as a dangerous radical. They had no hesitation in choosing between Pompey and Caesar.

Pompey's attack upon Caesar: 52 B. C. The latter's immediate aim was to secure the consulship for 48 B. C. and to retain his proconsular command until the end of December, 49. He knew that he had reached a position where his destruction was the desire of many, and that the moment he surrendered his _imperium_ he would be open to prosecution by those seeking to procure his ruin. But he had no intention of placing himself in the power of his enemies. The consulship would not only save him from prosecution but would enable him to confirm his arrangements in Gaul, reward

his army, and secure his own future by another proconsular appointment. However, to secure his election, he had to be exempted from presenting himself in person for his candidature in 49, and this permission was accorded him by a tribunician law early in 52 B. C. So far his position was strictly legal, but Pompey, whose own consulship was unconstitutional, now broke openly with Caesar by passing legislation which would undermine the latter's position. One of Pompey's laws prohibited candidacies for office _in absentia_, and when Caesar's friends protested, he added to the text of the law after it had passed a clause exempting Caesar from its operation; a procedure of more than dubious legality. A second law provided that in future provincial governorships should not be filled by the city magistrates just completing their term of office but by those whose terms had expired five years previously. This latter law may have been intended to check the mad rivalry for provincial appointments, but its immediate significance lay in the fact that it permitted a successor to be appointed to take over Caesar's provinces on 1 March, 49 B. C. He would thus have to stand as a private citizen for the consulship and would no longer enjoy immunity from legal attack. At the same time Pompey had his own command in Spain extended for another five years.

Negotiations between Caesar, Pompey and the Senate, 51–50 B. C. The question of appointing a successor to Caesar's provinces filled the next two years and was the immediate cause of civil war. Caesar claimed that his position should not be affected by the Pompeian law, and pressed for permission to hold his command until the close of 49 B. C. The extreme conservatives sought to supersede him on March first of that year, but Caesar's friends and agents thwarted their efforts. Pompey was not willing to have Caesar's command to run beyond 13 November, 49. Cicero, who had distinguished himself by his uprightness as governor of Cilicia in 51, strove to effect a compromise, but in vain. Caesar offered to give up Transalpine Gaul and part of his army, if allowed to retain the Cisalpine province but the overture was rejected. Finally, in December, 50 B. C., he formally promised to resign his provinces and disband his troops, if Pompey would do the same, but the Senate insisted upon his absolute surrender. On 7 January, 49 B. C., the Senate passed the "last decree" calling upon the magistrates and proconsuls (i. e. Pompey) to protect the state, and declaring Caesar a public enemy. Caesar's friends left the city and fled to meet him in Cisalpine Gaul, where he and his army were in readiness for this emergency.

III. THE CIVIL WAR BETWEEN CAESAR AND THE SENATE: 49–46 B. C.

Caesar's conquest of Italy and Spain, 49 B. C. The senatorial conservatives had forced the issue and for Caesar there remained the alternative of victory or destruction. He possessed the advantages of a loyal army ready for immediate action and the undisputed control over his own troops. On the other hand, his opponents had no veteran troops in Italy, and although Pompey acted as commander-in-chief of the senatorial forces, he was greatly hampered by having at times to defer to the judgment of the consuls and senators who were in his camp. It was obviously to Caesar's advantage to take the offensive and to force a decision before his enemies could concentrate against him the resources of the provinces. Hence he determined to act without delay, and, upon receiving news of the Senate's action on 7 January, he

crossed the Rubicon, which divided Cisalpine Gaul and Italy, with a small force, ordering the legions beyond the Alps to join him with all speed. The Italian municipalities opened their gates at his approach and the newly raised levies went over to his side. Everywhere his mildness to his opponents won him new adherents. Pompey decided to abandon Italy and withdraw to the East, intending later to concentrate upon the peninsula from all sides; a plan made feasible by his control of the sea. Caesar divined his intention and tried to cut off his retreat at Brundisium, but could not prevent his embarkation. With his army and the majority of the Senate Pompey crossed to Epirus. Owing to his lack of a fleet Caesar could not follow and returned to Rome. There some of the magistrates were still functioning, in conjunction with a remnant of the Senate. Being in dire need of money, he wished to obtain funds from the treasury, and when this was opposed by a tribune, Caesar ignored the latter's veto and forcibly seized the reserve treasure which the Pompeians had left behind in their hasty flight. In the meantime Caesar's lieutenants had seized Sardinia and Sicily, and crossed over into Africa. He himself determined to attack the well organized Pompeian forces in Spain and destroy them before Pompey was ready for an offensive from the East. On his way to Spain, Caesar began the siege of Massalia which closed its gates to him. Leaving the city under blockade he hastened to Spain, where after an initial defeat he forced the surrender of the Pompeian armies. Some of the prisoners joined his forces; the rest were dismissed to their homes. Caesar hastened back to Massalia. The city capitulated at his arrival, and was punished by requisitions, the loss of its territory and the temporary deprivation of its autonomy. From here Caesar pressed on to Rome, where he had been appointed dictator by virtue of a special law. After holding the elections in which he and an approved colleague were returned as consuls for 48, he resigned his dictatorship and set out for Brundisium. There he had assembled his army and transports for the passage to Epirus.

Pharsalus, 48 B. C. During Caesar's Spanish campaign Pompey had gathered a large force in Macedonia, nine Roman legions reinforced by contingents from the Roman allies. His fleet, recruited largely from the maritime cities in the East, commanded the Adriatic. Nevertheless, at the opening of winter (Nov. 49 B. C.) Caesar effected a landing on the coast of Epirus with part of his army and seized Apollonia. However, Pompey arrived from Macedonia in time to save Dyrrhachium. Throughout the winter the two armies remained inactive, but Pompey's fleet prevented Caesar from receiving reinforcements until the spring of 48 B. C., when Marcus Antonius effected a crossing with another detachment. As Caesar's troops began to suffer from shortage of supplies he was forced to take the offensive and tried to blockade Pompey's larger force in Dyrrhachium. However, the attempt failed, his lines of investment were broken, and he withdrew to Thessaly. Thither he was followed by Pompey, who suffered himself to be influenced by the overconfident senators to risk a battle. Near the town of Old Pharsalus he attacked Caesar but was defeated and his army dispersed. He himself sought refuge in Egypt and there he was put to death by order of the king whose father he had protected in the days of his power. Pompey's great weakness was that his resolution did not match his ambition. His ambition led him to seek a position incompatible with the constitution; but his

lack of resolution did not permit him to overthrow the constitution. The Optimates had sided with him only because they held him less dangerous than Caesar and had he been victorious they would have sought to compass his downfall.

Caesar in the East, 48–47 B. C. After Pharsalus Caesar had set out in pursuit of Pompey, but arrived in Egypt after the murder of his foe. His ever pressing need of money probably induced Caesar to intervene as arbiter in the name of Rome in the dynastic struggle then raging in Egypt between the twenty-year-old Cleopatra and her thirteen-year-old brother, Ptolemy XIV Dionysus, who was also, following the Egyptian custom, her husband. Caesar got the young king in his power and brought back Cleopatra, whom the people of Alexandria had driven out. Angered thereat, and resenting his exactions, the Alexandrians rose in arms and from October, 48, to March, 47 B. C., besieged Caesar in the royal quarter of the city. Having but few troops with him Caesar was in dire straits and was only able to maintain himself through his control of the sea which enabled him to eventually receive reinforcements. His relief was effected by a force raised by Mithradates of Pergamon who invaded Egypt from Syria. In co-operation with him Caesar defeated the Egyptians in battle; Ptolemy Dionysus perished in flight; and Alexandria submitted. Cleopatra was married to a still younger brother and put in possession of the kingdom of Egypt. Caesar had succumbed to the charms of the Egyptian queen and tarried in her company for the rest of the winter. He was called away to face a new danger in Pharnaces, son of Mithradates Eupator, who had taken advantage of the civil war to recover Pontus and overrun Lesser Armenia, Cappadocia and Bithynia. Hastening through Syria Caesar entered Pontus and defeated Pharnaces at Zela. After settling affairs in Asia Minor he proceeded with all speed to the West, where his presence was urgently needed.

Thapsus, 46 B. C. Both the fleet and the army of Pompey had dispersed after Pharsalus, but Caesar’s delay in the East had given the republicans an opportunity to reassemble their forces. They gathered in Africa where Caesar’s lieutenant Curio, who had invaded the province in 49 B. C., had been defeated and killed by the Pompeians through the aid of King Juba of Numidia. From Africa they were now preparing to attack Italy. In Rome, Caesar had been appointed dictator for 47 B. C. with Antony as his master of the horse. Here disorder reigned as a result of the distress arising from the financial stringency brought on by the war. Antony, who was in Rome, had proved unable to deal with the situation. Caesar reached Italy in September, 47 B. C., and soon restored order in the city. He was then called upon to face a serious mutiny of his troops who demanded the fulfillment of his promises of money and land and their release from service. By boldness and presence of mind Caesar won them back to their allegiance and set out for Africa in December, 47 B. C. He landed with only a portion of his troops and at first was defeated by the republicans under Scipio and Juba. But he was supported by King Bogud of Mauretania and a Catalinarian soldier of fortune, Publius Sittius, and after receiving reinforcements from Italy he besieged the seaport Thapsus. Scipio came to the rescue but was completely defeated in a bloody battle near the town. The whole of the province fell into Caesar’s hands. Cato, who was in command of Utica, did not force the citizens to resist but committed suicide; the other republican leaders, including

Juba, either followed his example, or were taken and executed by the Caesarians. From Africa Caesar returned to Rome where he celebrated a costly triumph over Gaul, Egypt, Pharnaces and Juba. He was now undisputed master of the state and proceeded according to his own judgment to settle the problem of governing the Roman world.

IV. THE DICTATORSHIP OF JULIUS CAESAR: 46–44 B. C.

The problem of imperial government. From 28 July, 46, to 15 March, 44 B. C., Caesar ruled the Roman Empire with despotic power, his position unchallenged except for a revolt of the Pompeian party in Spain which required his attention from the autumn of 46 to the spring of 45 B. C. His victory over Pompey and the republicans had placed upon him the obligation to provide the empire with a stable form of government and this responsibility he accepted. Sulla, when faced with the same problem, had been content to place the Senate once more at the head of the state, but from his own experience Caesar knew how futile this policy had been. Nor could the ideal of Pompey commend itself as a means of ending civil war and rebellion. Caesar was prepared to deal much more radically with the old régime, but death overtook him before he had completed his reorganization. What was the goal of his policy will best be understood from a consideration of his official position during the year and a half which followed the battle of Thapsus.

Caesar’s offices, powers and honors. Caesar’s autocratic position rested in the last instance upon the support of his veterans, of the associates who owed their advancement to him, and of such small forces as he kept under arms, but his position was legalized by the accumulation in his hands of various offices, special powers and unusual honors. Foremost among his offices came the dictatorship. We have seen that he had held this already for a short time in 49 and again in 47. In 46 B. C. he was appointed dictator for ten years, and in the following year for life. At the same time he was consul, an office which he held continuously from 48 B. C., in 45 as sole consul, but usually with a colleague. In addition to these offices he enjoyed the tribunician authority (_tribunicia potestas_), that is, the power of the tribunes without the name. This included the right to sit with the tribunes and the right of intercession, granted him as early as 48 B. C., and also personal inviolability (_sacrosanctitas_) which he received in 45. He had been Chief Pontiff since 63, and in 48 B. C. was admitted to all the patrician priestly corporations. And in 46 B. C. he was given the powers of the censorship under the title of “prefect of morals” (_praefectus morum_), at first for three years and later for life. In addition to these official positions of more or less established scope, Caesar received other powers not dependent upon any office. He was granted the right to appoint to both Roman and provincial magistracies, until in 44 B. C. he had the authority to nominate half the officials annually; and in reality appointed all. In 48 B. C. he received the power of making war and peace without consulting the Senate, in 46 the right of expressing his opinion first in the Senate (_ius primae sententiae_), and in 45 the sole right to command troops and to control the public moneys. In the next year ratification was given in advance to all his future arrangements, and magistrates entering upon office were required to swear to uphold his acts. The concentration of these powers in his

person placed Caesar above the law, and reduced the holders of public offices to the position of his servants. Honors to match his extraordinary powers were heaped upon Caesar, partly by his own desire, partly by the servility and fulsome flattery of the Senate. He was granted a seat with the consuls in the Senate, if he should not be consul himself; he received the title of parent or father of his country (_parens_ or _pater patriae_); his statue was placed among those of the kings of Rome, his image in the temple of Quirinus; the month Quinctilis, in which he was born, was renamed Julius (July) in his honor; a new college of priests, the Julian Luperci, was created; a temple was erected to himself and the Goddess Clementia, and a priest (flamen) appointed for his worship there; and he was authorized to build a house on the Palatine with a pediment like a temple. Most of these honors he received after his victory over the Pompeians in Spain in 45 B. C. However, the title _imperator_ (Emperor), which was regularly the prerogative of a general who was entitled to a triumph and was surrendered along with his military _imperium_, was employed by Caesar continuously from 49 until after the battle of Thapsus in 46, when he celebrated his triumph over the Gauls and his other non-Roman enemies. He assumed it again after Munda in the following year.

Caesar’s aim—monarchy. Taking into account the powers which Caesar wielded and his lifelong tenure of certain offices there can be no doubt that he not only had established monarchical government in Rome but also aimed to make his monarchy permanent. And this gives the explanation why he accepted honors which were more suited to a god than to a man, for since the time of Alexander the Great deification had been accepted in the Greek East as the legal and moral basis for the exercise of absolute power, and as distinguishing a legitimate autocracy from a tyranny. To a polytheistic age, familiar with the idea of the deification of “heroes” after death and permeated in its educated circles with the teaching of Euhemerus that the gods were but men who in their sojourn upon earth had been benefactors of the human race, the deification of a monarch in no way offended religious susceptibilities. The Romans were acquainted with monarchies of this type in Syria and in Egypt. Indeed this was the only type of monarchy familiar to the Romans of the first century B. C., if we exclude the Parthian and other despotisms, and it was bound to influence any form of monarchical government set up in Rome. The plebs actually hailed Caesar as “_rex_,” and at the feast of the Lupercalia in February, 44 B. C., Antony publicly offered him a crown. It is possible that he would have assumed the title if popular opinion had supported this step. And there may well have been some truth in the rumor that he contemplated marriage with Cleopatra, who came to Rome in 46 B. C., for a queen would be a fit mate for a monarch and such a step would have effected the peaceful incorporation of Egypt into the Roman Empire.

Caesar’s reforms. Upon returning to Rome after the battle of Thapsus Caesar began a series of reforms which affected practically every side of Roman life. One of the most useful was the reform of the Roman calendar. Hitherto the Romans had employed a lunar year of three hundred and fifty-five days (the calendar year beginning on March first and the civil year, since 153 B. C., on January first) which was approximately corrected to the solar year by the addition of an intercalary month of twenty-two days in the second, and one of twenty-three days in the fourth year, of

cycles of four years. For personal or political motives the pontiffs had trifled with the intercalation of these months until in 46 B. C. the Roman year was completely out of touch with the solar year. With the assistance of the Greek astronomer Sosigenes, Caesar introduced the Egyptian solar year of approximately 365¼ days, in such a way that three years of 365 days were followed by one of 366 days in which an extra day was added to February after the twenty-fourth of the month. The new Julian calendar went into effect on 1 January, 45 B. C. Another abuse was partially rectified by the reduction of the number who were entitled to receive cheap grain in Rome from about 320,000 to 150,000. The Roman plebeian colleges and guilds, which had become political clubs and had contributed to the recent disorders in the city, were dissolved with the exception of the ancient association of craftsmen. The _tribuni aerarii_ were removed from the jury courts and the penalties for criminal offences increased. Plans were laid for a codification of the Roman law but this was not carried into effect. Municipal administration in Rome and the Italian towns was regulated by the Julian Municipal Law, which brought uniformity into the municipal organization of Italy. The Roman magistracies were increased in number; the quaestorships from twenty to forty, and the eight praetorships finally to sixteen. At the same time the priesthoods were likewise enlarged. Administrative needs and the wish to reward a greater number of followers probably influenced these changes. A number of new patrician families were created to take the places of those which had died out. The membership of the Senate was increased to 900, and many new men, including ex-soldiers of Caesar and enfranchised Gauls, were enrolled in it. Caesar provided for his veterans by settling them in Italian municipalities and in colonies in the provinces. The deserted sites of Carthage and Corinth were repeopled with Roman colonists and once more became flourishing cities. In this way Caesar promoted the romanization of the provinces, a policy which he had begun with his conferment of the franchise upon the Transpadane Gauls in 49, and continued in the case of many Spanish communities. This romanization of the provinces and the admission of provincials to the Senate points to an imperial policy which would end the exploitation of the provinces in the interests of a governing caste and a city mob.

Munda, 45 B. C. Caesar proved himself a magnanimous conqueror. No Sullan proscriptions disgraced his victory. After Pharsalus he permitted all the republican leaders who submitted (among them Cicero), to return to Rome. Even after Thapsus at the intercession of his friends he pardoned bitter foes like Marcus Marcellus, one of the consuls of 50 B. C. But there remained some irreconcilables led by his old lieutenant Labienus, Varus, and Gnaeus and Sextus Pompey, sons of Pompey the Great, who after Pharsalus had betaken themselves with a small naval force to the western Mediterranean. In 46 B. C. they were joined by Labienus and Varus and landed in Spain where they rallied to their cause the old Pompeian soldiers who had entered Caesar’s service but whose sympathies had been alienated by one of his _legati_, Quintus Cassius. The Caesarian commanders could make no headway against them and it became necessary for the dictator to take the field in person. In December 46 B. C. he set out for Spain. Throughout the winter he sought in vain to force the enemy to battle, but in March 45 the two armies met at Munda, where Caesar’s eight defeated the thirteen Pompeian legions. The Caesarians gave no

quarter and the Pompeian forces were annihilated; Labienus and Varus fell on the field, Gnaeus Pompey was later taken and put to death, but his brother Sextus escaped. Caesar returned to Italy in September, 45 B. C., and celebrated a triumph for his success.

*The **assassination** of Julius Caesar, 15 March, 44 B. C.* His victory at Munda had strengthened Caesar's autocratic position, and was responsible for the granting of most of the exceptional honors which we have noted above. It was now clear at Rome that Caesar did not intend to restore the republic. In the conduct of the government he allowed no freedom of action to either Senate or Assembly, and although in general mild and forgiving he was quick to resent any attempt to slight him or question his authority. The realization that Caesar contemplated the establishment of a monarchy aroused bitter animosity among certain representatives of the old governing oligarchy, who chafed under the restraints imposed upon them by his autocratic power and resented the degradation of the Senate to the position of a mere advisory council. It could hardly be expected that members of the Roman aristocracy with all their traditions of imperial government would tamely submit to being excluded from political life except as ministers of an autocrat who was until lately one of themselves. This attitude was shared by many who had hitherto been active in Caesar's cause, as well as by republicans who had made their peace with him. And so among these disgruntled elements a conspiracy was formed against the dictator's life. The originator of the plot was the ex-Pompeian Caius Cassius, whom Caesar had made praetor for 44, and who won over to his design Marcus Junius Brutus, a member of the house descended from the Brutus who was reputed to have delivered Rome from the tyranny of the Tarquins. Brutus had gone over to Caesar after the battle of Pharsalus and was highly esteemed by him, but allowed himself to be persuaded that it was his duty to imitate his ancestor's conduct. Other conspirators of note were the Caesarians Gaius Trebonius and Decimus Junius Brutus. In all some sixty senators shared in the conspiracy. They set the Ides of March, 44, as the date for the execution of the plot. Caesar was now busily engaged with preparations for a war against the Parthians, who had been a menace to Syria ever since the defeat of Crassus. This defeat Caesar aimed to avenge and, in addition, to definitely secure the eastern frontier of the empire. An army of sixteen legions and 10,000 cavalry was being assembled in Greece for this campaign, and Caesar was about to leave Rome to assume command. He is said to have been informed that a conspiracy against his life was on foot, but to have disregarded the warning. He had dismissed his body-guard of soldiers and refused one of senators and equestrians. On the fatal day he entered the Senate chamber, where the question of granting him the title of king in the provinces was to be discussed. A group of the conspirators surrounded him, and, drawing concealed daggers, stabbed him to death. He fell at the foot of Pompey's statue.

Estimate of Caesar's career. By the Roman writers who preserved the republican tradition Brutus, Cassius, and their associates were honored as tyrannicides who in the name of liberty had sought to save the republic. Cato, who had died rather than witness the triumph of Caesar, became their hero. But this is an extremely narrow and partizan view. The republic which Caesar had overthrown was no system of

popular government but one whereby a small group of Roman nobles and capitalists exploited for their own personal ends and for the satisfaction of an idle city mob millions of subjects in the provinces. The republican organs of government had ceased to voice the opinion even of the whole Roman citizen body. The governing circles had proven themselves incapable of bringing about any improvement in the situation and had completely lost the power of preserving peace in the state. Radical reforms were imperative and could only be effective by virtue of superior force. In his resort to corruption and violence in furthering his own career and in his appeal to arms to decide the issue between himself and the Senate, Caesar must be judged according to the practices of his time. He was the child of his age and advanced himself by means which his predecessors and contemporaries employed. That he was ambitious and a lover of power is undeniable but hardly a cause for reproach; and who shall blame him, if when the Senate sought to destroy him by force, he used the same means to defend himself. His claim to greatness lies not in his ability to outwit his rivals in the political arena or outgeneral his enemies on the field of battle, but in his realization, when the fate of the civilized world was in his hands, that the old order was beyond remedy and in his courage in attempting to set up a new order which promised to give peace and security both to Roman citizens and to the provincials. Caesar fell before he had been able to give stability to his organization, but the republic could not be quickened into life. After Caesar some form of monarchical government was inevitable.

CHAPTER XV

THE PASSING OF THE REPUBLIC: 44–27 B. C.

I. THE RISE OF OCTAVIAN

The political situation after Caesar’s death. Caesar had made no arrangements for a successor, and his death produced the greatest consternation in Rome. The conspirators had made no plans to seize the reins of power, and instead of finding their act greeted with an outburst of popular approval, they were left face to face with the fact that although Caesar was dead the Caesarian party lived on in his veterans and the city populace, led by the consul Mark Antony, and Marcus Aemilius Lepidus, Caesar’s master of the horse. The Senate met on 17 March, and it was evident that a majority of its members supported the assassins, but they were afraid of the legion which Lepidus had under his orders and the Caesarian veterans in the city. Antony, who had obtained possession of Caesar’s papers and money, took the lead of the Caesarian party and came to terms with their opponents. It was agreed that the conspirators should go unpunished, but that the acts of Caesar should be ratified, even those which had not yet been carried into effect, that his will should be approved, and that he should receive a public funeral.

The reading of Caesar’s will revealed that he had left his gardens on the right bank of the Tiber as a public park, had bequeathed a donation of three hundred sesterces (about fifteen dollars) to each Roman citizen and had adopted his grand-nephew

Caius Octavius as his son and heir to three-fourths of his fortune. By a speech delivered to the people on the day of Caesar's funeral Antony skilfully enflamed popular sentiment against Caesar's murderers. The mob seized the dictator's corpse, burned it in the forum and buried the ashes there. The chief conspirators did not dare to remain in the city; Decimus Brutus went to his province of Cisalpine Gaul, Marcus Brutus and Cassius lingered in the neighborhood of Rome. Antony was master of the situation in the capital and overawed opposition by his bodyguard of 6000 veterans. He held in check Lepidus and other Caesarians who called for vengeance upon the conspirators. Lepidus was won over by his election to the position of Pontifex Maximus to succeed Caesar and was induced to leave the city for his province of Hither Spain to check the progress of Sextus Pompey, who had reappeared in Farther Spain and defeated the Caesarian governor. It was hoped that Sextus would be satisfied with permission to return to Rome and compensation for his father's property. Caesar's arrangements for the provincial governorships had assigned Macedonia to Antony and Syria to Dolabella, who became Antony's colleague in the consulate at Caesar's death. This assignment Antony altered by a law which granted him Cisalpine Gaul and the Transalpine district outside the Narbonese province for a term of six years in violation of a law of Caesar's, which limited proconsular commands to two years. Dolabella was to have Syria for a like period and Decimus Brutus was given Macedonia in exchange for Cisalpine Gaul. The consuls were to occupy their provinces at once. To Brutus and Cassius were assigned for the next year the provinces of Crete and Cyrene; while for the present they were given a special commission to collect grain in Sicily and Asia. The two left Italy for the East with the intention of seizing the provinces there before the arrival of Dolabella. They hoped to raise a force which would enable them to check Antony's career, for it was evident that Antony regarded himself as Caesar's political heir and was planning to follow the latter's path to absolute power.

Caius Octavius. But he found an unexpected rival in the person of Caesar's adopted son, Caius Octavius, a youth of eighteen years, who at the time of Caesar's death was at Apollonia in Illyricum with the army that was being assembled for the Parthian War. Against the advice of his parents he returned to Rome and claimed his inheritance. His presence was unwelcome to Antony, who had expended Caesar's money, and refused to refund it. Thereupon Octavius raised funds by selling his own properties and borrowing, and began to pay off the legacies of Caesar. By this means he soon acquired popularity with the Caesarians. The formalities of his adoption were not completed until the following year, but from this time on he took the name of Caesar.(13)

Antony underestimated the capacities of this rather sickly youth and continued to refuse him recognition, but was soon made aware of his mistake. He himself was anxious to occupy his province of Cisalpine Gaul, and since Decimus Brutus refused to evacuate it, Antony determined to drive him out and obtained permission to recall for that purpose the four legions from Macedonia. Before their arrival Octavian raised a force among Caesar's veterans in Campania, and on the march from Brundisium to Rome two of the four Macedonian legions deserted to him. The Caesarians were now divided into two parties, and Octavian began to coöperate with

the republicans in the Senate. The latter were thus encouraged to oppose Antony with whom reconciliation was impossible. Cicero, who had not been among the conspirators but who had subsequently approved Caesar's murder, was about to leave Italy to join Brutus when he heard of the changed situation in Rome and returned to assume the leadership of the republican party. Antony left Rome for the Cisalpine province early in December, 44 B. C., and Cicero induced the Senate to enter into a coalition with Octavian against him. In his _Philippic Orations_ he gave full vent to his bitter hatred of Antony and so aroused the latter's undying enmity.

The war at Mutina, December 44–April 43 B. C. In Cisalpine Gaul Decimus Brutus, relying upon the support of the Senate, refused to yield to Antony and was blockaded in Mutina. The Senate made preparations for his relief. Antony was ordered to leave the province, and Hirtius and Pansa, who became consuls in January, 43, took the field against him. The aid of Octavian was indispensable and the Senate conferred upon him the propraetorian _imperium_ with consular rank in the Senate. The combined armies defeated Antony in two battles in the vicinity of Mutina, forcing him to give up the siege and flee towards Transalpine Gaul. But Pansa died of wounds received in the first engagement and Hirtius fell in the course of the second. Ignoring Octavian, the Senate entrusted Brutus with the command and the task of pursuing Antony. The power of the Senate seemed reëstablished, for Marcus Brutus and Cassius had succeeded in their design of getting control of the eastern provinces, Dolabella having perished in the conflict, and were at the head of a considerable military and naval force. The Senate accordingly conferred upon them supreme military authority (_maius imperium_), and gave to Sextus Pompey, then at Massalia, a naval command. At last Cicero could induce the senators to declare Antony a public enemy. He no longer felt the support of Octavian a necessity and expressed the attitude of the republicans towards him in the saying "the young man is to be praised, to be honored, to be set aside."(14) But it was soon evident that the experienced orator had entirely misjudged this young man who, so far from being the tool of the Senate, had used that body for his own ends. Octavian refused to aid Decimus Brutus, and demanded from the Senate his own appointment as consul, a triumph, and rewards for his troops. His demands were rejected, whereupon he marched upon Rome with his army, and occupied the city. On 19 August, he had himself elected consul with Quintus Pedius as his colleague. The latter carried a bill which established a special court for the trial of Caesar's murderers, who were condemned and banished. The same penalty was pronounced upon Sextus Pompey. The Senate's decree against Antony was revoked.

The Triumvirate, 43 B. C. On his way to Transalpine Gaul Antony had met with Lepidus, whom the Senate had summoned from Spain to the assistance of Decimus Brutus. But Lepidus was a Caesarian and, alarmed by the success of Marcus Brutus and Cassius, allowed his troops to go over to Antony. Decimus Brutus had taken up the pursuit of Antony and joined forces with Plancus, governor of Narbonese Gaul. However, upon news of the events in Rome, Plancus abandoned Brutus and joined Antony. Brutus was deserted by his troops and killed while a fugitive in Gaul.

II. THE TRIUMVIRATE OF 43 B. C.

Octavian had taken care to have the defense of Italy against Antony and Lepidus entrusted to himself, and hastened northwards to meet the advance of their forces. But both sides were ready to come to terms and unite their forces for the purpose of crushing their common enemies, Brutus and Cassius. Accordingly, at a conference of the three leaders on an island in the river Renus near Bononia, a reconciliation between Antony and Octavian was effected and plans laid for their coöperation in the immediate future. The three decided to have themselves appointed triumvirs for the settlement of the commonwealth (_triumviri reipublicae __constituendae_) for a term of five years. They were to have consular _imperium_ with the right to appoint to the magistracies and their acts were to be valid without the approval of the Senate. Furthermore, they divided among themselves the western provinces; Antony received those previously assigned to him, Lepidus took the Spains and Narbonese Gaul; while to Octavian fell Sardinia, Sicily and Africa. Octavian was to resign his consulship, but in the next year to be joint commander with Antony in a campaign against the republican armies in the East while Lepidus protected their interests in Rome. The triumvirate was legalized by a tribunician law (the _lex Titia_) of 27 November, 43, and its members formally entered upon office on the first of January following. Unlike the secret coalition of Pompey, Crassus and Caesar, the present one constituted a commission clothed with almost supreme public powers.

Proscriptions. The formation of the coalition was followed by the proscription of the enemies of the triumvirs, partly for the sake of vengeance but largely to secure money for their troops from the confiscation of the properties of the proscribed. Among the chief victims was Cicero, whose death Antony demanded. He died with courage for the sake of the republican ideal to which he was devoted, but it must be recognized that this devotion was to the cause of a corrupt aristocracy, whose crimes he refused to share, although he forced himself to condone and justify them. The exactions of the triumvirs did not end with the confiscation of the goods of the proscribed; special taxes were laid upon the propertied classes in Italy and eighteen of the most flourishing Italian municipalities were marked out as sites for colonies of veterans.

Divus Julius. In 42 B. C. Octavian dedicated a temple to Julius Caesar in the forum where his body had been burned. Later by a special law Caesar was elevated among the gods of the Roman state with the name of Divus Julius. Meanwhile Octavian had found difficulty in occupying his allotted provinces. Africa was eventually conquered by one of his lieutenants, but Sextus Pompey, who controlled the sea, had occupied Sardinia and Sicily. His forces were augmented by many of the proscribed and by adventurers of all sorts, and Octavian could not dislodge him before setting out against Brutus and Cassius.

Philippi, 42 B. C. These republican generals had raised an army of 80,000 troops, in addition to allied contingents, and taken up a position in Thrace to await the attack of the triumvirs. In the summer of 42 B. C. the latter transported their troops across the Adriatic in spite of the fleet of their enemies, and the two armies faced each other near Philippi on the borders of Macedonia and Thrace. An indecisive battle was fought in which Antony defeated Cassius, who committed suicide in despair, but

Brutus routed the troops commanded by Octavian. Shortly afterwards Brutus was forced by his soldiers to risk another battle. This time he was completely defeated, and took his own life.

The division of the Empire. The triumvirs now redistributed the provinces among themselves, Cisalpine Gaul was incorporated in Italy, whose political boundaries at length coincided with its geographical frontier. The whole of Transalpine Gaul was given to Antony, Octavian received the two Spains, while Lepidus was forced to content himself with Africa. He was suspected by his colleagues of having intrigued with Sextus Pompey, and they were now in a position to weaken him at the risk of his open hostility. From the time of the meeting near Bononia Antony had been the chief personage in the coalition and his prestige was enhanced by his success at Philippi. It was now agreed that he should settle conditions in the eastern provinces and raise funds there, while Octavian should return to Italy and carry out the promised assignment of lands to their troops. This decision was of momentous consequence for the future. In the summer of 41 B. C. Antony received a visit from Cleopatra at Tarsus in Cilicia. Her personal charms and keen intelligence, which had enthralled the great Julius, exercised an even greater fascination over Antony, whose cardinal weaknesses were indolence and sensual indulgence. He followed Cleopatra to Egypt, where he remained until 40 B. C.

Octavian in Italy, 42–40 B. C. In Italy Octavian was confronted with the task of providing lands for some 170,000 veterans. The eighteen municipalities previously selected for this purpose proved insufficient, and a general confiscation of small holdings took place, whereby many persons were rendered homeless and destitute. Few, like the poet Virgil, found compensation through the influence of a powerful patron. A heavy blow was dealt to the prosperity of Italy. The task of Octavian was greatly hampered by opposition from the friends of Antony, led by the latter’s wife Fulvia and his brother Lucius Antonius. Hostilities broke out in which Lucius was besieged in Perusia and starved into submission (40 B. C.). Fulvia went to join Antony, while others of their faction fled to Sextus Pompey who still held Sicily. Of great importance to Octavian was his acquisition of Gaul which came into his hands through the death of Antony’s legate, Calenus. An indication of the approaching break between Octavian and Antony was the former’s divorce of his wife Clodia, and his marriage with Scribonia, a relative of Sextus Pompey, whom he hoped to win over to his side.

Treaty of Brundisium, 40 B. C. While Octavian had been involved in the Perusian war, the Parthians had overrun the province of Syria, and in conjunction with them Quintus Labienus, a follower of Brutus and Cassius, penetrated Asia Minor as far as the Aegean coast. Antony thereupon returned to Italy to gather troops to reëstablish Roman authority in the East. Both he and Octavian were prepared for war and hostilities began around Brundisium, which refused Antony admittance. However, a reconciliation was effected, and an agreement entered into which was known as the treaty of Brundisium. It was provided that Octavian should have Spain, Gaul, Sardinia, Sicily and Dalmatia, while Antony should hold the Roman possessions east of the Ionian sea; Lepidus retained Africa, and Italy was to be held in common. To

cement the alliance Antony, whose wife Fulvia had died, married Octavia, sister of Octavian.

The treaty of Misenum, 39 B. C. In the following year Antony and Octavian were forced to come to terms with Sextus Pompey. He still defiantly held Sicily and in addition wrested Sardinia from Octavian. His command of these islands and of the seas about Italy enabled him to cut off the grain supply of Rome, where a famine broke out. This brought about a meeting of the three at Misenum in which it was agreed that Sextus should govern Sardinia, Sicily and Achaia for five years, should be consul and augur, and receive a monetary compensation for his father's property in Rome. In return he engaged to secure peace at sea and convoy the grain supply for the city. However, the terms of the treaty were never fully carried out and in the next year Octavian and Sextus were again at war. The former regained possession of Sardinia but failed in an attack upon Sicily.

Treaty of Tarentum, 37 B. C. Meanwhile Antony had returned to the East where in the years 39–37 B. C. his lieutenants won back the Asiatic provinces from Labienus and the Parthians and drove the latter beyond the Euphrates. He now resolved to carry out the plan of Julius Caesar for the conquest of the Parthian kingdom. This necessitated his return to Italy to secure reinforcements. But, his landing was opposed by Octavian who was angry because Antony had not supported him against Sextus Pompey, whom Antony evidently regarded as a useful check upon his colleague's power. However, Octavia managed to reconcile her brother and her husband, and the two reached a new agreement at Tarentum. Here it was arranged that Antony should supply Octavian with one hundred ships for operations against Pompey, that Lepidus should coöperate in the attack upon Sicily, and that both he and Octavian should furnish Antony with soldiers for the Parthian war. As the power of the triumvirs had legally lapsed on 31 December, 38 B. C., they decided to have themselves reappointed for another five years, which would terminate at the close of 33 B. C. This appointment like the first was carried into effect by a special law.

The defeat of Sextus Pompey, 36 B. C. Octavian now energetically pressed his attack upon Sicily, while Lepidus coöperated by besieging Lilybaeum. At length, in September, 36 B. C., Marcus Vipsanius Agrippa, Octavian's ablest general, destroyed the bulk of Pompey's fleet in a battle off Naulochus. Pompey fled to Asia, where two years later he was captured by Antony's forces and executed. After the flight of Sextus, Lepidus challenged Octavian's claim to Sicily, but his troops deserted him for Octavian and he was forced to throw himself upon the latter's mercy. Stripped of his power and retaining only his office of chief pontiff, he lived under guard in an Italian municipality until his death in 12 B. C. His provinces were taken by Octavian. The defeat of Sextus Pompey and the deposition of Lepidus gave Octavian sole power over the western half of the empire, and inevitably tended to sharpen the rivalry and antagonism which had long existed between himself and Antony. In the same year Octavian was granted the tribunician sacrosanctity and the right to sit on the tribune's bench in the Senate.

III. THE VICTORY OF OCTAVIAN OVER ANTONY AND CLEOPATRA

The Parthian war, 36 B. C. After the Treaty of Tarentum Antony proceeded to Syria to begin preparations for his campaign against the Parthians which he began in 36 B. C. Avoiding the Mesopotamian desert, he marched to the north through Armenia into Media Atropatene in the hope of surprising the enemy. However, having met with a repulse in his siege of the fortress Phraata (or Praaspa), he was forced to retreat. He was vigorously pursued by the Parthians, but by skilful generalship managed to conduct the bulk of his army back to Armenia. Still he lost over 20,000 of his troops, and his reputation suffered severely from the complete failure of the undertaking. And so he prepared once more to take the offensive. As he attributed the failure of the late expedition to the disloyalty of the king of Armenia, Antony marched against him, treacherously took him prisoner and occupied his kingdom (34 B. C.). Thereupon he entered into an alliance with the king of Media Atropatene, a vassal of Parthia, and formed ambitious projects for the conquest of the eastern provinces of the empires of Alexander the great and the Seleucids. But these plans could only be executed with the help of the military resources of Italy and the western provinces that were now completely in the hands of Octavian. In view of the jealousy existing between the two triumvirs it was not likely that Octavian would willingly provide Antony with the means to increase his power, and so the latter was prepared to resort to force to make good his claim upon Italy.

Antony and Cleopatra. Another factor in the quarrel was Antony’s connection with Cleopatra. While in Antioch in 36 B. C. he openly married Cleopatra, and in the next year refused his legal wife, Octavia, permission to join him. This was equivalent to publicly renouncing his friendship with Octavian. Although it cannot be said that Antony had become a mere tool of Cleopatra, he was completely won over to her plans for the future of Egypt; namely, that since Egypt must sooner or later be incorporated in the Roman empire, this should be brought about by her union with the ruler of the Romans. Consequently, since her marriage with Antony she actively supported his ambition to be the successor of Julius Caesar. Their aims were clearly revealed by a pageant staged in Alexandria in 34 B. C., in which Antony and Cleopatra appeared as the god Dionysus and the goddess Isis, seated on golden thrones. In an address to the assembled public Antony proclaimed Cleopatra “queen of queens,” and ruler of Egypt, Cyprus, Crete and Coele-Syria; joint ruler with her was Ptolemy Caesarion, the son she had borne to Caesar. The two young sons of Antony and Cleopatra were proclaimed “kings of kings”; the elder as king of Armenia, Media and the Parthians, the younger as king of Syria, Phoenicia and Cilicia. To their daughter, Cleopatra, was assigned Cyrene. These arrangements aroused great mistrust and hostility towards Antony among the Romans, who resented the partition of Rome’s eastern provinces in the interest of oriental potentates. Relying upon this sentiment, Octavian in 33 B. C. refused Antony’s demands for troops and joint authority in Italy. Antony at once postponed the resumption of the Parthian war and prepared to march against his rival.

The outbreak of hostilities, 32 B. C. The final break came early in 32 B. C. The triumvirate legally terminated with the close of 33 B. C. and two consuls of Antony's faction came into office for the following year. To win support in Rome, Antony wrote to the Senate offering to surrender his powers as triumvir and restore the old constitution. His friends introduced a proposal that Octavian should surrender his _imperium_ at once, but this was vetoed by a tribune. Octavian then took charge of affairs in Rome, and the consuls, not daring to oppose him, fled to Antony, accompanied by many senators of his party. Thereupon Octavian caused the Assembly to abrogate the former's _imperium_ and also his appointment to the consulship for 31 B. C. To justify his actions and convince the Italians of the danger which threatened them from the alliance of Antony and Cleopatra, Octavian seized and published Antony's will which had been deposited in the temple of Vesta. The will confirmed the disposition which he had made of the eastern provinces in the interest of the house of Cleopatra. Octavian was now able to bring about a declaration of war against the Egyptian queen and to exact an oath of loyalty to himself from the senators in Rome and from the municipalities of Italy and the western provinces. It was this oath of allegiance which was the main basis of his authority for the next few years. In reply to these measures, Antony formally divorced Octavia and refused to recognize the validity of the laws which deprived him of his powers.

Actium, 31 B. C. In the fall of 33 B. C. Antony and Cleopatra began assembling their forces in Greece with the intention of invading Italy. By the next year they had brought together an army of about 100,000 men, supported by a fleet of 500 ships of war. However, no favorable occasion for attempting a landing in Italy presented itself and both the fleet and the army went into winter quarters in the gulf of Ambracia (32–1 B. C.). In the spring of 31 B. C. Octavian with 80,000 men and 400 warships crossed over to Epirus and took up a position facing his opponents who had taken their station in the bay of Actium at the entrance to the gulf of Ambracia. His most capable general was Agrippa. Owing to discord which had arisen between Cleopatra and his Roman officers, Antony remained inactive while detachments of Octavian's forces won over important points in Greece. Antony began to suffer from a shortage of supplies and some of his influential followers deserted to the opposite camp. At length he risked a naval battle, in the course of which Cleopatra and the Egyptian squadron set sail for Egypt and Antony followed her. His fleet was defeated and his army, which attempted to retreat to Macedonia, was forced to surrender. There is little doubt that Cleopatra had for some time been contemplating treachery to Antony, and her desertion was probably based on the calculation that if Octavian should prove victorious she would be able to claim credit for her services, while if Antony should be the victor, she was confident of obtaining pardon for her conduct. Probably she did not anticipate that Antony would join her in flight. At any rate, when Antony abandoned his still undefeated fleet and army he sealed both his fate and hers. The victor advanced slowly eastwards and in the summer of 30 B. C. began his invasion of Egypt. Antony's attempts at defense were unavailing; his troops went over to Octavian who occupied Alexandria. In despair he committed suicide. For a time Cleopatra, who had frustrated Antony's last attempt at resistance, hoped to win over Octavian as she had won Caesar and Antony, so that she might save at least Egypt for

her dynasty. But finding her efforts unavailing, she poisoned herself rather than grace Octavian's triumph. The kingdom of Egypt was added to the Roman empire, not as a province but as part of an estate to be directly administered by the ruler of the Roman world who took his place as the heir of the Pharaohs and the Ptolemies. The treasures of Egypt reimbursed Octavian for the expenses of his late campaigns. After reëstablishing the old provinces and client kingdoms in the East, Octavian returned to Rome in 29 B. C., where he celebrated a three-day triumph over the non-Roman peoples of Europe, Asia and Africa, whom he or his generals had subjugated during his triumvirate.

At the age of thirty-three Octavian had made good his claim to the political inheritance of Julius Caesar. His victory over Antony closed the century of civil strife which had begun with the tribunate of Tiberius Gracchus. War and the proscriptions had exacted a heavy toll from Romans and Italians; Greece, Macedonia and Asia had been brought to the verge of ruin; the whole empire longed for peace. Everywhere was Octavian hailed as the savior of the world and, as the founder of a new golden age, men were ready to worship him as a god.

IV. SOCIETY AND INTELLECTUAL LIFE IN THE LAST CENTURY OF THE REPUBLIC

The upper classes. The characteristics of Roman society in the last century of the republic are the same which we have previously seen developing as a result of Rome's imperial expansion. The upper classes of society comprise the senatorial nobility and the equestrians; the former finding their goal in public office, the latter in banking and financial ventures, and both alike callously exploiting the subjects of Rome in their own interests. Of this one example will suffice. Marcus Brutus, the conspirator, who enjoyed a high repute for his honorable character, loaned money to the cities of Cyprus at the exorbitant rate of 48% and influenced the senate to declare the contract valid. He did not hesitate to secure for his agents military authority with which to enforce payment, and was much disappointed when Cicero, as governor of Cilicia and Cyprus, refused to give his representative such power or to allow him to collect more than 12% interest on his debt.

As corruption characterized the public, so did extravagance and luxury the private life of the governing classes. The palaces of the wealthy in Rome were supplemented by villas in the Sabine hills, in the watering places of the Campanian coast, and other attractive points. The word villa, which originally designated a farm house, now meant a country seat equipped with all the modern conveniences of city life.

The solidarity of the family life which had been the foundation of Roman morality was fast disappearing. In general, wives no longer came under the authority (_manus_) of their husbands upon marriage, and so retained control of their properties acquired by inheritance or dowry through a guardian from their own families. Consequently women played an increasingly independent and important part in the society of the day. In Rome at least the age was one of a low tone in morals, and divorces were of common occurrence. At the same time social

intercourse was characterized by a high degree of urbanity—the good manners which mark the society of cultured men.

The plebs. Of the life of the plebs who thronged the high tenement houses and narrow streets of Rome we know very little. But until the Assembly was overawed or superseded by armed forces the city populace could not be ignored by the upper classes. Their votes must be courted by magnificent displays at the public games, by entertainments and largesses of all kinds, and care must be taken to provide them with food to prevent their becoming a menace to the public peace. This latter problem was solved as we have seen after the time of Caius Gracchus by providing them with a monthly allowance of corn, at first at a greatly reduced price, but after 57 B. C. gratuitously. Julius Caesar found about 320,000 persons sharing in this distribution, and reduced the number to 150,000 male citizens. The city mob thus became to a certain degree state pensioners, and placed a heavy burden on the treasury. There can be no doubt that the ranks of the urban proletariat were swelled by peasants who had lost their holdings in the course of the civil wars and the settlements of discharged soldiers on Italian soil, but the chief increase came from the manumission of slaves, who as _liberti_ or freedmen became Roman citizens. Sulla’s 10,000 Cornelii were of this number. The influx of these heterogeneous elements radically changed the character of the city populace which could no longer claim to be mainly of Roman and Italian stock but embraced representatives of all races of the Mediterranean world. The population was further augmented by the great numbers of slaves attached to the houses of the wealthy or engaged in various industrial occupations for their masters or others who hired their services.

In the rural districts of Italy the plantation system had been widely extended and agriculture and grazing were in the main carried on by slave labor. Yet the free farmers had by no means entirely disappeared and free labor was employed even on the _latifundia_ themselves. The discharged veterans who were provided with lands attest the presence of considerable numbers of free landholders.

Religion. In religion this period witnessed a striking decline of interest and faith in the public religion of the Roman state. This was in part due to the influence of Greek mythology which changed the current conceptions of the Roman divinities and to Greek philosophy with its varying doctrines as to the nature and powers of the gods. The latter especially affected the upper classes of society upon whom fell the duty of maintaining the public cults. From the time of the Gracchi the public priesthoods declined in importance; and in many cases they were used solely as a tool for political purposes. The increase in the numbers of the priestly colleges and the substitution of election for coöptation brought in many members unversed in the ancient traditions, and the holders of the priesthoods in general showed great ignorance of their duties, especially with regard to the ordering of the state calendar. Some religious associations like the Arval Brotherhood ceased to exist and knowledge of the character of some of the minor deities was completely lost. The patrician priesthoods, which involved serious duties and restricted the freedom of their incumbents were avoided as much as possible. At the same time the private religious rites, hereditary within family groups, fell into decay. While the attitude of educated

circles towards the state cults was thus one of indifference or skepticism, it is hard to speak of that of the common people. Superstitious they were beyond a doubt, but in the performance of the state cults they had never actively participated. The more emotional cults of the oriental type made a greater appeal to them if we may judge from the difficulty which the Senate experienced in banishing the priests of Isis from the city.

Stoicism and Epicureanism. The philosophic systems which made the most converts among the educated Romans were Stoicism and Epicureanism. The former, as we have seen, had been introduced to Rome by Panaetius, whose teaching was continued by Posidonius. It appealed to the Romans as offering a practical rule of life for men engaged in public affairs. On the other hand, the doctrine of Epicurus that men should withdraw from the annoyances of political life and seek happiness in the pursuit of pleasure, that is, intellectual pleasure, was interpreted by the Roman as sanctioning sensual indulgence and became the creed of those who gave themselves up to a life of ease and indolence.

Literature. The last century of the republic saw the completion of the amalgamation of Greek and Roman culture which had begun in the previous epoch. The resulting Graeco-Roman culture was a bi-lingual civilization based upon Greek intellectual and Roman political achievement which it was the mission of the empire to spread to the barbaric peoples of the western provinces. The age was marked by many-sided, keen, intellectual activity which brought Rome’s intellectual development to its height. Yet this Graeco-Roman culture was almost exclusively a possession of the higher classes.

The drama. In the field of dramatic literature the writing of tragedy practically ceased and comedy took the popular forms of caricature (_fabula Atellana_) and the mime, or realistic imitation of the life of the lower classes. Both forms were derived from Greek prototypes but dealt with subjects of everyday life and won great popularity in the theatrical exhibitions given at the public games.

Poetry: Catullus, 87–c. 54 B. C. The best exponent of the poetry of the age is Catullus, a native of Verona in Cisalpine Gaul, who as a young man was drawn into the vortex of fashionable society at the capital. This new poetry appealed to a highly educated class, conversant alike with the literature of the Greek classic and Hellenistic periods as well as with modern production, and able to appreciate the most elaborate and diversified meters. The works of Catullus show the wide range of form and subject which appealed to contemporary taste. Translations and copies of Greek originals find their place alongside epigrams and lyric poems of personal experience. It is his poetry of passion, of love and hate, which places him among the foremost lyric poets of all time.

Lucretius, 98–53 B. C. An exception among the poets of his time was Lucretius, who combined the spirit of a poet with that of a religious teacher. He felt a mission to free the minds of men from fear of the power of the gods and of death. To this end he wrote a didactic epic poem, _On the Nature of Things_, in which he explained the atomic theory of Democritus which was the foundation of the philosophical teachings

of Epicurus. The essence of this doctrine was that the world and all living creatures were produced by the fortuitous concourse of atoms falling through space and that death was simply the dissolution of the body into its component atomic elements. Consequently, there was no future existence to be dreaded. True poetic value is given to the work by the author’s great imaginative powers and his keen observation of nature and human life. Lucretius made the Latin hexameter a fitting medium for the expression of sustained and lofty thought.

Oratory. It was through the study and practice of oratory that Roman prose attained its perfection between the time of the Gracchi and Julius Caesar. Political and legal orations were weapons in the party strife of the day and were frequently polished and edited as political pamphlets. Along with political documents of this type appeared orations that were not written to be delivered in the forum or senate chamber but were addressed solely to a reading public. Among the great forensic orators of the age were the two Gracchi, of whom the younger, Caius, had the reputation of being the most effective speaker that Rome ever knew. Others of note were Marcus Antonius, grandfather of the triumvir, Lucius Licinius Crassus, and Quintus Hortensius Hortalus. But it was Cicero who brought to its perfection the Roman oration in its literary form.

Cicero, 106–43 B. C. Cicero was beyond question the intellectual leader of his day. He was above all things an orator and until past the age of fifty his literary productivity was almost entirely in that field. In his latter years he undertook the great task of making Hellenistic philosophy accessible to the Roman world through the medium of Latin prose. In addition to his speeches and oratorical and philosophic treatises Cicero left to posterity a great collection of letters which were collected and published after his death by his freedman secretary. His correspondence with his friends is a mine of information for the student of society and politics in the last century of the republic.

Caesar, 100–44 B. C. Julius Caesar made his genius felt in the world of letters as well as of politics. Though an orator of high rank, he is better known as the author of his lucid commentaries on the Gallic war and on the Civil war, which present the view that he desired the Roman public to take of his conflict with the senate.

Sallust, 86–36 B. C. Foremost among historical writers of the period was Caius Sallustius Crispus, “the first scientific Roman historian.” Subsequent generations ranked him as the greatest Roman historian. His chief work, a history of the period 78–67 B. C., is almost entirely lost, but two shorter studies on the Jugurthine war and Cataline’s conspiracy have been preserved. In contrast to Cicero, he is the protagonist of Caesarianism.

Varro, 116–27 B. C. Of great interest to later ages were the works of the antiquarian and philologist, Marcus Terentius Varro, the most learned Roman of his time. His great work on Roman religious and political antiquities has been lost, but a part of his study _On the Latin Language_ is still extant, as well as his three books _On Rural Conditions_. The latter give a good picture of agricultural conditions in Italy towards the end of the republic.

Jurisprudence. To legal literature considerable contributions were made both in the domain of applied law and of legal theory. We have already noticed the appeal which the Stoic philosophy made to the best that was in Roman character and many of the leading Roman jurists accepted its principles. It was natural then that Roman legal philosophy should begin under the influence of the Stoic doctrine of a universal divine law ruling the world, this law being an emanation of right reason, i. e. the divine power governing the universe. The most influential legal writers of the period were Quintus Mucius Scaevola who compiled a systematic treatment of the civil law in eighteen books, and Servius Sulpicius Rufus, the contemporary of Cicero. Sulpicius was a most productive author, whose works included _Commentaries_ on the XII Tables, and on the Praetor's Edict, as well as studies on special aspects of Roman law.

PART III

THE PRINCIPATE OR EARLY EMPIRE: 27 B. C.–285 A. D.

[Illustration: The Roman Empire from 31 B. C. to 300 A. D.]

CHAPTER XVI

THE ESTABLISHMENT OF THE PRINCIPATE: 27 B. C.–14 A. D.

I. THE PRINCEPS

The settlement of 27 B. C. During his sixth and seventh consulships, in the years 28 and 27 B. C., Octavian surrendered the extraordinary powers which he had exercised during the war against Antony and Cleopatra and, as he later expressed it, placed the commonwealth at the disposal of the Senate and the Roman people. But this step did not imply that the old machinery of government was to be restored without modifications and restrictions or that Octavian intended to abdicate his position as arbiter of the fate of the Roman world. Nor would he have been justified in so doing, for such a course of action would have led to a repetition of the anarchy which followed the retirement and death of Sulla, and, in disposing of his rivals, Octavian had assumed the obligation of giving to the Roman world a stable form of government. Public sentiment demanded a strong administration, even if this could only be attained at the expense of the old republican institutions.

But while ambition and duty alike forbade him to relinquish his hold upon the helm of state, Octavian shrank from realizing the ideal of Julius Caesar and establishing a monarchical form of government. From this he was deterred both by the fate of his adoptive father and his own cautious, conservative character which gave him such a shrewd understanding of Roman temperament. His solution of the problem was to retain the old Roman constitution as far as was practicable, while securing for himself such powers as would enable him to uphold the constitution and prevent a renewal of the disorders of the preceding century. What powers were necessary to this end, Octavian determined on the basis of practical experience between 27 and 18

B. C. And so his restoration of the commonwealth signified the end of a régime of force and paved the way for his reception of new authority legally conferred upon him.

The imperium. Nothing had contributed more directly to the failure of the republican form of government than the growth of the professional army and the inability of the Senate to control its commanders. Therefore, it was absolutely necessary for the guardian of peace and of the constitution to concentrate the supreme military authority in his own hands. Consequently on 13 January, 27 B. C., the birthday of the new order, Octavian, by vote of the Assembly and Senate, received for a period of ten years the command and administration of the provinces of Hither Spain, Gaul and Syria, that is, the chief provinces in which peace was not yet firmly established and which consequently required the presence of the bulk of the Roman armies. Egypt, over which he had ruled as the successor of the Ptolemies since 30 B. C., remained directly subject to his authority. As long as he continued to hold the consulship, the _imperium_ of Octavian was senior (_maius_) to that of the governors of the other provinces which remained under the control of the Senate. In effect, his solution of the military problem was to have conferred upon himself an extraordinary command which found its precedents in those of Lucullus, Pompey and Caesar, but which was of such scope and duration that it made him the commander-in-chief of the forces of the empire.

The titles Augustus and Imperator. On 16 January of the same year the Senate conferred upon Octavian the title of Augustus (Greek, _Sebastos_) by which he was henceforth regularly designated. It was a term which implied no definite powers, but, being an epithet equally applicable to gods or men, was well adapted to express the exalted position of its bearer. A second title was that of Imperator. Following the republican custom, this had been conferred upon Augustus by his army and the Senate after his victory at Mutina in 43 B. C., and in imitation of Julius Caesar he converted this temporary title of honor into a permanent one. Finally, in 38 B. C., he placed it first among his personal names (as a _praenomen_). After 27 B. C. Augustus made a two-fold use of the term; as a permanent _praenomen_, and as a title of honor assumed upon the occasion of victories won by his officers. From this time the _praenomen_ Imperator was a prerogative of the Roman commander-in-chief. However, during his principate Augustus did not stress its use, since he did not wish to emphasize the military basis of his power. But in the Greek-speaking provinces, where his power rested exclusively upon his military authority, the title Imperator was seized upon as the expression of his unlimited _imperium_ and was translated in that sense by _autocrator_. From the _praenomen_ imperator is derived the term emperor, commonly used in modern times to designate Augustus and his successors.

The tribunicia potestas, 23 B. C. From 27 to 23 B. C. the authority of Augustus rested upon his annual tenure of the consulship and his provincial command. But in the summer of 23 B. C. he resigned the consulship and received from the Senate and people the tribunician authority (_tribunicia potestas_) for life. As early as 36 B. C. he had been granted the personal inviolability of the tribunes, and in 30 B. C. their right of giving aid (_auxilium_). To these privileges there must now have been added the

right of intercession and of summoning the _comitia_ (_jus agendi cum populo_).(15) In this way Augustus acquired a control over comitial and senatorial legislation and openly assumed the position of protector of the interests of the city plebs. He was moreover amply compensated for the loss of civil power which his resignation of the consulship involved, and at the same time he got rid of an office which must be shared with a colleague of equal rank and the perpetual tenure of which was a violation of constitutional tradition. The tribunician authority was regarded as being held for successive annual periods, which Augustus reckoned from 23 B. C.

Special powers and honors. At the time of the conferment of the tribunician authority, a series of senatorial decrees added or gave greater precision to the powers of Augustus. He received the right to introduce the first topic for consideration at each meeting of the Senate, his military _imperium_ was made valid within the _pomerium_, but, in view of his resignation of the consulship, became proconsular in the provinces. It was probably in 23 B. C. also that Augustus received the unrestricted right of making war or peace, upon the occasion of the coming of an embassy from the king of the Parthians. In the next year he was granted the right to call meetings of the Senate. Three years later he was accorded the consular insignia, with twelve lictors, and the privilege of taking his seat on a curule chair between the consuls in office. These marks of honor gave him upon official occasions the precedence among the magistrates which his authority warranted. On the other hand, in 22 B. C. Augustus refused the dictatorship or the perpetual consulship, which were conferred upon him at the insistence of the city populace; and in the same spirit he declined to accept a general censorship of laws and morals (_cura legum et morum_) which was proffered to him in 19 B. C.

The principate. It was by the gradual acquisition of the above powers that the position which Augustus was to hold in the state was finally determined. This position may be defined as that of a magistrate, whose province was a combination of various powers conferred upon him by the Senate and the Roman people, and who differed from the other magistrates of the state in the immensely wider scope of his functions and the greater length of his official term. But these various powers were separately conferred upon him and for each he could urge constitutional precedents. It was in this spirit of deference to constitutional traditions that Augustus did not create for himself one new office which would have given him the same authority nor accept any position that would have clothed him with autocratic power. Therefore, as he held no definite office, Augustus had no definite official title. But the reception of such wide powers caused him to surpass all other Romans in dignity; hence he came to be designated as the _princeps_, i. e. the first of the Roman citizens (_princeps civium Romanorum_). From this arose the term principate to designate the tenure of office of the princeps; a term which we now apply also to the system of government that Augustus established for the Roman Empire. The crowning honor of his career was received by Augustus in 2 A. D., when the senate, upon the motion of one who had fought under Brutus at Philippi, conferred upon him the title of “Father of His Country” (_pater patriae_), thus marking the reconciliation between the bulk of the old aristocracy and the new régime.

Renewal of the imperium. His _imperium_, which lapsed in 18 B. C., Augustus caused to be reconferred upon himself for successive periods of five or ten years, thus preserving the continuity of his power until his death in 14 A. D.

II. THE SENATE, THE EQUESTRIANS AND THE PLEBS

The three orders. The social classification of the Romans into the senatorial, equestrian and plebeian orders passed, with sharper definitions, from the republic into the principate. For each class a distinct field of opportunity and public service was opened; for senators, the magistracies and the chief military posts; for the _equites_ a new career in the civil and military service of the princeps, and for the plebs service as privates and subaltern officers in the professional army. However, these orders were by no means closed castes; the way lay open to able and successful men for advancement from the lower to the higher grades, and for the consequent infusion of fresh vitality into the ranks of the latter.

The Senate and the senatorial order. The senatorial order was composed of the members of the Senate and their families. Its distinctive emblem was the broad purple stripe worn on the toga. Sons of senators assumed this badge of the order by right of birth; equestrians, by grant of the princeps. However, of the former those who failed to qualify for the Senate were reduced to the rank of equestrians. The possession of property valued at 1,000,000 sesterces ($50,000) was made a requirement for admission to the Senate.

The prospective senator was obliged to fill one of the minor city magistracies known as the board of twenty (_viginti-virate_), next to serve as a legionary tribune and then, at the age of twenty-five, to become a candidate for the quaestorship, which gave admission to the Senate. From the quaestorship the official career of the senator led through the regular magistracies, the aedileship or tribunate, and the praetorship, to the consulship. As an ex-praetor and ex-consul a senator might be appointed a promagistrate to govern a senatorial province; a legate to command a legion or administer an imperial province; or a curator in charge of some administrative commission in Rome or Italy.

During the republic the Senate had been the actual center of the administration and Augustus intended that it should continue to be so for the greater part of the empire. Through the ordinary magistrates it should govern Rome and Italy, and through the promagistrates the senatorial provinces. Furthermore, the state treasury, the _aerarium saturni_, supported by the revenues from Italy and the Senate’s provinces, remained under the authority of that body. However, to render it capable of fulfilling its task and to reëstablish its prestige, the Senate which now numbered over one thousand had to be purged of many undesirable members who had been admitted to its roll during the recent civil wars. Therefore, in 28 B. C., Augustus in his consular capacity supervised a revision of the senatorial list whereby two hundred unworthy persons were excluded. On that occasion his name was placed at the head of the new roll as the _princeps senatus_. A second recension ten years later reduced the total membership to six hundred. A third, in 4 A. D., commenced through a

specially chosen committee of three with the object of further reducing their number was not carried out. The Senate was automatically recruited by the annual admission of the twenty quaestors, but in addition the princeps enjoyed the right of appointing new members who might be entered upon the roll of the Senate among the past holders of any magistracy. In this way many prominent equestrians were admitted to the senatorial order.

The equestrian order. For the conduct of his share of the public administration the princeps required a great number of assistants in his personal employ. For his legates to command the legions or his provinces with delegated military authority Augustus could draw upon the senators, but both custom and the prestige of the Senate forbade their entering his service in other capacities. On the other hand, freedmen and slaves, who might well be employed in a clerical position, obviously could not be made the sole civil servants of the princeps. Therefore, Augustus drew into his service the equestrian order whose business interests and traditional connection with the public finances seemed to mark them out as peculiarly fitted to be his agents in the financial administration of the provinces.

The equestrian order in general was open to all Roman citizens in Italy and the provinces who were eighteen years of age, of free birth and good character, and possessed a census rating of 400,000 sesterces ($20,000). Admission to the order was in the control of the princeps, and carried the right to wear a narrow purple stripe on the toga and to receive a public horse, the possession of which qualified an equestrian for the imperial civil and military service. With the bestowal of the public horse Augustus revived the long neglected annual parade and inspection of the _equites_.

Like the career of the senators, that of the equestrians included both military and civil appointments. At the outset of his _cursus honorum_ the equestrian held several military appointments, which somewhat later came regularly to include a prefecture of a corps of auxiliary infantry, a tribunate of a legionary cohort, and a prefecture of an auxiliary cavalry corps. Thereupon he was eligible for a procuratorship, that is, a post in the imperial civil service, usually in connection with the administration of the finances. After filling several of these procuratorships, of which there were a great number of varying importance, an equestrian might finally attain one of the great prefectures, as commander of the city watch, administrator of the corn supply of Rome, commander of the imperial guards, or governor of Egypt. At the end of his equestrian career he might be enrolled in the senatorial order. Thus through the imperial service the equestrian order was bound closely to the princeps and from its ranks there gradually developed a nobility thoroughly loyal to the new régime.

The Comitia and the plebs. The _comitia_, which had so long voiced the will of the sovereign Roman people was not abolished, although it could no longer claim to speak in the name of the Roman citizens as a whole. It still kept up the form of electing magistrates and enacting legislation, but its action was largely determined by the recommendations of the princeps and his tribunician authority.

While the city plebs, accustomed to receive its free distributions of grain, and to be entertained at costly public spectacles, was a heavy drain upon the resources of the state, the vigorous third estate in the Italian municipalities supplied the subaltern officers of the legions. These were the centurions, who were the mainstay of the discipline and efficiency of the troops, and from whose ranks many advanced to an equestrian career.

III. THE MILITARY ESTABLISHMENT

Reorganization of the army. Upon his return to Italy in 30 B. C., Augustus found himself at the head of an army of about 500,000 men. Of these he released more than 300,000 from service and settled them in colonies or in their native municipalities upon lands which it was his boast to have purchased and not confiscated. This done, he proceeded to reorganize the military establishment. Accepting the lessons of the civil wars, he maintained a permanent, professional army, recruited as far as possible by voluntary enlistment. This army comprised two main categories of troops, the legionaries and the auxiliaries.

The legions and auxilia. The legionaries were recruited from Roman citizens or from provincials who received Roman citizenship upon their enlistment. Their units of organization, the legions, comprised nearly 6000 men, of whom 120 were cavalry and the rest infantry. The number of legions was at first eighteen, but was later raised to twenty-five, giving a total of about 150,000 men. The auxiliaries, who took the place of the contingents of Italian allies of earlier days, were recruited from among the most warlike subject peoples of the empire and their numbers were approximately equal to the legionaries. They were organized in small infantry and cavalry corps (cohorts and _alae_), each 480 or 960 strong. At the expiration of their term of service the auxiliaries were granted the reward of Roman citizenship.

The praetorians. A third category of troops, which, although greatly inferior in number to the legions and auxiliaries, played an exceptionally influential rôle in the history of the principate, was the praetorian guard. This was the imperial bodyguard which attended Augustus in his capacity of commander-in-chief of the Roman armies. It owed its influence to the fact that it was stationed in the vicinity of Rome while the other troops were stationed in the provinces. Under Augustus the praetorian guard comprised nine cohorts, each 1000 strong, under the command of two praetorian prefects of equestrian rank. The praetorians were recruited exclusively from the Italian peninsula, and enjoyed a shorter term of service and higher pay than the other corps.

Conditions of service. It was not until 6 A. D. that the term of enlistment and the conditions of discharge were definitely fixed. From that date service in the praetorian guard was for sixteen years, in the legions for twenty and in the _auxilia_ for twenty-five. At their discharge the praetorians received a bonus of 5000 denarii ($1000), while the legionaries were given 3000 denarii ($600) in addition to an assignment of land. The discharged legionaries were regularly settled in colonies throughout the provinces. To meet this increased expense Augustus was obliged to

establish a military treasury (the _aerarium militare_), endowed out of his private patrimony, and supported by the revenue derived from two newly imposed taxes, a five per cent inheritance tax (_vincesima hereditatium_) which affected all Roman citizens, and a one per cent tax on all goods publicly sold (_centesima rerum venalium_).

The fleets. For the policing of the coast of Italy and the adjacent seas Augustus created a permanent fleet with stations at Ravenna and Misenum. Conforming to the comparative unimportance of the Roman naval, in contrast to their military establishment, the personnel of this fleet was recruited in large measure from imperial freedmen and slaves. Only after Augustus were these squadrons and other similar ones in the provinces placed under equestrian prefects.

The military system of Augustus strongly emphasized and guaranteed the supremacy of Italy and the Italians over the provincials. Both the officers and the elite troops were drawn almost exclusively from Italy or the latinized parts of the western provinces. In like manner the reservation of the higher grades of the civil administration, the second prop of Roman rule, for Roman senators and equestrians, as well as the exclusion of the provincial imperial cult from Italian soil, marked clearly the distinction between the conquering and the subject races of the empire. Yet it was Augustus himself who pointed the way to the ultimate romanization of the provincials by the bestowal of citizenship as one of the rewards for military service and by the settlement of colonies of veterans in the provinces.

IV. THE REVIVAL OF RELIGION AND MORALITY

The ideals of Augustus. A counterpart to the governmental reorganization effected by Augustus was his attempt to revive the old time Roman virtues which had fallen into contempt during the last centuries of the republic. This moral regeneration of the Roman people he regarded as the absolutely essential basis for a new era of peace and prosperity. And the reawakening of morality was necessarily preceded by a revival of the religious rites and ceremonies that in recent times had passed into oblivion through the attraction of new cults, the growth of skepticism, or the general disorder into which the public administration had fallen as a result of civil strife.

The revival of public religion. One step in this direction was the reëstablishment of the ancient priestly colleges devoted to the performance of particular rites or the cult of particular deities. To provide these colleges with the required number of patrician members Augustus created new patrician families. He himself was enrolled in each of these colleges and, at the death of Lepidus in 12 B. C., was elected chief pontiff, the head of the state religion. A second measure was the repair of temples and shrines which had lapsed into decay. The temple of Jupiter Capitolinus, those of Quirinus and the Magna Mater, besides eighty-two other shrines of lesser fame, were repaired or restored by him. One of his generals, Munatius Plancus, renewed the temple of Saturn in the forum. A new temple was erected by Augustus to Mars the Avenger on the forum begun by Julius Caesar, another to the deified Julius himself on the old forum, and a third on the Palatine hill to Apollo, to whom he rendered thanks

for the victory at Actium.

The Lares and the Genius Augusti. Among the divinities whose cult was thus quickened into life were the Lares, the guardian deities of the crossways, whose worship was especially practiced by the common folk. Between the years 12 and 7 B. C. each of the two hundred and sixty-five _vici_ into which the city of Rome was then divided was provided with a shrine dedicated to the Lares and the Genius of Augustus, that is, the divine spirit which watched over his fortunes. This worship was conducted by a committee of masters, annually elected by the inhabitants of these quarters. In this way the city plebs while not worshipping the princeps himself, were yet encouraged to look upon him as their protector and guardian.

The imperial cult. A new religion which was to be symbolic of the unity of the empire and the loyalty of the provincials was the cult of Rome and Augustus, commonly known as the imperial cult. The worship of the goddess Roma, the personification of the Roman state, had sprung up voluntarily in the cities of Greece and Asia after 197 B. C. when the power of Rome began to supplant the authority of the Hellenistic monarchs for whom deification by their subjects was the theoretical basis of their autocratic power. This voluntary worship had also been accorded to individual Romans, as Flamininus, Sulla, Caesar and Mark Antony. As early as 29 B. C. the cities of Pergamon in Asia and Nicomedia in Bithynia erected temples dedicated to Roma and Augustus, and established quinquennial religious festivals called _Romaia Sebasta_. Other cities followed their example and before the death of Augustus each province in the Orient had at least one altar dedicated to Roma and the princeps. From the East the imperial cult was officially transplanted to the West.

In the year 12 B. C. an altar of Rome and Augustus was established at the junction of the rivers Rhone and Sâone, opposite the town of Lugdunum (modern Lyons), the administrative center of Transalpine Gaul apart from the Narbonese province. Here the peoples of Gaul were to unite in the outward manifestation of their loyalty to Roman rule. A similar altar was erected at what is now Cologne in the land of the Ubii between 9 B. C. and 9 A. D. Both in the East and in the West the maintenance of the imperial cult was imposed upon provincial councils, composed of representatives of the municipal or tribal units in which each province was divided.

The imperial cult in the provinces was thus the expression of the absolute authority of Rome and Augustus over the subjects of Rome, but for that very reason Augustus could not admit its development on Italian soil; for to do so would be to deny his claim to be a Roman magistrate, deriving his authority from the Roman people, among whom he was the chief citizen, and would stamp his government as monarchical and autocratic. Therefore, although the poet Horace, voicing the public sentiment, in 27 B. C. acclaimed him as the new Mercury, and both municipalities and individuals in southern Italy spontaneously established his worship, this movement received no official encouragement and never became important. However, from the year 12 B. C. onwards, there were established religious colleges of _Augustales_, or priestly officers called _Sevìri Augustales_, in many Italian municipalities for the celebration of the cult of Augustus either alone or in conjunction with some other divinity such as Mercury or Hercules. As these Augustales were almost exclusively drawn from the

class of freedmen who were no longer admitted to full Roman citizenship, Augustus avoided receiving worship from the latter, while assuring himself of the loyalty of the _liberti_ and gratifying their pride by encouraging a municipal office to which they were eligible.

The leges Juliae and the lex Papia Poppaea. However, Augustus was not content to trust solely to the moral effects of religious exercises and resorted to legislative action to check the degenerate tendencies of his age. The Julian laws of 19 and 18 B. C. aimed at the restoration of the soundness of family life, the encouragement of marriage, and the discouragement of childlessness, by placing disabilities upon unmarried and childless persons. These measures provoked great opposition, but Augustus was in earnest and supplemented his earlier laws by the _lex Papia Poppaea_ of 9 A. D. which gave precedence to fathers over less fortunate persons among the candidates for public office. A commentary on the effectiveness of his earlier laws was the fact that both the consuls who sponsored this later one were themselves unmarried. To prevent the Italian element among the citizens from being swamped by a continuous influx of liberated slaves, Augustus placed restrictions upon the right of manumission and refused freedmen the public rights of Roman citizens, although granting these to their sons. By example as well as by precept he sought to hold in check the luxurious tendencies of the age, and in his own household to furnish a model of ancient Roman simplicity.

The Secular Games, 17 B. C. To publicly inaugurate the new era in the life of the state begun under his auspices, Augustus celebrated the festival of the Secular Games in the year 17 B. C., for which Horace wrote the inaugural ode, his _Carmen Saeculare_.

V. THE PROVINCES AND THE FRONTIERS

The Dyarchy. The division of the provinces between Augustus and the Senate in 27 B. C. had the effect of creating an administrative dyarchy, or joint rule of two independent authorities, for the empire. However, the original allotment of the provinces underwent some modification subsequent to 27 B. C. In 23 B. C., Augustus transferred to the Senate Narbonese Gaul where the rapid progress of colonization had made it “more a part of Italy than a province.” In exchange he took over Illyricum, where the progress of the Roman arms had been interrupted by the outbreak of the war with Antony and where the Romans were confronted by warlike and restless peoples of the hinterland. Somewhat later Cilicia also became an imperial province and in 6 A. D. Sardinia was placed under an imperial procurator because of disturbances on the island. Southern Greece, previously dependent upon the province of Macedon, was placed under the government of the Senate as the province of Achaea. New administrative districts organized by Augustus out of territories conquered by his generals remained under his control.

Survey and census of the empire. The main expense of the military and civil establishment of the empire was defrayed by the revenues from the provinces. As a basis for an accurate estimate of their resources for purposes of taxation and

recruitment Augustus caused a comprehensive census of the population and an evaluation of property to be taken in each newly organized district, and provided for a systematic revision of the census in all the imperial provinces. In addition a general chart of the empire was compiled on the basis of an extended survey conducted under the direction of Agrippa.

The foreign policy of Augustus. As we have seen, Augustus since he was commander-in-chief of the Roman armies and in charge of the administration of the most important border provinces, was entrusted by the senate with the direction of the foreign relations of the state. Here his aims conformed to the general conservatism of his policies and were directed towards securing a defensible frontier for the empire which should protect the peace that he had established within its borders. His military operations were conducted with due regard to the man power and the financial resources of the state. To secure the defensible frontier at which he aimed it was necessary for Augustus to incorporate in the empire a number of border peoples whose independence was a menace to the peace of the provinces and to establish some client kingdoms as buffer states between Roman territory and otherwise dangerous neighbors.

The settlement in Spain. The northwestern corner of the Spanish peninsula was still occupied by independent peoples, the Cantabri, Astures and the Callaeci, who harassed with their forays the pacified inhabitants of the Roman provinces. To secure peace in this quarter Augustus determined upon the complete subjugation of these peoples. From 27 to 24 B. C. he was present in Spain and between these years his lieutenants Antistius, Carisius and Agrippa conducted campaigns against them in their mountain fastness, and, overcoming their desperate resistance, settled them in the valleys and secured their territory by founding colonies of veterans. A subsequent revolt in 20–19 was crushed by Marcus Agrippa.

The pacification of the Alps, 25–8 B. C. A similar problem was presented by the Alpine peoples, who not only made devastating raids into northern Italy but also in the west occupied the passes which offered the most direct routes between Italy and Transalpine Gaul. In 26 B. C. occurred a revolt of the Salassi, in the neighborhood of the Little St. Bernard, who had been subdued eight years before. In the following year they were completely subjugated, and those who escaped slaughter were sold into slavery. In 16 B. C. the district of Noricum, i. e., modern Tyrol and Salzburg, was occupied by Publius Silius Nerva, in consequence of a raid of the Noricans into the Istrian peninsula. In 15 B. C., the step-son of Augustus, Nero Claudius Drusus, crossed the Brenner Pass and forced his way over the Vorarlberg range to Lake Constance, subduing the Raeti on his way. On the shores of Lake Constance he met his elder brother, Tiberius Claudius Nero, who had marched eastwards from Gaul. Together they defeated and subjugated the Vindelici. On the north the Danube was now the Roman frontier. A number of isolated campaigns completed the subjugation of the remaining Alpine peoples by 8 B. C. Raetia and Noricum were organized as procuratorial provinces, while the smaller Alpine districts were placed under imperial prefects.

Gaul and Germany. Caesar had left the land of Gallia Comata crushed but still unsettled and not fully incorporated in the empire. It fell to the lot of Augustus to complete its organization, which was accomplished between 27 and 13 B. C. Subsequent to the transfer of the Narbonese province to the Senate _Gallia comata_ was divided into three districts; Aquitania, Lugdunensis and Belgica, which, however, during the lifetime of Augustus, formed an administrative unity, under one governor with subordinate _legati_ in each district. The colony of Lugdunum was the seat of the administration, as well as of the imperial cult. No attempt was made to latinize the three Gauls by the founding of Roman colonies; but they remained divided into sixty-four separate peoples, called _civitates_, with a tribal organization under the control of a native nobility. As early as 27 B. C. Augustus took a census in Gaul, and on this basis fixed its tax obligations. The rich lands of Gaul were as important a source of imperial revenue as its vigorous population was of recruits for the Roman auxiliary forces.

But the Gauls were restive under their new burdens and were in addition liable to be stirred up by the Germanic tribes who came from across the Rhine. An invading horde of Sugambri in 16 B. C. defeated a Roman army and, upon a renewed inroad by the same people in 12 B. C., Augustus determined to cross the Rhine and secure the frontier of Gaul by the subjugation of the Germans to the north. The Germans, like the Gauls at the time of the Roman conquest, were divided into a number of independent tribes usually at enmity with one another and hence incapable of forming a lasting combination against a common foe. Individually they were powerful and courageous, but their military efficiency was impaired by their lack of unity and discipline.

Drusus, conqueror of the Raeti, was appointed to command the Roman army of invasion. He first secured the Rhine frontier by the construction of a line of fortresses stretching from Vindonissa (near Basle) to Castra Vetera (near Xanten), the latter of which, with Mogontiacum (Mainz) were his chief bases. Then, crossing the river, in four campaigns (12–9 B. C.) he overran and subjugated the territory between the Rhine and the Elbe. His operations were greatly aided by his fleet, for which he constructed a canal from the Rhine to the Zuider Zee, and which facilitated the conquest of the coast peoples, among them the Batavi, who became firm Roman allies. On the return march from the Elbe in 9 B. C., Drusus was fatally injured by a fall from his horse. His brother Tiberius succeeded him in command and strengthened the Roman hold on the transrhenene conquests. Drusus was buried in Rome, whither Tiberius escorted his corpse on foot, and was honored with the name Germanicus.

Illyricum and Thrace. To the east of the Adriatic the Roman provinces of Illyricum and Macedonia were subject to constant incursions of the Pannonians, Getae (or Dacians) and Bastarnae, peoples settled in the middle and lower Danube valley. Marcus Licinius Crassus, Governor of Macedonia, in 30 and 29 B. C. defeated the Getae and Bastarnae, crossed the Balkans, carried the Roman arms to the Danube and subdued the Moesi to the south of that river. However, it required a considerable time before the various Thracian tribes were finally subdued and a

client kingdom under the Thracian prince Cotys was interposed between Macedonia and the lower Danube. Meantime, the Pannonians had been conquered in a number of hard fought campaigns which were brought to a successful conclusion by Tiberius (12–9 B. C.) who made the Drave the Roman boundary. The contemporaneous conquest of Pannonia and of Germany between the Rhine and the Elbe was one of the greatest feats of Roman arms and reveals the army of the empire at the height of its discipline and organization. In 13 B. C., during a lull in these frontier struggles, the Senate voted the erection of an altar to the peace of Augustus (the _ara pacis Augustae_), in grateful recognition of his maintenance of peace within the empire.

The revolt of Illyricum and Germany. For several years following the death of Drusus no further conquests were attempted until 4 A. D., when Tiberius was again appointed to command the army of the Rhine. After assuring himself of the allegiance of the Germans by a demonstration as far as the Elbe and by the establishment of fortified posts, he prepared to complete the northern boundary by the conquest of the kingdom of the Marcomanni, in modern Bohemia, between the Elbe and the Danube. In 6 A. D. Tiberius was on the point of advancing northward from the Danube, in coöperation with Gaius Saturninus, who was to move eastwards from the Rhine, when a revolt broke out in Illyricum which forced the abandonment of the undertaking and the conclusion of peace with Marbod, the king of the Marcomanni. The revolt, in which both Pannonians and Dalmatians joined, was caused by the severity of the Roman exactions, especially the levies for the army. For a moment Italy trembled in fear of an invasion; in the raising of new legions even freedmen were called into service. But the arrival of reinforcements from other provinces enabled Tiberius after three years of ruthless warfare to utterly crush the desperate resistance of the rebels (9 A. D.). The organization of Pannonia as a separate province followed the reëstablishment of peace.

Until the last year of the war in Illyricum the Germanic tribes had remained quiet under Roman overlordship. But in 9 A. D., provoked by the attempt of the new Roman commander, Publius Quinctilius Varus, to subject them to stricter control, they united to free themselves from foreign rule. In the coalition the Cherusci and Chatti were the chief peoples, and Arminius, a young chieftain of the Cherusci, was its leading spirit. Varus and his army of three legions were surprised on the march in the Teutoberg Forest and completely annihilated. Rome was in panic over the news, but the Germans did not follow up their initial success. Tiberius was again sent to the post of danger and vindicated the honor of Rome by two successful expeditions across the Rhine. But no attempt was made to recover permanently the lost ground. The frontier of the Elbe was given up for that of the Rhine with momentous consequences for the future of the empire and of Europe. The coast peoples, however, remained Roman allies and a narrow strip of territory was held on the right bank of the Rhine. The reason lay in the weakness of the Roman military organization, caused by the strain of the Illyrian revolt and the difficulty of finding recruits for the Roman legions among the Italians. The cry of Augustus, “Quinctilius Varus, give back my legions,” gives the clue to his abandonment of Germany.

The eastern frontier. In the East alone was Rome confronted by a power which was in any way a match for her military strength and which had disastrously defeated two Roman invasions. The conquest of this, the Parthian kingdom, appeared to Augustus to offer no compensation comparable to the exertions it would entail and therefore he determined to rest content with such a reassertion of Roman supremacy in the Near East as would wipe out the shame of the defeats of Crassus and Antony and guarantee Roman territory from Parthian attack. He was prepared to accept the natural frontier of the Euphrates as the eastern boundary of Roman territory. Between the Roman provinces in Asia Minor and the upper Euphrates lay a number of client kingdoms, Galatia, Pontus, Cappadocia and Lesser Armenia, and Commagene. At the death of Amyntas, king of Galatia, in 25 B. C., his kingdom was made into a province, but the others were left under their native dynasts. Across the Euphrates lay Armenia, a buffer state between the Roman possessions and Parthia, which was of strategic importance because it commanded the military routes between Asia Minor and the heart of the Parthian country. To establish a protectorate over Armenia was therefore the ambition of both Rome and Parthia. During the presence of Augustus in the East (22–19 B. C.), Tiberius placed a Roman nominee on the Armenian throne, and received from the Parthian king, Phraates IV, the Roman standards and captives in Parthian hands, a success which earned Augustus the salutation of _imperator_ from his troops. Later Phraates sent four of his sons as hostages to Rome. But the Roman protectorate over Armenia was by no means permanent; its supporters had soon to give way to the Parthian party. Gaius Caesar between 1 B. C. and 2 A. D. restored Roman influence, but again the Parthians got the upper hand and held it until 9 A. D., when Phraates was overthrown and was succeeded by one of his sons whom Augustus sent from Rome at the request of the Parthians.

Judaea and Arabia. To the south of the Roman province of Syria lay the kingdom of Judaea, ruled by Herod until his death in 4 B. C., when it was divided among his sons. Subsequently Judaea proper was made a province administered by a Roman procurator. To the east of the Dead Sea was the kingdom of the Nabataean Arabs, who controlled the caravan routes of the Arabian peninsula and who were firm Roman allies. With their aid a Roman army under Aelius Gallus in 25 B. C. sought to penetrate into the rich spice land of Arabia Felix, but suffered such losses in its march across the desert that it was forced to return without effecting a conquest. At the same time Gaius Petronius defeated the Ethiopians under Queen Candace and secured the southern frontier of Egypt. Through the ports of Egypt on the Red Sea a brisk trade developed with India, from which distant land embassies on various occasions came to Augustus. Further west in Africa, Augustus added the kingdom of Numidia to the province of Africa, and transferred its ruler, Juba II, whose wife was Cleopatra, daughter of Antony the triumvir, to the kingdom of Mauretania (25 B. C.).

The conquests of Augustus established in their essential features the future boundaries of the Roman Empire. At his death he left it as a maxim of state for his successor to abstain from further expansion.

VI. THE ADMINISTRATION OF ROME

The problem of police. One of the great problems which had confronted the Roman government from the time of the Gracchi was the policing of Rome and the suppression of mob violence. To a certain extent the establishment of the praetorian guard served to overawe the city mob, although only three of its cohorts were at first stationed in the city. As a supplement to the praetorians Augustus organized three urban cohorts, each originally 1500 strong, who ranked between the legionaries and praetorians. Between 12 and 7 B. C. the city was divided for administrative purposes into fourteen regions, subdivided into 265 _vici_ or wards. Each region was put in charge of a tribune or aedile. A force of six hundred slaves under the two curule aediles was formed as a fire brigade. But as these proved ineffective in 6 A. D. Augustus created a corps of _vigiles_ to serve as a fire brigade and night watch. This corps consisted of seven cohorts, one for every two regions, and was under the command of an equestrian prefect of the watch (_praefectus vigilum_).

The Annona. Another vital problem was the provision of an adequate supply of grain for the city. A famine in 22 B. C. produced so serious a situation that the Senate was forced to call upon Augustus to assume the responsibility for this branch of the administration. At first he tried to meet the situation through the appointment of curators of senatorial rank, but after 6 A. D. he created the office of prefect of the grain supply, filled by an equestrian appointee of the princeps. His duty was to see that there was an adequate supply of grain on hand for the market at a reasonable price and in addition to make the monthly distribution of free grain to the city plebs. The number of recipients of this benefit was fixed at 200,000.

In this way Augustus was forced to take over one of the spheres of the government which he had intended should remain under the direction of the Senate and to witness himself the first step towards the breakdown of the administrative dyarchy which he had created.

VII. THE PROBLEM OF THE SUCCESSION

The policy of Augustus. In theory the position of the princeps was that of a magistrate who derived his powers from the Senate and the Roman people, and hence the choice of his successor legally lay in their hands. However, Augustus realized that to leave the field open to rival candidates would inevitably lead to a recrudescence of civil war. Therefore he determined to designate his own successor and to make the latter’s appointment a matter beyond dispute. Furthermore, his own career as the son and heir of Julius Caesar warned him that this heir to the principate must be found within his own household, and his precarious health was a constant reminder that he could not await the approach of old age before settling this problem. And so, from the early years of his office, he arranged the matrimonial alliances of his kinsfolk in the interests of the state without regard to their personal preferences, to the end that in the event of his decease there would be a member of the Julian house prepared to assume his laborious task. Yet the unexpected length of his life caused Augustus to outlive many of those whom he from time to time looked upon as the heirs to his position in the state.

Marcus Marcellus and Agrippa. Augustus had one daughter Julia, by his second wife Scribonia. He had no sons, but Livia Drusilla, whom he took as his third wife in 36 B. C., brought him two stepsons, Tiberius and Drusus. Yet not one of these but his nephew, Marcus Marcellus, was his first choice for a successor. Marcellus received Julia as his wife in 25 B. C., the next year at the age of nineteen he was admitted to the Senate, and in 23 B. C., as aedile, he won the favor of the populace by his magnificent public shows. When Marcellus died in 23 B. C., Augustus turned to his loyal adherent Agrippa, to whom Julia was now wedded. In 18 B. C. Agrippa received proconsular _imperium_ and the _tribunicia potestas_ for five years, powers that were reconferred with those of Augustus in 13 B. C.

Tiberius. But in the next year Agrippa died, and Augustus, regarding his eldest stepson Tiberius, the conqueror of Noricum, as the one best qualified to succeed himself, forced him to divorce the wife to whom he was devoted and to marry Julia. At that time he was given the important Illyrian command and in 6 B. C. the tribunician authority was granted him for a five year term. But Tiberius, recognizing that he was soon to be set aside for the two elder sons of Agrippa and Julia, Gaius and Lucius Caesar, whom Augustus had adopted and taken into his own house, and being disgusted with the flagrant unfaithfulness of Julia, retired into private life at Rhodes, thereby incurring the deep enmity of his stepfather.

Gaius and Lucius Caesar. Gaius and Lucius Caesar assumed the garb of manhood (the _toga virilis_) at the age of fifteen in 5 and 2 B. C., respectively. To celebrate each occasion Augustus held the consulship, and placed them at the head of the equestrian order with the title _principes iuventutis_. They were exempted from the limitations of the _cursus honorum_ so that each might hold the consulate in his twentieth year. In 1 A. D. Gaius was sent to the East with proconsular imperium to settle fresh trouble in Armenia. There in the siege of a petty fortress he received a wound from which he died in 4 A. D. Two years previously Lucius had fallen a victim to fever while on his way to Spain. In the meantime Augustus had experienced another blow in his discovery of the scandalous conduct of Julia. Her guilt was the more unpardonable in view of the efforts of her father to restore the moral tone of society. She was banished to the island rock of Pandataria, her companions in crime were punished, the most with banishment, one with death on a charge of treason (1 B. C.). Her elder daughter, also called Julia, later met the same fate for a like offence.

Tiberius. At the death of Gaius Caesar, Augustus turned once more to Tiberius, who had been permitted to leave Rhodes at the intercession of Livia. In 4 A. D. he was adopted by Augustus and received the _tribunicia potestas_ for ten years. In 13 A. D. his tribunician power was renewed and he was made the colleague of Augustus in the _imperium_. Tiberius himself had been obliged to adopt his nephew Germanicus, the son of Drusus, who married Agrippina, the younger daughter of Agrippa and Julia. Association in authority and adoption where necessary had become the means of designating the successor in the principate.

VIII. AUGUSTUS AS A STATESMAN

The death of Augustus. In 14 A. D. Augustus held a census of the Roman citizens in the empire. They numbered 4,937,000, an increase of 826,000 since 28 B. C. In the same year he set up in Rome an inscription recording his exploits and the sums which he had expended in the interests of the state. A copy of this has been found inscribed on the walls of the temple of Roma and Augustus at Ancyra, and hence is known as the Monument of Ancyra. On 19 August, 14 A. D., Augustus died at Nola in Campania, at the age of seventy-six.

An estimate of his statesmanship. Opinions have differed and probably always will differ upon the question whether or not Augustus sought to establish a disguised form of monarchical government. Still, in his favor stands the fact that, although when a young man confronted or allied with rivals who sought his destruction he seized power by illegal means, after the fate of the state was in his hands and he had reëstablished an orderly form of government, he conscientiously restricted himself to the use of the powers which were legally conferred upon him. So ably did he conciliate public opinion that the few conspiracies formed against his life and power had no serious backing and constituted no real danger to himself or his system. To have effected so important a change in the constitution with so little friction is proof of a statesmanship of a high order.

His principate marks the beginning of a new epoch in Roman history and determined the course of the subsequent political development of the empire. And the system he inaugurated finds its greatest justification in the era of the _pax Romana_ which it ushered in.

The weakness of his system. Yet it must be admitted that this system contained two innate weaknesses. Firstly, it was built up around the personality of Augustus, who could trust himself not to abuse his great power, and secondly, the princeps, as commander-in-chief of the Roman army, was immeasurably more powerful than the second partner in the administration, the Senate, and able to assert his will against all opposition. Now, as has well been observed, the working of the principate depended upon the coöperation of the Senate and the self-restraint of the emperors, consequently, when the former proved incapable and the latter abused their power, the inevitable consequence was an autocracy. That Augustus realized this himself towards the end of his life is highly probable, yet as the one who brought order out of chaos and gave peace to an exhausted world his name will always be one of the greatest in the history of Rome or indeed of the human race.

CHAPTER XVII

THE JULIO-CLAUDIAN LINE AND THE FLAVIANS: 14–96 A. D.

I. TIBERIUS, 14–37 A. D.

Tiberius princeps. At the death of Augustus, Tiberius by right of his _imperium_ assumed command of the army and through his tribunician authority convoked the Senate to pay the last honors to Augustus and decide upon his successor. Like Julius Caesar, Augustus was deified, and a priestly college of Augustales, chosen from the

senatorial order was founded to maintain his worship in Rome. In accordance with a wish expressed in his will, his widow Livia was honored with the name Augusta. Tiberius received the title of Augustus and the other honors and powers which his predecessor had made the prerogatives of the princeps. His _imperium_, however, was conferred for life, and not for a limited period. The ease of his succession shows how solidly the principate was established at the death of its founder.

Character and policy. Tiberius was now fifty-six years of age. He had spent the greater part of his life in the public service, and consequently had a full appreciation of the burden of responsibility which the princeps must assume. He was the incarnation of the old Roman sense of duty to the state, and at the same time exhibited the proud reserve of the Roman patricians. Stern in his maintenance of law and order, he made an excellent subordinate, but when called upon to guide the policy of state, he displayed hesitation and lack of decision. The incidents of his marriage with Julia and his exile had rendered him bitter and suspicious, and he utterly lacked the personal charm and adaptability of his predecessor. Thus he was temperamentally unsuited to the position he was called upon to fill and this was responsible for his frequent misunderstandings with the Senate. Such an incident occurred in the meetings of the Senate after the death of Augustus. Tiberius, conscious of his unpopularity, sought to have the Senate press upon him the appointment as the successor of Augustus, and so feigned reluctance to accept, a course which made the senators suspect that he was laying a trap for possible rivals. Yet there was no princeps who tried more conscientiously to govern in the spirit of Augustus, or upheld more rigidly the rights and dignity of the Senate. At the beginning of his principate he transferred from the Assembly to the Senate the right of the election to the magistracies, thus relieving the senators from the expense and annoyance of canvassing the populace.

Mutinies in Illyricum and on the Rhine. Two serious mutinies followed the accession of Tiberius, one in the army stationed in Illyricum, the other among the legions on the Rhine. Failure to discharge those who had completed their terms of service and the severity of the service itself were the grounds of dissatisfaction. The Illyrian mutiny was quelled by the praetorian prefect Lucius Aelius Seianus; the army of the Rhine was brought back to its allegiance by Germanicus, the son of Drusus, whom Tiberius had adopted at the command of Augustus in 4 A. D. He had married Agrippina, daughter of Agrippa and Julia, and was looked upon as the heir of Tiberius in preference to the latter’s younger and less able son, Drusus.

The campaigns of Germanicus, 14–17 A. D. To restore discipline among his troops and relieve them from the monotony of camp life, as well as to emulate the achievements of his father, Germanicus, without the authorization of Tiberius, led his army across the Rhine. The German tribes were still united in the coalition formed in the time of Varus, and, under their leaders Arminius and Inguiomerus, offered vigorous opposition to the Roman invasion. Nevertheless, in three successive campaigns (14–16 A. D.), Germanicus ravaged the territory between the Rhine and the Weser and inflicted several defeats upon the Germans. Still Arminius and his allies were by no means subdued, and the Romans had sustained heavy losses. One

army had narrowly escaped the fate of the legions of Varus, and twice had the transports of Germanicus suffered through storms in the North Sea. For these reasons Tiberius forbade the prolongation of the war and recalled Germanicus. With his departure, each of the three Gauls was made an independent province, and two new administrative districts called Upper and Lower Germany, under legates of consular rank, were created on the left bank of the Rhine. Freed from the danger of Roman interference, the Germanic tribes led by Arminius now engaged in a bitter struggle with Marbod, king of the Marcomanni, which ultimately led to the overthrow of the latter's kingdom. Not long afterwards Arminius himself fell a victim to the jealousy of his fellow tribesmen (19 A. D.).

Eastern mission and death of Germanicus, 17–19 A. D. After his return from Gaul, Germanicus was sent by Tiberius to settle affairs in the East, where the Armenian question had again become acute. While he was in Syria, a bitter quarrel developed between himself and Piso, the legate of the province. Accordingly, when Germanicus fell ill and died there, many accused Piso of having poisoned him. Although the accusation was false Piso was called to Rome to stand his trial on that charge, and, finding that the popularity of Germanicus had biased popular opinion against him, and that Tiberius refused him his protection because of his attempt to assert his rights by armed force, he committed suicide. Agrippina, the ambitious wife of Germanicus, believed that Tiberius from motives of jealousy had been responsible for her husband's death. She openly displayed her hostility to the princeps, and by plotting to secure the succession for her own children, helped to bring about their ruin and her own.

The withdrawal of Tiberius from Rome, 26 A. D. The decision of Tiberius to leave Rome in 26 A. D. and take up his residence on the island of Capri had important consequences. One was that the office of city prefect, who was the representative of the princeps, became permanent. It was filled by a senator of consular rank who commanded the urban cohorts and had wide judicial functions.

The plot of Seianus. In the second place the absence of Tiberius gave his able and ambitious praetorian prefect Aelius Seianus encouragement and opportunity to perfect the plot he had formed to seize the principate for himself. He it was who concentrated the praetorian guard, now 10,000 strong, in their camp on the edge of the city, and paved the way for their baneful influence upon the future history of the principate. Having caused the death of Drusus, the son of Tiberius, by poison, in 23 A. D., he intrigued to remove from his path the sons of Germanicus, Drusus and Nero. They and their mother Agrippina were condemned to imprisonment or exile on charges of treason. In 31 A. D. Seianus attained the consulate and received proconsular _imperium_ in the provinces. He allied himself with the Julian house by his betrothal to Julia, the grand-daughter of Tiberius. But in the same year the princeps became aware of his plans. Tiberius acted with energy. Seianus and many of his supporters were arrested and executed.

The last years of Tiberius. The discovery of Seianus' treachery seems to have affected the reason of the aging princeps. His fear of treachery became an obsession. The law of treason (_lex de maiestate_) was rigorously enforced and many persons

were condemned to death, among them Agrippina and her sons. The senators lived in terror of being accused by informers (_delatores_), and in their anxiety to conciliate the princeps they were only too ready to condemn any of their own number.

The memory of his later years caused Tiberius to pass down in the traditions of the senatorial order, represented by Tacitus and Suetonius, as a ruthless tyrant, and to obscure his real services as a conscientious and economical administrator. His parsimony in expenditures of the public money won him unpopularity with the city mob, but was a blessing to the provincials to whose welfare Tiberius directed particular attention, while he vigorously protected them against the oppression of imperial officials. During his rule the peace of the empire was disturbed only by a brief rising in Gaul (21 A. D.) and a rather prolonged struggle with Tacfarinas, a rebellious Berber chieftain, in Numidia (17–24 A. D.).

II. CAIUS CALIGULA, 37–41 A. D.

Accession. Tiberius left as his heirs his adoptive grandson Caius, the sole surviving son of Germanicus, better known by his childhood name of Caligula, acquired in the camps on the Rhine, and his grandson by birth, Tiberius Gemellus. Upon Caius, the elder of the two, then twenty-five years of age, the Senate immediately conferred the powers of the principate. The resentment of the senators towards his predecessor found vent in refusing him the posthumous honor of deification. Caius adopted his cousin, but within a year had him put to death.

Early months of his rule. The early months of his rule seemed the dawn of a new era. The pardoning of political offenders, the banishment of informers, the reduction of taxes, coupled with lavishness in public entertainments and donations, all made Gaius popular with the Senate, the army and the city plebs. However, he was a weakling in body and in mind, and a serious illness, brought on by his excesses, seems to have left him mentally deranged.

Absolutism his ideal. Reared in the house of Antonia, daughter of Antony and Octavia, in company with eastern princes of the stamp of Herod Agrippa, he naturally came to look upon the principate as an autocracy of the Hellenistic type. In his attempt to carry this conception into effect, the vein of madness in his character led him to ridiculous extremes. Not content with claiming deification for himself and his sisters, he built a lofty bridge connecting the Palatine Hill with the Capitoline, so that he might communicate with Jupiter, his brother god. He prescribed the sacrifices to be offered to himself, and was accused of seeking to imitate the Ptolemaic custom of sister marriage. Thoroughly consistent with absolutism was his scorn of republican magistracies and disregard of the rights of the Senate; likewise his attempt to have himself saluted as _dominus_ or “lord.”

The conflict with the Jews. His demand for the acknowledgment of his deification by all inhabitants of the empire brought Caius into conflict with the Jews, who had been exempted from this formal expression of loyalty. In Alexandria there was a large Jewish colony, which enjoyed exceptional privileges and was consequently hated by the other Alexandrians. Their refusal to worship the images of Caius furnished the mob with a pretext for sacking the Jewish quarters and forcibly installing statues of

the princeps in some of their synagogues. The Jews sent a delegation to plead their case before Caius but could obtain no redress. In the meantime Caius had ordered Petronius, the legate of Syria, to set up his statue in the temple at Jerusalem, by force, if need be. However, the prudent Petronius, seeing that this would bring about a national revolt among the Jews delayed obeying the order, and the death of Caius relieved him of the necessity of executing it at all.

Tyranny. In less than a year the reckless extravagance of Caius had exhausted the immense surplus Tiberius had left in the treasury. To secure new funds he resorted to openly tyrannical measures, extraordinary taxes, judicial murders, confiscations, and forced legacies. By these means money was extorted not only from Romans of all classes but provincials also. Ptolemy, king of Mauretania, was executed for the sake of his treasure and his kingdom made a province.

Assassination. Caius contemplated invasions of Germany and of Britain, but the former ended with a military parade across the Rhine and the latter with a march to the shores of the Straits of Dover. The fear awakened by his rule of capricious violence soon resulted in conspiracies against his life. In January, 41 A. D., he was assassinated by a tribune of the imperial guards.

III. CLAUDIUS, 41–54 A. D.

Nominated by the Praetorians. In the choice of a successor to Caius the power of the praetorian guard was first clearly demonstrated. Caius was the last male representative of the Julian _gens_, and at his death the Senate debated the question of restoring the republic. However, the decision was made for them by the praetorians, who dragged from his hiding place and saluted as Imperator the surviving brother of Germanicus, Tiberius Claudius Germanicus. The Senate had to acquiesce in his nomination and grant him the powers of the princeps.

Character. Claudius was already fifty-one years old, but because of his ungainly figure and limited mentality had never been seriously considered for the principate. He was learned and pedantic, but lacking in energy and resolution. His greatest weakness was that he was completely under the influence of his wives, of whom he had in succession four, and his favorite freedmen.

Policy. In general the policy of Claudius followed that of Augustus and Tiberius. But in 47 A. D. he assumed the censorship for five years, an office which Augustus had avoided because it set its holder directly above the Senate.

In the capacity of censor, Claudius extended to the Gallic Aedui the _jus honorum_ and consequently the right of admission to the Senate. This was in accord with his policy of generously granting citizenship to the provincials. The census taken in 47 and 48 A. D. showed approximately six million Romans, nearly a million more than in the time of Augustus. Claudius also renewed the attempt of Julius Caesar to occupy the island of Britain. In 43 A. D. his legates Aulus Plautius, Vespasian and Ostorius Scapula subdued the island as far as the Thames, and in the following years extended their conquests farther northward. The southern part of the island became the province of Britain. In 46 A. D., Thrace was incorporated as a province at the death of its client prince.

Influence of freedmen. During the rule of Claudius the real heads of the administration were a group of able freedmen, Narcissus, Pallas, Polybius and, later, Callistus. While it is true that they abused their power to amass riches for themselves, they contributed a great deal to the organization of the imperial bureaucracy. Their influence caused the widespread employment of imperial freedmen in procuratorial positions.

Agrippina the younger. In 49 A. D. the plot of Messalina, the third wife of Claudius, and her lover Gaius Silius, to depose the princeps in favor of Silius, endangered the power of the trio Pallas, Narcissus and Callistus. It was Narcissus who revealed the conspiracy to Claudius, secured his order for the execution of Messalina, and saw that it was carried into effect. But it was Pallas who induced the princeps to take as his fourth wife his own niece Agrippina, whose ambitions were to prove his ruin.

Death of Claudius. By Messalina Claudius had a son Britannicus and a daughter Octavia, but Agrippina determined to secure the succession for Domitius, her son by her previous husband Lucius Domitius Ahenobarbus. In 50 A. D., Domitius was adopted by Claudius as Nero Claudius Caesar. The following year he received the _imperium_, and was thus openly designated as the future princeps. In 53 A. D. Nero was married to Octavia and a year later Claudius died, poisoned, as all believed, by Agrippina, who feared that further delay would endanger her plans.

IV. NERO, 54–68 A. D.

The quinquennium Neronis. Agrippina had previously made sure of the support of the praetorians, and so the appointment of Nero to the principate transpired without opposition. The first five years of his rule were noted as a period of excellent administration. During that time his counsels were guided by the praetorian prefect, Afranius Burrus from Narbonese Gaul, and by Lucius Annaeus Seneca, the famous writer and orator from Spain, whom Agrippina had appointed as his tutor in 49 A. D.

Fall of Agrippina. This epoch is also characterized by the attempt of Agrippina to act as regent for her son and retain the influence she had acquired during the later years of the life of Claudius. But in this she was opposed both by Nero himself and his able advisors. In 55 A. D. Nero caused his adoptive brother Britannicus to be poisoned, through fear that he might prove a rival. Finally, under the influence of his mistress, Poppaea Sabina, the wife of Titus Salvius Otho, he had Agrippina murdered (59 A. D.). Thereupon he divorced Octavia, who was later banished and put to death, and married Poppaea.

The government of Nero. Freed from the fear of any rival influence, Nero, now twenty-two years of age, took the reins of government into his own hands. After the death of Burrus in 62, Seneca lost his influence over the princeps, who took as his chief advisor the worthless praetorian prefect, Tigellinus. The Senate, whose support he had courted in his opposition to Agrippina, now found itself without any influence; and, since his wanton extravagances emptied the treasury, Nero was forced to resort to oppressive measures to satisfy his needs. The sole object of his policy was the gratification of his capricious whims. In the conviction that he was an artist of

extraordinary genius, he hungered for the applause of the successful performer, and in 65 A. D. publicly appeared in the theatre as a singer and musician. Nothing could have more deeply alienated the respect of the upper classes of Roman society. Eager to duplicate his theatrical successes in the home of the Muses, in 66 A. D. Nero visited Greece and exhibited his talent at the Olympian and Delphic games.

The fire in Rome and the first persecution of the Christians, 64 A. D. In 64 A. D. a tremendous fire, which lasted for six continuous days and broke out a second time, devastated the greater part of the city of Rome. Subsequently, Nero was accused of having caused the fire, but there is absolutely no proof of his guilt. However, he did seize the opportunity to rebuild the damaged quarter on a new plan which did away with the offensive slum districts, and to erect his famous “Golden House,” a magnificent palace and park on the Esquiline. Popular opinion demanded some scapegoat for the disaster, and Nero laid the blame upon the Christians in Rome, possibly at the instigation of the Jews whose community was divided by the spread of Christian doctrines. Many Christians were condemned as incendiaries, and suffered painful and ignominious deaths. This was the first persecution of the Christians.

The Armenian problem, 51–67 A. D. In 51 A. D. an able and ambitious ruler, Vologases, came to the Parthian throne. He soon found a chance to set his brother Tiridates on the throne of Armenia and was able to maintain him there until the death of Claudius. However, at the accession of Nero, Caius Domitius Corbulo was sent to Cappadocia to reassert the Roman suzerainty over Armenia. At first Vologases abandoned Armenia, owing to a revolt in Parthia, but in 58 A. D. Tiridates reappeared on the scene and war broke out. In two campaigns Corbulo was able to occupy the country and set up a Roman nominee as the Armenian king (60 A. D.). It was not long before the latter was driven out by Vologases, who succeeded in surrounding a Roman force under Caesennius Paetus, the new commander in Cappadocia, and forcing him to purchase his safety by concluding an agreement favorable to the Parthian (62 A. D.). The situation was saved by Corbulo, then legate of Syria, who was finally entrusted with the sole command of operations and forced Vologases to meet the Roman terms (63 A. D.). Tiridates retained the Armenian throne, but acknowledged the Roman overlordship by coming to Rome to receive his crown from Nero’s hands.

The revolt in Britain, 60 A. D. Under Claudius the Romans had extended their dominion in Britain as far north as the Humber, and westwards to Cornwall and Wales. In 59 A. D. Suetonius Paulinus occupied the island of Mona (Anglesea), the chief seat of the religion of the Druids. While he was engaged in this undertaking a serious revolt broke out among the Iceni and Trinovantes, who lived between the Wash and the Thames. It was caused by the severity of the Roman administration and in particular the ill-treatment of Boudicca, the queen of the Iceni, who headed the insurrection, by Roman procurators. The Roman towns of Camulodunum (Colchester), Verulamium (St. Alban’s), and Londinium (London) were destroyed, and 70,000 Romans were said to have been massacred. A Roman legion was defeated in battle and it was not until Paulinus returned and united the scattered Roman forces that the insurgents were checked. The Britons were decisively defeated and Boudicca

committed suicide.

The conspiracy of Piso, 65 A. D. About 62 A. D. there began a long series of treason trials in Rome occasioned partly by the desire to confiscate the property of the accused and partly by the suspicion which is the inevitable concomitant of tyranny. The resulting insecurity of the senatorial order naturally produced a real attempt to overthrow the princeps. A wide-reaching conspiracy, in which one of the praetorian prefects was involved and which was headed by the senator Gaius Calpurnius Piso, was discovered in 65 A. D. Among those who were executed for complicity therein were the poet Lucan and his uncle Seneca. Other notable victims of Nero's vengeance were Thrasea Paetus and Borea Sonarus, the Stoic senators, whose guilt was their silent but unmistakable disapproval of his tyrannical acts. No man of prominence was safe; even the famous general Corbulo was forced to commit suicide in 67 A. D.

The rebellion of Vindex, 68 A. D. Upon Nero's return from Greece, a more serious movement began in Gaul where Caius Julius Vindex, the legate of the province of Lugdunensis, raised the standard of revolt and was supported by the provincials who were suffering under the pressure of taxation. Vindex was joined by Sulpicius Galba, governor of Hither Spain, and other legates. The commander of Upper Germany, Verginius Rufus, who remained true to Nero, defeated Vindex, but, the revolt spread to the troops of Verginius himself and these hailed their commander as imperator. He, however, refused the honor and gave the Senate the opportunity to name the princeps. Nero's fate was sealed by his own cowardice and the treachery of the prefect Sabinus, who bought the support of the praetorian guards for Galba. The Senate followed their lead, and Nero, who had fled from Rome, had himself killed by a faithful freedman. With him ends the Julio-Claudian dynasty.

V. THE FIRST WAR OF THE LEGIONS OR THE YEAR OF THE FOUR EMPERORS, 68–69 A. D.

The power of the army. The year 68–69 witnessed the accession of four emperors, each the nominee of the soldiery. And, while up to this time the praetorians had exercised the right of acclamation in the name of the army as a whole, now the legions stationed on the various frontiers asserted for themselves the same privilege. As Tacitus expresses it, the fatal secret of the empire was discovered, namely, that the princeps could be nominated elsewhere than in Rome. Although the principate may be said to have been founded by the universal consent of the Roman world, nevertheless, from its inception the power of the princeps had rested directly upon his military command, and the civil war of 68–69 showed how completely the professional army was master of the situation.

Galba, 68 A. D. Galba, who succeeded Nero, was a man of good family but moderate attainments and soon showed himself unable to maintain his authority. That he would have been held "fit to rule, had he not ruled," is the judgment of Tacitus. He had never been enthusiastically supported by the Rhine legions nor the praetorians, and his severity in maintaining discipline, added to his failure to pay the promised donative, completely alienated the loyalty of the guards. At the news that

the troops in Upper and Lower Germany had declared for Aulus Vitellius, legate of the latter province (1 Jan., 69), Galba sought to strengthen his position by adopting as his son and destined successor, Lucius Calpurnius Piso, a young man of high birth but no experience. By this step he offended Marcus Salvius Otho, the onetime husband of Nero's wife Poppaea Sabina, who had been one of Galba's staunch adherents and hoped to succeed him. Otho now won over the disgruntled praetorian guards who slew Galba and Piso, and proclaimed Otho Imperator.

Otho, Jan.–April, 69. The Senate acquiesced in their decision but not so the legions of Vitellius which were already on the march to Italy. They crossed the Alps without opposition but were checked by the forces of Otho at Bedriacum, north of the Po. Without waiting for the arrival of reinforcements from the Danubian army, Otho ordered an attack upon the Vitellians at Cremona. His army was defeated and he took his own life.

Vitellius, April–December, 69 A. D. Thereupon Vitellius was recognized as princeps by the Senate and his forces occupied Rome. Vitellius owed his nomination to the energy of the legates Valens and Caecina, and, although well-meaning and by no means tyrannical, showed himself lacking in energy and force of character. He was unable to control the license of his soldiery who plundered the Italian towns or his officers who enriched themselves at the public expense, while he devoted himself to the pleasures of the table.

Meanwhile the army of the East, which had recognized Galba, Otho and, at first, Vitellius also, set up its own Imperator, Titus Flavius Vespasianus, who as legate of Judaea was conducting a war against the Jews. Vespasian himself proceeded to occupy Egypt and thus cut off the grain supply of Rome while his ablest lieutenant, Mucianus, set out for Italy. The Danubian legions, who had supported Otho, now declared themselves for Vespasian and, led by Antonius Primus, marched at once upon Italy. The fleet at Ravenna espoused Vespasian's cause, and Caecina, who led the Vitellians against Primus, contemplated treachery. His troops, however, were loyal, but were defeated in a bloody night battle at Cremona and the way lay open to Rome. Vitellius then opened negotiations and offered to abdicate, but his soldiers would not let him and suppressed a rising in Rome led by the brother of Vespasian. Thereupon the city was stormed and sacked by the army of Primus. Vitellius himself was slain.

Vespasian, December, 69 A. D. Vespasian obtained his recognition as princeps from the Senate and the troops in the West. He entered Rome early in 70 A. D.

VI. VESPASIAN AND TITUS, 69–81 A. D.

Caesar an imperial title. Following the example of Galba, Vespasian on his accession took the name of Caesar, which became from this time a prerogative of the family of the princeps. The new princeps inherited from his predecessors two serious wars, both national revolts against Roman rule, the one in Gaul and Lower Germany, the other in Judaea.

The revolt of the Batavi, 69 A. D. The movement in Lower Germany was headed by Julius Civilis, a Batavian chieftain, formerly an officer in the Roman service, who

won over the eight Batavian cohorts attached to the Rhine army. At first he posed as a supporter of Vespasian against Vitellius, but at the news of the former's victory he renounced his allegiance to Rome and called to his aid Germanic tribes from across the Rhine. At the same time the Gallic Treveri and Lingones, the former led by Julius Classicus and Julius Tutor, the latter by Julius Sabinus, rose in rebellion and sought to establish an empire of the Gauls with its capital at Trèves (Augusta Treverorum). They were joined by the Roman legions stationed on the Rhine. However, the remaining peoples of Gaul refused to join the revolt, preferring the Roman peace to a renewal of the old intertribal struggles.

Upon the arrival of an adequate Roman force despatched by Vespasian the mutinous legions returned to their duty, the Treveri and Lingones were subdued, and Civilis forced to flee into Germany. The Batavi returned to their former status of Roman allies under the obligation of furnishing troops to the Roman armies (70 A. D.). But Rome had seen the danger of stationing national corps under their native officers in their home countries. Henceforth the auxiliaries were no longer organized on a national basis and served in provinces other than those in which they were recruited.

The Jewish War, 66–70 A. D. From the year 6 A. D. Judaea had formed a Roman procuratorial province except for its brief incorporation in the principality of Agrippa I (41–44 A. D.). During this time the Jews had occupied a privileged position among the Roman subjects, being exempted from military service and the obligation of the imperial cult, notwithstanding the design of Caligula to set up his image in the temple at Jerusalem. These privileges were the source of constant friction between the Jews and the Greco-Syrian inhabitants of the cities of Palestine, which frequently necessitated the interference of Roman officials. Another cause of unrest was the pressure of the Roman taxation, which rendered agriculture unprofitable and drove many persons from the plains to the mountains to find a livelihood through brigandage. But a more deeply-seated cause of animosity to Roman rule lay in the fact that the Jewish people were a religious community and that for them national loyalty was identical with religious fanaticism. The chief Jewish sects were those of the Sadducees and the Pharisees, of whom the former composed the aristocracy and the latter the democracy. The Sadducees were supported by the Romans and monopolized the offices of the religious community, whereas the Pharisees courted the support of the masses by a policy of hostility to Rome and religious intolerance. It is improbable that the Pharisees actually sought to bring about a revolt but they kindled a fire which they could not control and strengthened the development of a party of direct action, the Zealots, who aimed to liberate Judaea from the Roman force, trusting in the support of Jehovah. By 66 A. D. all Judaea was in a ferment and it required but little incitement to produce a national revolt.

Massacres in Caesarea and Jerusalem, 66 A. D. Such a provocation was afforded by the decision of the Roman government that Jews were not entitled to citizenship in Caesarea, the Roman capital of Judaea, and by a massacre of the Jews by the Greeks in a riot which followed. However, at the same time in Jerusalem the Zealots had overpowered the Roman garrison of one cohort, and massacred both the Romans and

their Jewish supporters. At the news, further massacres took place in the towns of Syria and Egypt, the Jews suffering wherever they were in a minority but avenging their countrymen where they got the upper hand. The Romans awoke to the seriousness of the situation when the legate of Syria, Cestius Gallus, who had marched on Jerusalem, was forced to beat an ignominious retreat.

Vespasian in command, 67 A. D. In 67 A. D. Vespasian was appointed to the command of an army of 50,000 assembled for the reconquest of Judaea. In this and the following year he reduced the open country and isolated fortresses, and was ready to begin the blockade of Jerusalem, where the majority of the Jews had fled for refuge. However, Vespasian's elevation to the principate caused a suspension of hostilities for ten months, during which factional strife raged fiercely within the city.

Siege of Jerusalem, 70 A. D. The conclusion of the war Vespasian entrusted to his eldest son Titus, who at once began the siege of Jerusalem (70 A. D.). The city had a double line of fortifications, and within the inner wall were two natural citadels, the temple and the old city of Mount Zion. The population, augmented by great numbers of refugees, suffered terribly from hunger but resisted with the fury of despair. The outer and inner walls were stormed, and then the Romans forced their way into the temple which was destroyed by fire. Mount Zion defied assault but was starved into submission. Jerusalem was destroyed, and Judaea became a province under an imperial legate. The political community of the Jews was dissolved and they were subjugated to a yearly head-tax of two denarii (40 cents) each, payable to the temple of Jupiter Capitolinus, in consideration of which they enjoyed their previous immunities. The victory of Titus was commemorated by the arch which still stands near the Roman forum.

The frontiers. The disorders of the recent wars rendered it necessary for Vespasian to reorganize many branches of the administration, a task which won for him the name of the second founder of the principate. The security of the frontiers received his particular attention. In Germany he annexed the territory between the Rhine above its junction with the Main and the upper Danube, henceforth known as the Agri Decumates from the tithe (_decuma_) paid as rental by colonists who settled there. Further east on the Danube two strong legionary camps were constructed at Carnuntum and Vindobona (Vienna). The Euphrates frontier was strengthened by the establishment of Roman garrisons at Melitene and Satala on the Upper Euphrates, and by annexing to the Syrian province the kingdom of Commagene, which Gaius had restored to its native dynasty. Other client principalities met a like fate. Among the soldiery discipline was restored by disbanding four of the mutinous Rhine legions and replacing them with new units. The praetorian guard, dissolved by Vitellius, was reconstituted out of Italian cohorts following the precedent set by Augustus.

The finances. The most serious problem was that of the finances, for the extravagance of the preceding emperors had left the government in a state of bankruptcy and the provinces financially exhausted. Vespasian estimated that the sum of $2,000,000,000 was required to make the necessary outlays. To obtain this amount it was necessary to impose new taxes and avoid all needless expenditures. Yet he not only succeeded in making the state solvent but was able to carry out

extensive building operations in Italy and in the provinces. In Rome the Capitoline Temple which had been burned in the fighting with the Vitellians was rebuilt, a temple of Peace was erected on the forum, and the huge Colosseum arose on the site of one of the lakes of Nero’s Golden House. Vespasian also granted state support to the teachers of Greek and Roman oratory in Rome.

In 74 A. D. Vespasian assumed the censorship and took a census of the empire in addition to filling the ranks of the Senate which had been depleted by the late civil wars. He was generous in his grants of citizenship to provincials, and bestowed the Latin right on all the non-Roman communities of Spain, as a preliminary step to their complete romanization.

Vespasian and the senate. Vespasian was the first princeps who was not of the Roman nobility. He was a native of the Italian municipality of Reate and his family was only of equestrian rank. He was furthermore an eminently practical man who made no attempt to disguise the fact that he was the real master in the state. Significant in this respect was his revival of the _praenomen_ imperator, which had been neglected by the successors of Augustus. He treated the Senate with respect, and recognized its judicial authority, but excluded it from all effective share in the government. A senatorial decree and a law of the _comitia_ conferred upon Vespasian the powers of the principate, yet he dated the beginning of his reign from the day of his salutation as Imperator by his army. All these things, combined with his refusal to punish the informers of Nero’s reign, earned him the ill-will of the senators. Some of them proceeded to open criticism of the princeps and a futile advocacy of republicanism in the form of a cult of Brutus and Cato the Younger. The leader of this group was Helvidius Priscus, son-in-law of Paetus Thrasea, whom Nero had put to death, and like him a Stoic. Although not very dangerous, such opposition could not be ignored and Priscus was banished. He was later executed, probably for conspiracy. In all probability it was the antimonarchical tendency of contemporary Stoic teachings that induced Vespasian to banish philosophers from Rome.

The praetorian prefecture. To forestall any disloyalty in the praetorian guard, Vespasian made his son Titus praetorian prefect. Titus also received the _imperium_ and _tribunicia potestas_, and when Vespasian died in 79 A. D. succeeded to the principate.

Titus, 79–81 A. D. His rule lasted little over two years, and is chiefly remarkable for two great disasters. In 79 A. D. an eruption of the volcano of Vesuvius buried the cities of Pompeii, Herculaneum, and Stabii in Campania. Beneath the heavy deposit of volcanic ashes the buildings of these towns have been preserved from disintegration, and the excavation of the site of Pompeii has revealed with wonderful freshness the life of an Italian municipality under the principate. The following year Rome was devastated by a fire which raged for three days and destroyed Vespasian’s new temple of Capitoline Jupiter. In September, 81 A. D., Titus died, deeply mourned by the whole Roman world.

VII. DOMITIAN, 81–96 A. D.

Character and policy. Titus was followed by his younger brother Domitian, whom, on account of his ambition, neither Vespasian nor Titus had permitted to share in the government. Domitian was a thorough autocrat and his administration was characterized by great vigor and capacity. Far from being a mere tyrant, he paid great attention to the welfare of the provinces and exercised a strict supervision over his officers. He also displayed a real interest in literature and replaced the libraries destroyed in the fire of 80 A. D.

His autocratic policy is clearly seen in his assumption of the censorship as perpetual censor in 84 A. D., whereby he acquired complete control over the composition of the Senate, a power which, without the title, was henceforth one of the prerogatives of the princeps. Even more emphatically does his absolutism come to light in the title _dominus__ et deus_ (Lord and God), which he required from the officers of his household, and by which he was generally designated, although he did not employ it himself in official documents. For the cult of the deified emperors Domitian erected a special temple in Rome, and he also established a priestly college of Flaviales, modelled on the Augustales of Rome, to perpetuate the worship of his deified father and brother.

Frontier policy: Britain. The desire for military successes as a support for his absolutism led Domitian to adopt an aggressive frontier policy. In Britain, Julius Agricola, legate from 77 to 84 A. D., led the Roman legions north of the Clyde and Firth of Forth and defeated the united Caledonians under their chief Galgacus (84 A. D.). He also sent his fleet around the north of Scotland and proved that Great Britain was an island. But his projects, which included an invasion of Ireland, seemed too costly to Domitian who recalled him, possibly in view of the military situation on the continent. The conquest of Scotland was not completed and the Roman authority was confined to the territory south of the Tyne.

Germany. In 83 A. D. Domitian led an army across the Rhine from Mainz and annexed the district of Wetterau, where the lowlands were already in Roman hands although the hills were still occupied by the hostile Chatti. A chain of forts was built to protect the conquered region. In the winter of 88–89 A. D. the legate of Upper Germany, Antonius Saturninus, was hailed as Imperator by the two legions stationed at Mainz. Aid was expected by the mutineers from the German tribes, but this failed to materialize and the movement was suppressed by loyal troops, possibly from the lower province. In consequence of this mutiny Domitian adopted the policy of not quartering more than one legion in any permanent camp. At the same time he separated the financial administration of the German provinces from that of Gallia Belgica.

The lower Danube. More powerful neighbors faced the Romans along the middle and lower Danube, and in dealing with these the policy of Domitian was less successful. These people were the Germanic tribes of the Marcomanni and Quadi in Bohemia, the Sarmatian Iazyges between the Danube and the Theiss, and the Dacians, who occupied the greater portion of modern Hungary and Roumania. The most powerful of all were the Dacians, among whom a king named Decebalus had built up a strong state. In 85 A. D. they crossed the Danube into Moesia, where they

defeated and killed the Roman governor. Thereupon Domitian himself took command and drove the Dacians back across the river. But the pretorian prefect Cornelius Fuscus in attempting to invade Dacia suffered a disastrous defeat in which he and most of his army perished. His successor Tettius Julianus was more successful. However, a complete victory was prevented by Domitian, who rashly invaded the territory of the Marcomanni and Iazyges, and was defeated by them. He thereupon made peace with Decebalus, who gave up his prisoners of war and acknowledged the formal overlordship of Rome, but received an annual subsidy from Domitian in addition to the services of Roman military engineers (89 A. D.). Although Domitian celebrated a triumph for his exploits, his victory was by no means certain and his settlement was only temporary. In the course of the Dacian war Moesia was divided into two provinces.

Conflict with the Senate. Feeling that the army was the surest support of his power, Domitian sought to secure its fidelity by increasing the pay of the soldiers by one third. This new expense, added to the outlays necessitated by his wars, the construction of public works, like the restoration of the Capitoline Temple, and the celebration of public festivals, forced him to augment the taxes and this produced discontent in the provinces. In Rome, particularly after the revolt of Saturninus, his relations with the Senate became more and more strained. Many prominent senators were executed on charges of treason; the teachers of philosophy were again banished from Italy; and notable converts to Judaism or Christianity were prosecuted, the latter on the ground of atheism. The general feeling of insecurity produced the inevitable result; a plot in which the praetorian prefects and his wife Domitia were concerned was formed against his life; he was assassinated, 18 September, 96 A. D. His memory was cursed by the Senate and his name erased from public monuments. It was the oppression of the last years of Domitian’s rule that so strongly biased the attitude of Tacitus towards the principate and its founder.

CHAPTER XVIII

FROM NERVA TO DIOCLETIAN: 96–285 A. D.

I. NERVA AND TRAJAN, 96–117 A. D.

Nerva and the Senate. Before assassinating Domitian, the conspirators had secured a successor who would be supported by the Senate and not prove inacceptable to the pretorians. Their choice was the elderly senator Marcus Cocceius Nerva, one of a family distinguished for its juristic attainments. He took an oath never to put a senator to death, recalled the philosophers and political exiles, and permitted the prosecution of informers. But he was lacking in force and did not feel his position sufficiently secure to refuse the demands of the praetorian guard for vengeance upon the murderers of Domitian. Therefore to strengthen his authority he adopted a tried soldier, Marcus Ulpius Traianus, the legate of Upper Germany. Trajan received the tribunician authority and proconsular _imperium_ (97 A. D.).

The alimenta. Nerva’s administration benefitted Italy in particular. Not only were the taxes and other obligations of the Italians lessened, but the so-called alimentary

system was devised in the interests of poor farmers and the children of poor parents. Under this system of state charity, sums of money were lent to poor landholders at low rates of interest on the security of their land. The interest from these loans was paid over to their respective municipalities and expended by them in supporting the pauper children. The scheme was perfected and extended by the succeeding princes.

An era of internal peace. With Nerva begins a period in the history of the principate that is characterized by amicable relations between the princeps and the Senate. The basis of this concord was the agreement by the successive emperors to acknowledge the freedom of senators from the imperial jurisdiction. There was no longer any question of an active participation by the Senate as a whole in the administration, nevertheless it continued to exercise its influence through the official posts reserved for senators. In addition to the establishment of these harmonious relations, the peaceful succession of a number of able rulers who were designated by adoption and association in the powers of the principate has caused this epoch to be regarded as one of the happiest periods of Roman history.

Nerva died in January, 98 A. D., after a rule of less than two years, and was succeeded by Trajan, who assumed office at Cologne.

Trajan’s character and policy. Trajan was a native of the Roman colony of Italica in Spain, and the first provincial to attain the principate. His accession is evidence not only for the degree of romanization in the Spanish provinces but also for the decline of the dominance of the strictly Italian element within the empire and the transformation of the Italian into an imperial nobility of wealth and office. The new princeps was above all things a soldier, and the desire for military glory was his chief weakness. At the same time he was an energetic and conscientious administrator, and showed a personal interest in the welfare of Italy and the provinces, as we see from his correspondence with the younger Pliny, governor of Bithynia in 111–113 A. D. He respected the rights of the Senate and repeated Nerva’s oath not to condemn one of that body to death.

*The **conquest** of Dacia, 101–106 A. D.* In the third year of his rule Trajan undertook the conquest of Dacia, for Domitian’s agreement with Decebalus was regarded as a disgrace and the existence of a strong Dacian kingdom was a perpetual menace to the Danubian frontier. Decebalus was still king of the Dacians and proved himself a valiant opponent, but in two well-conducted campaigns (101–102 A. D.) Trajan forced him to sue for peace. He was obliged to give up his engines of war with the Roman engineers whom he had received from Domitian, to acknowledge Roman overlordship and render military service to Rome. Trajan built a permanent stone bridge across the Danube below the Iron Gates to secure communication with the northern bank, and returned to Rome to celebrate his victory with a triumph. But Decebalus was not content to remain as a Roman vassal and made preparations to recover his people’s independence. In 105 A. D. he opened hostilities by an invasion of Moesia. However, Trajan hurried to the scene, secured the support of the neighboring tribes, and in the following year entered Dacia. His victory was complete, the capital of Decebalus was captured, the king took his own life, and such of the Dacians as did not abandon their country were hunted down and exterminated.

Dacia was made a Roman province, and was peopled with settlers from various parts of the empire, particularly from Asia Minor. The new province was of importance both on account of its gold mines and its position as a bulwark defending the provinces to the south of the Danube. To commemorate his Dacian wars, Trajan erected a stone column, one hundred feet high, in the new forum which bore his name. The column, which is still in place, is adorned with a spiral band of sculptured reliefs that vividly trace the course of the military operations.

On other frontiers also Trajan strengthened or extended the boundaries of the empire. In 106 he annexed the kingdom of the Nabataean Arabs to the east of Palestine and Syria. From this was formed the province of Arabia. In Africa also the Romans occupied new territory, and secured it against Berber raids by creating new fortresses at Lambaesis and Timgad.

The Parthian war, 114–116 A. D. The peaceful relations which had existed between Rome and Parthia since the time of Nero were broken in 114 A. D. when the Parthian king Chosroes drove out the Armenian ruler, who had received his crown from Trajan’s hands, and set his own son Parthamasiris in his stead. Trajan at once repaired to the East and concentrated an army for the invasion of Armenia. Parthamasiris offered to acknowledge the Roman suzerainty over Armenia, but Trajan determined to effect a definite settlement of the eastern frontier by the permanent occupation of Armenia and, for strategic reasons, of Mesopotamia also. In 114 he effected an easy conquest of Armenia, and in the next year annexed Upper Mesopotamia. He now resolved to complete his success by the overthrow of the Parthian kingdom. Accordingly, in 116 A. D., he overran Assyria and made it a province, and then pressed on to the Persian gulf, capturing Seleucia, Babylon and the Parthian capital Ctesiphon on his way. From dreams of further conquests Trajan was recalled by a serious revolt in Mesopotamia which was only subdued with great effort, and in 117 A. D. Chosroes was able to reoccupy his capital. At the same time the eastern provinces were disturbed by a rising of the Jews, which began in Cyrene in 115 A. D. and spread to Cyprus, Egypt and Mesopotamia. Horrible massacres were perpetrated both by the Jews and their enemies, and large numbers of troops had to be employed before order was restored.

News of revolts in Africa and Britain, and of troubles on the Danubian border, led Trajan to set out for Rome. On the way he fell ill and died at Selinus in Cilicia on 8 August, 117 A. D.

II. HADRIAN, 117–138 A. D.

Hadrian princeps. Trajan left no male heir and had associated no one with himself in the _imperium_ or tribunician power. However, on his deathbed he adopted his cousin and one-time ward, Publius Aelius Hadrianus, also a native of Italica. Hadrian was married to Sabina, a grand-daughter of Trajan’s sister Marciana. He had had a distinguished military career and in 117 A. D. was commander of the army in Syria. At the news of his adoption his troops saluted him as Imperator and his nomination was confirmed by the Senate. The only opposition came from some of the ablest of Trajan’s officers, notably Lusius Quietus, who soon plotted against his life.

But their conspiracy was detected and the Senate condemned to death the four leaders in the plot.

Hellenism. Hadrian was a man of restless energy and extraordinary versatility. He had a keen appreciation of all forms of art and literature, and a great admiration for Hellenism; an admiration which probably arose from a realization of the fact that the culture of the Roman empire was in its foundations Hellenic, but which caused him to be scornfully dubbed a “Greekling” by the Roman aristocracy.

General character of Hadrian’s government. In public life he displayed the greatest devotion to duty, in the belief that “the ruler exists for the state, not the state for the ruler,” and there was no branch of the public administration that was not affected by his zeal. Two extended tours, one in 121–126 and the other in 129–132 A. D., made him acquainted with conditions in the provinces and enabled him to take measures to promote their welfare. The Senate he treated with all outward marks of respect, taking the oath to respect the lives of its members, but at the same time he regarded it as a negligible factor in the government.

Military policy. Realizing that Trajan’s policy of imperial expansion had overtaxed the economic resources of the empire, he began his rule by abandoning the new provinces of Mesopotamia and Assyria, and reverting to the previous Roman policy in Armenia, where a Parthian prince acknowledged his overlordship. He devoted his energies to strengthening the system of frontier defences and raising the standards of discipline and efficiency among the soldiers. Aside from the suppression of the revolts which had broken out in the last years of Trajan’s rule, his most serious military undertaking was the quelling of a new rising of the Jews in Palestine, which followed the foundation of a Roman colony on the site of Jerusalem. Only after a two years’ struggle (132–134 A. D.) was the rebellion crushed.

Judicial and administrative reforms. To aid him in the administration of justice, Hadrian formed a permanent council of eminent jurists. He, too, was responsible for codifying and editing in a final form the praetor’s edict, upon which was based the procedure of the Roman civil law. This task was carried out by the jurist Salvius Julianus. With the object of relieving the city courts of an excessive burden of judicial business, Hadrian divided Italy into four districts, and appointed an official of consular rank to administer justice in each. This was a further step in removing Italy from the control of the Senate and approximating its status to that of a province. Hadrian’s administrative reforms were the result of the steady increase in the sphere of public business carried on by the officers of the princeps, and furthered the development of a centralized bureaucracy. By creating new offices—among them the post of advocate of the fiscus (_advocatus fisci_) as an alternative for the subaltern military offices—he greatly increased the importance of the equestrian career and the influence of the _equites_ in the government. In the three departments of the military, civil and judicial administration the principate of Hadrian marks a distinct epoch.

Building activity. Everywhere throughout the empire Hadrian built and repaired with the greatest zeal; but particularly in Rome and Athens. In Rome, among other structures, he built the great double temple of Venus and Roma and his own

mausoleum, the present Castel Sant' Angelo. At Athens he completed the great temple of Olympian Zeus, begun by Pisistratus in the sixth century B. C., and added a new quarter to the city.

The choice of a successor. In 136 A. D., Hadrian fell seriously ill and, having no children, adopted Lucius Ceionius Commodus under the name of Lucius Aelius Caesar, and clothed him with the tribunician authority. Hadrian himself withdrew from Rome to his splendid villa at Tibur. However, Aelius died at the beginning of 138 A. D., and thereupon the princeps adopted an elderly senator named Titus Aurelius Antoninus, who in turn adopted the son of the deceased Aelius and his own nephew, Marcus Annius Verus. Antoninus received the _imperium_ and tribunician power and became the partner of Hadrian in the principate. After a long and painful illness the latter died in July, 138 A. D. His later years were clouded by ill health which rendered him moody and suspicious, and probably led to the execution of his brother-in-law and the latter's grandson on a charge of conspiracy. He had never been popular with the Senate and this step widened the breach between them. Only the energetic action of his successor prevented the execration of his memory and secured his deification.

III. THE ANTONINES, 138–192 A. D.

Antoninus Pius, 138–161 A. D. Antoninus, who received the name of Pius in the first year of his rule, was the personification of ancient Roman piety, i. e. the dutiful performance of obligations in public and private life. His mildness and uprightness enabled him to act in perfect harmony with the senators, and as a concession to them he removed the four _consulares juridici_ whom Hadrian had appointed in Italy.

His public policy. Antoninus adhered to Hadrian's peaceful foreign policy, but had to wage several border wars and suppress some insurrections in the provinces. In Britain a line of fortifications was constructed from the Firth of Forth to the Clyde. Antoninus laid great emphasis upon an upright administration of justice. At this time, too, the Roman law was greatly enriched through the introduction of principles of equity and began to receive at the hands of the jurists the systematic form by which it was later characterized. In 147 A. D. he conferred the title of Caesar upon the elder of his adopted sons, Marcus Aurelius, whom he had previously married to his daughter, and took him as an associate in the government. Upon the death of Antoninus in March, 161 A. D., Aurelius succeeded to the principate.

The dual principate—Marcus Aurelius, 161–180 A. D., and Lucius Verus, 161–169. Marcus Aurelius at once took as associate in the principate his adoptive brother, Lucius Verus, and for the first time two Augusti shared the _imperium_. But the real power rested in the hands of Aurelius, for Verus was a weak character, indolent and sensual. Although he did not take the oath not to put a senator to death, and restored the _consulares iuridici_ removed by Antoninus, the elder Augustus respected the Senate and remained on good terms with it. Marcus Aurelius was by nature a student and philosopher, a devoted follower of the Stoic rule of life; his _Meditations_ bear testimony to the true nobility of his character. Such was the princeps who was fated to spend his remaining years in an unceasing struggle against the enemies of the state and, true to his principles, he obeyed the call of duty

and devoted himself unsparingly to the public service.

Parthian war: 161–65 A. D. Even before the death of Antoninus, Vologases III of Parthia had begun hostilities and had overrun Armenia. The Roman legate of Cappadocia was defeated and the Parthians broke into Syria, where they won another victory. The situation was critical. Aurelius sent his colleague Verus to the scene, and although the latter displayed neither energy nor capacity, his able generals restored the fortunes of the Roman arms. In 163 Statius Priscus reëstablished Roman authority over Armenia and placed a Roman vassal on the throne. In 164–65, Avidius Cassius invaded Mesopotamia and took the Parthian capitals Seleucia and Ctesiphon. Yet, on the march back, he suffered considerable losses from hunger and disease, and a peace was made with Parthia which gave the Romans territory in upper Mesopotamia to the east of the Euphrates (166 A. D.). But the returning troops brought with them a plague which ravaged the whole empire and caused widespread depopulation.

Wars with the Marcomanni, Quadi and Iazyges: 167–175 A. D. In the meantime a dangerous situation had arisen on the Danubian frontier, where, probably in consequence of the pressure of migratory peoples, the Marcomanni, Quadi and the Sarmatian Iazyges united in an attempt to force their way into the Roman provinces. The army of the Danube had been weakened to reinforce the Syrian troops in the Parthian war and this enabled the barbarians to penetrate the frontier defences and ravage Noricum and Pannonia as far as Aquileia at the head of the Adriatic. The two Augusti proceeded to the scene of war, and after a protracted struggle in which Dacia suffered from a hostile invasion, the enemy were forced to make peace. The Marcomanni submitted in 172, and the Quadi and Sarmatians in 175 A. D. They were forced to surrender the prisoners carried off from the Roman provinces, over 160,000 in number, and to furnish military aid to Rome, while large numbers of them were settled on waste lands south of the Danube under the obligation of tilling the soil and rendering military service. The Roman victory was commemorated by the erection of a column at Rome with sculptures picturing incidents of the war, in imitation of Trajan’s memorial. In addition to the prosecution of this war, the strength of the empire had been taxed by serious outbreaks in Mauretania, Gaul and Egypt.

Revolt of Avidius Cassius, 175 A. D. The complete subjugation of the northern foe was hindered by the revolt of Avidius Cassius, the general who had distinguished himself in the Parthian war and had suppressed the revolt in Egypt. Verus, the colleague of Aurelius, had died in 169, and at a rumor of the death of Aurelius himself in 175 A. D., Cassius proclaimed himself Imperator in Syria. Thereupon Aurelius hastened to conclude peace with the Sarmatians and proceeded to the East. Upon his arrival he found that Cassius had been killed by his own soldiers. Soon afterwards Commodus, the son of Aurelius, received the title Augustus and became co-ruler with his father (177 A. D.).

Second war with the Marcomanni and Quadi, 177–180 A. D. In 177 A. D. war broke out anew with the Quadi and Marcomanni. Aurelius again took command on the Danube and after two years’ fighting had won so complete a victory that he contemplated the annexation of the region occupied by these peoples. But for a

second time he was robbed of the fruits of his toil, on this occasion by the hand of death, 17 March, 180 A. D. The principate passed to his son and colleague, Commodus.

*Lucius Aurelius Commodus, **sole princeps**, 180–192 A. D.* Lucius Aurelius Commodus, the ignoble son of a noble father, is one of the few in the long line of Roman rulers of whom nothing good can be said. Cowardly, cruel and sensual, he gave himself up to a life of pleasure and left the conduct of the government in the hands of a succession of favorites, who used their power to further their own interests. He abandoned the war with the Marcomanni and Quadi without carrying out his father's plans and granted them peace on lenient terms so that he might return to the enjoyments of the capital. His chief ambition was to win fame as a gladiator. He frequently appeared in the arena, and finally determined to assume the consulate on 1 January, 193 A. D. in a gladiator's costume. However, on the preceding night he was assassinated at the instigation of the pretorian prefect, Quintus Aemilius Laetus.

IV. THE SECOND WAR OF THE LEGIONS, 193–197 A. D.

Pertinax: January–March, 193 A. D. The new princeps (Publius Helvius Pertinax, a senator of low birth but proved military capacity) was the nominee of Laetus. However, his strictness in enforcing discipline among the troops and his economies, necessitated by the exhausted condition of the public finances, soon alienated the goodwill of the praetorians and Laetus himself. After less than three months' rule he was killed in a mutiny of the pretorian guard (March, 193 A. D.).

Didius Julianus. Their choice for a successor was an old and wealthy senator, Didius Julianus, who purchased his nomination by the promise of a high donative. But his rule was destined to be short for, as in 68 A. D., the armies on the frontiers asserted their claim to appoint the princeps.

*The **rivals**: Severus, Niger and Albinus.* Almost simultaneously three commanders were saluted as Imperator by their soldiers. These were Pescennius Niger in Syria, Clodius Albinus in Britain, and Septimius Severus in Upper Pannonia. With their nominations a second war of the legions began. Severus had the advantage of position and immediately marched on Rome as the avenger of Pertinax. He also was able to arrange a truce with Albinus by promising to recognize him as his successor with the title of Caesar. The praetorians offered no resistance to the Danubian army; Julianus was deposed by the Senate and put to death (June, 193 A. D.); and the Senate ratified the nomination of Severus.

Defeat of Niger and Albinus. But the position of Severus was not yet secure, for Niger had been recognized in the eastern provinces and also had a strong following in Rome. He was preparing to march upon Italy and had already occupied Byzantium. Severus at once set out to anticipate his attack. After investing Byzantium he crossed over to Asia Minor and defeated the forces of his rival near Cyzicus and Nicaea, forcing them to withdraw south of the Taurus mountains. The Cilician Gates were forced and Niger decisively beaten in a battle at Issus (194 A. D.). He tried to escape into Parthia but was overtaken and killed. Severus advanced across the Euphrates to

punish the Parthian king for his support of Niger. He occupied northern Mesopotamia, and made Nisibis a Roman colony and frontier fortress (196 A. D.). In the same year Byzantium was taken, its fortifications destroyed, and its inhabitants deprived of the right of municipal organization. Severus had brought his Parthian campaign to a hasty conclusion, for in the West Clodius Albinus, feeling his position insecure, had assumed the title of Augustus and occupied Gaul. Severus now elevated his eldest son Bassianus, better known as Caracalla, to the position of Caesar with the additional title of _imperator designatus_, and set out to meet the usurper. In a great battle at Lugdunum, in which 150,000 men are said to have fought on either side, the army of Severus was victorious and Albinus fell by his own hand (197 A. D.). Many of his adherents, including numerous senators, were put to death.

V. THE DYNASTY OF THE SEVERI, 197–235 A. D.

The Parthian war of 197–199 A. D. Severus was now unchallenged ruler of the empire. Shortly after the defeat of Albinus, he returned to the East and resumed hostilities against the Parthians, whose king, Vologases IV, had taken advantage of his absence to invade Armenia and Mesopotamia and was besieging Nisibis. Severus relieved the beleaguered town and pressed on into the enemy’s territory, where he sacked the two Parthian capitals, Seleucia and Ctesiphon, in 198 A. D. By a peace arranged in the next year northern Mesopotamia was ceded to Rome and was organized as a province under a governor of equestrian rank.

*A **military monarchy**.* Septimius Severus was a native of Leptis in Africa. He came from an equestrian family and had begun his official career as an advocate of the _fiscus_. To secure the prestige of noble lineage he caused himself to be proclaimed as the adopted son of Marcus Aurelius, and took the latter’s family name of Antoninus for himself and his house. His rule was frankly autocratic in character and he made no attempt to disguise the fact that his authority rested upon the support of the soldiery. Light is thrown upon Severus’ policy in general by the significant fact that under him Rome, which he adorned with magnificent structures, received the title _sacra_ (sacred), a term regularly used to designate things under the control of the princeps. The activity of the Senate was limited to registering its approval of his measures, and equestrians were appointed to military posts hitherto filled only by senators. The special privileges which Italy and the Italians had continued to enjoy were equally disregarded. The title proconsul, which Trajan and his successors had used in the provinces, was now employed by Severus in Italy. In 193 he disbanded the old praetorian guard, which had been recruited from Italy and the more thoroughly latinized provinces, and organized a new corps of picked troops drawn from the legions in general, but especially those of the Danubian army. Severus enrolled three new legions for the Parthian war and placed them under the command of equestrian prefects instead of senatorial legates. Two of these legions were stationed in Mesopotamia, but the third was quartered at the Alban Mount in Latium. This step had the effect of reducing Italy to the status of a garrisoned province, but it was probably taken with the view of providing a larger reserve force to supplement the frontier garrisons. Severus also was the author of many reforms which improved the conditions or increased the rewards of military service. The pay

of the troops was raised, the legionaries were allowed to contract a legal marriage when in service, and the equestrian career was opened to veteran centurians. However, there seems to be no proof that Severus deliberately fostered the barbarization of the army by the exclusion of Italian centurians, or that he ruined the discipline of the soldiers by permitting the married legionaries to reside outside of barracks. To rescue the government from the state of insolvency into which it had been brought by his predecessors, Severus stood in need of a large sum of money. This he secured by confiscating the estates of the adherents of Niger and Albinus.

Of signal importance was the increase in the power of the praetorian prefecture at this time. This office was for a number of years held by a single prefect, Publius Fulvius Plautianus, whose daughter was married to the eldest son of Severus. However, his great power proved his undoing, and in 205 A. D. he was executed on a charge of treason made by his own son-in-law. At his death two prefects were again appointed, one of whom was Papinian, the greatest of all Roman jurists. His appointment seems to indicate a division between the military and the civil functions of the prefecture. For from this time the prefect exercised supreme jurisdiction over criminal cases in Italy beyond the hundredth milestone from the city, and in the matter of appeals from the judgments of provincial governors. In the absence of the princeps he also presided over the imperial judicial council. Following Papinian other eminent jurists filled this office. Furthermore, the supervision of the transportation of grain to Rome was transferred from the prefect of the grain supply to the praetorian prefect, and the former officer merely supervised its distribution within the city.

War in Britain, 208–211 A. D. Like Hadrian, Severus paid great attention to strengthening the frontier defences of the empire, particularly the fortifications which linked the Rhine and the Danube. In 208 A. D. when Britain was invaded by the Caledonians, he took the field, accompanied by his two sons. He reinforced Hadrian’s earthen wall between the Tyne and the Solway by a wall of stone, and carried on guerilla warfare against the tribes of the northern part of the island. However, they had not been completely pacified when he died at York in February, 211 A. D., leaving the principate to his sons, Caracalla and Geta, both of whom had previously received the title of Augustus.

Caracalla, 211–217 A. D. The bitter enmity which had long existed between the two brothers continued during a year of joint rule, and divided the empire into rival factions. Then Caracalla, who had previously sought to make himself sole ruler, succeeded in having Geta assassinated. Many of the latter’s friends, among them the prefect Papinian, were executed. Caracalla was cruel and vicious, and displayed no capacity for governing. He relied solely upon the goodwill of the soldiery and courted their support by increased pay and lavish donatives. In 212 A. D., by the famous Antonian Constitution (_constitutio Antoniniana_) he extended Roman citizenship to all the provincials of the empire, except those who were in a condition of vassalage, such as some of the barbarian peoples who had been settled on waste lands within the Roman borders, and not citizens of organized municipalities (_dediticii_). This act was the logical culmination of the policy of his predecessors who had granted citizenship to many provincial municipalities and had sanctioned its automatic

extension to soldiers of the legions and auxiliary corps. Perhaps Caracalla's chief motive was to supply a fresh source of income for the treasury, which was sadly depleted by his extravagances, for he greatly increased the number of those liable to the five per cent inheritance tax which fell only upon Roman citizens. A second motive may well have been the desire to secure a uniformity of legal status and of municipal organization throughout the empire.

Germanic and Parthian wars. In 213 A. D. an attack of a confederacy of German tribes, the Alamanni, upon the Raetian frontier was successfully repelled, and in the next year Caracalla set out for the East, where he planned to conduct a Parthian war in imitation of the conquests of his idol, Alexander the Great. In 215, the Parthian king, Vologases V, came to terms, but when he was dethroned by his brother, Artabanos V, who refused Caracalla's request for the hand of his daughter, Caracalla prepared to invade Parthian territory. But before he embarked on his venture he was assassinated by the order of the praetorian prefect Marcus Opellius Macrinus, April, 217 A. D.

Macrinus, 217–218 A. D. Macrinus was recognized without opposition as Caracalla's successor, and bestowed upon his young son Diadumenianus the title of Caesar. He was the first princeps who had not attained senatorial rank. As a ruler he displayed moderation and good sense, but was lacking in force. He purchased peace from the Parthians, abolished oppressive taxes, and sought to lessen the military burden by cancelling the increases of pay which Caracalla had granted to the troops. This latter step cost him the support of the soldiery, and part of the Syrian army declared its allegiance to the fourteen-year-old Bassianus, a great-nephew of Julia Domna, the Syrian wife of Septimius Severus. Bassianus could claim to be a representative of the house of Severus, and consequently was hailed as Imperator under the name of Marcus Aurelius Antoninus. However, he is better known as Elagabalus, for he was by hereditary right the priest of the Sun God worshipped under that name at Emesa.

Macrinus tried to suppress the revolt, but he was defeated near Antioch, and he and his son were captured and killed (June, 218 A. D.).

Elagabalus, 218–222 A. D. Thereupon Elagabalus was universally recognized as princeps and entered Rome in the following year. There he introduced the worship of the sun as the supreme deity of the Roman world, and added to the imperial title that of "most exalted priest of the Unconquered Sun God Elagabalus." His rule was a riot of debauch, in which his associates were worthless favorites, whom he appointed to the highest offices. His grandmother, Julia Maesa, really conducted the government and, realizing his unfitness to rule, forced him to adopt his cousin Severus Alexander with the title of Caesar in 221 A. D. When Elagabalus sought to rid himself of his relative the praetorians forced him to make Alexander his colleague, and finally murdered him (March, 222 A. D.).

Severus Alexander, 222–235 A. D. Marcus Aurelius Severus Alexander was now sole ruler. However, since he was a mere youth, his mother, Julia Mamaea, daughter of Julia Maesa, exercised the powers of a regent. As he grew up Alexander showed

himself well-meaning and conscientious, but lacking in self-reliance, and he never emancipated himself from his mother’s tutelage. During his rule the Senate enjoyed a temporary revival of influence. Two councils of senators, one of sixteen and one of seventy members, acted as an imperial cabinet and an advisory legislative council, respectively. At this time, too, the praetorian prefecture became a senatorial office in that it conferred senatorial rank upon its holder. An attempt was made to remedy public abuses, in particular to restore discipline among the troops, and to reduce the military expenditure. But the army had gotten out of hand, especially the praetorians, from whose anger Alexander was unable to protect the noted jurist Paul, who held the praetorian prefecture.

The new Persian empire. The widespread military insubordination was all the more dangerous since new and more aggressive foes began to threaten the integrity of the empire. In 227 A. D. the Parthian dynasty of the Arsacids was overthrown by the Persian Ardaschir (Artaxerxes) who founded the dynasty of the Sassanids. The establishment of this new Persian kingdom was accompanied by a revival of the national Persian religion, Zoroastrianism, and of the Persian claims to the eastern Roman provinces. In 231 the Persians drove the Roman troops out of Mesopotamia and penetrated Cappadocia and Syria. Alexander himself then went to the East, where he took the offensive in the following year. The details of his campaign are uncertain, but at any rate Mesopotamia was recovered and Alexander celebrated a triumph over the Persians in Rome (233 A. D.).

The Germanic campaign and death of Severus Alexander. But the northern frontier was threatened by the attacks of Germanic tribes, and in 234 Alexander assumed the conduct of operations on the Rhine, with his headquarters at Mainz. The barbarians were induced to make peace, but only by the payment of subsidies, and this cost Alexander the respect of the army, who were disgruntled at his policy of retrenchment and his subservience to his mother. A mutiny broke out, led by Gaius Julius Verus Maximinus, a Thracian of peasant origin who had risen from the ranks to high command. Alexander and Julia Mamaea were put to death, and Maximinus was proclaimed Augustus (March, 235 A. D.). With his accession began a half century of confusion and anarchy.

VI. THE DISSOLUTION AND RESTORATION OF THE EMPIRE: 235–285 A. D.

The end of the pax Romana. The period of fifty years from 235 to 285 A. D. is a prolonged repetition of the shorter epochs of civil war of 68–69 and 193–197 A. D. During this interval twenty-six Augusti, including such as were colleagues in the _imperium_, obtained recognition in Rome and of these only one escaped a violent death. In addition, there were numerous usurpers or “tyrants,” as candidates who failed to make good their claims to the principate were called. Almost all of these emperors were the nominees of the soldiery, and at least possessed military qualifications that were above the average. In general they conscientiously devoted themselves to the task of restoring order in the empire, but their efforts were in the main nullified by the treachery of their own troops and the rise of rival emperors.

The mutiny of the army. The main cause of this disorganization lay in the fact that the professional army had lost all sense of loyalty to the empire, an attitude already frequently evidenced by the praetorians, and by the legions also under Caracalla and his successors. Recruited, as the latter now were, almost entirely from the frontiers of the Roman world, they felt no community of interest with the inhabitants of the peaceful provinces and turned upon them, like unfaithful sheep dogs upon the flocks whom it was their duty to guard. The sole object of the troops was to enrich themselves by plunder and the extortion of high pay and frequent largesses from the emperor whom they supported. Hence, in the expectation of fresh rewards, each army hailed as Imperator the commander who had led it to victory over foreign foes or revolting soldiers of Rome.

Barbarian invasions. In addition to constant civil war, the Roman world was exposed to all the horrors of barbarian invasions. We have already noticed the rise of a new Persian state whose object was the reëstablishment of the empire as it had existed prior to the conquests of Alexander the Great. Likewise on the whole extent of the northern frontier new and more aggressive peoples assaulted and penetrated the frontier defences. On the North Sea coast, between the Rhine and the Weser were the Saxons whose ships raided the shores of Britain and Gaul. Facing the Romans along the lower Rhine were the Franks, along the upper Rhine the Alamanni, further east on the upper Danube the Marcomanni, while on the eastern frontier of Dacia and to the north of the Black Sea were situated the Goths and the Heruli. The withdrawal of troops from some sectors of the frontier to meet attacks at others and the neglect of their duty by the army corps who plunged into the maelstrom of civil war in support of various candidates for the imperial power gave the northern barbarians the opportunity to sweep down in destructive hordes upon the peaceful and undefended provinces.

Dissolution of the empire. The natural consequence of the failure of the imperial government to defend the provinces from hostile invasions was that the provincials began to take measures for their own protection and to transfer their allegiance from the Roman emperors to local authorities, who proved a more efficient help in time of trouble. These separatist tendencies were active both in the East and in the West and led to a temporary dissolution of the unity of the Empire.

Pestilence. A third scourge which afflicted the Roman world at this critical period was a pestilence which, originating in the East, entered the Empire about 252 A. D., and raged for fifteen years.

Valerian and Gallienus: 253–268 A. D. The fortunes of the Empire reached their lowest ebb under Valerian and his son Gallienus (253–268 A. D.). In 256, the Persians invaded Mesopotamia and Syria, and captured Antioch. Valerian at once undertook the defence of the eastern provinces, leaving Gallienus in charge of the West. Antioch was recovered, but when Valerian entered Mesopotamia to relieve the blockade of Edessa, he was defeated by the Persian king Sapor, and taken prisoner (258 A. D.). He died soon afterwards in captivity. The Persians not only reoccupied Antioch but also seized Tarsus in Cilicia and Caesarea in Cappadocia, and ravaged Asia Minor to the shores of the Aegean Sea.

While Valerian was waging his ill-fated war in the East, the rest of the empire was in a continual state of turmoil. In 257 the Goths and other peoples overran Dacia, crossed the Danube and penetrated as far south as Macedonia and Achaia. In 258 a revolt broke out in Mauretania. The Berber tribesmen, led by an able chief, Faraxen, invaded the province of Numidia, and were only reduced to submission by the capture of their leader (260 A. D.). At the same time the Alamanni broke into Raetia, and made their way over the Alps into the Po valley. Gallienus hastened to the rescue and defeated them near Milan. But in his absence in Italy the Franks crossed the Rhine and poured in devastating hordes over Gaul and Spain. The Roman possessions on the right bank of the Rhine were lost at this time and never recovered.

The empire of the Gauls. At the news of the death of Valerian the commander in Pannonia, Ingenuus, raised the standard of revolt. After defeating him, Gallienus found another serious rival in Regalianus, whom, however, he was likewise able to overcome. But at the same time (258 A. D.), Marcus Cassius Latinius Postumus, whom Gallienus had left in command in Gaul, assumed the imperial title, after a victory gained over a body of Franks. He was able to clear Gaul of its foes and make himself master of Britain and Spain. Gallienus was powerless to depose him. Postumus did not endeavor to establish a national Gallic state but regarded himself as exercising the Roman _imperium_ in a portion of the empire. He fixed his capital at Trèves, and organized a senate and other institutions on the Roman model. His coins bore the inscription _Roma Aeterna_.

Palmyra. In the Orient the Persians were unable to retain their hold on Syria and Asia Minor. Their withdrawal was in large measure caused by the activities of Odaenathus, the ruler of the city of Palmyra, who inflicted a severe defeat upon Sapor and recovered Roman Mesopotamia. Thereupon two brothers, Fulvius Macrianus and Fulvius Quietus, sons of an officer who had distinguished himself against the Persians, were acclaimed as emperors in Asia Minor. However, the one was defeated in attempting to invade Europe and the other was overthrown by Odaenathus. In recognition of his services Gallienus bestowed upon him the title of “Commander of the East” (_dux orientis_), with the duty of protecting the East (264 A. D.). In Palmyra, he ruled as _basileus_, or king, and although he nominally acknowledged the overlordship of the Roman emperor, he was practically an independent sovereign.

The Goths. A fresh peril arose in the maritime raids of the Goths, Heruli, and other tribes who had seized the harbors on the north coast of the Black Sea. With the ships that they thus secured they ravaged the northern coast of Asia Minor as early as 256 A. D. In 262 they forced the passage of the Bosphorus and Hellespont and plundered the shores of the Aegean. Their most noted raid was in 267, when they sacked the chief cities of Greece, including Athens.

No less than eighteen usurpers, for the most part officers who had risen from the ranks, had unsuccessfully challenged the authority of Gallienus in the various provinces. At last, in 268 A. D., one of his leading generals, Aureolus, laid claim to the imperial title. Gallienus defeated him and was besieging him in Milan, when he was killed at the instigation of his officers, who proclaimed as his successor one of their own number, Marcus Aurelius Claudius.

Claudius Gothicus, 268–270 A. D. The rule of Claudius lasted only two years, in which his greatest achievement was the crushing defeat which he inflicted upon the Goths who had again overrun Greece and the adjacent lands (269 A. D.). This victory won him the name of Gothicus. Upon the death of Claudius in 270 A. D., the army chose Lucius Domitius Aurelianus as emperor.

Lucius Domitius Aurelianus, 270–275 A. D. Aurelian's first task was to clear Italy and the Danubian provinces of barbarian invaders. Two incursions of the Alamanni into Raetia and Italy were repulsed, the latter with great slaughter. But the emperor recognized that the security of Italy could no longer be guaranteed and so he ordered the fortification of the Italian cities. The imposing wall which still marks the boundary of part of ancient Rome was begun by Aurelian. A horde of Vandals were beaten and driven out of Pannonia and a victory was won over the Goths in Moesia. But the exposed position of Dacia, and the fact that it was already in large part occupied by the barbarians, induced Aurelian to abandon it altogether. The rest of the Roman settlers were withdrawn to Moesia, where a new province of Dacia was formed behind the barrier of the Danube.

The overthrow of Palmyra. Aurelian was now ready to attempt his second and greater task, the restoration of imperial unity. And in this the East first claimed his attention. There Vaballathus, the son of Odaenathus, ruled over Palmyra, supported and directed by his mother, Zenobia. At the outset Aurelian had recognized his position but in 271 Vaballathus assumed the title of Augustus and thereby declared his independence of Roman suzerainty. He was able to extend his authority over Egypt and a great part of Asia Minor. In 272 Aurelian set out to bring back the East to its allegiance. He speedily recovered Asia Minor, and entered Syria, where he signally defeated the famous Palmyrene archers and mailed horsemen at Emesa. He then crossed the desert and laid siege to Palmyra itself. Zenobia tried to escape, but was taken, and the city surrendered. The queen and her family were carried off to Rome but Palmyra was at first spared. However, it rebelled again when Aurelian had set out for Rome. Thereupon the emperor returned with all speed and recaptured the city. This time it was utterly destroyed. The authority of Rome was once more firmly reëstablished in the East.

The reconquest of Gaul. Following his conquest of Palmyra, Aurelian proceeded to overthrow the already tottering empire of the Gauls. At the death of Postumus in 268, Spain and Narbonese Gaul had acknowledged the Roman emperor Claudius Gothicus. After several successors of Postumus had been overthrown by the mutinous Gallic soldiery, Publius Esuvius Tetricus was appointed emperor in Gaul and Britain. However, foreseeing the speedy dissolution of his empire, he secretly entered into negotiations with Aurelian. The latter invaded Gaul and met the Gallic army at the plain of Chalons. In the course of the battle, Tetricus went over to Aurelian, who won a complete victory. Britain and Gaul submitted to the conqueror (274 A. D.). Thus the unity of the empire was restored and Aurelian assumed the title of "Restorer of the World" (_restitutor orbis_).

Dominus et deus natus. Not only was Aurelian one of the greatest of Roman commanders; he also displayed sound judgment in his administration. Here his chief

work was the suppression of the debased silver currency and the issuing of a much improved coinage. Aurelian regarded himself as an absolute monarch and employed on his coins the titles _dominus et deus natus_—"born Lord and God." He likewise reëstablished in Rome the official cult of the Unconquered Sun God, previously introduced by Elagabalus. One of the characteristics of this cult was the belief that the monarch was the incarnation of the divine spirit, a belief which gave a moral justification to absolutism.

Probus, 276–282 A. D. Aurelian was murdered in 275 A. D., and was succeeded by Tacitus, who met a like fate after a rule of less than two years. He was followed by Marcus Aurelius Probus, an able Illyrian officer. Probus was called upon to repel fresh invasions of Germanic peoples, to subdue the rebellious Isaurians in Asia Minor and suppress a revolt in Egypt. Everywhere he successfully upheld the authority of the empire, but his strict discipline eventually cost him the favor of the soldiers who hailed as Imperator Marcus Aurelius Carus. Probus was put to death (282 A. D.). Like his predecessor, Carus was a general of great ability. He appointed his eldest son Carinus Augustus as his co-ruler, and left him in charge of the West while he embarked on a campaign against the Persians. This was crowned with complete success and terminated with the capture of Ctesiphon. But on his return march he died, probably at the hands of his troops (283 A. D.). His younger son, the Caesar Numerianus, who took command of the army, was assassinated by the praetorian prefect Aper. However, the choice of the army fell upon Gaius Valerius Aurelius Diocletianus, who assumed the imperial title in September, 284 A. D. But Carinus had retained his hold upon the West and advanced to crush Diocletian. In the course of a battle at the river Margus in Moesia he was murdered by his own officers (285 A. D.), and with the victory of Diocletian a new period of Roman history begins.

CHAPTER XIX

THE PUBLIC ADMINISTRATION UNDER THE PRINCIPATE

I. THE VICTORY OF AUTOCRACY

The senate and the appointment of the princeps. In the preceding chapters we have traced in outline the political history of the principate to the point where it had become an undisguised military autocracy. This change is clearly seen in connection with the imperial nomination. The appointment to the principate originally involved the conferment of the _imperium_, the tribunician power and other rights and privileges. The _imperium_ might be bestowed either by a senatorial decree or through the acclamation as _imperator_ by a part of the soldiery. Each of these forms was regarded as valid, but was regularly confirmed by the other. But the tribunician authority and the remaining powers of the princeps were conferred only by a decree of the Senate, confirmed, during the first century at least, by a vote of the Assembly of the Centuries. However, after the accession of Carus (282 A. D.), the Senate, which

could no longer claim to exercise any authority in the state, ceased to participate in the appointment of the new ruler. This marks the formal end of the principate.

The Senate's loss of administrative power. I. Rome and Italy. The constitutional history of the principate is the story of the gradual absorption of the Senate's powers by the princeps and the supplanting of the Senate's officers by those in the imperial service. It has been well said that Augustus aimed at the impossible when he sought to be the chief magistrate in the state without being at the same time the head of the administration. He had intended that the Senate should conduct the administration of Rome, Italy and the ungarrisoned provinces, but, as we have seen, he himself had been brought by force of circumstances to take the initial steps in infringing upon the Senate's prerogatives. Not only did he take over the duties of provisioning and policing the city by establishing the prefectures of the grain supply and the watch, but he also assumed responsibility for the upkeep of the public buildings, streets and aqueducts of Rome, as well as the highways of Italy. These departments of public works were put in charge of commissioners of senatorial rank, called curators, whom the princeps nominated. However, from the time of Claudius equestrian officials, entitled procurators, were appointed to these departments and became their real directors. Finally, under Septimius Severus, the senatorial curators were dispensed with.

II. The aerarium. Augustus had left to the Senate the control of the public treasury, the _aerarium_, which was maintained by revenues from the senatorial provinces and Italy. But when the princeps came to assume control of those branches of the administration the expense of which was defrayed by the _aerarium_, it was inevitable that the treasury itself should pass in some degree under his supervision. And so in 44 A. D. the princeps began to designate two quaestors to be in charge of the treasury for a three-year period. Under Nero the place of these quaestors was taken by two prefects appointed in the same manner but from among the ex-praetors. The importance of the _aerarium_ declined in proportion as its revenues passed into the hands of the ministers of the princeps, until in the period between Septimius Severus and Diocletian it sank to the position of a municipal chest for the city of Rome.

III. The senatorial provinces. In the early principate the senatorial provinces were administered by appointees of the Senate, all of whom now bore the title of proconsul, assisted as in former days by quaestors. However, only the proconsul of Africa was at the same time commander of a provincial garrison, and his command was transferred to the imperial governor of Numidia by Caligula. Even in the time of Augustus the imperial procurators had appeared in the senatorial provinces in charge of the revenues which were at the disposal of the princeps, and, before the close of the third century they were in complete control of the financial administration of these provinces. But long before this, by the opening of the second century, the princeps had usurped the Senate's privilege of appointing the proconsuls. The result was that by the close of the principate all the provinces without distinction were equally under imperial control.

Restriction of Senate's elective powers. It was Tiberius who transferred to the Senate the electoral functions of the Assembly but he, as Augustus before him, limited the Senate's freedom of action by the recommendation of imperial candidates for the lower magistracies. From the time of Nero the consulship also was regularly filled by nominees of the emperors. The custom of appointing several successive consular pairs in the course of each year, each pair functioning for two or four months, greatly weakened the influence of the consulate, while it enabled the emperors to gratify the ambitions of a larger number of candidates for that office.

Loss of legislative functions. The rapid disappearance of the Assembly resulted in the transfer of its sovereign legislative powers to the Senate. The decrees of the Senate thus acquired the validity of laws and after the time of Nerva comitial legislation completely ceased. However, the influence of the princeps encroached more and more upon the legislative freedom of the Senate until in the time of the Severi the senatorial decrees were merely proclamations of the princeps (_orationes principis_) which were read to the Senate and approved by it. Furthermore, the princeps developed independent legislative power and by the middle of the second century the ordinances or constitutions of the princeps had acquired the force of law. Early in the third century legislation of this type altogether superseded the senatorial decrees. The imperial constitutions included edicts, _decreta_, or judicial verdicts, responses to the petitions of officers of the princeps or private citizens, and mandates or instructions to his subordinates. Originally, the edicts were only valid during the principate of their author and the other forms of constitutions merely applied to special cases. However, in course of time, they all alike came to be recognized as establishing rules of public and private law which remained in force unless they were specifically revoked by another imperial constitution.

The administration of justice. The republican system of civil and criminal jurisdiction was inherited by the principate, and the courts of the praetors continued to function for Rome and Italy, while the proconsuls were in charge of the administration of justice in the senatorial provinces. In addition the Senate, under the presidency of the consuls, acted as a tribunal for the trial of political offences and criminal charges brought against members of the senatorial order. The Senate also served as a court of appeals from the decisions of the proconsuls. But from the time of Augustus the princeps exercised an unlimited right of jurisdiction which enabled him to take cases under his personal cognizance (_cognitio_), or appoint a delegate to try them. The imperial officials administered justice in their respective spheres by virtue of delegated authority and consequently appeals from their courts were directed to the princeps. The development of judicial functions by the military and administrative officials of the princeps in Rome—the praetorian prefect, the city prefect, the prefects of the watch and the prefect of the grain supply—seriously encroached upon the judicial power of the praetors. In addition, the _consulares_ of Hadrian, and the _iuridici_ of Marcus Aurelius further limited the sphere of the praetorian courts. Ultimately, under Septimius Severus, we find the city prefect as the supreme judicial authority for all criminal cases arising in Rome or within a radius of one hundred miles of the city and also exercising appellate jurisdiction in civil cases within the same limits, subject however, to an appeal to the court of the

princeps. For the rest of Italy, the court of the praetorian prefect was now the highest tribunal in both criminal and civil suits. By this time also the princeps had acquired supreme appellate jurisdiction for the whole empire, a power which was regularly exercised by the praetorian prefect acting in his place, In the third century the Senate ceased to exercise any judicial authority whatever.

As a result of the above processes the princeps became in the end the sole source of legislative, administrative and judicial authority. The republican magistrates had become practically municipal officers, and one of them, the aedileship, disappeared in the third century. The complete victory of the princeps over the Senate is marked by the exclusion of senators from military commands under Gallienus, and their removal from the provincial governorships in which they had continued to exercise civil authority between the time of Aurelian and the accession of Diocletian.

The friction between the Senate and the princeps. It might be thought that owing to the gradual admission to the Senate of the nominees of the princeps that harmony would have been established between the two administrative heads of the state. But although this new nobility was thoroughly loyal to the principate, they proved just as tenacious of the rights of the Senate as the descendants of the older nobility who preserved the tradition of senatorial rule. Augustus and Tiberius endeavored to govern in concord with the Senate by organizing an advisory council appointed from the Senate, but their successors abandoned the practice. The friction between the princeps and the Senate was due in part to the realization that it was from the senatorial order that rivals might arise and in part to the fact that those emperors who did not interpret their position, as did Augustus, in the light of a magistracy responsible to the Senate, were bound to regard the Senate’s powers as restrictions upon their own freedom of action, and as an unnecessary complication of the administration. The chief services of the Senate were to provide a head for the government when the principate was vacant, and to furnish the only means for the expression of opinion with regard to the character of the administration of the individual emperors. The spontaneous deification or the _damnatio memoriae_ of a deceased princeps was not without weight, for it expressed the opinion of the most influential class in the state.

While the Senate as a body was thus stripped of its power, the senatorial order remained a powerful class. Originally embracing the chief landholders of Italy, it came to include those of the whole empire. Collectively the senators lost in influence, but individually they gained. By the end of the second century the senatorial order had acquired an hereditary title, that of _clarissimus_ (most noble), indicative of their rank.

II. THE GROWTH OF THE CIVIL SERVICE

The first steps. The necessary counterpart to the assumption of administrative duties by the princeps was the development of an imperial civil service, the officials of which were nominated by the princeps, and promoted or removed at his pleasure. In this Augustus had taken the first steps by the establishment of equestrian

procuratorships and prefectures, and the opening up of an equestrian career, but the number of these posts greatly increased with the extension of the administrative sphere of the princeps at the expense of the Senate. The idea of conducting the government through various departments manned by permanent salaried officials was absolutely foreign to the Roman republic, which only employed such servants for clerical positions of minor importance in Rome. However, the chaotic conditions which had resulted from the republican system showed the need of a change, and the concentration of a large share of the administration in the hands of the princeps both required and gave the opportunity for the development of an organized civil service. This development was unquestionably stimulated and influenced by the incorporation in the Roman empire of the kingdom of Egypt, which possessed a highly organized bureaucratic system that continued to function unchanged in its essential characteristics.

The imperial secretaryships. At first the imperial civil service lacked system and there was little or no connection between the various administrative offices in Italy and in the provinces. Augustus and his immediate successors conducted the administration as part of their private business, keeping in touch with the imperial officials through the private secretaries of their own households, that is to say, their freedmen, who, in another capacity, conducted the management of the private estate of the princeps. An important change was introduced under Claudius, when his influential freedmen caused the creation within the imperial household of a number of secretaryships with definite titles that indicated the sphere of their duties. The chief of these secretaryships were the _a rationibus_, the _ab epistulis_, the _a libellis_, the _a __cognitionibus_ and the _a studiis._ The _a rationibus_ acted as a secretary of the treasury, being in charge of the finances of the empire which were controlled by the princeps; the _ab epistulis_ was a secretary for correspondence, who prepared the orders which the princeps issued to his officials and other persons; the _a libellis_ was a secretary for petitions, who received all requests addressed to the princeps; the _a __cognitionibus_ served as a secretary for the imperial inquests, entrusted with the duty of preparing the information necessary for the rendering of the imperial decision in the judicial investigations personally conducted by the princeps (_cognitiones_); and the _a studiis_, or secretary of the records, had the duty of searching out precedents for the guidance of the princeps in the conduct of judicial or administrative business. The establishment of these secretaryships in the imperial household tended to centralize more completely the imperial administration and to give it greater uniformity and regularity. At the same time the influence of the freedmen who occupied these important positions was responsible for the admission of freedmen to many of the minor administrative procuratorships. It was under Claudius also that the preliminary military career of the procurators was more definitely fixed.

The reforms of Hadrian and Septimius Severus. Hadrian took the next decisive step in the development of the central administrative offices when he transformed the secretaryships of the imperial household into secretaryships of state by filling them with equestrians of procuratorial rank in place of imperial freedmen. From this time the latter were restricted to minor positions in the various departments. Under

Hadrian also there was a marked increase in the number of administrative procuratorships owing to the final abolition of the system of farming the revenues and their subsequent direct collection by imperial officials as well as the establishment of the public post as a means of intercourse throughout all the provinces. It was possibly with the object of supplying the necessary officials to undertake these new tasks that Hadrian created the office of the advocate of the _fiscus_ as an alternative for the preliminary military career of the procurators.

Septimius Severus, as we have seen, opened the posts of the civil administration to veteran officers upon the completion of a long period of military service. Thus, although a purely civil career was established, which led ultimately to the highest prefectures, nevertheless, during the principate the civil administrative offices were never completely separated from the traditional preliminary military service. It was Septimius Severus also who made the praetorian prefect, as the representative of the princeps, the head of the civil as well as of the military administration.

The salary and titles of the equestrian officials. The ordinary career of an official in the imperial civil service included a considerable number of procuratorships in various branches of the administration, both in Rome, Italy and the provinces. Although from the time of Augustus a definite salary was attached to each of these offices, it was not until after the reforms of Hadrian that four distinct classes of procurators were recognized on the basis of the relative importance of their offices expressed in terms of pay. These four classes of procurators were the _tercenarii_, _ducenarii_, _centenarii_ and _sexagenarii_, who received respectively an annual salary of 300,000, 200,000, 100,000 and 60,000 sesterces; this classification remained unchanged until the close of the third century. At that time the highest class included the imperial secretaries of state, whose title was now that of _magister_, or master. The salary of the four chief prefectures was probably higher still.

Following the example of the senatorial order, the equestrians also acquired titles of honor, which depended upon their official rank. From the time of Hadrian the title _vir eminentissimus_ (most eminent) was the prerogative of the praetorian prefects. Under Marcus Aurelius appear two other equestrian titles, _vir perfectissimus_ and _vir egregius_. In the third century the latter was borne by all the imperial procurators, while the former was reserved for the higher prefectures (apart from the praetorian), the chief officials of the treasury and the imperial secretaries.

Administration of the finances: (I). The Fiscus. The most important branch of the civil administration was that of the public finances, which merits special consideration. Augustus did not centralize the administration of the provincial revenues which were at his disposal, but created a separate treasury or _fiscus_ for each imperial province. However, he did establish the _aerarium militare_ at Rome for the control of the revenues destined for the pensioning of veteran troops. Furthermore, Augustus drew a sharp distinction between the public revenues which were administered by the princeps in his magisterial capacity, and the income from his own private property or patrimony. For the expenditure of the former he acknowledged a strict accountability to the Senate. The policy of Augustus was

followed by Tiberius and Caligula, but under Claudius a central _fiscus_ was organized at Rome for the administration of all the public revenues of the princeps. The provincial _fisci_ disappeared, and the military treasury became a department of the _fiscus_. This new imperial _fiscus_ was under the direction of the _a rationibus_. From this time the princeps ceased to hold himself accountable for the expenditure of the public imperial revenues, and the _fiscus_ assumes an independent position alongside of the old _aerarium_ of the Roman people, which, as we have shown, it ultimately deprived of all share in the control of the public finances. However, the distinction between the public and private revenues of the princeps was still observed, and the _patrimonium_ was independently administered by a special procurator.

(II). The Patrimonium. But with the extinction of the Julio-Claudian house and the accession of Vespasian the patrimony of the Caesars passed as an appendage of the principate to the new ruler. It then became state property, and as it had grown to enormous size owing to the inheritances of Augustus and the confiscations of Caligula and Nero, the _patrimonium_ was organized as an independent branch of the imperial financial administration. The personal estate of the princeps was henceforth distinguished as the _patrimonium privatum_. This situation continued until the accession of Septimius Severus, whose enormous confiscations of the property of the adherents of Niger and Albinus were incorporated in his personal estate. This, the _patrimonium privatum_, was now placed under a new department of the public administration called the _ratio_ or _res privata_. The old _patrimonium_ became a subordinate branch of the _fiscus_. The title of the secretary of the treasury in charge of the _fiscus_ was now changed to that of _rationalis_, while the new secretary in charge of the privy purse was called at first _procurator_, and later _magister_, _rei privatae_. The reform of Severus, which gave to the private income of the princeps a status in the administration comparable to that of the public revenues, is a further expression of the monarchical tendencies of his rule.

The officiales. The subaltern personnel of the various bureaus, the clerks, accountants, etc., during the first two centuries of the principate was composed almost entirely of imperial freedmen and slaves. Among these there was apparently no fixed order of promotion or uniform system of pay, nor could they ever advance to the higher ranks of the service. However, from the time of Severus soldiers began to be employed in these capacities and a military organization was introduced into the bureaus. The way was thus gradually paved for completely dispensing with the services of freedmen and slaves in any part of the civil administration.

III. THE ARMY AND THE DEFENCE OF THE FRONTIERS

The barbarization of the army. It will be recalled that the military policy of Augustus aimed at securing the supremacy of the Roman element in the empire by restricting admission to the legions to Roman citizens or to freeborn inhabitants of provincial municipalities who received a grant of citizenship upon entering the service. The gradual abandonment of this policy is one of the most significant facts in the military history of the principate.

The territorial recruitment of the legions. Under the Augustan system the legions in the West were recruited from Italy and the romanized provinces of the West, the eastern legions from the Greek East and Galatia. But the increasing reluctance of the Italians to render military service led to the practical, although not to the theoretical, exemption of Italy from this burden which now rested more heavily upon the latinized provinces. An innovation of utmost importance was the introduction of the principle of territorial recruitment for the legions by Hadrian. Henceforth these corps were recruited principally from the provinces in which they were stationed, and consequently freedom from the levy was extended to the ungarrisoned provinces, Baetica, Narbonese Gaul, Achaia and Asia. The effect of Hadrian's reform is well illustrated by a comparison of the various racial elements in the legions stationed in Egypt under the early principate with those in the same legions in the time of Marcus Aurelius. The lists of the veterans discharged from these legions under Augustus or Tiberius show that fifty per cent were recruited from Galatia, twenty-five per cent from the Greek municipalities in Egypt, fifteen per cent from Syria and the Greek East, and the remainder from the western provinces. A similar list from 168 A. D. shows sixty-five per cent from Egypt, the remainder from the Greek East, and none from Galatia or the West. In general, the consequence of Hadrian's policy was to displace gradually in the legions the more cultured element by the more warlike, but less civilized, population from the frontiers of the provinces. It was Hadrian also who opened the pretorian guard to provincials from Spain, Noricum and Macedonia. As we have seen, Severus recruited the pretorians from the legions and so deprived the more thoroughly latinized parts of the empire of any real representation in the ranks of the army.

The auxiliaries. The auxiliary corps, unlike the legions, were not raised by Augustus from Roman citizens but from the non-Roman provincials and allies. At first they were recruited and stationed in their native provinces, but after the revolt of the Batavi in 68 A. D. they were regularly quartered along distant frontiers. From the time of Hadrian, they were generally recruited, in the same manner as the legions, from the districts in which they were in garrison. The extension of Roman citizenship to practically the whole Roman world by Caracalla in 212 A. D. removed the basic distinction between the legions and the auxiliaries.

The numeri. A new and completely barbarous element was introduced by Hadrian into the Roman army by the organization of the so-called _numeri_, corps of varying size, recruited from the non-Romanized peoples on the frontiers, who retained their local language, weapons and methods of warfare but were commanded by Roman prefects. The conquered German peoples settled on Roman soil by Marcus Aurelius and his successors supplied contingents of this sort.

The strength of the army. At the death of Augustus the number of the legions was twenty-five; under Vespasian it was thirty; and Severus increased it to thirty-three, totalling over 180,000 men. A corresponding increase had been made in the numbers of the auxiliaries. From about 150,000 in the time of Augustus they had increased to about 220,000 in the second century. The total number of troops in the Roman service at the opening of the third century was therefore about 400,000; one

of the largest professional armies the world has ever seen.

The system of frontier defence. A second momentous fact in the military history of the principate was the transformation of the army from a field force into garrison troops. This was the result of the system developed for the defence of the frontiers. Augustus, for the first time in the history of the Roman state endeavored to preclude the possibility of indefinite expansion by attaining a frontier protected by natural barriers beyond which the Roman power should not be extended. Roughly speaking these natural defences of the empire were the ocean on the west, the Rhine and the Danube on the north, and the desert on the east and south. At strategic points behind this frontier Augustus stationed his troops in large fortified camps, in which both legionaries and auxiliaries were quartered. These camps served as bases of operations and from them military roads were constructed to advantageous points on the frontier itself to permit the rapid movement of troops for offensive or defensive purposes. Such roads were called _limites_ or “boundary paths,” a name which subsequently was used in the sense of frontiers. These _limites_ were protected by small forts manned by auxiliary troops.

The fortification of the limites. Although Claudius and Vespasian discarded the maxims of Augustus in favor of an aggressive border policy they adhered to his system for protecting their new acquisitions in Britain and the Agri Decumates. However, these conquests and that of the Wetterau region by Domitian pushed the frontier beyond the line of natural defences and led to the attempt to construct an artificial barrier as a substitute. It was Domitian who took the initial step in this direction by fortifying the _limites_ between the Rhine and Main, and the Main and the Neckar, with a chain of small earthen forts connected by a line of wooden watchtowers. To the rear of this advanced line there were placed larger stone forts, each garrisoned by a corps of auxiliaries, and connected by roads to the posts on the border. While the auxiliary troops were thus distributed along the frontiers in small detachments, the larger legionary cantonments were broken up, and after 89 A. D. no camp regularly contained more than a single legion. Trajan, who also waged his frontier wars offensively, merely improved the system of communication between the border provinces by building military highways along the line of the frontier from the Rhine to the Black Sea, in Arabia, and in Africa.

In the matter of frontier defence, as in so many other spheres, a new epoch begins with Hadrian. He reverted abruptly to the defensive policy of Augustus and began to fortify the _limites_ on a more elaborate scale. The frontier between the Rhine and the Danube was protected by an unbroken line of ditch and palisade, in which stone forts, each large enough for an auxiliary cohort, took the place of the earthen forts of Domitian. At the same time the _limes_ was shortened and straightened, and the secondary line of forts abandoned. In Britain a wall of turf was constructed from the Tyne to the Solway, and in the Dobrudja a similar wall linked the Danube to the Black Sea. The eastern frontier of Dacia was likewise defended by a line of fortifications. Here, as on the other borders, the Roman sphere of influence, and even of military occupation, extended beyond the fortified _limes_.

Antonius Pius followed Hadrian’s example and ran an earthen rampart with forts at intervals from the Forth to the Clyde in northern Britain. This line of defence was abandoned by Septimius Severus, who rebuilt Hadrian’s rampart in the form of a stone wall with small forts at intervals of a mile and intervening watch towers. In addition seventeen larger forts were constructed along the line of the wall. The _limes_ in Germany was strengthened by the addition of a ditch and earthen wall behind Hadrian’s palisade, but along the so-called Raetian _limes_, between the Danube and the Main, another stone wall, 110 miles long, took the place of the earlier defences. A similar change was made in the fortifications of the Dobrudja. However, this system was not followed out in the East or in Africa, where the _limes_ was guarded merely by a chain of blockhouses.

The consequences of permanent fortifications. The result of the construction of permanent fortifications along the frontier was the complete immobilization of the auxiliary corps. Stationed continuously as they were for the most part in the same sectors from early in the second century, and recruited, in increasing proportion, from among the children of the camps, it only required the granting to them of frontier lands by Severus Alexander, upon condition of their defending them, to complete their transformation into a border militia (_limitanei_). At the same time the scattering of the legions along the line of the frontiers made the assembling of any adequate mobile force a matter of considerable time. And the fortifications themselves, while useful in checking predatory raids by isolated bands and in regulating intercourse across the frontiers, proved incapable of preventing the invasion of larger forces. Consequently, when in the third century the barbarians broke through the _limites_ they found no forces capable of checking them until they had penetrated deeply into the heart of the provinces.

The chaos which followed the death of Severus Alexander was the result of a military policy which left the richest and most highly civilized parts of the empire without any means of self-defence; created a huge professional army the rank and file of which had come to lose all contact with the ungarrisoned provinces, all interest in the maintenance of an orderly government and all respect for civil authority; and at the same time rendered the army itself incapable of performing the task for which it was organized.

On the other hand the army had been one of the most influential agents in the spread of the material and cultural aspects of Roman civilization. The great highways of the empire, bridges, fortifications and numerous public works of other sorts were constructed by the soldiers. Every camp was a center for the spread of the Latin language and Roman institutions and the number of Roman citizens was being augmented continuously by the stream of discharged auxiliaries whose term of service had expired. In the _canabae_, or villages of the civilian hangers-on of the army corps, sprang up organized communities of Roman veterans with all the institutions and material advantages of municipal life. The constant movement of troops from one quarter of the empire to another furnished a ready medium for the exchange of cultural, in particular of religious, ideas. To the ideal of the empire the army remained loyal throughout the principate, although this loyalty came at length

to be interpreted in the light of its own particular interests. Not only was the army the support of the power of the princeps; it was also the mainstay of the _pax Romana_ which endured with two brief interruptions from the battle of Actium to the death of Severus Alexander and was the necessary condition for the civilizing mission of Rome.

IV. THE PROVINCES UNDER THE PRINCIPATE

It is to the provinces that one must turn to win a true appreciation of the beneficial aspects of Roman government during the principate. As Mommsen(16) has said: “It is in the agricultural towns of Africa, in the homes of the vine-dressers on the Moselle, in the flourishing townships of the Lycian mountains, and on the margin of the Syrian desert that the work of the imperial period is to be sought and found.” In this sphere the chief tasks of the principate were the correction of the abuses of the republican administration and the extension of Graeco-Roman civilization over the barbarian provinces of the west and north. How well this latter work was done is attested not merely by the material remains of once flourishing communities but also by the extent to which the civilization of Western Europe rests upon the basis of Roman culture.

Number of the provinces. At the establishment of the principate there were about thirteen provinces, at the death of Augustus twenty-eight, and under Hadrian forty-five. In the course of the third century the latter number was considerably increased. The new provinces were formed partly by the organization of newly conquered countries as separate administrative districts and partly by the subdivision of larger units. At times this subdivision was made in order to relieve a governor of an excessively heavy task and to improve the administration, and at times it proceeded from a desire to lessen the dangers of a revolt of the army by breaking up the larger military commands.

Senatorial and imperial provinces. As we have seen the provinces were divided into two classes, senatorial or public and imperial or Caesarian, corresponding to the division of administrative authority between the Senate and the princeps. The general principle laid down by Augustus that the garrisoned provinces should come under the authority of the princeps was adhered to, and consequently certain provinces were at times taken over by the latter in view of military necessities while others were given up by him to the Senate. As a rule newly organized provinces were placed under imperial governors, so that these soon came to outnumber the appointees of the Senate. Eventually, as has been observed in connection with the history of the civil service, the public provinces passed completely into the hands of the princeps.

Administrative officials. The governors of the senatorial provinces were entitled proconsuls, even if they were of pretorian rank. However, Asia and Africa were reserved for ex-consuls. Following the law of Pompey, a period of five years intervened between the holding of a magistracy and a promagisterial appointment. Each proconsul was assisted by a _quaestor_, and by three propraetorian _legati_ whose appointment was approved by the princeps. The imperial governors were of

two classes, _legati Augusti_ and procurators. In the time of Hadrian there were eleven proconsuls, twenty-four _legati Augusti_ and nine procurators, besides the prefect of Egypt. The subordinates of the _legati Augusti_ were the legates in command of the legions, and the fiscal procurators. The procuratorial governors, at first called prefects, were equestrians, and were placed in command of military districts of lesser importance which were garrisoned by auxiliaries only. An exception to this practice was made in the case of Egypt, which senators were forbidden to enter, and which was governed by a prefect who ranked next to the praetorian prefect and had under his orders a garrison of three legions. These governmental procurators had, in addition to their military duties, the task of supervising financial administration. The title _praeses_ (plural _praesides_) which was used in the second century for the imperial governors of senatorial rank, came to designate the equestrian governors when these supplanted the _legati_ in the latter half of the third century.

As under the republic, the governors exercised administrative, judicial, and, in the imperial provinces, military authority. However, with the advent of the principate the government of the empire aimed to secure the welfare and not the spoliation of its subjects, and hence a new era dawned for the provinces. All the governors now received fixed salaries and thus one of their chief temptations to abuse their power was removed. Oppressive governors were still to be found, but they were readily brought to justice—the senatorial governors before the Senate and the imperial before the princeps—and condemnations, not acquittals, were the rule. It was from the exactions of the imperial fiscal procurators rather than those of the governors that the provinces suffered under the principate. Although the term of the senatorial governors, as before, was limited to one year, tried imperial appointees were frequently kept at their posts for a number of years in the interests of good government.

It has been mentioned before that under Augustus the taxation of the provinces was revised to correspond more closely to their taxpaying capacity. Under the principate these taxes were of two kinds, direct or _tributa_ and indirect or _vectigalia_. The _tributa_, consisted of a poll-tax (_tributum capitis_), payable by all who had not Roman or Latin citizenship, and a land and property tax (_tributum soli_), from which only communities whose land was granted the status of Italian soil (_ius Italicum_) were exempt. The chief indirect taxes were the customs dues (_portoria_), the five per cent tax on the value of emancipated slaves, possibly the one per cent tax on sales, and the five per cent inheritance tax which was levied on Roman citizens only. In the imperial provinces the land tax was a fixed proportion of the annual yield of the soil, whereas in the senatorial provinces it was a definite sum (_stipendium_) annually fixed for each community.

The principate did not break abruptly with the republican practice of employing associations of _publicani_ in collecting the public revenues. It is true that they had been excluded from Asia by Julius Caesar, and it is possible that Augustus dispensed with them for the raising of the direct taxes in the imperial provinces, but even in the time of Tiberius they seem to have been active in connection with the _tributa_ in

some of the senatorial provinces. Their place in the imperial provinces was taken by the procurator and his agents, in the senatorial at first by the proconsul assisted by the taxpaying communities themselves and later by imperial officials.

On the other hand the indirect taxes long continued to be raised exclusively by the corporations of tax collectors in all the provinces. However, the operations of these _publicani_ were strictly supervised by the imperial procurators. In place of the previous custom of paying a fixed sum to the state in return for which they acquired a right to the total returns from the taxes in question, the _publicani_ now received a fixed percentage of the amount actually collected. Under Hadrian the companies of _publicani_ engaged in collecting the customs dues began to be superseded by individual contractors (_conductores_), who like the companies received a definite proportion of the amount raised. About the time of Commodus the system of direct collection by public officials was introduced and the contractors gave way to imperial procurators. In the same way, the five percent taxes on inheritances and manumissions were at first farmed out, but later (under Hadrian in the case of the former) collected directly by agents of the state.

The municipalities. Each province was an aggregate of communes (_civitates_), some of which were organized towns, while others were tribal or village communities. From the opening of the principate it became a fixed principle of imperial policy to convert the rural communities into organized municipalities, which would assume the burden of local administration. Under the Republic the provincial communities had been grouped into the three classes, free and federate (_liberae et foederatae_), free and immune (_liberae et immunes_), and tributary (_stipendiariae_). In addition to these native communities there had begun to appear in the provinces Roman and Latin colonies. Towards the close of the Republic and in the early principate the majority of the free communities lost their immunity from taxation and became tributary. Some of them exchanged the status of federate allies of Rome for that of Roman colonies. During the same period the number of colonies of both types was greatly increased by the founding of new settlements or the planting of colonists in provincial towns. Some of the latter also acquired the status of Roman municipalities. Thus arose a great variety of provincial communities, which is well illustrated by conditions in the Spanish province of Baetica (Farther Spain) under Vespasian. At that time this province contained nine colonies and eight municipalities of Roman citizens; twenty-nine Latin towns; six free, three federate, and one hundred and twenty tributary communities.

We have already mentioned the policy of transforming rural communities into organized municipalities. How rapidly this transformation took place may be gathered from the fact that in Tarraconesis (Hither Spain) the number of rural districts sunk from one hundred and fourteen to twenty-seven between the time of Vespasian and that of Hadrian. A parallel movement was the conversion of the native towns into Roman colonies and municipalities, often through the transitional stage of Latin communities, a status that now existed in the provinces only. The acquirement of Roman or Latin status brought exemption from the poll-tax, while the former opened the way to all the civil and military offices of the empire. An added advantage

was won with the charter of a Roman colony, for this usually involved immunity from the land tax also. The last step in the Romanization of the provincial towns was Caracalla's edict of 212 A. D. which conferred Roman citizenship upon all non-Roman municipalities throughout the empire.

The three Gauls and Egypt. From this municipalization of the provinces two districts were at first excluded on grounds of public policy. These districts were the three Gauls (Aquitania, Lugdunensis and Belgica) and Egypt. At the time of its conquest Gaul was a rich agricultural country, with sharply defined tribal communities, but little or no city development. This condition Augustus judged well adapted, under strict imperial control, to furnishing recruits and supplies of money and kind for the great army of the Rhine. Therefore he continued the division of Gaul in tribal units (_civitates_), sixty-four in number, each controlled by its native nobility. His policy was in general adhered to for about two hundred years, but in the course of the third century the municipal system was introduced by converting the chief town of each _civitas_ into a municipality with the rest of the _civitas_ as its _territorium_ or district under its administrative control.

In Egypt Augustus by right of conquest was the heir of the Ptolemies and was recognized by the Egyptians proper as "king of upper Egypt and king of lower Egypt, lord of the two lands, _autocrator_, son of the Sun." For the Greek residents he was an absolute deified ruler of the Hellenistic type. Thus Egypt, although a part of the Roman empire, was looked upon as subject to the rule of the princeps alone. And, as in the theory of government, so in the political institutions of the country the Romans adapted to their purposes existing conditions in place of introducing radical changes.

In the time of Augustus there were three Greek towns in Egypt, Alexandria the capital, Ptolemais and Naucratis. To these Hadrian added a third, Antinoopolis. Ptolemais, Naucratis and Antinoopolis enjoyed municipal institutions, but Alexandria because of the turbulence of its population was ruled by imperial officials following the Ptolemaic practice. The rest of the population of the country lived in villages throughout the Nile Valley, which was divided for administrative purposes into thirty-six districts called nomes (_nomoi_). The bulk of the land of Egypt was imperial or public domain land, and the great majority of the Egyptian population were tenants on the imperial domain. For the collection of the land tax, poll tax, professional and other taxes, for the supervision of irrigation, and for the maintenance of the public records of the cultivated acreage and the population (for which a census was taken every fourteen years) there had been developed a highly organized bureaucracy with central offices at Alexandria and agents in each of the nomes. This system of government was maintained by the Romans, and profoundly influenced the organization of the imperial civil service. At the head of the administration of Egypt stood the prefect, an equestrian because of his position as a personal employee of the princeps, and because the power concentrated in his hands would have proved a dangerous temptation to a senator. The chief burden laid upon Egypt was to supply one third of the grain consumed at Rome, or about 5,000,000 bushels annually. This amount was drawn partly from the land tax which was paid in kind and partly from grain purchased by the government.

The first step towards spreading municipal government throughout all Egypt was taken in 202 A. D., when Septimius Severus organized a _boule_, or senate of the Greek type, in Alexandria and in the metropolis or seat of administration of each nome. His object was to create in each metropolis a body which could be made to assume definite responsibilities in connection with the administration. However, it was not until after Diocletian that these villages received a full municipal organization.

The principate's greatest service to the provinces was the gift of two and a half centuries of orderly government, which led in many quarters to a material development unequalled in these regions before or since. It is in these centuries that the history of Rome becomes the history of the provinces. At the opening of the period the Italians occupied a privileged position within the empire, at its close they and their one-time subjects were on the same level. The army and the senatorial and equestrian orders had been thoroughly provincialized, and the emperors had come to be as a rule of provincial birth. Rome was still the seat of the administration, but this and the corn dole to the city proletariat were the only things that distinguished it from a provincial city.

The imperial government of Rome had crushed out all vestiges of national loyalty among the peoples it had absorbed, and had failed to create any political institutions which would have permitted the provincials, as such, to have participated in the government of the empire. With the gradual decline of municipal autonomy the great mass of the provincials were deprived of the last traces of an independent political life. The provincial councils established for the maintenance of the imperial cult did indeed occasionally voice the complaints of the provincials but never acquired active political powers. And that the Roman administration proved a heavy burden is attested by the numerous complaints against the weight of taxation and the necessity which many emperors felt of remitting the arrears of tribute.

V. MUNICIPAL LIFE

The Roman empire was at bottom an aggregate of locally self-governing communities, which served as units for conscription, taxation and jurisdiction. They were held together by the army and the civil service, and were united by the bonds of a common Graeco-Roman civilization. These municipalities were of two general types, the Hellenic in the East and the Latin in the West.

The Hellenic municipalities were developments from the _poleis_, or city-states, which existed prior to the Roman conquest in Greece and the Hellenized areas of Asia and Africa. Municipal towns organized in these areas subsequent to the Roman occupation were of the same type. Their language of government, as well as of general intercourse, was Greek. The characteristic political institutions of the Hellenic municipalities were a popular assembly, a council or _boule_ and annual magistrates. The assembly had the power to initiate legislation; the council and magistrates were elected by it or were chosen by lot. But even under the Roman republic these democratic institutions were considerably modified in the interests of

the wealthier classes. Timocratic constitutions were established with required property qualifications for citizenship and for the council and offices. The principate saw a further development along the same lines. The assemblies lost their right to initiate legislation, a power which passed to the magistrates, while the council tended to become a body of ex-magistrates who held their seats for life. However, in spite of this approximation to the Latin type, the Greek official terminology remained unchanged throughout the first three centuries A. D.

The Latin type of municipality was that which developed on Italian soil with the extension of Roman domination over the peninsula, and which was given uniformity by the legislation of Julius Caesar. With the Romanization of the western part of the empire it spread to Africa, Spain, Gaul, Britain, Germany and the Danubian provinces. In spite of the distinctions in status between Roman and Latin colonies and _municipia_, all these classes of municipalities were of the same general type which is revealed to us in the Julian Municipal Law (45 B. C.), the charter of the Roman _Colonia Genetiva Julia_ (44 B. C.), and those of the Latin municipalities of Malaca and Salpensa (81–84 A. D.).

The constitutions of these municipalities were patterned closely after that of Rome, although certain titles, like those of consul and Senate were reserved for the capital city. Like Rome, the municipal towns had their officials, their council (_curia_, _ordo_), and their plebs. The chief magistrates were a pair of duovirs (or at times a college of quattuovirs), who were assisted by two aediles, and two quaestors The duovirs were in charge of the local administration of justice, and in general conducted the public affairs of the community. Every fifth year the duovirs were called _quinquennales_ and took the census. The aediles had charge of public works, and market and police regulations, while the quaestors were the local treasury officials. All the officials were elected by popular vote, but a definite property qualification was required of each candidate. If no candidates presented themselves for any particular office, provision was made for the nomination of candidates who must serve if elected. At his election each magistrate paid into the treasury, or expended in accordance with the direction of the council, a definite sum of money (_summa honoraria_), which varied for each office in different communities. Oftentimes these officers did not restrict themselves to the required sum but took this opportunity for displaying their municipal loyalty. As other prominent citizens followed their example the municipalities were richly provided with useful and ornamental public works donated by the richer classes. Thus the municipal offices, being unsalaried, were a heavy drain upon the resources of their holders, but at the same time they offered almost the sole opportunity for gratifying the political ambitions of the population of the provinces. In addition to these civil officials, each community had its colleges of pontiffs and augurs.

The members of the _curia_ were called _decuriones_, and were usually one hundred in number. They comprised those who had held some local magistracy, and others having the requisite property qualification who were enrolled directly (_adlecti_) in the council. The council supervised the work of the magistrates and really directed the municipal administration. As in early Rome, so in the

municipalities the people were grouped in _curiae_, which were the voting units in the local assembly or _comitia_. This assembly elected the magistrates and had legislative powers corresponding to those of the Roman assemblies. However, in the course of the second century A. D. these legislative powers passed into the hands of the council, whose decrees became the sole form of municipal legislation.

The collegia. While the plebs of Rome and the municipalities alike had little opportunity for political activity they found a compensation in the social life of their guilds or colleges. These were associations of persons who had some common tie, such as a common trade or profession, a common worship, or the humble desire to secure for themselves a decent burial by mutual coöperation. Thus arose professional, religious, and funerary colleges. The organization of the colleges was modelled on that of the municipalities. They had their patrons, their presidents (_magistri_, or _quinquennales_), their quaestors, and their treasury sustained by initiation fees, monthly dues, fines, contributions, gifts and legacies. The membership was called plebs or _populus_. The chief factor in the life of the colleges was the social element and their most important gatherings were for the purpose of holding a common banquet. The professional colleges in no way corresponded to the modern trades unions; they attempted no collective bargaining with regard to wages, prices or working hours, although they did not altogether neglect the common interests of their profession.

Apparently until late republican times no restrictions had been placed upon the forming of such collegiate associations, but in 64 B. C. all such unions in Rome had been abolished because of the disorders occasioned by political clubs. In 58 B. C. complete freedom of association was restored, only to be revoked again by Julius Caesar who permitted only the old and reputable professional and religious colleges to remain in existence. Under Augustus a law was passed which regulated for the future the character, organization and activities of these associations. New colleges could only be established in Italy or the provinces if sanctioned by a decree of the Senate or edict of the princeps, and membership in an unauthorized college was a treasonable offence. Trajan authorized the unrestricted formation of funerary colleges (_collegia tenuiorum_) in Rome, and Septimius Severus extended this privilege to Italy and the provinces. Under Marcus Aurelius the colleges were recognized as juristic persons, with power to manumit slaves and receive legacies. Not only persons of free birth but also freedmen and slaves, and in many cases women as well as men, were freely admitted to membership in the colleges.

The decline of the municipalities. The prosperity of the empire depended upon the prosperity of the municipalities and it is in the latter that the first symptoms of internal decay are noticeable. These symptoms were economic decline and the consequent loss of local autonomy. The reasons for the economic decline are hard to trace. Among them we may perhaps place the ruin of many of the wealthier families by the requirements of office-holding, the withdrawal of others who were eligible for the imperial service with its salaried offices; overtaxation, bad management of local finances, and the disappearance of a free peasantry in the surrounding rural districts who had furnished a market for the manufacturers and merchants of the towns. The

devastating wars of the third century with the resultant general paralysis of trade and commerce, plus the depopulation caused by plague and barbarian invasions, struck the municipalities a crushing blow from which they never recovered.

As early as the time of Trajan the imperial government found it necessary to appoint officials called curators to reorganize the financial conditions in one or more municipalities, sometimes those of a whole province. At first these were irregular officials, senators or equestrians, but by the third century they had become a fixture in municipal administration and were chosen from among the local _decuriones_. Another evidence of the same conditions is the change which took place in the position of the local magistracies. In the second century these offices were still an honor for which candidates voluntarily presented themselves, although there were unmistakable signs that in some districts they were coming to be regarded as a burden. In the third century the magistracies had become an obligation resting upon the local senatorial order, and to which appointments were made by the _curia_. The _decurionate_ also had become a burden which all who possessed a definite census rating must assume. To assure itself of its revenues in view of the declining prosperity of the communities the imperial government had hit upon the expedient of making the local decurions responsible for collecting the taxes, and consequently had been forced to make the decurionate an obligatory status. The _curia_ and municipal magistracies had ended by becoming unwilling cogs in the imperial financial administration.

This loss of municipal independence was accompanied by the conversion of the voluntary professional colleges into compulsory public service corporations. From the opening of the principate the government had depended largely upon private initiative for the performance of many necessary services in connection with the provisioning of the city of Rome, a task which became increasingly complicated when the state undertook the distribution of oil under Septimius Severus, of bread in place of grain and of cheap wine under Aurelian. Therefore such colleges as the shipowners (_naviculariі_), bakers (_pistores_), pork merchants (_suarii_), wine merchants (_vinarii_), and oil merchants (_olerarii_) received official encouragement. Their members individually assumed public contracts and in course of time came to receive certain privileges because it was recognized that they were performing services necessary to the public welfare. Marcus Aurelius, Severus and Caracalla were among the emperors who thus fostered the professional guilds. Gradually the idea developed that these services were public duties (_munera_) to which the several colleges were obligated, and hence Severus Alexander took the initiative in founding new colleges until all the city trades were thus organized. The same princeps appointed judicial representatives from each guild and placed them under the jurisdiction of definite courts. The colleges from this time onward operated under governmental supervision and really formed a part of the machinery of the administration, although they had not yet become compulsory and hereditary organizations.

The history of the colleges in the municipalities paralleled that of the Roman guilds, although it cannot be traced so clearly in detail. The best known of the municipal colleges are those of the artificers (_fabri_), the makers of rag cloths

(_centonarii_), and the wood cutters (_dendrophori_). The organization of these colleges was everywhere encouraged because their members had the obligation of acting as a local fire brigade, but in the exercise of their trades they were not in the service of their respective communities.

It was in the latter part of the third century, when the whole fabric of society seemed threatened with destruction, that the state, with the object of maintaining organized industry and commerce, placed upon the properties of the members of the various colleges in Rome and in the municipalities the burden of maintaining the work of these corporations; a burden which soon came also to be laid upon the individual members thereof. In this way the plebeian class throughout the empire sank to the status of laborers in the service of the state.

VI. THE COLONATE OR SERFDOM

While the municipal decurions, and the Roman and municipal plebs had thus sunk to the position of fiscally exploited classes, the bulk of the agricultural population of the empire had fallen into a species of serfdom known to the Romans as the colonate, from the use of the word _colonus_ to denote a tenant farmer. This condition arose under varying circumstances in the different parts of the empire, but its development in Italy and the West was much influenced by the situation in some of the eastern provinces, where the peasantry were in a state of quasi-serfdom prior to the Roman conquest.

Egypt. In Egypt under the Ptolemies the inhabitants of village communities were compelled to perform personal services to the state, including the cultivation of royal land not let out on contract, each within the boundaries of the community in which he was registered (his _idia_). With the introduction of Roman rule this theory of the _idia_ was given greater precision. All the land of each village had to be tilled by the residents thereof, either as owners or tenants. At times, indeed, the inhabitants of one village might be forced to cultivate vacant lands at a distance. During the seasons of sowing and harvest the presence of every villager was required in his _idia_. The crushing weight of taxation, added to the other obligations of the peasantry caused many of them to flee from their _idia_, and this led to an increasing amount of unleased state land. As a large number of private estates had developed, chiefly because of the encouragement extended to those who brought waste land under cultivation, the government forced the property holders to assume the contracts for the vacant public lands in their districts. With the introduction of the municipal councils in the course of the third century, these were made responsible for the collection of the taxes of each nome. To enable the councillors, who were property holders, to fulfill this obligation, their tenants were forbidden to leave their holdings. And so, as state or private tenants, the peasants came to be bound to the soil.

The development in Asia Minor was similar. There the royal lands of the Seleucids became the public land of Rome, and out of this the Roman magnates of the later Republic developed vast estates which in turn were concentrated in the hands of Augustus. These imperial domains were cultivated by peasants, who lived in village

communities and paid a yearly rental for the land they occupied. The rest of the land of Asia formed the territories dependent upon the Greek cities, and was occupied by a native population who were in part free peasants settled in villages. On the imperial domains the village came to be the _idia_ to which the peasant was permanently attached for the performance of his liturgies or obligatory services, while on the municipal territories the agricultural population was bound to the soil as tenants of the municipal landholders, the local senators, upon whom had been placed the responsibility for the payment of the taxes of their municipalities.

Africa. In Africa the transformation was effected differently. There, at the opening of the principate, outside of the municipal territories, the land fell into _ager publicus_, private estates of Roman senators and imperial domains. Under the early emperors, particularly Nero, the bulk of the private estates passed by legacy and confiscation into the control of the princeps, who also took over the administration of the public domain in so far as it was not absorbed in new municipal areas. This domain land was divided into large districts (_tractus_, _regiones_) which were directly administered by imperial procurators. Each district comprised a number of estates (_saltus_, _fundi_). Whatever slave labor had at one time been used in African agricultural operations was, by the early principate, largely displaced by free laborers, called _coloni_. These _coloni_ were either Italian immigrants or tributary native holders of the public land.

The estates were usually managed as follows. The procurators leased them to tenant contractors (_conductores_), who retained a part of their lease holds under their own supervision, and sublet the remainder to tenant farmers (_coloni_). The relation of these _coloni_ to the contractors as well as to the owners of private estates or their bailiffs (_vilici_), was regulated by an edict of a certain Mancia, apparently a procurator under the Flavians. By this edict the _coloni_ were obliged to pay a definite proportion of their crop as rental, and in addition to render a certain number of days' work, personally and with their teams, on the land of the person from whom they held their lease. The _coloni_ comprised both landless residents on the estates and small landholders from neighboring villages. They were encouraged to occupy vacant domain land and bring it under cultivation. Over plough land thus cultivated they obtained the right of occupation for life, but orchard land became an hereditary possession, while in both cases the occupant was required to pay rental in kind to the state. Hadrian also tried to further the development of peasant landholders by permitting the _coloni_ to occupy any lands not tilled by the middlemen, and giving them rights of possession over all types of land. However, the forced services still remained and these constituted the chief grievance of the _coloni_. And here the government was on the horns of a dilemma, for if the middlemen were restrained from undue exactions often large areas remained untilled, and if the _coloni_ were oppressed they absconded and left their holdings without tenants.

It was in the course of the third century that the failure to create an adequate class of independent small farmers caused the state to fall back upon the development of large private estates as the only way of keeping the land under cultivation and maintaining the public revenues. As a result of this change of policy the middlemen

were transformed from tenants into proprietors, and, like the landholders of Egypt, they were forced to assume the lease of vacant public land adjacent to their estates. But to make it possible for the proprietors to fulfill this obligation the state had to give them control over the labor needed to till the soil. Hence the _coloni_ were forbidden to leave the estates where they had once established themselves as tenants. In Africa the estate became the _idia_ or _origo_ corresponding to the village in Egypt. In the municipal territories the landholders of the towns played the rôle of the middlemen on the imperial domains.

Italy. In Italy, unlike Africa, conditions upon the private, rather than the imperial, domains determined the rise of the colonate. At the close of the Republic the land of Italy was occupied by the _latifundia_ and peasant holdings, the former of which were by far the most important factor in agricultural life. It will be recalled that the _latifundia_ were great plantations and ranches whose development had been facilitated by an abundant supply of cheap slave labor. However, even in the first century B. C. these plantations were partly tilled by free peasants, either as tenants or day laborers, and under the principate there was a gradual displacement of slaves by free _coloni_. The causes for this transformation lay in the cutting off of the main supply of slaves through the suppression of the slave-trading pirates and the cessation of aggressive foreign wars, the decrease in the number of slaves through manumissions, the growth of humanitarian tendencies which checked their ruthless exploitation, and the realization that the employment of free labor was in the long run more profitable than that of slaves, particularly when the latter were becoming increasingly expensive to procure. The _coloni_ worked the estates of the landowners for a certain proportion of the harvest. As elsewhere, in Italy it was fiscal necessity which converted the free _coloni_ into serfs. With the spread of waste lands, due partly to a decline of the population, the state intervened on behalf of the landlords as it had in the provinces and attached the peasants to the domain where they had once been voluntary tenants. Elsewhere throughout the empire, although the process cannot be traced in detail, a similar transformation took place.

Perhaps the ultimate responsibility for the development of the colonate may rest upon the attempt of the imperial government to incorporate within the empire vast territories in a comparatively low state of civilization, and upon the fiscal system whereby it was designed that the expenses imposed by this policy should be met. In the West the administration strove to develop a strong class of prosperous peasants as state tenants; in the East its object was to maintain this class which was already in existence. But the financial needs of the state caused such a heavy burden to be laid upon the agricultural population that the ideal of a prosperous free peasantry proved impossible of realization. The ravages of war and plague in the second and third centuries also fell heavily upon the peasants. As a last resource to check the decline of agriculture the government placed the small farmer at the disposal of the rich landlord and made him a serf. The results were oppression, poverty, lack of initiative, a decline in the birth rate, flight and at the end an increase of uncultivated, unproductive land. The transplanting of conquered barbarians within the empire swelled the class of the _coloni_ but proved only a partial palliative to the general shrinkage of the agricultural elements. But the converse to the development of the

colonate was the creation of a powerful class of landholders who were the owners of large domains exempt from the control of municipal authorities.

CHAPTER XX

RELIGION AND SOCIETY

I. SOCIETY UNDER THE PRINCIPATE

Imperial Rome. Roman society under the Principate exhibits in general the same characteristics as during the last century of the Republic. Rome itself was a thoroughly cosmopolitan city, where the concentration of wealth and political power attracted the ambitious, the adventurous and the curious from all lands. Whole quarters were occupied by various nationalities, most prominent among whom were the Greeks, the Syrians, and the Jews, speaking their own languages and plying their native trades. With the freeborn foreign population mingled the thousands of slaves and freedmen of every race and tongue. During the first and second century the population of Rome must have been in the neighborhood of one million, but in the third century it began to decline as a result of pestilence and the general bankruptcy of the empire. Inevitably in such a city there were the sharpest contrasts between riches and poverty, and the luxurious palaces of the wealthy were matched by the squalid tenements of the proletariat. In outward appearance Rome underwent a transformation which made her worthy to be capital of so vast an empire. This was largely due to the great number of public buildings erected by the various emperors and to the lavish employment of marble in public and private architecture from the time of Augustus. The temples, basilicas, fora, aqueducts, public baths, theatres, palaces, triumphal arches, statues, and parks combined to arouse the enthusiastic admiration of travelers and the pride of its inhabitants. But, although after the great fire of 64 A. D. many improvements were made in the plan of the city, restrictions placed upon the height of buildings, and fireproof construction required for the lower stories, still the streets remained narrow and dingy, the lofty tenements were of flimsy construction, in perpetual danger of collapse, and devastating conflagrations occurred periodically.

The task of feeding the city plebs and providing for their entertainment was a ruinous legacy left by the Republic to the principate. Although the number of recipients of free corn was not increased after Augustus, the public spectacles became ever more numerous and more magnificent. Under Tiberius eighty-seven days of the year were regularly occupied by these entertainments but by the time of Marcus Aurelius there were one hundred and thirty-five such holidays. In addition came extraordinary festivals to celebrate special occasions, like the one hundred and twenty-three day carnival given by Trajan at his second Dacian triumph in 106 A. D. The spectacles were of three main types; the chariot races in the circus, the gladiatorial combats and animal baiting in the amphitheatre, and the dramatic and other performances in the theatre. The expense of these celebrations fell upon the

senatorial order and the princeps. Indeed the most important function of the consulship, praetorship and, until its disappearance in the third century, the aedileship, came to be the celebration of the regular festivals. The sums provided for such purposes by the state were entirely inadequate and so the cost had to be met largely from the magistrates' private resources. The extraordinary spectacles were all given at the expense of the princeps who also at times granted subventions to favored senators from the imperial purse. The cost of the public shows placed as heavy a drain upon the fortunes of the senatorial order as did the _summa honoraria_ upon the holders of municipal offices.

A new feature of Roman society under the principate was the growth of the imperial court. In spite of the wishes of Augustus and some of his successors to live on a footing of equality with the rest of the nobility, it was inevitable that the exceptional political power of the princeps should give a corresponding importance to his household organization. Definite offices developed within the imperial household not only for the conduct of public business but also for the control of slaves and freedmen in the domestic service of the princeps. The chief household officials were the chamberlain _a cubiculo_ and the chief usher (_ab admissione_). Because of their intimate personal association with the princeps their influence over him was very great, and as a rule they did not hesitate to use their position to enrich themselves at the expense of those who sought the imperial favor. From among the senators and equestrians the princeps chose a number of intimate associates and advisors who were called his "friends." When forming part of his cortege away from Rome they were known as his companions (_comites Augusti_). In connection with the imperial audiences a certain degree of ceremonial developed, with fixed forms of salutation which differentiated the rank and station of those attending these functions. In the society of the capital the personal tastes of the princeps set the fashion of the day.

Clients. Characteristic of the times was the new form of clientage which was a voluntary association of master and paid retainer. Under the republic eminent men had throngs of adherents to greet them at their morning reception and accompany them to the forum. It had now become obligatory for practically every man of wealth to maintain such a retinue, which should be at his beck and call at all hours of the day and be prepared to serve him in various ways. In return the patron helped to support his clients with fees, food, and gifts of clothing, and rendered them other favors. The clients were recruited partly from freedmen, partly from citizens of low birth, and partly from persons of the better class who had fallen upon evil days. In general the lot of these pensioners does not seem to have been a very happy one—even the slaves of their patrons despised them—and their large numbers are to be attributed to the superior attractions of city over country life, and to the stigma which in Rome rested upon industrial employment.

Slaves and freedmen. In the early principate slave-holding continued on as large a scale as in the late republic. The palaces of the wealthy in Rome could count slaves by hundreds; on the larger plantations they were numbered by thousands. Trained slaves were also employed in great numbers in various trades and industries. Their treatment varied according to their employment and the character of their owners,

but there was a steady progress towards greater humanitarianism, largely due to the influence of philosophic doctrines. In the age of the Antonines this produced legislation which limited the power of the master over his slave. As time went on the number of slaves steadily diminished, in part because of the cessation of continual foreign wars after the time of Augustus, in part because of the great increase of manumissions. Not only were large numbers set free at the death of their owners as a final act of generosity, but also many found it profitable to liberate their slaves and provide them with capital to engage in business for themselves. Many slaves also had good opportunities for accumulating a small store of money (_peculium_) with which they could purchase their freedom.

The result of these wholesale manumissions was a tremendous increase in the freedmen class. Foreseeing the effect that this would have upon the Roman citizen body, Augustus endeavored to restrict the right of emancipation. By the _lex Fufia Caninia_ (2 B. C.) testamentary manumissions were limited to a fixed proportion of the total number of slaves held by the deceased, and not more than one hundred allowed in any case. The _lex Aelia Sentia_ (4 A. D.) placed restrictions upon the master's right of manumission during his lifetime, and the Junian law of about the same time prevented slaves liberated without certain formalities from receiving Roman citizenship although granting them the status of Latins. Even freedmen who became Romans lacked the right of voting or of holding office in Rome or the municipalities, unless they received from the princeps the right to wear the gold ring which gave them the privileges of freeborn citizens. In spite of these laws the number of the freedmen grew apace, and there is no doubt that in the course of the principate the racial characteristics of the population of Rome and of the whole peninsula of Italy underwent a complete transformation as a result of the infusion of this new element, combined with the emigration of Italians to the provinces.

The importance of the rôle played by the freedmen in Roman society was in proportion to their numbers. From them were recruited the lower ranks of the civil service, they filled every trade and profession, the commerce of the empire was largely in their hands, they became the managers of estates and of business undertakings of all sorts. The eager pursuit of money at all costs was their common characteristic, and "freedman's wealth" was a proverbial expression for riches quickly acquired. The more successful of their class became landholders in Italy and aped the life and manners of the nobility. Their lack of good taste, so common to the _nouveaux riches_ of all ages, afforded a good target for the jibes of satirists and is caricatured in the novel of Petronius. We have already seen the influence of the few among them who by the emperors' favor attained positions of political importance. Despise the freedmen though they might, the Romans found them indispensable for the conduct of public and private business.

Commerce and industry. The restoration of peace within the empire, the suppression of piracy, the extension of the Roman military highways throughout all the provinces, the establishment of a single currency valid for the whole empire, and the low duties levied at the provincial customs frontiers combined to produce an hitherto unexampled development of commercial enterprise. Traders from all parts of

the provinces thronged the ports of Italy, and one merchant of Hierapolis in Phrygia has left a record of his seventy-two voyages there. But Roman commerce was not confined within the Roman borders, it also flourished with outside peoples, particularly those of the East. From the ports of Egypt on the Red Sea large merchant fleets sailed for southern Arabia and India, while a brisk caravan trade through the Parthian and Bactrian kingdoms brought the silks of China to the Roman markets. Even the occasional presence of Roman merchants in China is vouched for by Chinese records. Among all the races of the empire the most active in these mercantile ventures were the Syrians, whose presence may be traced not only in the commercial centers of the East, but also in the harbors of Italy and throughout all the western provinces.

The increased opportunities for trading stimulated the development of manufacturing, for not only could raw materials be more easily procured but towns favorably situated for the manufacture of particular types of goods could find a wider market for their products. However, industrial organization never attained a high degree of development. In the production of certain wares, such as articles of bronze, silver, glass, and, especially, pottery and bricks, the factory system seems to have been employed, with a division of labor among specialized artisans. In general, however, this was not the case and each manufactured article was the product of one man’s labor. In Italy, and probably throughout the western provinces, the bulk of the work of this sort was done by slaves and freedmen.

At the same time the art of agriculture had been developed to a very high degree, and Columella, an agricultural writer of the time of Nero, shows a good knowledge of the principles of fertilization and rotation of crops.

However, this material prosperity, which attained its height early in the second century of our era, declined from reasons which have already been described until the whole empire reached a state of economic bankruptcy in the course of the third century. The progressive bankruptcy of the government is shown by the steady deterioration of the coinage. Under Nero the denarius, the standard silver coin, was first debased. This debasement continued until under Septimius Severus it became one half copper. Caracalla issued a new silver coin, the Antoninianus, one and a half times the weight of the denarius of the day. Both these coins rapidly deteriorated in quality until they became mere copper coins with a wash of silver. Aurelian made the first attempt to correct this evil by issuing only the Antoninianus and giving this a standard value.

To pass a moral judgment upon society under the principate is a difficult task. The society depicted in the satires of Juvenal and in Martial, in the court gossip of Suetonius, or in the polemics of the Christian writers seems hopelessly corrupt and vicious. But their picture is not complete. The letters of Pliny reveal an entirely different world with a high standard of human conduct, whose ideals are expressed in the philosophic doctrines of Seneca and Marcus Aurelius. And the funerary inscriptions from the municipalities, where life was more wholesome and simple than in the large cities, pay a sincere tribute to virtue in all its forms. The luxurious extravagance of imperial Rome has been equalled and surpassed in more recent

times, and, apart from the vices of slavery and the arena, modern society has little wherewith to reproach that of the principate.

II. THE INTELLECTUAL WORLD

Literature. The principate had two literatures; one Greek, the other Roman. But the forms of literary production were the same in each, and the Roman authors took rank with those of Greece in their respective fields. For the Romans could boast that they had adapted the Latin tongue to the literary types of the older culture world, while preserving in their work a spirit genuinely Roman.

The Augustan age. The feeling of relief produced by the cessation of the civil wars, and the hopes engendered by the policy of Augustus inspired a group of writers whose genius made the age of Augustus the culminating point in the development of Roman poetry, like the age of Cicero in Roman prose. Foremost among the poets of the new era was Virgil (70–19 B. C.), the son of a small landholder of Mantua, whose _Aeneid_, a national epic, the glorification alike of Rome and of the Julian house, placed him with Homer in the front rank of epic poets for all time. His greatest contemporary was Horace (65–8 B. C.), the son of a freedman from South Italy. It was Horace who first wrote Latin lyrics in the complicated meters of Greece, and whose genial satire and insight into human nature have combined with his remarkable happiness of phrase to make him the delight of cultivated society both in antiquity and modern times. The leading elegiac poets were Propertius, Tibullus and Ovid (43 B. C.–17 A. D.). In his _Fasti_ and _Metamorphoses_ the latter recounted with masterly narrative skill the legends of Greek and Roman mythology. His elegies reveal the spirit of the pleasure-seeking society of new Rome and show the ineffectiveness of the attempt of Augustus to bring about a moral regeneration of the Roman people. This, probably, was the true ground for his banishment from Rome. Livy (59 B. C.–17 A. D.) was the one prose writer of note in the Augustan age. His history of Rome is a great work of art, an _Aeneid_ in prose, which celebrated the past greatness of Rome and the virtues whereby this had been attained—those virtues which Augustus aimed to revive.

The age of Nero. From Augustus to Nero there are no names of note in Roman literature, but under the latter came a slight reawakening of literary productivity. Seneca (4 B. C.–65 A. D.), a Spaniard from Corduba, Nero’s tutor, minister and victim, is best known as the exponent of the practical Stoic religion and the only Roman tragedian whose works have survived. His nephew Lucan (39–65 A. D.) portrayed in his epic, the _Pharsalia_, the struggle of the republicans against Julius Caesar. His work shows a reawakening of a vain republican idealism and is the counterpart to the Stoic opposition in the senate. Petronius (d. 66 A. D.), the arbiter of the refinements of luxury at Nero’s court, displayed his originality by giving, in the form of a novel, a skilful and lively picture of the society of the freedmen in the Greek municipalities of South Italy.

The Flavian era. Under the Flavians, Pliny the Elder (23–79 A. D.), a native of Cisalpine Gaul, compiled his _Natural History_, which he aimed to make an

encyclopaedia of information on the whole world of nature. It is a work of monumental industry but displays a lack of critical acumen and scientific training. At about the same time there taught in Rome the Spaniard Quintilian (d. 95 A. D.), who wrote on the theory and practice of rhetoric, expressing in charming prose the Ciceronian ideal of life and education. His countryman Martial (d. 102 A. D.) gave in satiric epigrams glimpses of the meaner aspects of contemporary life.

Tacitus and his contemporaries. The freer atmosphere of the government of Nerva and Trajan allowed the senatorial aristocracy to voice feelings carefully suppressed under the terror of Domitian. Their spokesman was Tacitus (55–116 A. D.), a man of true genius, who ranks next to Thucydides as the representative of artistic historical writing in ancient times. His _Treatise on the Orators_, his _Life of Agricola_, and his descriptive account of the German peoples (_Germania_) were preludes to two great historical works, the _Annals_ and the _Histories_, which together covered the period from 14–96 A. D. His attitude is strongly influenced by the persecutions of senators under Domitian, and is the expression of his personal animosity and that of the descendants of the older republican nobility towards the principate in general. A friend of Tacitus, the younger Pliny (62–113 A. D.), imitated Cicero in collecting and publishing his letters. This correspondence is valuable as an illustration of the life and literary diletantism of educated circles of the day, as also for the light it throws upon the administrative policies of Trajan. An embittered critic of the age was the satirist Juvenal (d. about 130 A. D.), from Aquinum in Italy, who wrote from a stoical standpoint but with little learning and narrow vision. Somewhat later the first literary history of Rome was written by Suetonius (75–150 A. D.), who is better known as the author of the _Lives of the Caesars_ (from Julius to Domitian), a series of gossipy narratives which set the style for future historical writing in Rome.

With Hadrian begins the period of archaism in Roman literature, that is, an artificial return to the Latin of Cato, Ennius and Plautus, an unmistakable symptom of intellectual sterility.

Provincial literature. The progress of Romanization in the provinces is clearly marked by the participation of provincials in the literary life of Rome. From the Cisalpine, from Narbonese Gaul, and from Spain, men with literary instincts and ability had been drawn to the capital as the sole place where their talents would find recognition. But gradually some of the provinces developed a Latin culture of their own. The first evidences of this change came from the age of the Antonines, when a Latin literature made its appearance in the province of Africa. Its earliest representative was the sophist Apuleius, the author of the romance entitled _The Golden Ass_.

Christian literature. It was in Africa also that a Latin Christian literature first arose, and it was the African Christian writers who made Latin the language of the church in Italy and the West. Of these Christian apologists the earliest and most influential was Tertullian of Carthage, whose literary activity falls in the time of the Severi. Cyprian and Arnobius continued his task in the third century. In Minucius Felix, a contemporary of Tertullian, the Christian community at Rome found an able defender of the faith.

Jurisprudence. In all other sciences the Romans sat at the feet of the Greeks, but in that of jurisprudence they displayed both independence and originality. The growth of Roman jurisprudence was not hampered but furthered by the establishment of the principate, for the development of a uniform administrative system for the whole empire called for the corresponding development of a uniform system of law. The study of law was stimulated by the practice of Augustus and his successors who gave to prominent jurists the right of publicly giving opinions (_jus publice respondendi_) by his authority on the legal merits of cases under trial. A further encouragement was given by Hadrian's organization of his judicial council. The great service of the jurists of the principate was the introduction into Roman law of the principles of equity founded on a philosophic conception of natural law and the systematic organization and interpretation of the body of the civil law. Roman jurisprudence reached its height between the accession of Hadrian and the death of Severus Alexander. The chief legal writers of this period were Julian in the time of Hadrian, Gaius in the age of the Antonines, his contemporary Scaevola, the three celebrated jurists of the time of the Severi—Papinian, Paul and Ulpian, all pretorian prefects,—and lastly Modestine, who closes the long line of classic juris-consults.

Greek literature. If we except the brief period of the Augustan age, the Greek literature of the principate stands both in quantity and quality above the Latin. Even Augustus had recognized Greek as the language of government in the eastern half of the empire, and with the gradual abandonment of his policy of preserving the domination of the Italians over the provincials Greeks stood upon the same footing as the Latin speaking provincials in the eyes of the imperial government. In Rome the Greek author received the same recognition as his Roman _confrère_. Greek historians, geographers, scientists, rhetoricians and philosophers wrote not only for Greeks, but for the educated circles of the whole empire. And it was in Greek that the princeps Marcus Aurelius chose to write his Meditations. Nor should it be forgotten that Greek was the language of the early Christian writers, beginning with the Apostle Paul. By the opening of the third century the champions of the new faith had begun to rank among the leading authors of the day in the East as well as in the West.

*Plutarch (c. 50–120 A. D.) and Lucian (c. 125–200 A. D.)**.* The best known names in the Greek literature of the principate are Plutarch and Lucian. Plutarch's _Parallel Lives_ of famous Greeks and Romans possess a perpetual freshness and charm. Lucian was essentially a writer of prose satires, a journalist who was "the last great master of Attic eloquence and Attic wit." In the realm of science, Ptolemy the astronomer, and Galen the student of medicine, both active in the second century, profoundly influenced their own and subsequent times.

Philosophy. As we have seen, the doctrines of Stoicism continued to appeal to the highest instincts of Roman character. Besides Seneca and Marcus Aurelius this creed found a worthy exponent in the ex-slave Epictetus, who taught between 90 and 120 A. D. at Nicopolis in Epirus. With Plotinus (204–270 A. D.), Greek philosophy became definitely religious in character, resting upon the basis of revelation and belief, not upon that of reason.

Art. Roman art found its chief inspiration in, and remained in close contact with, Roman public life. The artists of the principate may well have been Greeks, but they wrought for Romans and had to satisfy Roman standards of taste. Realism and careful attention to details may be said to be the two great characteristics of Roman art. This is true both of Roman sculpture, which excelled in statues, portrait busts, and the bas-reliefs depicting historical events with which public monuments were richly decorated, and of the repoussé and relief work which adorned table ware and other articles of silver, bronze and pottery. The Roman fondness for costly decorations is well illustrated by the elaborateness of the frescoes and the mosaics of the villas of Pompeii, and other sites where excavations have revealed the interiors of Roman public and private buildings. The erection of the many temples, basilicas, baths, aqueducts, bridges, amphitheatres and other structures in Rome, Italy and other provinces supplied a great stimulus to Roman architecture and engineering. It was in the use of the arch and the vault, particularly the vault of concrete, that the Roman architects excelled, and their highest achievements were great vaulted structures like the Pantheon and the Baths of Caracalla. The most striking testimony to the grandeur of Rome comes from the remains of Roman architecture in the provinces—from such imposing ruins as the Porta Nigra of Trèves, the theatre at Orange, the Pont du Gard near Nîmes, the bridge over the Tagus at Alcantara and the amphitheatres of Nîmes in France and El-Djemm in Tunisia. But, like the literature, the Roman art of the principate in time experienced a loss of creative power. It reached its height under the Flavians and Trajan and then a steady deterioration set in.

Causes of intellectual decline. The third century A. D. witnessed a general collapse of ancient civilization, no less striking in its cultural than in its political and economic aspects. This cultural decline was the result of political causes which had been gradually undermining the foundations of a vigorous intellectual life. The culture of Greece culminated in its scientific achievements of the third century B. C. At that time in comparison with the Greeks the neighboring, peoples were at best semi-barbarians; in the eastern Mediterranean the Greeks were the dominant race, still animated by a strong love of political freedom. But the Roman conquest with its ruthless exploitation of the provinces ruined the Greek world economically and broke the morale of the Greek peoples, forcing them to seek their salvation in fawning servility to Rome. The consequence was that as the Greeks came under the dominion of Rome their creative impulses withered, their intellectual progress ceased and their eyes were turned backward upon their past achievements. And the Italians themselves were on too low an intellectual level to develop a culture of their own. They had not progressed beyond the adoption of certain aspects of Greek culture before the century of civil wars between 133 and 30 B. C. resulted in the establishment of a type of government which gradually crushed out the spirit of initiative in the Latin speaking world. The material prosperity and peace during the first two centuries of the principate made possible the diffusion of a uniform type of culture throughout the empire as a whole, but after the age of Augustus this is characterized both in the East and in the West by its imitation of the past and its lack of creative power. The third century A. D. with its long period of civil war, foreign invasions, and economic chaos, dealt a fatal blow to the material basis of ancient

civilization. The collapse of Graeco-Roman culture was rapid and complete, resembling the breakdown of the civilization of the Aegean Bronze age toward the close of the second millennium before the Christian era. Culturally, the fourth century A. D. belongs to the Middle Ages.

III. THE IMPERIAL CULT AND THE ORIENTAL RELIGIONS IN ROMAN PAGANISM

The religious transformation of the Roman world. The religious transformation of the Roman world during the principate was fully as important for future ages as its political transformation. This religious development consisted in the diffusion throughout the empire of a group of religions which originated in the countries bordering the eastern shores of the Mediterranean and hence are generally known as Oriental cults. And among these oriental religions are included both Judaism and Christianity.

The state cults. However, the worship of the divinities of Graeco-Roman theology by no means died out during the first three centuries of the Christian era. It continued to flourish in the state cult of Rome, and the municipal cults of the Italian and provincial towns. With the romanization of the semi-barbarous provinces Graeco-Roman deities displaced or assimilated to themselves the gods of the native populations. Druidism, the national religion of Gaul and Britain, was suppressed chiefly because it fostered a spirit of resistance to Roman rule. But the most widespread and vigorous of the state cults was the worship of the princeps.

The imperial cult. We have already discussed the establishment of the imperial cult by Augustus, as a visible expression of the loyalty of the provincials and their acknowledgment of the authority of Rome and the princeps. We have also seen how this cult was perpetuated by the provincial councils organized for that purpose. After the death of Augustus the imperial cult in the provinces gradually came to include the worship of both the ruling Augustus and the _Divi_, or deceased emperors, who had received deification at the hands of the Senate. This practise was established in all the eastern provinces after the time of Claudius, and in the West under the Flavians. In Rome where the cult of the ruling princeps was not practised, Domitian converted the temple of Augustus into a temple of the _Divi_ or the Caesars.

The pagan Oriental cults. The pagan Oriental cults whose penetration of the European provinces is so marked a feature in the religious life of the principate were the cults of the peoples of western Asia and Egypt which had become Hellenized and adapted for world expansion after Alexander’s conquest of the Persian empire. From this time onward they spread throughout the Greek culture world but it was not until the establishment of the world empire of Rome with its facilities for, and stimulus to, intercourse between all peoples within the Roman frontiers that they were able to obtain a foothold in western Europe. Their penetration of Italy began with the official reception of the cult of the Great Mother of Pessinus at Rome in 205 B. C., but the Roman world as a whole held aloof from them until the close of the republic. However, during the first two centuries of the principate they gradually made their

way over the western parts of the empire.

The expansion of the Oriental cults followed the lines of the much frequented trade routes along which they were carried by travelers, merchants and colonies of oriental traders. The army cantonments were also centers for their diffusion, not only through the agency of troops recruited in the East but also through detachments which had seen service there in the course of the numerous wars on the eastern frontiers. Likewise the oriental slaves were active propagandists of their native faiths.

The explanation of the ready reception of these cults among all classes of society is that they guaranteed their adherents a satisfaction which the official religions were unable to offer. The state and municipal cults were mainly political in character, and with the disappearance of independent political life they lost their hold upon men who began to seek a refuge from the miseries of the present world in the world of the spirit and the promise of a future life. This want the Oriental cults were able to meet with the doctrines of a personal religion far different from the formal worship of the Graeco-Roman deities.

Certain characteristics of doctrine and ritual were common to the majority of the Oriental cults. They had an elaborate ritual which appealed both to the senses and to the emotions of the worshippers. By witnessing certain symbolic ceremonies the believer was roused to a state of spiritual ecstasy in which he felt himself in communion with the deity, while by the performance of sacramental rites he felt himself cleansed from the defilements of his earthly life and fitted for a purer spiritual existence. A professional priesthood had charge of the worship, ministered to the needs of individuals, and conducted missionary work. To an age of declining intellectual vigor, when men gave over the attempt to solve by scientific methods the riddle of the universe, they spoke with the authority of revelation, giving a comforting theological interpretation of life. And they appealed to the conscience by imposing a rigid rule of conduct, the observance of which would fit the believer for a happier existence in a future life.

The most important of these oriental divinities were the Great Mother of Pessinus, otherwise known as Cybele, worshipped in company with the male deity Attis; the Egyptian pair Isis and Serapis; Atayatis or the Syrian goddess, the chief female divinity of North Syria; a number of Syrian gods (Ba’als) named from the site of their Syrian shrines; and finally Mithra, a deity whose cult had long formed a part of the national Iranian religion. Towards all these cults the Roman state displayed wide toleration, only interfering with them when their orgiastic rites came into conflict with Roman conceptions of morality. But in spite of this toleration it required a long time before the conservative prejudices of the upper classes of Roman society were sufficiently undermined to permit of their participation in these foreign rites. For one hundred years after the introduction of the worship of the Magna Mater Romans were prohibited from enrolling themselves in the ranks of her priesthood. A determined but unsuccessful attempt was made by the Senate during the last century of the republic to drive from Rome the cult of Isis, the second of these religions to find a home in Italy, and in 42 B. C. the triumvirs erected a temple to this goddess. Augustus, however, banished her worship beyond the _pomerium_. But this

restriction was not enforced by his successors, and by 69 A. D. the cult of the Egyptian goddess was firmly established in the capital. The various Syrian deities were of less significance in the religious life of the West, although as we have seen Elagabalus set up the worship of one of them, the Sun god of Emesa, as an official cult at Rome.

The Oriental cult which in importance overshadowed all the rest was Mithraism, one of the latest to cross from Asia into Europe. In Zoroastrian theology Mithra appears as the spirit who is the chief agent of the supreme god of light Ormuzd in his struggle against Ahriman, the god of darkness. He is at the same time a beneficent force in the natural world and in the moral world the champion of righteousness against the powers of evil. Under Babylonian and Greek influences Mithra was identified with the Sun-god, and appears in Rome with the title the Unconquered Sun-god Mithra (_deus invictus sol Mithra_). Towards the close of the first century A. D. Mithraism began to make its influence felt in Rome and the western provinces, and from that time it spread with great rapidity. Mithra, as the god of battles, was a patron deity of the soldiers, who became his zealous missionaries in the frontier camps. His cult was also regarded with particular favor by the emperors, whose authority it supported by the doctrine that the ruler is the chosen of Ormuzd and an embodiment of the divine spirit. It is not surprising then that Aurelian, whose coins bore the legend _dominus et deus natus_ (born god and lord), made the worship of the Unconquered Sun-god the chief cult of the state.

Philosophy. Attention has already been called to the value of Stoicism in supplying its adherents with a highly moral code of conduct. Other philosophical systems, notably Epicureanism, likewise inculcated particular rules of life. But the philosophical doctrines which were best able to hold their own with the new religions were those of Neoplatonism and Neopythagoreanism, which came into vogue in the course of the second century, and exhibited a combination of mysticism and idealism well suited to the spirit of the age.

Astrology and magic. Throughout the principate all classes of society were deeply imbued with a superstitious fatalism which caused them to place implicit belief in the efficacy of astrology and magic. Chaldean and Egyptian astrologers enjoyed a great reputation, and were consulted on all important questions. They were frequently banished from Rome by the emperors who feared that their predictions might give encouragement to their enemies. However, these very emperors kept astrologers in their own service, and the decrees of banishment never remained long in force. The almost universal belief in miracles and oracles caused the appearance of a large number of imposters who throve on the credulity of their clients. One of the most celebrated of these was the Alexander who founded a new oracle of Aesculapius at Abonoteichus in Paphlagonia, the fame of which spread throughout the whole empire and even beyond its borders. In his exposé of the methods employed by this false prophet, the satirist Lucian gives a vivid picture of the depraved superstition of his time.

At the close of the principate the pagan world presented a great confusion of religious beliefs and doctrines. However, the various pagan cults were tolerant one of

another, for the followers of one god were ready to acknowledge the divinity of the gods worshipped by their neighbors. On the contrary, the adherents of Judaism and Christianity refused to recognize the pagan gods, and hence stood in irreconcilable opposition to the whole pagan world.

IV. CHRISTIANITY AND ITS RELATION TO THE ROMAN STATE

The Jews of the Roman empire. Alexander the Great's conquest of the Near East had thrown open to the Jews the whole Graeco-Macedonian world, and Jewish settlements rapidly appeared in all its important commercial centers. The Jewish colonies were encouraged by the Hellenistic monarchs who granted them immunity from military service, protection in the exercise of their religion, and a privileged judicial status in the cities where they were established. In course of time the number of Jews in these _diaspora_ became much greater than in Judaea itself. Although the Jews resident outside of Syria had adopted the Greek language, and were influenced in many ways by their contact with Hellenistic culture, they still formed part of the religious community presided over by the High Priest at Jerusalem, and in addition to the annual contribution of two drachmas to the temple of Jehovah, every Jew was expected to visit Jerusalem and offer up sacrifice in the temple at least once in the course of his life. Moreover, they were active in proselytizing and made many converts among the Greeks and other peoples with whom they came into contact. However, their connection with Judaea was purely religious and not political in character.

The privileged status which the Jews had enjoyed in the Hellenistic states was recognized by the Romans and was specifically confirmed by Augustus, although this policy caused considerable dissatisfaction among their Greek fellow townsmen. Furthermore, in deference to the peculiarity of their religion, the Jews were not required to participate in the imperial cult. However, the imperial government made no attempt to foster settlements of the Jews in the western provinces, and during the early principate the only considerable Jewish colony west of the Adriatic was that in Rome. With the exception of Caligula, who tried to force the imperial cult upon the Jews, the successors of Augustus did not interfere with the Jewish religion, except to forbid its propaganda. The expulsions of the Jews from Rome under Tiberius and Claudius were not religious persecutions but police measures taken for the maintenance of good order within the city.

Christianity and Judaism. The Christian religion had its origin in Judaea as a result of the teachings of Jesus of Nazareth, who was crucified by the Roman authorities in the principate of Tiberius, after having been condemned for blasphemy by the Sanhedrin, the Jewish high court for the enforcement of the law of Moses. From Judaea Christianity spread to the Jewish _diaspora_ through the missionary activity of the disciples and other followers of Jesus, particularly the Apostle Paul. Although the Christian propaganda was not confined to these Jewish communities, it was among them that the first Christian congregations arose, and this, with the Jewish origin of the new faith, caused the Christians to be regarded by the Roman

government as a sect of the Jews. In 49 A. D. Claudius banished the Jews from Rome because of disorders among them between the Christians and the adherents of the older faith. Nero's persecution of the Christians in 64 A. D. was, as we have seen, not undertaken on religious grounds, and was perhaps due to Jewish instigation. On the whole, the Christians benefited by the attitude of Rome towards their sect, for it gave them the benefit of the immunities which the adherents of Judaism enjoyed.

Although the destruction of Jerusalem in 70 A. D. brought about the predominance of the non-Jewish element in the Christian ranks, until the end of the rule of the Flavians the Roman official world made no distinction between Jew and Christian. Domitian apparently exacted the _didrachma_ from both alike. Towards the close of his reign, in 95 A. D., this princeps executed or banished a number of Romans of senatorial rank on charges of atheism or conversion to Judaism. Among the victims were some who professed Christianity. At the same time the Christian communities of Asia Minor seem to have suffered a rather serious persecution on the part of the state. However, this may have been due to disturbances between the Christian and the non-Christian elements in the Greek cities, and there is no definite proof that Domitian made the suppression of Christianity part of the public policy.

Christianity and the Roman state. After Domitian, Christians were no longer liable to the _didrachma_, and therefore lost their claim to the privileges and exemptions of the Jews. A conflict with the secular power was rendered inevitable by the very nature of Christianity, which was non-Roman, non-national, and monotheistic, refusing recognition to the cults of the state, and denying the divinity of the ruler. The Romans regarded the imperial cult from the political standpoint and considered the refusal to recognize the divinity of the princeps as an act of treason. On the other hand, Christians looked upon the question as a matter of conscience and morality and regarded the worship of the princeps as an act of idolatry. They could pray for him, but not to him. These two points of view were impossible of reconciliation. Furthermore, since the worship of the state gods formed such an integral part of the public life of each community, it was inevitable that those who refused to participate in this worship should be looked upon as atheists and public enemies. On another ground also the Christians were liable to punishment under the _lex maiestatis_, namely, as forming unauthorized religious associations. These constituted the crimes for which the Christians were actually punished from the close of the first to the middle of the third century of our era.

Popular accusations against the Christians. However, throughout this period the state did not take the initiative against Christians as such, but only dealt with those individuals against whom specific charges were laid by private initiative or the action of local magistrates. These popular accusations charged the Christians with forming illegal associations, with seeking the destruction of mankind (as _odiatores humani generis_), and with perpetrating all sorts of monstrous crimes in their religious rites. Such accusations were partly due to the belief of the early Christian church in the immediate coming of the kingdom of Christ, to their consequent scorn of wealth and public honors, and to the secrecy which surrounded the exercise of their religion.

The imperial policy from Trajan to Maximus. The attitude of the Roman government towards the Christians in the early second century is clearly seen from the correspondence between Trajan and Pliny the younger, the governor of Bithynia in 112 A. D. This correspondence fails to reveal any specific law prohibiting Christianity, but shows that the admission of the name of Christian, accompanied by the refusal to worship the gods of the state and the princeps, constituted sufficient grounds for punishment. Thus a great deal of discretion was left to the provincial governor, who was directed to pay no attention to anonymous accusations but who was expected to repress Christianity whenever its spread caused conflicts with the non-Christian element under his authority. A rescript of Hadrian to Minucius Fundanus, proconsul of Asia, ordained that Christians should receive the benefit of a regular trial, and that they should not be condemned for the name, but for some definite crime, _e. g._, for treason. An exception to the general policy of the emperors in the second century was the persecution of the Christian community at Lyons authorized by Marcus Aurelius. With the state straining every nerve in its struggle with the barbarians, he regarded the Christians as defaulters to the cause of the empire, and as unreasonable, ecstatic transgressors of the law. The attitude of Septimius Severus towards the Christians was in harmony with the procedure of Trajan and Hadrian. In 202 A. D. he ordered the governor of Syria to forbid Jewish proselytizing and Christian propaganda, but forbade that Christians should be sought out with the object of persecution. Severus Alexander showed himself well-disposed towards Christianity and the brief persecution of Maximinus the Thracian was merely a spasmodic expression of hatred against those protected by his predecessor.

The persecutions of the third century. By the middle of the third century the Christian church was in a flourishing condition. It numbered among its adherents men in all walks of life, its leaders were men of culture and ability, and abandoning the attitude of the early church towards the Kingdom of Heaven, the Christians were taking an active part in the society in which they lived. The number of the Christians was so great as to disquiet the government, since in view of their attitude towards the cults of the state they were still traitors in the eyes of the law. And so in their struggle against the forces which threatened the dissolution of the empire, certain of its rulers sought to stamp out Christianity as a means of restoring religious and political harmony and loyalty among their subjects. The Christians were regarded as enemies within the gates and the calamities of the time were attributed to the anger of the gods towards these unbelievers. In 250 A. D. Decius reversed the principle enunciated by Septimius Severus and ordained that Christians were to be sought out and brought to trial. This was accomplished by ordering all the citizens of the empire by municipalities to perform public acts of worship to the gods of the state. Those who refused were punished. The persecution of Decius was terminated by his death in 251, but his policy was renewed by Valerian in 257 A. D. In that year Valerian required the Christians to offer sacrifice publicly, forbade their reunions and closed their cemeteries. In 258 he ordered the immediate trial of bishops, priests and other officers of the churches, and set penalties for the various grades of the clergy who persisted in their beliefs. But Valerian’s persecution also was brief and ended with his defeat and capture by the Persians in 258 A. D. Naturally, in so large a body as the

Christians now were not all were animated by the zeal and sincerity of the early brethren, and under threat of punishment many, at least openly, abjured their faith. However, many others cheerfully suffered martyrdom and by their example furthered the Christian cause. Truly, “the blood of the martyrs was the seed of the church.” The persecutions tried the church sorely, but it emerged triumphant from the ordeal.

Organization of the Christian church. The early Christians formed a number of small, independent communities, united by ties of common interest, of belief, and of continual intercourse. Although the majority of their members were drawn, from the humbler walks of life, they were by no means confined to the proletariat. In their organization these communities were all of the same general type, resembling the Roman religious _collegia_, but local variations were common. Each church community was directed by a committee, whose members were called at times elders (presbyters), at times overseers (bishops). These were assisted by deacons, who, like themselves, were elected by the congregation to which they belonged. Among the presbyters or bishops one may have acted as president. The functions of the bishops were primarily administrative, including the care of the funds of the association, the care of the poor, the friendless, and traveling brethren, and of discipline among the members of the community. The deacons were the subordinates of the bishops, and assisted in the religious services and the general administration of the community.

But before the close of the principate this loose organization had been completely changed as a result of separatist tendencies among the Christians themselves and the increasing official oppression to which they were exposed. The opposition to these forces resulted in a strict formulation of evangelic doctrine and a firmer organization of the church communities. This organization came to be centralized in the hands of the bishops, now the representatives of the communities. The episcopate was no longer collegiate, but monarchical, and claimed authority by virtue of apostolic succession. Apparently the president of the committee of bishops or presbyters had become the sole bishop, and the presbyters had become priests subject to his authority, although at times presiding over separate congregations. The bishops were now regularly nominated by the clergy, approved by the congregation, and finally inducted into office by the ceremony of ordination. Besides their administrative powers, the bishops had the guardianship of the traditions and doctrines of the church. The clergy were now salaried officers, sharply distinguished from the laity, who gradually ceased to participate actively in the government and regulation of worship of their respective communities, and these communities had developed into corporations organized on a juristic basis, promising redemption to their members and withholding it from deserters.

The primacy of Rome. In the third century, a movement took place for the organization of the separate churches in larger unions, and in this way the provincial synods arose. In these the metropolitan bishops, that is, those from the provincial administrative centers, assumed the leadership. Among the churches of the empire as a whole two rival tendencies made themselves manifest. The one was to accord equal authority to all the bishops, the other to recognize the supremacy of the bishop of Rome. The claim for the primacy of the Roman see was based upon the imperial

political status of Rome, and the special history of the Roman church. It was strongly pressed by certain bishops of the second century who laid emphasis upon the claim of the Roman bishopric to have been established by the Apostle Peter.

PART IV

THE AUTOCRACY OR LATE EMPIRE: 285–565 A. D.

CHAPTER XXI

FROM DIOCLETIAN TO THEODOSIUS THE GREAT; THE INTEGRITY OF THE EMPIRE MAINTAINED; 285–395 A. D.

I. DIOCLETIAN: 285–305 A. D.

The epoch-making character of Diocletian's reign. Upon Diocletian devolved the task of bringing order out of chaos, of rebuilding the shattered fabric of the Roman empire, of reëstablishing the civil administration and taking effective measures to secure an enduring peace. Like many of the emperors of the third century, Diocletian was an Illyrian of humble origin who by sheer ability and force of character had won his way up from the ranks to the imperial throne. In attacking the problem of imperial restoration he displayed restless energy and versatility, a thorough-going radicalism which knew little respect for traditions, and a supreme confidence in his ability to restore the economic welfare of the empire by legislative means. In his administrative reforms he gave expression to the tendencies which had been at work in the later principate and with him begins the period of undisguised autocracy, in which the emperor, supported by the army and the bureaucracy, is the sole source of authority in the state. Like Augustus, Diocletian was the founder of a new régime; one in which the absolutist ideal of Julius Caesar finally attained realization.

Maximian co-emperor, 286 A. D. One of the first acts of Diocletian was to coöpt as his associate in the _imperium_, with the rank of Caesar, a Pannonian officer named Valerius Maximianus. In 286 Maximian received the title of Augustus and equal authority with Diocletian. However, the latter always dominated his younger colleague, and really determined the imperial policy. In conformity with the undisguised absolutism of his rule, Diocletian assumed the divine title of Jovius, and that of Herculius was bestowed upon Maximian. Diocletian's choice of a co-emperor was determined largely by the conviction that the burden of empire was too heavy to be borne by one man. He therefore entrusted the defense of the western provinces to Maximian, while he devoted his attention to the Danubian and eastern frontiers. Maximian's first task was to quell a serious revolt of the Gallic peasants, called Bagaudae, occasioned by the exactions of the state and the landholders. After crushing this outbreak (285 A. D.), he successfully defended the Rhine frontier against the attacks of Franks, Alamanni and Burgundians (286–88 A. D.). However, in the meantime a usurper had arisen in Carausius, an officer entrusted with the defense of the Gallic coast against the North Sea pirates, who made himself master of Britain and proclaimed himself Augustus (286 A. D.). Maximian was unable to subdue

him, and the two emperors were forced against their will to acknowledge him as their colleague.

Regulation of the succession. Diocletian saw in the absence of a strict regulation of the succession a fertile cause of civil strife. To do away with this, and to discourage the rise of usurpers, as well as to relieve the Augusti of a part of their military and administrative burdens, he determined to appoint two Caesars as the assistants and destined successors of Maximian and himself. His choice fell upon Gaius Galerius and Flavius Valerius Constantius, both Illyrian officers of tried military capacity. They received the title of Caesar on 1 March, 293 A. D. To cement the tie between the Caesars and the Augusti, Diocletian adopted Galerius and gave him his daughter in marriage, while Maximian bound Constantius to himself in the same way. It was the plan of Diocletian that the Augusti should voluntarily abdicate after a definite period, and be succeeded by the Caesars, who in turn should then nominate and adopt their successors.

The division of the empire. To each of the four rulers there was assigned a part of the empire as his particular administrative sphere. Diocletian took Thrace, Egypt and the Asiatic provinces, fixing his headquarters at Nicomedia. Maximian received Italy, Raetia, Spain and Africa, and took up his residence at Milan. To Galerius were allotted the Danubian provinces and the remainder of the Balkan peninsula, with Sirmium as his residence; while Constantius, to whose lot fell the provinces of Gaul, established himself at Trèves. However, this arrangement was not a fourfold division of the empire, for the Caesars were subject to the authority of the Augusti, and imperial edicts were issued in the name of all four rulers. Additional unity was given to the government by the personal ascendancy which Diocletian continued to maintain over his associates. One result of this arrangement was that Rome ceased to be the permanent imperial residence and capital of the empire, Milan and later Ravenna being preferred as the seat of government for the West. This change was largely the result of the exclusion of the Senate from all active participation in the government, and the fact that Rome retained traditions of republican and senatorial rule incompatible with the spirit of the new order. Yet, in spite of its loss of prestige, the Eternal City continued to hold a privileged status, and its citizens were fed and amused at the expense of the empire.

The restoration of the frontiers. The division of the military authority among four able commanders enabled the government to deal energetically with all frontier wars or internal revolts. In 296 Constantius recovered Britain from Allectus, who three years previously had overthrown Carausius and proclaimed himself Augustus. In 297 Maximian was forced to appear in person in Africa to suppress a revolt of the Quinquegentiani. Meanwhile, Diocletian crushed a usurper named Achilles in Egypt and repulsed the invading Blemyes. Galerius, under the orders of Diocletian, after repelling attacks of the Iazyges (294 A. D.) and Carpi (296 A. D.), was called upon to meet a Persian invasion of Armenia and Mesopotamia. He was at first severely defeated, but, after being reinforced, won a decisive victory over Narses, the Persian king, and recovered Armenia. Diocletian himself won back Mesopotamia and the Persians were forced to acknowledge the Roman suzerainty over Armenia, while the

Roman frontier in Mesopotamia was advanced to the upper Tigris. In all parts of the empire the border defenses were repaired and strengthened.

Army reforms; provincial organization. The military reforms of Diocletian aimed to correct the weakness revealed in the previous system by the wars of the third century. He created a powerful mobile force—the _comitatenses_; while organizing the permanent garrison along the frontier in the form of a border militia—the _limitanei_. At the same time, the military and civil authority in the provinces was sharply divided to prevent a dangerous concentration of power in the hands of any one official. And the same motive is to be traced in the subdivision of the province, the number of which was raised to 101. These were grouped in thirteen dioceses, administered by _vicarii_ (vicars), who were subordinate to the praetorian prefects.

The edict of prices, 301 A. D. Diocletian also made a thorough revision of the system of taxation, and tried, but without success, to establish a satisfactory monetary standard. A more conspicuous failure, however, was his attempt to stabilize economic conditions by government regulation. By the Edict of Prices issued in 301, he fixed a uniform price for each commodity and every form of labor or professional service throughout the empire. The penalty of death was provided for all who demanded or offered more than the legal price. The law proved impossible to enforce. It took no account of the variations of supply and demand in the various parts of the empire, of the difference between wholesale and retail trade, or in the quality of articles of the same kind. In spite of the severe penalty prescribed, the provisions of the law were so generally disregarded that the government abandoned the attempt to carry them into effect.

Persecution of the Christians, 302 A. D. Equally unsuccessful were his measures for the suppression of Christianity. For nearly half a century following Valerian’s persecution the Christians had enjoyed immunity from repressive legislation. They had continued to increase rapidly in numbers and it has been estimated that at this time perhaps two-fifths of the population of the empire were adherents of the Christian faith. The reason for the revival of persecution by Diocletian is uncertain, although it may possibly have been at the instigation of Galerius, who displayed the greatest zeal in carrying it into effect. In 302 Diocletian issued three edicts, ordering the confiscation of church property, the dismissal of Christians from civil offices, the abrogation of their judicial rights, the enslavement of Christians of plebeian status, the arrest and imprisonment of the heads of the church, and heavy penalties for those who refused to offer sacrifice to the state gods, while granting liberty to all who did so. In 304, a fourth edict ordered all citizens without exception to make public sacrifice and libation to the gods. The degree to which these edicts were enforced varied in the different parts of the empire. The most energetic persecutors were Maximian and Galerius, while in Gaul Constantius made little or no effort to molest the Christians. The persecution lasted with interruptions till 313 A. D. Many leading Christians met a martyr’s death, but the church emerged from the ordeal more strongly organized and aggressive than before. Its victory made it a political force of supreme importance.

Abdication, 305 A. D. On 1 May, 305 A. D., Diocletian and Maximian, after a joint rule of twenty years, formally abdicated their authority and retired into private life. Diocletian withdrew to his palace near Salona in Dalmatia, and Maximian, much against his will, to an estate in Lucania. Galerius and Constantius succeeded them as Augusti.

II. CONSTANTINE I, THE GREAT: 306–337 A. D.

Constantine Caesar, 306 A. D. Diocletian's plan for securing an orderly succession of rulers for the empire had neglected to take into account individual ambitions and the strength of dynastic loyalty among the soldiers. Its failure was forecast in the appointment of the new Caesars. Galerius, who was the more influential of the new Augusti, disregarded the claims of Constantine, the son of Constantius, and nominated two of his own favorites, Severus and Maximinus Daia. In this Constantius acquiesced but when he died in Britain in 306 A. D., his army acclaimed Constantine as his successor. Galerius was forced to acknowledge him as Caesar.

The revolt of Maxentius, 306 A. D. In the same year Maxentius, the son of Maximian, took advantage of the opposition aroused in Rome by the attempt of Galerius to make the city subject to taxation, and caused himself to be proclaimed Caesar. He was supported by his father, who emerged from his enforced retirement, and defeated and brought about the death of Severus, whom Galerius had made Augustus, and sent to subdue him. Maxentius then took the title of Augustus for himself. The same rank was accorded to Constantine by Maximian, who made an alliance with him and gave him his daughter, Fausta, in marriage. Upon the failure of an attempt by Galerius to overthrow Maxentius, an appeal was made to Diocletian to return to power and put an end to the rivalries of his successors (307 A. D.). He refused to do so, but induced Maximian, who had quarrelled with his son, to withdraw a second time from public life. Licinius, who had been made Caesar by Galerius in place of Severus, became an Augustus, while Daia and Constantine each received the title of Son of Augustus (_filius Augusti_), a distinction which Constantine, from the beginning, and Daia, soon afterwards, ignored. Thus, by 310 A. D., there were five Augusti (including Maxentius), in the empire and no Caesars. It was not long before the ambitions of the rival emperors led to a renewal of civil war.

The rival Augusti, 310–312 A. D. In 310 Maximian tried to win over the army of Constantine, but his attempt failed and cost him his life. The following year Galerius died, after having, in concert with Constantine and Licinius, issued an edict which put an end to the persecution of the Christians and granted them the right to practice their religion; an admission that the state had failed in its plan to stamp out the religion of Christ. The empire was then divided as follows: Constantine held Britain, Gaul and Raetia, Maxentius Spain, Italy and Africa, Licinius the Illyrian and Balkan provinces, and Maximinus Daia the lands to the east of the Aegean, including Egypt. The attempt of Maxentius to add Raetia to his dominions brought him into conflict with Constantine. Constantine allied himself with Licinius, and Maxentius found a supporter in Maximinus. Without delay Constantine invaded Italy, and routed the troops of Maxentius at Verona. He then pressed on to Rome and won a final victory

not far from the Milvian bridge (312 A. D.). Maxentius perished in the rout. It was in this campaign, as a result of a vision, that Constantine adopted as his standard the _labarum_, a cross combined with the Christian monogram formed of the first two letters of the Greek word _Christos_ (Christ).

Constantine and Licinius, 313–324 A. D. In 313 Constantine and Licinius met at Milan, where they issued a joint edict of toleration, which placed Christianity upon an equal footing with the pagan cults of the state. Although this edict enunciated the principle of religious toleration for the empire, it was issued with a view to win the political support of the Christians and pointed unmistakably to Christianity as the future state religion. Shortly after the publication of the Edict of Milan, Maximinus Daia crossed the Bosphorus and invaded the territory of Licinius. He was defeated by the latter, who followed up his advantage and occupied Asia Minor. Upon the death of Maximinus, which followed within a short time, Licinius fell heir to the remaining eastern provinces. These now received the religious toleration previously extended to the rest of the empire.

However, the concord between the surviving Augusti was soon broken by the ambitions of Constantine, who felt aggrieved since Licinius controlled a larger share of the empire than himself. A brief war ensued, which was terminated by an agreement whereby Licinius ceded to Constantine the dioceses of Moesia and Pannonia (314 A. D.). In 317 they jointly nominated as Caesars and their successors, Crispus and Constantine, the younger sons of Constantine, and Licinianus, the son of Licinius. However, although they continued to act in harmony for some years longer, it was evident that they still regarded one another with jealous suspicion. This came clearly to light in the difference of their policies towards the Christians. The more Constantine courted their support by granting them special privileges, the more Licinius tended to regard them with disfavor and restrict their religious liberty. Finally, in 322 A. D., when repelling a Gothic inroad, Constantine led his forces into the territory of Licinius, who treated the trespass as an act of war. Constantine won a signal victory at Adrianople and his son Crispus destroyed the fleet of Licinius at the Hellespont. These disasters induced Licinius to withdraw to Asia Minor. There he was completely defeated by Constantine near Chrysopolis (18 September, 324 A. D.). Licinius surrendered upon assurance of his life, but the following year he was executed on a charge of treason. Constantine was now sole emperor.

Constantine sole emperor, 324–337 A. D. Constantine’s administrative policy followed in the steps of Diocletian, whose organization he elaborated and perfected in many respects. The praetorian prefecture was deprived of its military authority, which was conferred upon the newly-created military offices of master of the horse and the foot (_magister equitum_ and _peditum_). This completed the separation between the military and civil offices. Diocletian’s field force was strengthened by the creation of new mobile units, and his efficient army enabled Constantine to defend the empire against all barbarian attacks. Upon waste lands within the frontiers he settled Sarmatians and Vandals, while he greatly increased the barbarian element in the army as a whole, but particularly among the officers of higher rank.

Constantinople, 330 A. D. Of special importance for the future history of the empire was the founding of a new capital, called Constantinople, on the site of ancient Byzantium. After four years' preparation, the new city was formally dedicated on 11 May, 330 A. D. The choice of the site of the new capital of the empire was determined by its strategic importance. It was conveniently situated with respect to the eastern and Danubian frontiers, and well adapted as a link between the European and Asiatic parts of the empire. The aim of the emperor was to make Constantinople a new Rome, and he gave it the organization and the institutions of Rome on the Tiber. A new Senate was established there; likewise the public festivals and free bread for the populace. For the latter purpose the grain of Egypt was diverted from Rome to Constantinople.

Constantine and the succession. Like Diocletian, Constantine realized the necessity of having more than a single ruler for the empire, but he determined to choose his associates from the members of his own household. Accordingly, following Crispus and Constantine, his younger sons, Constantius and Constans, were given the title of Caesar, while Licinianus, the son of Licinius, was gotten rid of in 326. In the same year Crispus was also put to death. The cause of his fall is uncertain. It involved the death of his stepmother, Fausta, the mother of Constantine's other sons. Ultimately, the three surviving Caesars were set over approximately equal portions of the empire. In 335 Constantine the younger governed Britain, Gaul and Illyricum; Constans ruled Italy, Africa and Pannonia; and Constantius was in control of Asia Minor, Syria and Egypt. In that year Constantine appointed as a fourth Caesar his nephew, Delmatius, to whom he intended to entrust the government of Thrace, Macedonia and Achaea. At the same time, Annabalianus, a brother of Delmatius, was designated as the future ruler of Pontus and Armenia, with the title of King of Kings.

Constantine's Christianity. Constantine died in May, 337 A. D. shortly after having been baptized into the Christian church. Although his mother, Helena, was a Christian, it seems improbable that Constantine himself was from the first an adherent of that faith. On the whole, one may say that his attitude towards Christianity was determined largely by political rather than religious convictions. However, his mother's influence and his father's toleration of Christianity doubtless predisposed him to consider the Christians with favor. He soon sought the support of the Christians on political grounds, and his successes over his rivals seem to have confirmed him in this policy. Finally, he appears to have seen in Christianity the religion best suited to a universal faith for the empire. However, Constantine himself did not raise Christianity to that position, although he prepared the way to this end. Although he forbade the performance of private sacrifices and magical rites, in other respects he adhered faithfully to his policy of religious toleration. He took the title of _pontifex maximus_, maintained the imperial cult, and until 330 issued coins with the image of the Sun-god, with whom the emperor was often identified. His designation of Sunday as a general holiday in 321 was in full accord with this policy of toleration, for although this was the day celebrated by the Christians as "the Lord's day," as the "day of the Sun" it could be celebrated by pagans also. Nevertheless, he exhibited an ever-increasing personal leaning towards Christianity, and granted special privileges to the Christian clergy. He caused his sons to be brought up as Christians, and really

established a special relation between the emperor and the church. For his services to the cause of Christianity he well merited the title of “the Great,” bestowed upon him by Christian historians.

III. THE DYNASTY OF CONSTANTINE: 337–363 A. D.

Constantine II, Constans and Constantius, 337–340 A. D. Constantine’s plans for the succession were thwarted by the troops at Constantinople, who, instigated, as was said, by Constantius, refused to acknowledge any other rulers than the sons of Constantine and put to death the rest of his relatives, with the exception of his two youthful nephews, Gallus and Julian. Constantius and his two brothers then declared themselves Augusti and divided the empire. Constantine II received Spain, Gaul and Britain, Constantius Thrace, Egypt and the Orient, while the youngest, Constans, took the central dioceses, Africa, Italy and Illyricum. However, this arrangement endured only for a brief time. The peace was broken by Constantine, who encroached upon the territory of Constans, and affected to play the rôle of the senior Augustus. However, he was defeated and killed at Aquileia by the troops of Constans, who annexed his dominions.

Constantius and Constans, 340–350 A. D. The joint rule of Constantius and Constans lasted for ten years. The latter showed himself an energetic sovereign and maintained peace in the western part of the empire. At length, however, his harshness and personal vices cost him the loyalty of his own officers, who caused him to be deposed in favor of Magnentius, an officer of Frankish origin (350 A. D.). And while Magnentius secured recognition in Italy and the West, the army in Illyricum raised its commander, Vetranio, to the purple.

Constantius sole emperor, 350–360 A. D. From 338 A. D. Constantius had been engaged in an almost perpetual but indecisive struggle with Sapor II, king of Persia, over the possession of Mesopotamia and Armenia. It was not until late in 350 that he was able to leave the eastern frontier to attempt to reëstablish the authority of his house in the West. He soon came to an agreement with Vetranio, who seems to have accepted the title of Augustus solely to save Illyricum from Magnentius. Vetranio passed into honorable retirement, but when Constantius refused to recognize Magnentius as Augustus the latter marched eastwards to enforce his claims. He was defeated in a desperate battle at Mursa in Pannonia (351 A. D.), where the victory was won by the mailed horsemen of Constantius, who from this time onwards formed the most effective arm in the Roman service. In the next year Constantius recovered Italy, and in 353 invaded Gaul, whereupon Magnentius took his own life.

Gallus, Caesar, 351–4 A. D. Constantius had no son, and so to strengthen his position, he made his cousin, Gallus, Caesar and placed him in charge of the Orient when he set out to meet Magnentius in 351 A. D. But Gallus soon showed himself unworthy of his office. His mistreatment of the representatives of the emperor sent to investigate his conduct caused him to be suspected of treasonable ambitions, and he was recalled and put to death in 354 A. D.

Julian, Caesar, 335 A. D. However, Constantius still found himself in need of an associate in the _imperium_. In addition to the danger of invasion on both northern

and eastern frontiers, came the revolt of Silvanus at Cologne in 355, which, although quickly suppressed, was a reminder that every successful general was potentially a candidate for the throne. Accordingly, at the advice of the empress Eudoxia, he called from the enforced seclusion of a scholar's life Julian, the younger brother of Gallus, whom he made Caesar and dispatched to Gaul (355 A. D.). Since the fall of Magnentius the Gallic provinces had been exposed to the devastating incursions of Franks and Alemanni, and the first task of the young Caesar was to deal with these barbarians. In a battle near Strassburg in 357 he broke the power of the Alemanni, and drove them over the Rhine. The Franks were forced to acknowledge Roman overlordship, but the Salian branch of that people were allowed to settle to the south of the Rhine (358 A. D.). In addition to displaying unexpected capacities as a general, Julian showed himself a forceful and upright administrator, whose chief aim was to revive the prosperity of his sorely-tried provincials.

Julian, Augustus, 360 A. D. In 359 A. D. a fresh invasion of Mesopotamia by Sapor II called Constantius to the East. The seriousness of the situation there caused him to demand considerable reinforcements from the army in Gaul. This was resented both by the soldiers themselves and by Julian, who saw in the order a prelude to his own undoing, for he knew the suspicious nature of his cousin, and was aware that his own successes and the restraint he imposed upon the rapacity of his officials had aroused the enmity of those who had the emperor's confidence. However, after a vain protest, he yielded; but the troops took matters into their own hands, mutinied and hailed Julian as Augustus. His ambitions, which had been awakened by the taste of power, and the precariousness of his present situation led him to accept the title (360 A. D.). He then sought to obtain from Constantius recognition of his position and the cession of the western provinces. The latter rejected his demand, although he did not deem it advisable to leave the East unprotected at that moment and attempt to reassert his authority. Julian then took the offensive to enforce his claims, and, upon the retirement of the Persian army, Constantius hastened to meet him. But on the march he fell ill and died in Cilicia, having designated Julian as his successor.

The pagan reaction. The importance of Julian's reign lies in his attempt to make paganism once more the dominant religion of the empire. His own early saturation with the fascinating literature of Hellenism and the mystical strain in his character made Julian an easy convert to Neo-platonism. He had become a pagan in secret before he had been called to the Caesarship, and after the death of Constantius openly proclaimed his apostacy. While he adhered in general to the principle of religious toleration and did not institute any systematic persecution of the Christians, he prohibited them from interpreting classical literature in the schools, forced them to surrender many pagan shrines which they had occupied, deprived the clergy of their immunities, endeavored to sow dissension in their ranks by supporting unorthodox bishops, and stimulated a literary warfare against them in which he himself took a prominent part. Following the example of Maximinus Daia, Julian attempted to combat Christianity with its own weapons, and tried to establish a universal pagan church with a clergy and liturgy on the Christian model. He also sought to infuse paganism with the morality and missionary zeal of Christianity. But his efforts were in vain; the pagan cults had lost their appeal for the masses, and the

only converts were those who sought to win the imperial favor by abandoning the Christian faith.

Persian war and death, 363 A. D. In his administration of the empire Julian pursued the same policy as in Gaul. He checked the greed of government officials, abolished oppressive offices, and in every way tried to restrain extravagances and lighten the burdens of his subjects. The war with Persia which had begun under Constantius had not been concluded and Julian was fired by the ambition to imitate the career of Alexander the Great and overthrow the Persian kingdom. After long preparations he began his attack early in 363 A. D. He succeeded in reaching Ctesiphon where he defeated a Persian army. But his attempt to penetrate further into the enemy's country failed for want of supplies, and he was forced to begin a retreat. On the march up the Tigris valley he was mortally wounded in a skirmish (26 June, 363 A. D.), and with his death ended the rule of the dynasty of Constantine the Great.

Jovian, 363–4 A. D. The army chose as his successor Jovian, the commander of the imperial guard. To rescue his forces, Jovian made peace with Sapor, surrendering the Roman territory east of the Tigris, with part of Mesopotamia, and abandoning the Roman claim to suzerainty over Armenia. Julian's enactments against the Christians were abrogated and religious toleration proclaimed. After a brief reign of eight months, Jovian died at Antioch in 364 A. D.

IV. THE HOUSE OF VALENTINIAN AND THEODOSIUS THE GREAT: 364–395 A. D.

Valentinian I and Valens, Augusti, 364 A. D. At the death of Jovian the choice of the military and civil officials fell upon Flavius Valentinianus, an officer of Pannonian origin. He nominated as his co-ruler his brother, Valens, whom he set over the East, reserving the West for himself.

Valentinian's reign was an unceasing struggle to protect the western provinces against barbarian invaders. The emperor personally directed the defense of the Rhine and Danubian frontiers against the incursions of the Alemanni, Quadi and Sarmatians, while his able general Theodosius cleared Britain of Picts, Scots and Saxons, and suppressed a dangerous revolt of the Moors in Africa. In 375 Valentinian died at Brigetio in the course of a war with the Sarmatians. Although imperious and prone to violent outbursts of temper, he had shown himself tireless in his efforts to protect the empire from foreign foes and his subjects from official oppression. In this latter aim, however, he was frequently thwarted by the intrigues of his own officers.

Gratian and Valentinian II. As early as 367 Valentinian had appointed as a third Augustus his eldest son, Gratian, then only seven years old. The latter now succeeded to the government of the West, although the army also acclaimed as emperor his four-year-old brother, Valentinian II.

The Gothic invasion, 376 A. D. Meanwhile Valens, who exercised the imperial power in the East, had been involved in protracted struggles with the Goths along the lower Danube and with the Persians, whose attempt to convert Armenia into a Persian province constituted a threat too dangerous to be ignored. Peace had been

established with the Goths in 369, but in 376 new and unexpected developments brought them again into conflict with the Romans.

The cause lay in the westward movement of the Huns, a nomadic race of Mongolian origin, whose appearance in the regions to the north of the Black Sea marks the beginning of the period of the great migrations. In 375 A. D. they overwhelmed the Greuthungi, or East Goths, and assailed the Thervingi, or West Goths. Unable to defend themselves, the latter in 376 sought permission to settle on Roman territory to the south of the Danube. Valens acceded to their request upon the condition of their giving up their weapons. The reception and settlement of the Goths was entrusted to Roman officers who neglected to enforce the surrender of their arms, while they enriched themselves by extorting high prices from the immigrants for the necessities of life. Thereupon, threatened by starvation, the Goths rebelled, defeated the Romans, and began to plunder the country (377 A. D.). The news of this peril summoned Valens from the East, but Gratian was hindered from coming to the rescue by an incursion of the Alemanni into Gaul. However, as soon as he had defeated the invaders he hastened to the assistance of his uncle. Without awaiting his arrival, Valens rashly attacked the Goths at Hadrianople. His army was cut to pieces, he himself slain, and Goths overran the whole Balkan peninsula (378 A. D.).

Theodosius I, the Great, 378 A. D. To meet this crisis, Gratian appointed as Augustus, Theodosius, the son of the Theodosius who had distinguished himself as a general under Valentinian I, but who had fallen a victim to official intrigues at the latter’s death. The new emperor undertook with vigor the task of clearing Thrace and the adjoining provinces of the plundering hordes of Goths. By 382 he had forced them to sue for peace and had settled them on waste lands to the south of the Danube. There they remained as an independent people under their native rulers, bound, however, to supply contingents to the Roman armies in return for fixed subsidies. They thus became imperial _foederati_.

The revolt of Arbogast and Eugenius, 392 A. D. In 391 Theodosius reduced the Goths to submission when a revolt of the troops in Britain raised Magnus Maximus to the purple. Gratian had shown himself a feeble administrator and had alienated the sympathies of the bulk of his troops by his partiality towards the Germans in his service. Maximus at once crossed into Gaul and was confronted by Gratian at Paris. But the latter was deserted by his army, and was captured and put to death. The authority of Maximus was now firmly established in Britain, Gaul and Spain. He demanded and received recognition from Theodosius, who was prevented from avenging Gratian’s death by threatening conditions in the East. The third Augustus, the young Valentinian II, acquired for the time an independent sphere of authority in Italy. However, in 387 A. D. Maximus suddenly crossed the Alps and forced him to take refuge with Theodosius. Having come to terms with Persia, Theodosius refused to sanction the action of Maximus and marched against him. The troops of Maximus were defeated, and he himself captured and executed at Aquileia (388 A. D.). Gaul and the West were speedily recovered for Theodosius by his general, Arbogast.

Theodosius and Ambrose. While Theodosius was at Milan in 390 occurred his famous conflict with Bishop Ambrose. In a riot at Thessalonica the commander of the

garrison had been killed by the mob, and Theodosius, in his anger, had turned loose the soldiery upon the citizens, of whom seven thousand are said to have been butchered. Scarcely had Theodosius issued the order when he was seized with regret, and endeavored to countermand it; but it was too late. Upon the news of the massacre, Ambrose excluded the emperor from his church and refused to admit him to communion until he had publicly done penance for his sin. For eight months Theodosius refused to yield, but Ambrose remained obdurate, and the emperor finally humbled himself and publicly acknowledged his guilt. The question at issue was not the supremacy of secular or religious authority, but whether the emperor was subject to the same moral laws as other men. Nevertheless, it required a high degree of courage for the bishop to assert the right of the church to pass judgment in such a matter upon the head of the state.

The revolt of Arbogast and Eugenius, 392 A. D. In 391 Theodosius returned to the East, leaving Valentinian as emperor in the West with his residence at Vienna in Gaul. But the powerful Arbogast, whom Theodosius had placed in command of the western troops, refused to act under the orders of the young Augustus, and finally compassed his death (392 A. D.). However, he did not dare, in view of his Frankish origin, to assume the purple himself, and so induced a prominent Roman official named Eugenius to accept the title of Augustus. The authority of Eugenius was acknowledged in Italy and all the West, but Theodosius refused him recognition and prepared to crush the usurper. In the autumn of 394 A. D., at the river Frigidus, near Aquileia, Theodosius won a complete victory over Arbogast and Eugenius. The former committed suicide and the latter was put to death.

Early in the next year Theodosius died, leaving the empire to his two sons, Arcadius and Honorius, upon both of whom he had previously conferred the rank of Augustus. The success of Theodosius in coping with the Gothic peril and in suppressing the usurpers Maximus and Eugenius, combined with his vigorous championship of orthodox Christianity, won for him the title of the “Great.” With the accession of Arcadius and Honorius and the permanent division of the empire into an eastern and a western half, there begins a new epoch of Roman history.

[Illustration: The Roman Empire in 395 A. D.]

CHAPTER XXII

THE PUBLIC ADMINISTRATION OF THE LATE EMPIRE

I. THE AUTOCRAT AND HIS COURT

Powers and titles of the emperor. The government of the late Roman empire was an autocracy, in which the emperor was the active head of the administration and at the same time the source of all legislative, judicial and military authority. For the exercise of this authority the support of the army and the bureaucracy was essential. All the sovereign rights of the Roman people were regarded as having been transferred to the imperial power. The emperor was no longer the First of the Roman

citizens—the _primus inter pares_—but all within the empire were in equal degree his subjects. This view of the exalted status of the emperor was expressed in the assumption of the divine titles Jovius and Herculius by Diocletian and Maximian. Their Christian successors, although for the greater part of the fourth century they accepted deification from their pagan subjects, found a new basis for their absolutism in the conception of the emperor as the elect of God, who ruled by divine guidance. Thus the emperor could speak of the _imperium_ which had been conferred upon him by the heavenly majesty. The adjectives “sacred” and “divine” were applied not only to the emperor’s person but also to everything that in any way belonged to him, and the “imperial divinity” was an expression in common use.

As the sole author of the laws, the emperor was also their final interpreter; and since he acted under divine guidance those who questioned his decisions, and those who neglected or transgressed his ordinances, were both alike guilty of sacrilege. The emperor was held to be freed from the laws in the sense that he was not responsible for his legislative and administrative acts, yet he was bound by the laws in that he had to adhere to the general principles and forms of the established law of the state, and had to abide by his own edicts, for the imperial authority rested upon the authority of the laws.

The titles of the emperor bore witness to his autocratic power. From the principate he had inherited those of Imperator, the significance of which was revealed in its Greek rendering of Autocrator, and Augustus, which was as well suited to the new as to the old position of the emperor. More striking, however, was the use of _dominus_ or _dominus noster_, a title which, as we have seen, was but rarely used during the principate, but which was officially prescribed by Diocletian. The term princeps, although it has long lost its original significance, still continued to be employed in official documents, at times in conjunction with _dominus_.

Imperial regalia. The imperial regalia likewise expressed the emperor’s autocratic power. With Diocletian the military garb of the principate was discarded for a robe of silk interwoven with gold and Constantine I introduced the use of the diadem, a narrow band ornamented with jewels, which formed part of the insignia of the Persian monarchs, and was symbolic of absolutism in the ancient world.

The succession. We have seen how the scheme devised by Diocletian for regulating the succession to the throne broke down after his retirement. His successors refused to abdicate their imperial authority and only surrendered it with life itself. In the appointment of new emperors two principles found recognition—election and coöptation. The system of election was a legacy from the principate, and recourse was regularly had to it when the imperial throne was vacant. The elected emperor was usually the choice of the leading military and civil officials, approved by the army. In Constantinople, from the fifth century at least, the nomination was made by these officers in conjunction with the reorganized senate, and the new emperor was proclaimed before the people assembled in the Hippodrome. The emperors thus appointed claimed to have been elected by the officials, the Senate, and the army with the sanction of the people. However, as the history of the time shows, the right of election might be exercised at any time, and a

victorious usurper became a legal ruler. Thus the autocracy, as has been aptly remarked, was tempered by a legal right of revolution. As this method of election guaranteed a high average of ability among emperors, so the custom of coöptation gave opportunity to admit the claim of dynastic succession. An Augustus could appoint as his colleague the one whom he wished to succeed him on the throne. However, it is to be noted that a son who was thus elevated to the purple became emperor by virtue of his father's will and not by the right of birth.

The imperial court. Under Diocletian the organization and ceremonial of the imperial palace were thoroughly remodelled. The servants of the household—ushers, chamberlains, grooms and the like—were now formed into corps on a military basis, with a definite regulation of insignia, pay, term of service and promotion. In harmony with the general spirit of the autocracy, the court ceremonial was designed to widen the gulf between the ruler and his subjects and to protect his person by rendering it inaccessible. Surrounded by all the pomp and pageantry of an oriental potentate, the Roman emperor was removed from contact with all but his immediate _entourage_. The effect of this seclusion was to enhance the power of the few who were permitted to come into touch with him, in particular the officials of the imperial household. The personal servants of the emperor were placed on the same level as the public administrative officers, and the most important of them, the grand chamberlain, before the close of the fourth century had become one of the great ministers of state, with a seat in the imperial cabinet. In conformity with the assumption of the title _dominus_ and of the diadem, was the requirement of prostration from all who were admitted to an audience with the emperor. In addition to its civilian employees, the palace had its special armed guard. These household troops were the scholarians, organized by Constantine I when he disbanded the praetorian guards who had upheld the cause of Maxentius.

II. THE MILITARY ORGANIZATION

General characteristics. The chief characteristics of the military organization of the late empire were the complete separation of civil and military authority except in the person of the emperor, the sharp distinction between the mobile forces and the frontier garrisons, and the ever-increasing predominance of the barbarian element, not merely in the rank and file of the soldiers, but also among the officers of highest rank.

The limitanei. The troops composing the frontier garrisons were called _limitanei_, or borderers; also, when stationed along a river frontier, _ripariensis_. They were the successors of the garrison army of the principate and were distributed among small fortified posts (_castella_). To each of these garrisons there was assigned for purposes of cultivation a tract of land free from municipal authority. These lands were exempt from taxation, and, although they were not alienable, the right to occupy them passed from father to son with the obligation to military service. Thus the _limitanei_ were practically a border militia. Their numbers were materially increased by Diocletian but reduced again by Constantine I who transferred their best units to the field army. The _limitanei_ ranked below the field troops; their

physical standards were lower, and their rewards at the end of their term of service inferior.

The palatini and comitatenses. To remedy the greatest weakness in the army of the principate, namely, its lack of mobility, Diocletian formed a permanent field force to accompany the emperor on his campaigns, for it was his intention that the emperors should personally lead their armies. Since the field troops thus formed the _comitatus_, or escort, of the emperor they received the name of _comitatenses_. Later certain units of the _comitatenses_ were called _palatini_, or palace troops, a purely honorary distinction. The _palatini_ and _comitatenses_ were stationed at strategic points well within the frontiers.

Numbers. In both the garrison and field armies the old legion was broken up into smaller detachments, to each of which the name legion was given. They still continued to be recruited from Romans, but were regarded as inferior in caliber to the _auxilia_, the light infantry corps which were largely drawn from barbarian volunteers. A great number of new cavalry units were formed, so that the proportion of cavalry to infantry was largely increased. At the opening of the fifth century the troops stationed in Spain, in the Danubian provinces, in the Orient and in Egypt had a nominal strength of 554,500 of which 360,000 were _limitanei_ and 194,500 field troops. However, it is extremely doubtful if the separate detachments were maintained at their full numbers. The scholarians, organized as an imperial bodyguard by Constantine I, numbered 3500. They were divided into seven companies called _scholae_, from the fact that a particular _schola_, or waiting hall in the palace, was assigned to each.

Recruitment. In the late empire the ranks of the Roman army stood open to all free men who possessed the requisite physical qualifications. Slaves were also enrolled from the fifth century onwards but their admission to military service brought them freedom. Recruits were either volunteers or conscripts. The universal liability to service existed until the time of Valentinian I, although in practice it was limited to the municipal plebs and the agricultural classes. Valentinian placed the obligation to furnish a specified number of recruits upon the landholders of certain provinces, and levied a corresponding monetary tax upon the other provinces. He also made it obligatory for the sons of soldiers to present themselves for service. Many barbarian peoples, settled within the empire, were likewise under an obligation to furnish a yearly number of recruits, who, however, were regarded as volunteers. Still voluntary recruitment was the rule under the late empire even more than under the principate, and the majority of the volunteers for military service were of barbarian origin. Corps of all sorts were named after barbarian peoples, and while barbarian officers received Roman citizenship, the rank and file remained aliens.

Discipline. The chief reason for the victories of the Roman armies of the early principate over their barbarian foes lay in their superior discipline and organization. And the burden of maintaining this discipline had rested upon the junior officers or centurions who came from the senatorial order of the Roman municipalities. By the end of the third century the centuriate had disappeared for lack of volunteers of this class and with its disappearance began a decline in discipline and training. The

construction of the fortified camp was no longer required, the soldier’s heavy pack was discarded, and before the close of the fourth century the burdensome defensive armor was also given up. In equipment and tactics the Roman troops of the late empire were on a level with their barbarian opponents. Just as the Roman empire was unable to assimilate the barbarian settlers within its frontiers, so the Roman army proved unable to absorb the barbarian elements within its ranks.

Foederati. The decline in efficiency of the Roman troops and the confessed inability of the state to deal with its military obligations led to the taking into the Roman pay of warlike peoples along the Roman frontiers. Such peoples were called federated allies (_foederati_), and guaranteed to protect the territory of the empire in return for a stipulated remuneration in money or supplies. Such were the terms upon which the Goths were granted lands south of the Danube by Theodosius the Great. But in this case, as in others, it is hard to distinguish between subsidies paid to _foederati_ and the payments made by many emperors to purchase immunity from invasion by dangerous neighbors. A danger inherent in the system was that the _foederati_ might at any moment turn their arms against their employers. Retaining as they did their political autonomy and serving under their own chiefs, the _foederati_ were not regarded as forming a part of the imperial forces.

The duces and the magistri militum. We have already referred to the complete separation of military and civil authority. This was carried out as far as the border troops were concerned by Diocletian. He divided the frontiers into military districts which corresponded to the provinces and placed the garrisons in each under an officer with the title of _dux_. The _duces_ of highest rank were regularly known as _comites_ (counts). Under Diocletian the praetorian prefects remained the highest military officers, and were in command of the field army. As we have seen, Constantine I deprived the praetorian prefecture of its military functions and appointed two new commanders-in-chief—the master of the foot (_magister peditum_) and the master of the horse (_magister equitum_). Under the successors of Constantine these offices were increased in number and the distinction between infantry and cavalry commands was abandoned. Consequently, the titles of master of the horse and master of the foot were altered to those of masters of horse and foot, masters of each service, or masters of the soldiers. In the East by the close of the fourth century there were two masters of the soldiers at Constantinople, each commanding half of the palatini in the vicinity of the capital, and three others commanding the _comitatenses_ in the Orient, Thrace and Illyricum, respectively. In the West there were two masterships at the court, and a master of the horse in the diocese of Gaul.

But while in the East the several masters of the soldiers enjoyed independent commands, in the West by 395 A. D. there had developed a concentration of the supreme military power in the hands of one master, who united in his person the two masterships at the court. The master in Gaul, with the _duces_ and _comites_ in the provinces were under his orders. This subordination was emphasized by the fact that the heads of the office staff (_principes_) of the _comites_ and _duces_ were appointed by the master at the court. On the other hand, in the East, these

principes were appointed by a civil official, the master of the offices, who was also charged with the inspection of the frontier defences, and from the opening of the fifth century exercised judicial authority over the _duces_. The latter, however, remained the military subordinates of the masters of the soldiers. Thus the concentration of military power in the West in the hands of a single commander-in-chief prepared the way for the rise of the king-makers of the fifth century, while the division of the higher command in the East prevented a single general from completely dominating the political situation.

Judicial status of the soldiers. Characteristic of the times was the removal of soldiers from the jurisdiction of the civil authority. In the fourth century they could only be prosecuted on criminal charges in the courts of their military commanders, and in the fifth century they were granted this privilege in civil cases also.

III. THE PERFECTION OF THE BUREAUCRACY

The administrative divisions of the empire. The administrative machinery of the late empire was simply an outgrowth from, and a more complete form of, the bureaucracy which had developed under the principate. All the officers of the state were now servants of the emperor, appointed by him and dismissed at his pleasure. At the basis of the administrative organization lay the division of the empire into prefectures, dioceses and provinces. By the close of the fourth century there were one hundred and twenty provinces, grouped into fourteen dioceses, which made up the four prefectures of Gaul, Italy, Illyricum and the Orient.(17) This division of the empire into four prefectures was carried out under Constans and Constantius. Until the death of Constantine I, the pretorian prefecture had remained an office associated with the person of the emperor, and from the time of Diocletian the number of praetorian prefects had corresponded to the number of Augusti, each emperor appointing one for his own part of the empire. This practice was followed by the sons of Constantine. But after Constans had overthrown Constantine II he left the latter’s territory under the administration of a special prefect, thus establishing the prefecture of Gaul. He afterwards appointed another prefect for Illyricum, which was separated from the jurisdiction of the prefect of Italy. When Constantius became sole emperor in 351, he retained the three prefectures of Constans, and his own previous dominions constituted the fourth, that of the Orient. In 379, Gratian, the emperor in the West, transferred the Illyrian prefecture from his sphere to that of Theodosius, his colleague in the East.

The praetorian prefects and their subordinates. Each province had a civil governor, variously known as proconsul, consular, _corrector_ or _praeses_, according to the relative importance of his governorship. The provincial governors, with a few exceptions, were subject to the vicars, who were in charge of the several dioceses, and who, in turn, were under the administrative control of the four praetorian prefects, the heads of the prefectures. The prefects and their subordinates were in charge of the raising of taxes paid in kind and of the administration of justice for the provincials. Italy was now divided into several provinces and Italian soil was no longer exempt from taxation. With the exception of the population of Rome, the

inhabitants of Italy were upon the same footing as those of the other provinces, with whom they shared the name of provincials.

The central administrative bureaus. The remaining branches of the civil administration were directed by a group of ministers resident at the court, with subordinates in the various administrative departments. These ministers were the master of the offices, the quaestor, the count of the sacred largesses and the count of the private purse. The master of the offices united in his hands the control of the secretarial bureaus of the palace, the oversight over the public post, the direction of the _agentes-in-rebus_, who constituted the imperial secret service, the command of the scholarians, the supervision of several branches of the palace administration, and jurisdiction over practically all of the personal servants of the emperor. As we have seen, in the East he also exercised certain authority over the _duces_. The quaestor (to be distinguished from the holders of the urban quaestorships) was a minister of justice, part of whose duties consisted in the preparation of imperial legislation. The count of the sacred largesses was the successor to the _rationalis_, who had been in charge of the imperial fiscus under the principate. He was charged with the collection and disbursement of the public revenues which were paid in money, and his title was derived from the fact that the funds under his control were used for the imperial donations or largesses. He likewise had the supervision of the imperial factories engaged in the manufacture of silks, and other textiles. The count of the private purse was the head of the department of the _res privata_ and in charge of the revenues from the imperial domains. These ministers with certain other administrative officials of the court and the chief officers of the imperial household, such as the grand chamberlain, were known as the palace dignitaries (_dignitates palatinae_).

Rome and Constantinople were exempt from the authority of the praetorian prefects, and were each administered by a city prefect. Two consuls were nominated annually, one at Rome and one at Constantinople, and gave their names to the official year, but their duties were limited to furnishing certain entertainments for the populace of the capitals. This was also the sole function of the praetorship and quaestorship, which were now filled by imperial appointment upon the recommendation of the city prefects.

The imperial council of state. The system of graded subordination, which placed the lower officials in each department under the orders of those having wider powers, brought about the ultimate concentration of the civil and military administration in the hands of about twenty officers who were directly in touch with the emperor and responsible to him alone. From these were drawn the members of the council of state or imperial consistory (so-called from the obligation to remain standing in the presence of the emperor). Permanent members of this council were the four ministers of the court mentioned above, who were known as the counts of the consistory, and also the grand chamberlain.

The officia. The officials who were at the head of administrative departments, civil or military, had at their disposal an _officium_ or bureau, the members of which were known as _officiales_. These subaltern employees of the state were free men, no

longer slaves or freedmen like their predecessors of the principate. As in the case of the palace servants their numbers, terms of service (_militia_), promotion and discharge were fixed by imperial edicts, and they were not placed at the mercy of the functionary whose office staff they formed. Indeed, owing to the permanent character of the organization of the _officia_, the burden of the routine administration fell upon their members, and not upon their temporary director, for whose acts they were made to share the responsibility. This was particularly true of the bureau chief (_princeps_), who was regularly appointed from the _agentes-in-rebus_ as a spy upon the actions of his superior. Like the soldiers, the civil service employees enjoyed exemption from the ordinary courts of justice and the privilege of defending themselves in the courts of the chief of that branch of the administration to which they were attached.

Official corruption. The attitude of the emperor towards his chief servants was marked by mistrust and suspicion. The policy which led to the attempt to weaken the more powerful offices by the separation of civil and military authority and by the subdivision of the administrative districts was adhered to in the provisions for direct communication between the emperor and the subordinates of the great ministers, and the highly developed system of state espionage whereby the ruler kept watch upon the actions of his officers. However, in spite of the efforts of the majority of the emperors to secure an honest and efficient administration, the actual result of the development of this elaborate bureaucratic system was the erection of an almost impassable barrier between the emperor and his subjects. Neither did their complaints reach his ears, nor were his ordinances for their relief effective, because the officials coöperated with one another to conceal their misdemeanors and to enrich themselves at the expense of the civilian population. So thoroughly had the spirit of “graft” and intrigue penetrated all ranks of the civil and military service that to gratify their personal ambitions they were even willing to compromise the safety of the empire itself. The burden imposed upon the tax payers by the vast military and civil establishment was immensely aggravated by the extortions practised by representatives of both services, whose rapacity knew no bounds.

IV. THE NOBILITY AND THE SENATE

The senatorial order. The conflict between the principate and the Senate resulted, as we have seen, in the exclusion of members of the senatorial order from all offices of state. But it was unthinkable that the great landed proprietors should be permanently shut out of the public service, and with the loss of any claim to authority by the Senate as a body there was no longer any objection to their entering the service of the emperor. Consequently, the essential distinction between the senatorial and equestrian orders vanished and a new senatorial order arose into which was merged a large equestrian element.

The clarissimate. The distinguishing mark of this new senatorial order was the right to the title _clarissimus_, which might be acquired by inheritance, by imperial grant, or by the attainment of an office which conferred the clarissimate upon its holder, either during his term of service or upon his retirement. Practically all of the

higher officials in the imperial service were _clarissimi_ and there was consequently a great increase in the number of senators in the course of the fourth century. The place of the equestrian order was in part filled by the perfectissimate, an inferior order of rank conferred upon lower imperial officials and municipal senators.

The higher orders of rank. The development of an oriental court life with its elaborate ceremonial demanding a fixed order of precedence among those present at imperial audiences, and the increase in the number and importance of the public officials, which necessitated a classification of the various official posts from the point of view of rank, led to the establishment of new and more exclusive rank classes within the circle of the _clarissimi_. There were in the ascending order the _spectabiles_, or Respectables, and the _illustres_, or Illustrious. The illustriate was conferred solely upon the great ministers of state. Under Justinian, in the sixth century, there was established the still higher order of the _gloriosi_ (the Glorious). The official positions, to which these titles of rank were attached, were called dignities (_dignitates_), and the great demand for admission to these rank classes, which entitled their members to valuable privileges, caused the conferment of many honorary dignities, i. e., titles of official posts with their appropriate rank but without the duties of office.

The patricians and counts. The other titles of nobility were those of patrician and count. The former, created by Constantine I in imitation of the older patrician order, was granted solely to the highest dignitaries, although it was not attached to any definite official post. It was Constantine also who revived the _comitiva_, which had been used irregularly of the chief associates of the princeps until the death of Severus Alexander, and put it to a new use. The term count became a title of honor definitely attached to certain offices, but also capable of being conferred as a favor or a reward of merit. Like the other titles of rank the patriciate and the _comitiva_ brought with them not only precedence but also valuable immunities.

Nothing illustrates more clearly the importance of official positions than the division of the people of the empire as a whole into two classes—the _honestiores_ (more honorable) and the _humiliores_ (more humble or plebeians). The former class, which included the imperial senators, the soldiers and the veterans, were exempt from execution except with the emperor’s consent, from penal servitude, and, with some limitations, from torture in the course of judicial investigations.

The Senate. The Senate at Rome was not abolished but continued to function both as a municipal council and as the mouthpiece of the senatorial order. After the founding of Constantinople a similar Senate was established there for the eastern part of the empire. At first all _clarissimi_ had a right to participate in the meetings of the Senate, and their sons were expected to fill the quaestorship. However, after the middle of the fifth century only those having the rank of _illustris_ were admitted to the senate chamber, and the active Senate became a gathering of the highest officials and ex-officials of the state. In addition to their functions as municipal councils, the Senates made recommendations for the quaestorship and praetorship, discussed with the imperial officials the taxes which affected the senatorial order and even participated to a certain extent in drafting imperial legislation.

The senators and the municipalities. The most important privilege enjoyed by the senators was their exemption from the control of the officials of the municipalities within whose territories their estates were situated. As we shall see, this was one of the chief reasons for the extension of their power in the provinces.

V. THE SYSTEM OF TAXATION AND THE RUIN OF THE MUNICIPALITIES

The system of taxation. The debasement of the Roman coinage in the course of the third century resulted in a thorough disorganization of the public finances, for the taxes and disbursements fixed in terms of money had no longer their previous value. Diocletian completely reorganized the financial system by introducing a general scheme of taxation and remuneration in produce in place of coin, and by establishing a new method of assessment. This latter consisted in the division of the land, cattle and agricultural labor into units of equal tax value. The unit of taxation for land was the _iugum_, which differed in size for arable land, vineyards and orchards, as well as for soils of varying fertility. A fixed number of cattle likewise constituted a _iugum_, assessed at the same value as a _iugum_ of land. The unit of labor, regarded as the equivalent of the _iugum_ was the _caput_, which was defined as one man or two women engaged in agricultural occupations. Thus the workers were taxed in addition to the land they tilled.

The indiction. The amount of the land tax to be raised each year was announced in an annual proclamation called an indiction (_indictio_), and a revaluation of the tax units was made periodically. The term indiction was also used of the period between two reassessments, which occurred at first every five, but after 312 A. D. every fifteen, years. The indictions thus furnished the basis for a new system of chronology. From the taxes raised in kind the soldiers and those in the civil service received their pay in the form of an allowance (_annona_), which might under certain conditions be commuted for its monetary equivalent.

Special taxes. In addition to the land tax raised in the form of produce on the basis of the _iuga_ and _capita_, there were certain other taxes payable in money. The chief of these were: the _chrysargyrum_, a tax levied on all trades; the _aurum coronarium_, a nominally voluntary but really compulsory contribution paid by the municipal senators every five years to enable the emperor to distribute largesses to his officials and troops; the _aurum oblaticium_, a similar payment made by the senatorial order of the empire; and the _collatio glebalis_ or _follis senatoria_, a special tax imposed upon senators by Constantine I.

Munera. Besides the taxes, the government laid upon its subjects the burden of performing certain public services without compensation. The most burdensome of these charges (_munera_) were the upkeep of the public post, and the furnishing of quarters (_hospitium_) and rendering other services in connection with the movement of troops, officials and supplies. So heavy was the burden of the post that it denuded of draught animals the districts it traversed and had to be abandoned in the sixth century. It was in connection with the exaction of these charges, the collection of the

revenue in kind, and in the administration of justice that the imperial officials found opportunity to practice extortions which weighed more heavily upon the taxpayers than the taxes themselves.

The curiales. The class which suffered most directly from the established fiscal system was that of the _curiales_, as the members of the municipal senatorial orders were now called. In the course of the third century the status of _curialis_ had become hereditary, and was an obligation upon all who possessed a definite property qualification, fixed at twenty-five _iugera_ of land in the fourth century. Since the local senates had become agents of the _fiscus_ in collecting the revenues from their municipal territories, the _curiales_, through the municipal officers or committees of the local council, had to apportion the quotas of the municipal burden among the landholders, to collect them, and be responsible for the payment of the total amount to the public officers. They were also responsible for the maintenance of the public post and the performance of other services resting upon the municipalities. Inevitably the _curiales_ sought to protect themselves by shifting the burden of taxation as much as possible upon the lower classes in the municipal territory who regarded them as oppressors. “Every _curialis_ is a tyrant” (_quot curiales, tot tyranni_), says a fourth century writer.

The exactions of the imperial officers proved more than the _curiales_ could meet, and they sought to withdraw from their order and its obligations. But the government required responsible landholders and so they were forbidden to dispose of their properties or to leave their place of residence without special permission. And when they tried to find exemption by entering the imperial senatorial order, the military or civil service, or the clergy, these avenues of escape were likewise closed. Only those who had filled all the municipal offices might become _clarissimi_ and immune from the curial obligations, and only clergy of the rank of bishops were excused, while the lower orders had to supply a substitute or surrender two-thirds of their property before they could leave the _curia_. Valentinian I attempted to aid the _curiales_ by appointing officials known as _defensores __civitatium_ or _plebis_—“defenders of the cities” or “of the plebs”—whose duty it was to check unjust exactions and protect the common people against officials and judges. These _defensores_ were at first persons of influence, chosen by the municipalities and approved by the emperor. They were empowered to try certain cases themselves, and had the right to address themselves directly to the emperor without reference to the provincial governor. However, the _defensores_ accomplished little, and in the fifth century their office had become an additional obligatory service resting upon the _curiales_. By 429 A. D. hardly a _curialis_ with adequate property qualifications could be found in any city, and by the sixth century the class of municipal landholders had practically disappeared.

The hereditary corporations. We have seen how, in the course of the third century, the professional corporations were burdened with the duty of performing certain public services in the interest of the communities to which they belonged. The first step taken by the state to insure the performance of these services was to make this duty a charge which rested permanently upon the property of the members of the corporations (_corporati_), no matter into whose possession it passed. But men as

well as money were needed for the performance of these charges, and consequently, in order to prevent a decline in the numbers of the _corporati_, the state made membership in these associations an hereditary obligation. This was really an extension of the principle that a man was bound to perform certain services in the community in which he was enrolled (his _origo_). Finally, the emperors exercised the right of conscription, and attached to the various corporations which were in need of recruits persons who were engaged in less needed occupations.

The burden of their charges led the _corporati_, like the _curiales_, to seek refuge in some other profession. They tried to secure enrollment in the army, among the _officiales_, or to become _coloni_ of the emperor or senatorial landholders. But all these havens of refuge were closed by imperial edicts, and when discovered the truant _corporatus_ was dragged back to his association. Only those who attained the highest office within their corporation were legally freed from their obligations.

Although the corporations probably retained their former organization and officers, their active heads were now called _patroni_, and these directed the public services of their colleges. In Rome and Constantinople the colleges were under the supervision of the city prefects, in the municipalities under that of the local magistrates and provincial governors. The professional colleges are the only ones which survived during the late empire. The religious and funerary associations vanished with the spread of Christianity and the general impoverishment of the lower classes.

The coloni. Among the agricultural classes the forces which had developed in the course of the principate were still at work. In the fourth century the attachment of the tenant farmers and peasant laborers to the soil was extended to the whole empire. The status of the _coloni_ became hereditary, like that of the _corporati_. Their condition was half way between that of freedmen and that of slaves, for while they were bound to the estate upon which they resided and passed with it from one owner to another, they were not absolutely under the power of the owner and could not be disposed of by him apart from the land. They had also other rights which slaves lacked, yet as time went on their condition tended to approximate more and more closely to servitude. “Slaves of the soil,” they were called in the sixth century. As this status of serfdom was hitherto unknown in Roman law, a great many imperial enactments had to be issued defining the rights and duties of the _coloni_.

The growth of private domains. The development of vast private estates at the expense of the public and imperial domains was another prominent characteristic of the times. This was the result of the failure of the state to check the spread of waste lands, in spite of its attempt to develop the system of hereditary leaseholds to small farmers. To maintain the level of production the government opened the way for the great proprietors to take over all deserted lands under various forms of heritable lease or in freehold tenure. The system of attaching waste lands to those of the neighboring landholders and making the latter responsible for their cultivation was an added cause of the growth of large estates. The result of this development was that the state tenants became _coloni_ of the great landlords, and the latter were responsible for the taxes and other obligations of their _coloni_ to the state. The

weight of these obligations rested as before upon the _coloni_, and led to their continued flight and a further increase in waste land. Like the _curiales_ and _corporati_, the _coloni_ tried to exchange their status by entering the public service or attaining admission to some other social class. But, in like manner also, they found themselves excluded from all other occupations and classes. Only the fugitive _colonus_ who had managed to remain undetected for thirty years (in the case of women twenty years) could escape being handed back to the land which he had deserted.

The power of the landed nobility. The immunities of the senatorial order and the power of the high officials tended to give an almost feudal character to the position of the great landed proprietors. These had inherited the judicial powers of the procurators on the imperial estates and transferred this authority to their own domains. Over their slaves and _coloni_ they exercised the powers of police and jurisdiction. As they were not subject to the municipal authorities, and, during the greater part of the fourth century, were also exempt from the jurisdiction of the provincial governors they assumed a very independent position, and did not hesitate to defy the municipal magistrates and even the minor agents of the imperial government. Their power made their protection extremely valuable, and led to a new type of patronage. Individuals and village communities, desirous of escaping from the exactions to which they were subject in their municipal districts, placed themselves under the patronage of some senatorial landholder and became his tenants. And he did not hesitate to afford them an illegal protection against the local authorities. Complaints by the latter to higher officials secured little redress for they were themselves proprietors and sided with those of their own class. The power of the state was thus nullified by its chief servants and the landed aristocracy became the heirs of the empire.

Resumé. The transformation which society underwent during the empire may be aptly described as the transition from a régime of individual initiative to a régime of status, that is, from one in which the position of an individual in society was mainly determined by his own volition to one in which this was fixed by the accident of his birth. The population of the empire was divided into a number of sharply defined castes, each of which was compelled to play a definite rôle in the life of the state. The sons of senators, soldiers, _curiales_, _corporati_, and _coloni_ had to follow in their fathers' walks of life, and each sought to escape from the tasks to which he was born. In the eyes of the government _collegiati_, _curiales_, and _coloni_ existed solely to pay taxes for the support of the bureaucracy and the army. The consequence was the attempted flight of the population to the army, civil service, the church or the wilderness. Private industry languished, commerce declined, the fields lay untilled; a general feeling of hopelessness paralyzed all initiative. And when the barbarians began to occupy the provinces they encountered no national resistance; rather were they looked upon as deliverers from the burdensome yoke of Rome.

CHAPTER XXIII

THE GERMANIC OCCUPATION OF ITALY AND THE WESTERN PROVINCES: 395–493 A. D.

I. GENERAL CHARACTERISTICS OF THE PERIOD

The partition of the empire. With the death of Theodosius the Great the empire passed to his sons, Arcadius a youth of eighteen, whom he had left in Constantinople, and Honorius a boy of eleven, whom he had designated as the Augustus for the West. However, in the East the government was really in the hands of Rufinus, the pretorian prefect of Illyricum, while an even greater influence was exercised in the West by Stilicho, the Vandal master of the soldiers, whom Theodosius had selected as regent for the young Honorius. The rivalry of these two ambitious men, and the attempt of Stilicho to secure for Honorius the restoration of eastern Illyricum, which had been attached by Gratian to the sphere of the eastern emperor, were the immediate causes of the complete and formal division of the empire into an eastern and a western half, a condition which had been foreshadowed by the division of the imperial power throughout the greater part of the fourth century.

The fiction of imperial unity was still preserved by the nomination of one consul in Rome and one in Constantinople, by the association of the statues of both Augusti in each part of the empire, and by the issuance of imperial enactments under their joint names. Nevertheless, there was a complete separation of administrative authority, the edicts issued by one emperor required the sanction of the other before attaining validity within his territory, and upon the death of one Augustus the actual government of the whole empire did not pass into the hands of the survivor. The empire had really split into two independent states.

The Germanic invasions. In addition to the partition of the empire, the period between 395 and 493 is marked by the complete breakdown of the Roman resistance to barbarian invasions, and the penetration and occupation of the western provinces and Italy itself by peoples of Germanic stock. The position of Roman and barbarian is reversed; the latter become the rulers, the former their subjects, and the power passes from the Roman officials to the Germanic kings. Finally, a barbarian soldier seats himself upon the throne of the western emperor, and a Germanic kingdom is established in Italy.

The military dictators. During this period of disintegration, the real power in the western empire was in the hands of a series of military dictators, who with the office of master of the soldiers secured the position of commander-in-chief of the imperial armies. Beside them the emperors exercised only nominal authority. But as these dictators were either barbarians themselves, or depended upon barbarian troops for their support, they were continually intrigued against and opposed by the Roman or civilian element, headed by the civil officers of the court. Yet the fall of one “kingmaker” was always followed by the rise of another, for by their aid alone could the Romans offer any effective resistance to the flood of barbarian invasion.

The empire maintained in the East. But while the western empire was thus absorbed by the Germanic invaders, the empire in the East was able to offer a

successful resistance both to foreign invasions and the ambitions of its own barbarian generals. This is in part accounted for by the greater solidarity and vigor of the Hellenic civilization of the eastern provinces, and the military strength of the population, particularly in Asia Minor, and in part by the success of the bureaucracy in holding the generals in check, a task which was facilitated by the division of the supreme military authority among several masters of the soldiers. The strength of the eastern empire caused the West to look to it for support and the western emperors upon several occasions were nominated, and at other times given the sanction of legitimacy, by those in the East.

II. THE VISIGOTHIC MIGRATIONS

The revolt of Alaric, 395 A. D. Seizing the opportunity created by the death of Theodosius and the absence of the army of the East which he had led into Italy, Alaric, a prince of the Visigothic _foederati_, began to ravage Thrace and Macedonia with a band of his own people, aided by other tribes from across the Danube. He was opposed by Stilicho who was leading back the troops of the eastern emperor and intended to occupy eastern Illyricum. However, the latter was ordered by Arcadius to send the army of the East to Constantinople and complied. This gave Alaric free access to southern Greece which he systematically plundered. However, Stilicho again intervened. He transported an army by sea to the Peloponnesus, and maneuvered Alaric into a precarious situation, but came to terms with him, possibly because of a revolt which had broken out in Africa. Stilicho was declared an enemy by Arcadius, while Alaric, after devastating Epirus, settled there with his Goths, and extorted the title of _magister militum_ from the eastern court.

The death of Stilicho, 408 A. D. In 401 A. D., when Stilicho was occupied with an inroad of Vandals and Alans into Raetia, Alaric invaded Italy. However, Stilicho forced him to withdraw, and foiled a second attempt at invasion in 403 A. D. But Alaric did not long remain inactive. He now held the title of master of the soldiers from Honorius and had agreed to help Stilicho to accomplish his designs upon Illyricum. But when the western empire was embarrassed by new invasions and the appearance of a usurper in Gaul, he made his way into Noricum and demanded an indemnity and employment for his troops. By the advice of Stilicho his demands, which included a payment of 4000 pounds of gold, were complied with. Shortly afterwards, Stilicho fell a victim to a plot hatched by the court officials who were jealous of his influence (408 A. D.).

The Visigoths in Italy. The death of Stilicho removed the only capable defender of Italy and, when Honorius refused to carry out the agreement with Alaric, the latter crossed the Alps. Honorius shut himself up in Ravenna, and the Goths marched on Rome, which ransomed itself at a heavy price. As Honorius still refused to make him master of the soldiers and to give him lands and supplies for his men, Alaric returned to Rome and set up a new emperor, named Attalus. Yet Honorius, supported by troops from the eastern empire, remained obdurate, and a disagreement between Alaric and Attalus led to the latter’s deposition. Rome was then occupied by the Goths who plundered it for three days (410 A. D.). Alaric’s next move was to march to south

Italy with the intention of crossing to Sicily and Africa. But his flotilla was destroyed by a storm, and while retracing his steps northwards he suddenly took sick and died.

The Goths in Gaul and Spain. Alaric's successor was his brother-in-law, Ataulf, who led the Visigoths into Gaul (412 A. D.), where he at first allied himself with a usurper, Jovinus, but soon deserted him to take service with the Romans. However, when Honorius failed to furnish him supplies, he seized Narbonne and other towns in southern Gaul and married the emperor's sister, Placidia, whom the Goths had carried off captive from Rome. He again attempted to come to terms with the Romans, but failed, and Constantius, the Roman master of the soldiers, who had succeeded to the position and influence of Stilicho, forced him to abandon Gaul. Ataulf and the Goths crossed the Pyrenees into Spain, where he died in 415 A. D. His successor Wallia, being hard pressed by famine and failing in an attempt to invade Africa, came to terms with the Romans. He surrendered Placidia and in the name of the emperor attacked the Vandals and Alans who had occupied parts of Spain. Alarmed by his success Constantius recalled the Goths to Gaul, where they were settled in southern Aquitania (418 A. D.).

The Visigothic kingdom in Gaul. The status of the Goths in Gaul was that of _foederati_, bound to render military aid to Rome, but governed by their own kings. The latter, however, had no authority over the Roman population among whom the Goths were settled. This condition was unsatisfactory to the Gothic rulers who sought to establish an independent Gothic kingdom. Theodoric I, the successor of Wallia, forced the Romans to acknowledge his complete sovereignty over Aquitania, but failed in his attempt to conquer Narbonese Gaul. However, he joined forces with the Romans against Attila the Hun and was largely responsible for checking the latter at the battle of the Mauriac plain (451 A. D.) in which he lost his life. For a time the Goths remained on friendly terms with the imperial authority but under Euric, who became king in 466 A. D., the anti-Roman faction was in the ascendant and they embarked upon a policy of expansion. In 475 Euric, after a protracted struggle, gained possession of the district of Auvergne, and the Roman emperor acknowledged his sovereignty over the country between the Atlantic and the Rhone, the Loire and the Pyrenees, besides some territory in Spain. Two years later the district between the Rhone and the Alps, south of the Durance, was added to the Visigothic kingdom.

III. THE VANDALS

The invasions of 406 A. D. In 405 A. D. an invading horde of Vandals and Alans, who had descended upon Italy, was utterly defeated by Stilicho. But in the following year fresh swarms of the same peoples, united with the Suevi, crossed the Rhine near Mainz and plundered Gaul as far as the Pyrenees. For a short time they were held in check by the usurper Constantine, who held sway in Gaul and Spain. However, when he was involved in a struggle with a rival, Gerontius, they found an opportunity to make their way into Spain (409 A. D.).

The occupation of Spain. The united peoples speedily made themselves masters of the whole Iberian peninsula. But in spite of their successes over the Roman troops,

the lack of supplies forced them to come to terms with the empire. In 411 they became Roman _foederati_ and were granted lands for settlement. Under this agreement the Asdingian Vandals and the Suevi occupied the northwest of Spain, the Alans the center, and the Silingian Vandals the south. However, the Roman government had only made peace with the Vandals and their allies under pressure, and seized the first opportunity to rid themselves of these unwelcome guests. In 416 Constantius authorized the Visigoths under Wallia to attack them in the name of the emperor. Wallia was so successful that he utterly annihilated the Silingian Vandals, and so weakened the Alans that they united themselves with the Asdingian Vandals, who escaped destruction only through the recall of the Visigoths to Gaul. However, the Vandals quickly recovered from their defeats, waged successful war upon the Suevi, who had reached an agreement with the Romans, and occupied the whole of southern Spain.

The Vandal kingdom in Africa. In 429 A. D. the Vandals under the leadership of their king Gaiseric crossed into Africa, attracted by the richness of its soil and its strategic importance as one of the granaries of the Roman world. Their invasion was facilitated by the existence of a state of war between Count Bonifacius, the military governor of Africa, and the western emperor. The number of the invaders was estimated at 80,000, of whom probably 15,000 or 20,000 were fighting men.

In spite of the reconciliation between Bonifacius and the imperial government and their united opposition, Gaiseric was able to overrun the open country although he failed to capture the chief cities. In 435 A. D. peace was concluded and the Vandals were allowed to settle in Numidia, once more as _foederati_ of the empire. However, in 439 A. D. Gaiseric broke the peace and treacherously seized Carthage. This step was followed by the organization of a fleet which harried the coasts of Sicily. In 442 the western emperor acknowledged the independence of the Vandal kingdom. Peace continued until 455, when the assassination of the emperor Valentinian III gave Gaiseric the pretext for a descent upon Italy and the seizure of Rome which was systematically plundered of its remaining treasures, although its buildings and monuments were not wantonly destroyed. Among the captives was Eudoxia, widow of the late emperor, and her daughters, who were valuable hostages in the hands of Gaiseric.

The lack of coöperation between the eastern and western empires against the Vandals enabled them to extend their power still further. Their fleets controlled the whole of the Mediterranean and ravaged both its western and its eastern coasts. A powerful expedition fitted out by the eastern emperor Leo I in 468 for the invasion of Africa ended in utter failure, and in 476 his successor Zeno was compelled to come to terms and acknowledge the authority of the Vandals over the territory under their control. At the death of Gaiseric in 477 A. D. the Vandal kingdom included all Roman Africa, the Balearic Islands, Corsica, Sardinia, and the fortress of Lilybaeum in Sicily.

IV. THE BURGUNDIANS, FRANKS, AND SAXONS

The Burgundian invasion of Gaul. The invasion of Gaul by the Vandals and Alans in 406 A. D. was followed by an inroad of the Burgundians, Ripuarian Franks and Alemanni. The two latter peoples established themselves on the left bank of the Rhine, while the Burgundians penetrated further south. In 433 the Burgundians were at war with the empire and were defeated by Aetius, the Roman master of the soldiers in Gaul. Subsequently they were settled in the Savoy. Thence, about 457, they began to expand until they occupied the whole valley of the Rhone as far south as the Durance.

Yet on the whole they remained loyal _foederati_ of the empire. They fought under Aetius against Attila in 451, and their kings bore the Roman title of _magister militum_ until the reign of Gundobad (473–516), who was given the rank of patrician by the emperor Olybrius.

The Salian Franks. The Salian Franks, as those who had once dwelt on the shores of the North Sea were called in contrast to the Ripuarians, whose home was on the banks of the Rhine, crossed the lower Rhine before the middle of the fourth century and occupied Toxandria, the region between the Meuse and the Scheldt. They were defeated by Julian who, however, left them in possession of this district as Roman _foederati_. The disturbances of the early fifth century enabled the Salian Franks to assert their independence of Roman suzerainty, and to extend their territory as far south as the Somme. Still, they fought as Roman allies against the Huns in 451 A. D., and their king Childeric, who began to rule shortly afterwards, remained a faithful _foederatus_ of Rome until his death in 481 A. D.

In 486 A. D. Clovis, the successor of Childeric, overthrew the Gallo-Roman state to the south of the Somme and extended his kingdom to meet the Visigoths on the Loire. Thus the whole of Gaul passed under the rule of Germanic peoples.

The Saxons in Britain. After the decisive defeat of the Picts and Scots by Theodosius, the father of Theodosius the Great, in 368 and 369 A. D., the Romans were able to maintain the defence of Britain until the close of the fourth century. But in 402 Stilicho was obliged to recall part of the garrison of the island for the protection of Italy, and in 406 Constantine, who had laid claim to the imperial crown in Britain, took with him the remaining Roman troops in his attempt to obtain recognition on the continent. The ensuing struggles with the barbarians in Gaul prevented the Romans from sending officials or troops across the channel, and the Britons had to depend upon their own resources for their defense.

The task proved beyond their strength and it is probable that by the middle of the fifth century the Germanic tribes of Saxons, Angles and Jutes were firmly established in the eastern part of Britain. Because of the uncivilized character of these peoples, of the fact that Roman culture was not very deeply rooted among the native population, and of the desperate resistance offered by the latter to the invaders, the subsequent struggle for the possession of the island resulted in the obliteration of the Latin language and the disappearance of that material civilization which had developed under four centuries of Roman rule.

V. THE FALL OF THE WESTERN EMPIRE

Honorius, 395–432 A. D. After the murder of Stilicho in 408 A. D., Honorius was faced with the problem of restoring his authority in Gaul, where for a time he had been forced to acknowledge the rule of a rival emperor Constantine who had donned the purple in Britain in 406 A. D. Constantius, a Roman noble who had succeeded Stilicho as master of the soldiers, was despatched to Gaul in 411 and soon overthrew the usurper. Two years later another rival, Jovinus, was crushed with the help of the Visigoths.

Constantius, the leader of the anti-barbarian faction of the court, was now the mainstay of the power of Honorius and used his influence to further his own ambitions. After the surrender of the princess Placidia by the Visigoths he induced the emperor to grant him her hand in marriage (417 A. D.). In 421 A. D. Honorius appointed him co-emperor, but he was not recognized as an Augustus at Constantinople and died in the same year. His death was followed by a quarrel between the emperor and his sister, as a result of which Placidia and her son took refuge under the protection of the eastern emperor, Theodosius II.

Valentinian III, 425–455 A. D. Honorius died in 423 A. D., leaving no children, and Castinus, the new master of the soldiers, secured the nomination of John, a high officer of the court, as his successor. However, Theodosius refused him recognition and his authority was defied by Bonifacius, an influential officer who had established himself in Africa. Valentinian, the five-year-old son of Placidia and Constantius, was escorted to Italy by forces of the eastern empire and John was deposed. His chief supporter Aetius, who had brought an army of Huns to his aid, was induced to dismiss his troops and accept a command in Gaul with the rank of count. Placidia, who had returned to Italy with Valentinian, became regent with the title of Augusta.

Aetius. During the reign of Valentinian III interest centers about the career of Aetius, “last of the Romans.” In 429, after getting rid of his enemy Felix, who had succeeded to the position of Castinus, Aetius himself became master of the soldiers and the real ruler of the empire. However, the Augusta Placidia endeavored to compass his downfall by an appeal to Bonifacius, who after his revolt of 427 A. D. had fought in the imperial cause against the Vandals. In 432 Bonifacius returned to Italy and was appointed master of the soldiers in place of Aetius. The latter appealed to arms, was defeated near Ariminum, and forced to flee for refuge to his friends the Huns. But as Bonifacius died not long after his victory, Aetius, with the backing of the Huns, was able to force the emperor to reappoint him master of the soldiers in 433 A. D. From that time until his death in 454 he directed the imperial policy in the West. He received embassies from foreign peoples and the latter made treaties with him and not with the emperor.

Attila’s invasion of Gaul, 451 A. D. The chief efforts of Aetius were directed towards the preservation of central and southeastern Gaul for the empire. In this he was successful, holding in check the Franks on the north, the Burgundians on the east, and the Goths in the southwest. But though Gaul was saved, Africa was lost to the Vandals, Britain to the Saxons and the greater part of Spain to the Suevi. The

success of Aetius in Gaul was principally due to his ability to draw into his service large numbers of Hunnish troops, owing to the influence he had acquired with the leaders of that people while a hostage among them. At this time the Huns occupied the region of modern Hungary, Rumania, and South Russia. They comprised a number of separate tribes, which in 444 A. D. were united under the strong hand of King Attila, who also extended his sway over neighboring Germanic and Scythian peoples.

At first Attila remained on friendly terms with Aetius but his ambitions and his interference in the affairs of Gaul led to friction and to his demand for the hand of Honoria, sister of Valentinian III, with half of the western empire as her dowry. When the emperor refused to comply Attila led a great army across the Rhine into Gaul and laid siege to Orleans. Their common danger brought together the Romans and the Germanic peoples of Gaul, and Aetius was able to face the Huns with an army strengthened by the presence of the kings of the Visigoths and the Franks. Repulsed at Orleans, Attila withdrew to the Mauric plains where, in the vicinity of Troyes, a memorable battle was fought between the Huns and the forces of Aetius. Although the result was indecisive, Attila would not risk another engagement and recrossed the Rhine. The next year he invaded Italy, but the presence of famine and disease among his own forces and the arrival of troops from the Eastern Empire induced him to listen to the appeal of a Roman embassy, led by the Roman bishop Leo, and to withdraw from the peninsula without occupying Rome. Upon his death in 453 A. D. his empire fell to pieces and the power of the Huns began to decline.

Maximus and Avitus, 455–6 A. D. The death of Attila was soon followed by that of Aetius, who was murdered by Valentinian at the instigation of his chamberlain Heraclius (454 A. D.). This rash act deprived him of the best support of his authority and in the next year Valentinian himself fell a victim to the vengeance of followers of Aetius. With him ended the dynasty of Theodosius in the West. The new emperor, a senator named Petronius Maximus, compelled Valentinian’s widow, Eudoxia, to marry him, but when the Vandal Gaiseric appeared in Italy in answer to her call he offered no resistance and perished in flight. Maximus was succeeded by Avitus, a Gallic follower of Aetius, whom he had made master of the soldiers. But after ruling little more than a year Avitus was deposed by his own master of the soldiers, Ricimer (456 A. D.).

Ricimer. Ricimer, a German of Suevic and Gothic ancestry, who succeeded to the power of Aetius, was the virtual ruler of the western empire from 456 until his death in 472. Backed by his mercenary troops he made and unmade emperors at his pleasure, and never permitted his nominees to be more than his puppets. Majorian, who was appointed emperor in 457 A. D., was overthrown by Ricimer in 461, and was followed by Severus. After the death of Severus in 465 no emperor was appointed in the West for two years. The imperial power was nominally concentrated in the hands of the eastern emperor, Leo, while Ricimer was in actual control of the government in Italy. In 467, Leo sent as emperor to Rome, Anthemius, a prominent dignitary of the eastern court, whose daughter was married to Ricimer in order to secure the coöperation of the latter in a joint attack of the two empires upon the Vandal kingdom

in Africa. However, in 472 Ricimer broke with Anthemius who had endeavored with the support of the Roman Senate to free himself from the influence of the powerful barbarian. Anthemius was besieged in Rome, and put to death following the capture of the city. Thereupon Ricimer raised to the purple Olybrius, a son-in-law of Valentinian III. But both the new emperor and his patron died in the course of the same year (472 A. D.).

The last years of the western empire. In 473 A. D. Gundobad, the nephew of Ricimer, caused Glycerius to be proclaimed emperor. However, his appointment was not recognized by Leo, who nominated Julius Nepos. The next year Nepos invaded Italy and overthrew his rival, only to meet a like fate at the hands of Orestes, whom he had made master of the soldiers (475 A. D.). Orestes did not assume the imperial title himself, but bestowed it upon his son Romulus, known as Augustulus. But Orestes was unable to maintain his position for long. The Germanic mercenaries in Italy—Herculi, Sciri, and others—led by Odovacar, demanded for themselves lands in Italy such as their kinsmen had been granted as _foederati_ in the provinces. When their demands were refused they mutinied and slew Orestes. Romulus was forced to abdicate, and Odovacar assumed the title of king (476 A. D.). The soldiers were settled on Italian soil and the barbarians acquired full control of the western empire.

The kingship of Odovacar, 476–493 A. D. With the deposition of Romulus Augustulus, the commander-in-chief of the barbarian soldiery, long the virtual ruler in the western empire, was recognized as legally exercising this power. The imperial authority was united in the person of the eastern emperor who sanctioned the rule of Odovacar by granting him the title of patrician, which had been held already by Aetius, Ricimer and Orestes. The barbarian king was at the same time the imperial regent in Italy.

But it was only in Italy that Odovacar obtained recognition. The last remnants of Roman authority vanished in Gaul and Spain, while Raetia and Noricum were abandoned to the Alamanni, Thuringi and Rugii.

The Ostrogothic conquest of Italy, 488–493 A. D. In 488 A. D. the position of Odovacar in Italy was challenged by Theodoric, king of the Ostrogoths. This people after having long been subject to the Huns, recovered their freedom at the death of Attila, and settled in Pannonia as _foederati_ of the eastern empire. Theodoric, who became sole ruler of the Ostrogoths in 481 A. D., had proved himself a troublesome ally of the emperor Zeno who mistrusted his ambitions. Accordingly when Theodoric demanded an imperial commission to attack Odovacar in Italy, Zeno readily granted him the desired authority in order to remove him to a greater distance from Constantinople. In 488 Theodoric set out with his followers to invade Italy. Odovacar was defeated in two battles and, in 490 A. D., blockaded in Ravenna. After a long siege he agreed to surrender upon condition that he and Theodoric should rule jointly over Italy. Shortly afterwards he and most of his followers were treacherously assassinated by the Ostrogoths (493 A. D.). Theodoric now ruled Italy as king of the Ostrogoths and an official of the Roman empire, probably retaining the title of master of the soldiers which he had held in the East.

VI. THE SURVIVAL OF THE EMPIRE IN THE EAST

Arcadius, 395–408 A. D. The year of the death of Theodosius the Great saw the Asiatic provinces of the empire overrun by the Huns who ravaged Syria and Asia Minor, while the Visigoths under Alaric devastated the Balkan peninsula. The absence of the eastern troops in Italy prevented the government from offering any effective opposition to either foe. And when Stilicho came to the rescue from Italy and was holding the Visigoths in check, his rival the praetorian prefect Rufinus, who directed the policy of the young Arcadius, induced the emperor to order Stilicho to withdraw and sent the troops of the East to Constantinople. This order resulted in the death of Rufinus, who was killed by the returning soldiery at the orders of their commander, the Goth Gaïnas.

The influential position of Rufinus at the court fell to the grand-chamberlain Eutropius, who had been an enemy of the late prefect. He had induced Arcadius to marry Eudoxia, daughter of a Frankish chief, instead of the daughter of Rufinus, as the latter had desired. The fall of Eutropius was brought about by Gaïnas, now a master of the soldiers, who sought to play the rôle of Stilicho in the East. He was supported by the empress Eudoxia, who chafed under the domination of the chamberlain. In 399 on the occasion of a revolt of the Gothic troops in Phrygia, Gaïnas held aloof and the failure of the nominee of Eutropius to crush the movement gave him the opportunity to bring about the latter’s dismissal and eventually his death.

But Gaïnas did not long retain his power. He quarrelled with the empress, and the Arianism of himself and his followers roused the animosity of the population of the capital. A massacre of the Goths in Constantinople followed and with the aid of a loyal Goth Fravitta, Gaïnas was driven north of the Danube where he was slain by the Huns (400 A. D.). The influence of Eudoxia was now paramount. However, she found a critic in the eloquent bishop of Constantinople, John Chrysostom, who inveighed against the extravagance and dissipation of the society of the court, and directed his censures towards the empress in particular. Ultimately, Eudoxia was able to have him deposed from his see in 404 A. D., a few months before his death. Four years later Arcadius himself died, leaving the empire to his eight-year-old son Theodosius II.

Theodosius II, 408–450 A. D. At the opening of the reign of Theodosius II the government was in the hands of the praetorian prefect Anthemius, who had shown himself an able administrator during the last years of Arcadius. However, in 414, the emperor’s elder sister, Pulcheria, was made regent with the title of Augusta. She was a strong personality and for many years completely dominated the emperor who was lacking in independence of character and energy. In 421 Pulcheria selected as a wife for Theodosius, Athenais, the daughter of an Athenian sophist, who took the name of Eudocia upon accepting Christianity. After a lapse of some years differences arose between the empress and her sister-in-law which led to the latter’s withdrawal from the court (after 431 A. D.). But, about 440, Eudocia lost her influence over the emperor; she was compelled to retire from Constantinople and reside in Jerusalem, where she lived until her death in 460. The reins of power then passed to the grand chamberlain Chrysapius, whose corrupt administration rivalled that of his

predecessor Eutropius.

During the reign of Theodosius II the peace of the eastern empire was broken by a war with Persia and by inroads of the Huns. The Persian war which began in 421 as a result of persecutions of the Christians in Persia was brought to a victorious conclusion in the next year. A second war, the result of a Persian invasion in 441, ended with a Persian defeat in 442. But with the Huns the Romans were not so fortunate. In 434, king Rua, the ruler of the Huns in the plains of Hungary, had extorted from the empire the payment of an annual tribute to secure immunity from invasion. At the accession of Attila and his brother in 433, this tribute was raised to 700 pounds of gold and the Romans were forbidden to give shelter to fugitives from the power of the Huns. But the payment of tribute failed to win a permanent respite, for Attila was bent on draining the wealth of the empire and reducing it to a condition of helplessness. In 441–43 the Huns swarmed over the Balkan provinces and defeated the imperial armies. An indemnity of 6000 pounds of gold was exacted and the annual payment increased to 2100 pounds. Another disastrous raid occurred in 447. The empire could offer no resistance, and so Chrysapius plotted the assassination of Attila, but the plot was detected. Attila claimed to regard himself as the overlord of Theodosius.

In 438 there was published the Theodosian code, a collection of imperial edicts which constituted the administrative law of the empire, and which was accepted in the West as well as in the East. Theodosius died in 450, without having made any arrangements for a successor.

Marcian, 450–57 A. D. The officials left the choice of a new emperor to the Augusta Pulcheria. She selected Marcian, a tried officer, to whom she gave her hand in formal marriage. Marcian proved himself an able and conscientious ruler. He refused to continue the indemnity to Attila, and was able to adhere to this policy owing to the latter’s invasion of the West and subsequent death. It was he who permitted the Ostrogoths to settle as _foederati_ in Pannonia (454 A. D.).

Leo I, 457–474 A. D. At the death of Marcian in 457 the imperial authority was conferred upon Leo, an officer of Dacian origin. His appointment was due to the Alan Aspar, one of the masters of the soldiers, whose power in the East rivalled that of Ricimer in the West. But Leo did not intend to be the puppet of the powerful general, whose loyalty he eventually came to suspect. Accordingly as a counterpoise to the Gothic mercenaries and _foederati_, the mainstay of Aspar’s power, he drew into his service the Isaurians, the warlike mountaineers of southern Anatolia, who had defied the empire under Arcadius and Theodosius. The emperor’s eldest daughter was given in marriage to Zeno, an Isaurian, who was made master of the soldiers in the Orient. However, in 470 Aspar was still strong enough to force Leo to bestow the hand of his second daughter upon his son Leontius and to appoint the latter Caesar. But in the following year when Zeno returned to Constantinople the Alan and his eldest sons were treacherously assassinated in the palace.

Leo II, 473–4 A. D. In 473 Leo took as his colleague and destined successor his grandson, also called Leo, the son of Zeno. The death of the elder Leo occurred early

in 474, and the younger soon crowned his father Zeno as co-emperor. When Leo II died before the close of the same year, Zeno became sole ruler.

Zeno, 474–491 A. D. The reign of Zeno was an almost uninterrupted struggle against usurpers and revolting Gothic _foederati_. In 474 occurred an outbreak of the latter led by their king Theodoric the son of Triarius, called Strabo or “the Squinter,” who ruled over the Goths settled in Thrace as a master of the soldiers of the empire. Before this revolt was over, the unpopularity of the Isaurians induced Basiliscus, the brother-in-law of Leo I, to plot to seize the throne for himself. He was supported by his sister, the ex-empress Verina, and Illus, the chief Isaurian officer in Zeno’s service. The conspirators seized Constantinople and proclaimed Basiliscus emperor (475 A. D.). But his heretical religious views aroused strong opposition, and he was deserted by both Verina and Illus. Zeno re-entered the capital and Basiliscus was executed.

During the revolt Zeno had been supported by Theoderic the Amal, a Gothic prince who was a rival of Theoderic son of Triarius. The emperor therefore tried to crush the latter with the help of the former, but the two Theoderics came to an agreement and acted in concert against Zeno (478 A. D.). In 479 peace was made with Strabo, but hostilities continued with the Amal. At this time another insurrection broke out in Constantinople, under the leadership of Marcian, a son-in-law of Leo I, as a protest against the predominance of the Isaurians, in particular Illus. However, this revolt was easily put down.

Theoderic son of Triarius was killed in 481, and in 483 Zeno made peace with Theoderic the Amal, creating him patrician and master of the soldiers, and granting him lands in Dacia and lower Moesia. These concessions were made in consequence of the antagonism which had developed between the emperor and his all-powerful minister Illus. This friction culminated in 484 A. D. when Illus, who was master of the soldiers in the Orient, induced the dowager empress Verina to crown a general, named Leontius, as emperor. But outside of Isauria the movement found little support and after a long siege in an Isaurian fortress the leaders of the revolt were taken and put to death (488 A. D.). In the meantime Theoderic the Amal had asked and received an imperial warrant for the conquest of Italy, and with the departure of the Goths the eastern empire was delivered from the danger of Germanic domination. Zeno died in April, 491 A. D.

Anastasius, 491–518 A. D. The choice of a successor was left to the empress Ariadne, who selected as emperor and her husband an experienced officer of the court, Anastasius. The first act of Anastasius was to remove the Isaurian officials and troops from Constantinople. This led to an Isaurian rebellion in southern Asia Minor which was not stamped out until 498. In the struggle the power of the Isaurians was broken, their strongholds were captured, part of their population transported to Thrace, and they ceased to be a menace to the peace of the empire.

In the place of the Goths new enemies appeared on the Danubian border in the Slavic Getae and the Bulgars who overran the depopulated provinces of the northern Balkan peninsula. So extended were their ravages and so utterly did the imperial

troops fail to hold them in check that Anastasius was obliged to build a wall across the peninsula, upon which the city of Constantinople stands, for the protection of the capital itself. Anastasius had also to cope with a serious Persian war which began with an invasion of Roman Armenia and Mesopotamia by King Kawad in 502 A. D. After four years of border warfare, in which the Persians gained initial success but the fortune of the Roman arms was restored by the master of the offices Celer, peace was reëstablished on the basis of the _status quo ante_.

The civil administration of Anastasius is noteworthy for the abolition of the tax called the _chrysargyrum_ (498 A. D.), and his relief of the _curiales_ from the responsibility for the collection of the municipal taxes. A testimony of the increasing influences of Christian morality was the abolition of certain pagan festivals and of combats between gladiators and wild beasts in the circus.

But in spite of the justness and efficiency of his administration the reign of Anastasius was marked by several popular upheavals in Constantinople, and in other cities of the empire as well. The cause lay in his sympathy for the monophysite doctrine which was vigorously opposed by the orthodox Christians. In 512 the appointment of a monophysite bishop at Constantinople provoked a serious rebellion which almost cost Anastasius his throne.

Although the emperor was able to quiet the city rabble by a display of cool courage the prevailing religious discord encouraged Vitalian, the commander of the Bulgarian _foederati_ in the Thracian army, to raise the standard of revolt (514 A. D.). He defeated all forces sent against him and endangered the safety of the capital. However, he was induced to withdraw by a ransom of 5000 pounds of gold and the office of master of the soldiers in Thrace. But the truce was only temporary, and in 515 he again advanced on Constantinople. This time his forces met with a crushing defeat on land and sea, and the rebellion came to an end. Three years later Anastasius died.

[Illustration: The Roman Empire and the Germanic Kingdoms in 526 A. D.]

CHAPTER XXIV

THE AGE OF JUSTINIAN: 518–565 A. D.

I. THE GERMANIC KINGDOMS IN THE WEST TO 533 A. D.

The Germans and the Romans. The passing of Italy and the western provinces under the sway of Germanic kings was accomplished, as we have seen, by the settlement of large numbers of barbarians in the conquered territories. This necessitated a division of the soil and a definition of the status of the Romans with respect to the invaders, who were everywhere less numerous than the native population. These questions were settled in different ways in the several kingdoms.

Under the Visigoths. In the Visigothic kingdom in Gaul the Goths and the Romans lived side by side as separate peoples, each enjoying its own laws, and the Romans were not regarded as subjects having no rights against their conquerors. However, intermarriage between the two races was forbidden. The law which applied

to the Romans was published by King Alaric in 506 A. D., and is known as the _Lex Romana Visigothorum_, or the Breviary of Alaric; his predecessor Euric had caused the compilation of a code of the Gothic customary law in imitation of the imperial Theodosian code.

The settlement of the Goths on the land took the form of _hospitium_ or quartering. By this arrangement the Roman landholders gave up to the Goths two thirds of their property, both the land itself and the cattle, _coloni_ and slaves which were on it. The shares which the Goths received were not subject to taxation.

For the purposes of administration the Roman provincial and municipal divisions were retained (_provinciae_ and _civitates_), the former being placed under _duces_ and the latter under _comites civitatum_. The Goths settled within these districts formed their national associations of tens, hundreds, and thousands, under native Gothic officers. But the adoption of a more settled form of life deeply affected the Gothic tribal institutions. The Gothic national assembly could no longer be easily called together and came to exist in the form of the army alone. In the division of the land the more influential warriors and friends of the king received the larger shares and this helped the rise of a landed nobility. The government was concentrated at the capital, Toulouse, where central ministries were established modelled on those of the Roman court. This led to a considerable strengthening of the royal power. The language of government remained Gothic for the Goths and Latin for the Romans, but the leading Goths appear to have been familiar with both tongues.

Under the Vandals. In the Vandal kingdom of Africa the position of the Romans was much less favorable. They were treated as conquered subjects, and, as under the Goths, intermarriage between them and the conquering race was prohibited. In the province of Zeugitana (old Africa), where the Vandal settlement occurred, the Roman landowners were completely dispossessed and their estates turned over to new proprietors. The _coloni_ and other tenants, however, remained on the soil, and the Vandal landlords entrusted the management of their properties to Roman stewards. Elsewhere the Romans were undisturbed in their possessions.

The Roman administrative territorial divisions were retained, but the regions settled by the Vandals stood outside of these and had a separate organization. Here the Vandals preserved their tribal divisions of hundreds and thousands. The administration of justice for the Vandals was in the hands of their own officials and according to their customary laws; for the Romans it rested with their previous authorities in accordance with Roman law but under the supervision of the Vandal king.

The Vandal kingdom was a strongly centralized monarchy. This led to the development of a nobility based on employment in the imperial service. The African climate and the sudden acquirement of wealth which enabled them to enjoy all the luxurious extravagance of Roman life in the upper classes of society soon produced an enervating effect upon the northern conquerors. On the other hand, although they were completely lacking in political rights, the Roman agricultural population of Africa felt the rule of the Vandals to be less oppressive than that of the Roman

bureaucracy.

Under the Ostrogoths. In Italy, Odovacar had maintained the Roman administrative system in its entirety and Theoderic continued his policy. He made no attempt to found a new state but regarded himself as one of the rulers of the Roman empire. In 497 he asked and received from Anastasius the symbols of imperial power which Odovacar had sent to Constantinople upon the deposition of Romulus Augustulus in 476. From this time the Gothic king may be regarded as a colleague of the eastern emperor. Not merely did he retain the Roman administrative organization but all his civil officials were Romans. He published an edict which constituted a code of law applicable to Goths and Romans alike. So thoroughly Roman was Theoderic's administration that even the army was open to Romans, who are found among his prominent generals.

The Ostrogoths received assignments of land in Italy but it seems probable that there was no confiscation of private property, one third of the state lands being allotted for this purpose. Ravenna was the royal residence and center of government, but the Roman Senate exercised a great deal of influence and until the later years of his reign cordially supported the authority of Theoderic.

The Burgundians and the Franks. The Burgundians in the Rhone valley effected their settlement like the Visigoths according to the system of _hospitium_. In general their relations with the Roman population were peaceful, intermarriage between the two peoples was sanctioned, and the Burgundian kings showed themselves appreciative of Roman culture. Gundobad, who reigned from 473 to 516, issued both a code of Burgundian laws and the Burgundian Roman Law (_Lex Romana Burgundionum_) which applied to his Roman subjects and also to the Burgundians in their disputes with Romans. The Franks in the course of their advance to the Seine had annihilated the Roman population of northern Gaul. However, in the region between the Seine and the Loire they left the Romans in undisturbed possession of their property, the Frankish kings making no distinction between their Frank and Roman subjects.

The religious question. In addition to racial differences, there was also a religious line of demarcation between the Goths, Vandals and Burgundians on the one hand, and the Roman population on the other. The Goths and neighboring Germanic peoples had been converted to Christianity in the latter half of the fourth century, largely through the missionary activities of Ulfila, who translated the Bible into Gothic. However, they had been won to the Arian and not the Nicaean creed, and consequently were regarded as heretics by the orthodox Romans, who never became reconciled to rulers of another confession than themselves. This hostility led frequently to government intervention and persecution. But in this respect the policy of the several Germanic kingdoms varied under different rulers.

In general the Visigoths pursued a policy of toleration, leaving the orthodox clergy undisturbed except when the latter were guilty of disloyalty in giving support to outside enemies. At the time of their settlement in Zeugitana the Vandals confiscated the property of the orthodox church in that province and turned it over to their own

Arian clergy. Elsewhere in Africa the Catholics remained unmolested during the reign of Gaiseric but were persecuted by his successors. In the Ostrogothic kingdom in Italy Theoderic, although an Arian, gave complete freedom to the orthodox church throughout the greater part of his rule. However, his policy changed when the eastern emperor, Justin, began to persecute the Arians within his dominions in 523 A. D. The ban upon Arianism found support among the Romans in Italy, particularly among the orthodox clergy and the senators. This caused Theoderic to suspect that the emperor's action had been stimulated by a faction in the Roman Senate, and led to the execution of Boethius and other notables on the charge of treason. Realizing the effect that the imperial proscription of Arianism would produce upon the relations of his Roman and Gothic subjects, Theoderic sent a delegation, headed by the bishop of Rome, to Constantinople to secure the annulment of the anti-Arian decree. When he failed to attain this, he resolved upon a general persecution of the Catholics which was forestalled, however, by his death in 526 A. D.

The Burgundians were also Arians, and this prevented their winning the loyal support of the orthodox clergy, who, however, recognized the authority of the Burgundian kings. Although Sigismund, the son of Gundobad, who came to the throne in 516, was converted to orthodoxy, it was too late to heal this religious breach before the fall of the Burgundian power.

Unlike their neighbors, the Visigoths and Burgundians, the Franks were pagans when they established themselves upon Roman territory and remained so until toward the close of the fifth century. In 496 the Frankish king Clovis was converted to Christianity, and to the orthodox, not the Arian, belief, a fact of supreme importance in his relations with the other Germanic peoples in Gaul.

The expansion of the Franks. The foreign policy of Theoderic was directed towards strengthening his position in Italy by establishing friendly relations with the western Germanic kingdoms and maintaining peace and a balance of power among them. To this end he contracted a series of family alliances with the rulers of these states. In 492 he himself wedded a sister of Clovis the Frank, and gave his own sister in marriage to the Vandal king Thrasamund. One of his daughters became the wife of Sigismund, king of the Burgundians, and another was married to Alaric II, who succeeded Euric as king of the Visigoths.

However, Theoderic's scheme was rudely disturbed by the ambitions of Clovis. In 496 the latter conquered the Alamanni. He next forced the Burgundians to acknowledge his overlordship, and with these as his allies in 507 he attacked the Visigothic kingdom. The conquests of Euric in Gaul and Spain had overtaxed the strength of the Visigothic people and weakened their hold upon the territory they occupied. Furthermore, their Roman subjects gave active aid to the orthodox Clovis. In a battle near Poitiers the Visigoths were defeated and their king, Alaric II, slain. Theoderic had been hindered from intervening previously by the outbreak of hostilities between himself and the emperor Anastasius, who gave his sanction to the action of Clovis and sent him the insignia of the consulship. Now, however, the Ostrogothic king came to the aid of the Visigoths. He repulsed the Franks and Burgundians before Arles (508 A. D.). and recovered Narbonese Gaul. However, the

greater part of Aquitania remained in the hands of the Franks. Theoderic established his grandson Amalaric as king of the Visigoths and exercised a regency in his name (510 A. D.). Clovis died in 511 and the expansion of the Franks ceased for a time. However, the death of Theoderic in 526 was the signal for fresh disturbances. The Visigothic king Amalaric at once asserted his independence in southern Gaul and in Spain. But not long afterwards, in 531, he fell in battle against the Franks, who seized the remaining Visigothic possessions in Gaul except Septimania—the coast district between the Pyrenees and the Rhone. Three years later they overthrew the kingdom of the Burgundians and so brought under their sway the whole of Gaul outside of Septimania and Provence.

In 533 A. D. the situation in the west was as follows. Gaul was mainly in the hands of the Franks, Spain was under the Visigoths, the Vandals were still established in Africa, and the Ostrogoths in Italy. Both of the latter kingdoms, however, were showing signs of internal weakness. In addition to the hostility between the Germanic conquerors and the subject Roman population, factional strife had broken out over the succession to the throne. Evidence of the declining power of the Vandals in particular was the success of the Moorish tribes in winning their independence. By 525 both Mauretania and Numidia had been abandoned to them, and the tribes of Tripolis had shaken off the Vandal yoke. In 530 the Moors of southern Byzacene inflicted a severe defeat on the Vandals, which led to the deposition of the ruling king. The weakness of these states seemed to offer a favorable opportunity for the reëstablishment of the imperial authority in the West.

II. THE RESTORATION OF THE IMPERIAL POWER IN THE WEST: 553–554 A. D.

Justin I, 518–527 A. D. Anastasius died in 518 and was succeeded by Justin, an Illyrian of humble origin who had risen to the important post of commander of the imperial body guard (_comes excubitorum_). Unlike his predecessor Justin was an adherent of the orthodox faith, and at the opening of his reign an exceedingly influential position was held by the general Vitalian, who had been the champion of orthodoxy against Anastasius. He became master of the soldiers at Constantinople and in 520 was honored with the consulship. But his power and unscrupulous ambitions constituted a real menace to the emperor and induced the latter to procure his murder. Justin ruled for nine years. He was an experienced soldier, but illiterate, and personally unequal to the task of imperial government. The guiding spirit of his administration was his nephew Justinian, who was largely responsible for Vitalian’s removal. In fact the reign of Justin served as a brief introduction to the long rule of Justinian himself, whom his uncle crowned as his colleague in 527 A. D., and who became sole emperor at the latter’s death in the same year.

Justinian’s imperial policy. Justinian was by birth a Latin peasant from near Scupi (modern Uskub) in Upper Moesia, but through his uncle he had been able to enjoy all the educational advantages offered by the schools of Constantinople. In public life he showed himself a laborious and careful administrator, of an extremely autocratic, and yet at the same time somewhat vacillating, character. He was a devout Christian, zealous for the propagation of the orthodox faith, with a strong liking for, and considerable learning in, questions of dogmatic theology. He regarded

religious and secular affairs as equally subject to the imperial will, and in each sphere he exercised absolute authority. In him the ideal of autocracy found its most perfect embodiment.

The goal of Justinian's imperial policy was the recovery of the lands of the western empire from their Germanic rulers and the reëstablishment of imperial unity in the person of the eastern emperor. The attainment of unity of belief throughout the Christian world he regarded as no less important than that of political unity: one empire, one church, was his motto.

Reconciliation with the western Church: 519 A. D. The way was paved for the reconquest of the Roman West by a reconciliation with the Roman bishop Hormisdas, as a result of which orthodoxy was once more formally received at Constantinople and a persecution of the monophysites and other heretics inaugurated in the eastern empire (519 A. D.). Although this union with Rome was brought about while the influence of Vitalian was predominant, it had the cordial support of Justinian, who recognized that the good will of the clergy and the Roman population of the western provinces would in this way be won for the eastern emperor. Such proved to be the case, and the subsequent wars for the recovery of the West assumed the aspect of crusades for the deliverance of the followers of the orthodox church from Arian domination.

Outbreak of the Vandal war, 533 A. D. The deposition of Hilderic, who had been on friendly terms with the eastern empire, and the accession of Gelimer who reverted to an anti-Roman policy, afforded Justinian a pretext for intervention in the Vandal kingdom. In conformity with his policy of treating the Germanic kings as vassal princes of the empire, he demanded the reinstatement of Hilderic, and when this was refused, he prepared to invade Africa. An expeditionary force of ten thousand foot and five thousand horse, accompanied by a powerful fleet, was placed under the command of the able general Belisarius and despatched from Constantinople in 533 A. D. An alliance concluded with the Ostrogoths forestalled the possibility of their coming to the aid of the Vandals.

The military condition of the empire. The imperial armies of the sixth century were entirely composed of mercenary troops. While the voluntary enlistment of barbarians had been a regular method of recruitment from the time of Diocletian, such troops were at first enrolled directly in the imperial service. But by the opening of the sixth century it had become customary for private individuals, as a rule officers of repute, to enlist troops in their personal service. Such troops were known as _bucellarii_, from the word _bucella_, signifying soldiers' bread. These _bucellarii_ were usually taken into the service of the state along with their leaders, and were then maintained at the public expense. It was with mercenaries of this type that the ranks of Justinian's armies were largely filled. For the most part they were veteran troops and good fighters, but with all the weaknesses of their class. They were greedy of plunder, impatient of discipline, and both officers and men displayed a conspicuous lack of loyalty. The most effective troops were the _cataphracti_, mailed horsemen armed with bow, lance and sword. Beside them the infantry played only a subordinate rôle. The fact that the government was obliged to rely upon _condottieri_ for its own

maintenance reveals the internal decay of the whole imperial system, and the smallness of the forces which it could put into the field shows the weakness of its resources compared with the aims of Justinian and explains the protracted character of the wars of the period. In fact, the emperor was on the point of abandoning the invasion of Africa for financial reasons, when the prophecy of an eastern bishop induced him to persevere.

The reconquest of Africa, 533–4 A. D. The landing of Belisarius in Africa (September, 533) completely surprised the Vandals. Gailimer was defeated in battle and Belisarius occupied Carthage. A second defeat before the close of the year sealed the fate of the Vandal kingdom. Early in 534 Gailimer surrendered and all resistance came to an end. The Vandal insular possessions—Sardinia, Corsica and the Balearic Islands—fell to the Romans without further opposition.

Revolts of the Moors. However, the Moors, who had managed to assert their independence against the Vandals, were not disposed to pass under the Roman yoke without a struggle. A revolt which broke out in 535 was not finally crushed until 539; and another, which was complicated by a mutiny of the imperial troops, raged between 546 and 548. In the end, the Roman authority was reëstablished over all the African provinces except Mauretania Caesariensis and Tingitana. The previous system of civil administration was revived and elaborate measures taken to secure the defence of the frontiers. However, the ravages of the Moors and the war of restoration had played sad havoc with economic conditions in Africa, and in spite of government assistance, its former prosperity was never revived. Still, Africa had been recovered for the empire and was destined to remain a part of it until the Saracen invasion nearly a century and a half later.

The recovery of Italy, first phase, 535–540 A. D. The overthrow of the Vandal kingdom had scarcely been accomplished when events in Italy gave Justinian the desired pretext for the invasion of the peninsula. Upon the death of King Athalaric, Theoderic’s grandson and successor, in 534, his mother, the regent Amalasuntha, had married Theodahad, whom she made her consort. Shortly afterwards, however, he caused her to be imprisoned and, when she appealed to Justinian for aid, put her to death. As the avenger of his former ally, Justinian made war upon the Gothic king. The possession of Africa gave the Romans an excellent base of operations against Italy. In 535 Belisarius invaded Sicily with 7500 men and speedily reduced the whole island, while another Roman army marched on Dalmatia. From Sicily Belisarius crossed into South Italy, where he found little resistance. The inactivity of Theodahad produced a revolt among his own people. He was deposed, and Witiges became king in his place. The new king was able to purchase the neutrality of the Franks, who were in alliance with Justinian, by ceding to them the Ostrogothic possessions in South Gaul. However, Belisarius continued his advance and occupied Rome (December, 536 A. D.). There he was besieged for a year (March, 537 to March, 538) by the Goths, who were in the end forced to abandon the blockade and fall back upon North Italy. At the same time, the eunuch Narses arrived in Italy at the head of a new Roman army. But since his presence was largely due to Justinian’s mistrust of Belisarius, he failed to coöperate with the latter and accomplished nothing before his

recall in 539. The last episode of the campaign was the siege of Ravenna (539–540 A. D.), which was defended by the Gothic king. With its fall and his capture in 540, the resistance of the Goths came to an end. Italy was declared a Roman province, the civil administration was reëstablished, and Belisarius was recalled to assume the command against Persia.

Second phase, 541–554 A. D. But the withdrawal of Belisarius and his best troops led to a revolt of the Goths under the leadership of the brave and energetic Totila (or Baduila) in 541. Within the next three years he drove the Roman garrisons from the greater part of Italy, including Rome. Belisarius was despatched against him, but was given inadequate support and accomplished nothing except the recovery of Rome, which he held until he was recalled at his own request in 548. The drain of a fresh Persian war upon the resources of the empire forced Justinian to the temporary abandonment of Corsica, Sardinia, Sicily and Italy, apart from Ravenna and a few other fortresses. At last in 552 he was able to resume the struggle and entrusted the conduct of the war to Narses, whose ability as a commander was superior to that of Belisarius himself. The army of Narses numbered over 30,000, and consisted chiefly of barbarian auxiliaries, in particular Lombards, who had been settled as _foederati_ in Noricum since 547. Narses marched upon Italy by way of Illyricum and reached the Roman base at Ravenna. Thence he advanced towards Rome and met and defeated the Goths in a decisive engagement in Umbria (552 A. D.). Totila fell in the battle. A second victory in Campania in the following spring forced the surviving Goths to come to terms. They were allowed to leave Italy and seek a new home beyond the Roman borders. A fresh enemy then appeared in the Franks, who had been nominal allies of the Goths but had rendered them little assistance. A horde of Alamanni and Franks swept down upon Italy and penetrated deep into the peninsula. But Narses annihilated one of their divisions at Capua (554 A. D.), and the remainder were decimated by disease and forced to withdraw. The Roman sway was firmly established over Italy as far as the Alps; but Raetia, Noricum and the Danubian provinces remained lost to the empire.

The long and bitter wars of restoration had wrought frightful damage to the material welfare of Italy, and the heavy financial burdens imposed by the Roman administrative system aroused bitter protests. The measures of relief attempted proved insufficient, the middle class disappeared, the richer landed proprietors left the peninsula, and, as in Africa, the former prosperity was never recalled.

The attempted recovery of Spain, 554 A. D. Following the conclusion of hostilities in Italy, Justinian seized the opportunity which presented itself for intervention in Spain. He sent an army to the support of the rebel Agila against Athanagild, the king of the Visigoths (554 A. D.). The Roman forces occupied Corduba, Carthagena and other coast towns, but on the death of Athanagild, Agila succeeded to his throne and headed the Visigothic opposition to the Romans, who were unable to advance further. However, they retained what they had already conquered.

Extent of the Roman conquests. Justinian’s policy had resulted in the overthrow of the Vandal and Ostrogothic kingdoms, and in the recovery for the empire of Africa,

Italy, the Mediterranean islands, and a strip of the Spanish coast. More, the empire was too weak to accomplish.

III. JUSTINIAN'S FRONTIER PROBLEMS AND INTERNAL ADMINISTRATION

Barbarian invasions of the Balkan peninsula. The strain which the policy of expansion in the West imposed upon the strength of the empire is clearly seen in the failure to defend the Danubian frontier and the ineffective conduct of the Persian wars. Time after time hordes of Bulgars and Slavs poured into the Balkans. Especially destructive were the inroads of 540 and 559. In the former the invaders penetrated as far as the Isthmus of Corinth; in the latter they threatened the capital itself, but were driven off by the aged Belisarius.

The Persian wars. In 527, the Persian king Kawad declared war upon the empire. The struggle was indecisive, and, at the death of Kawad in 532, Justinian, who wished to be free at any price to pursue his western policy, was able to conclude peace with his successor, Chosroes I, upon condition of paying an annual indemnity. But the successes of Justinian in the West aroused the jealousy and ambitions of Chosroes in 539. The Persians overran Syria and captured Antioch, carrying off its population into captivity (540). However, they failed to take Edessa (544). In Mesopotamia an armistice was concluded in 545, although war continued between the Arab dependents of both states, and in the district of Lazica (ancient Colchis), a Roman protectorate which transferred its allegiance to Persia. Finally, a fifty years' peace was concluded in 562 A. D. The Roman suzerainty over Lazica was acknowledged by the Persians, but the Romans obligated themselves to pay the Persians a heavy annual subsidy, in return for which the Persians undertook the defence of the Caucasus. In this way the Persians became technically Roman _foederati_; however, as in the case of the Visigoths in the fourth century, this was equivalent to a confession that the Romans were unable to subdue their enemy, who looked upon the subsidy as tribute.

[Illustration: The Roman Empire in 565 A. D.]

The empress Theodora. In 523 Justinian married Theodora, a former professional pantomime actress from the purlieus of the Hippodrome, after he had induced his uncle to cancel the law which forbade the marriage of senators and actresses. And when Justinian became emperor in 527, Theodora was crowned with him as Augusta. From that time until her death in 553 she was in a very real sense joint ruler with her husband. Whatever the character of her previous career, her private life as empress was beyond reproach. She was fond of power, jealous of the influence of others with the emperor, and unforgiving towards those who thwarted her purposes; both Belisarius and John of Cappadocia, the powerful praetorian prefect, were driven from the emperor's service by her enmity. On the other hand, she was a woman of dauntless courage, and possessed of remarkable foresight in political affairs.

*The **"**Nika**"** riot, 532 A. D.* The courage of the empress was conspicuously displayed on the occasion of the great riot of the factions of the Hippodrome—the

Greens and the Blues—in 532 A. D. These factions had been organized in Constantinople in imitation of the circus factions of Rome, but had acquired a different character and a greater importance in the new capital. The two factions divided between them the entire urban population, and had their regularly appointed leaders, who enjoyed a recognized place in the administrative organization of the city. These parties may be regarded as the last survival of the Hellenic popular assembly of the city-state, and owing to the extreme centralization of the administration at Constantinople, they were able to exercise considerable pressure upon the government.

The emperor and the court regularly supported one or other of the parties. Anastasius had favored the Greens, but Justinian was a partizan of the Blues. The rivalry of the factions was intense, and culminated, in the early years of Justinian's reign, in open warfare, which gave the lower elements the opportunity for the perpetration of crimes of all sorts. The punishment of notorious criminals of both factions in 532 led to their uniting in a revolt which nearly cost the emperor his throne. At first the mob demanded the release of their partizans, and the dismissal of John, the praetorian prefect, whose financial policy was extremely oppressive, of Trebonian, the able but unscrupulous quaestor, and of the prefect of the city. Later, emboldened by their success, they crowned as emperor Hypatius, a nephew of Anastasius. The situation became extremely critical, for, with the exception of the palace, the whole city fell into the hands of the rebels, whose battle cry was "Nika" or "Conquer." Justinian and his councillors had already resolved upon flight, when Theodora, by a spirited speech in which she declared that she would die before abandoning the capital, reanimated their hearts and induced them to alter their decision. By a judicious use of bribes they induced the Blues to desert the Greens, and the imperial troops exacted a bloody vengeance from the rebellious populace. For the future the population of the capital was politically a negligible quantity.

The codification of the Roman law. One of the greatest monuments to the reign of Justinian is the _corpus iuris civilis_, a codification of the Roman law by a commission of expert jurists, headed by Trebonian. The object of this codification was the collection in a convenient form of all the sources of law then in force, and the settlement of controversies in the interpretative juristic literature. The compilation was divided into three parts; the _Code of Justinian_, the _Digest_ or _Pandects_, and the _Institutes_. The _Code_ was a collection of all imperial constitutions of general validity; it was first published in 529, but a revised edition was issued in 534. The _Digest_, which was issued in 533, consisted of abstracts from the writings of the most famous Roman jurists systematically arranged so as to present the whole civil law in so far as it was not contained in the _Code_. The _Institutes_ was a brief manual designed as a text-book for the use of students of the law. From the time of their promulgation these compilations constituted the sole law of the empire and alone carried validity in the courts and formed the only material for instruction in the law schools of recognized status—those at Rome, Constantinople and Berytus. Provision was made for the publication of future legislation in a fourth compilation—the _Novels_ or _New Constitutions_.

St. Sophia. Justinian’s administration was characterized by great building activity. He was zealous in the construction of frontier defences, the rebuilding of ruined cities, the founding of new ones, and the erection of religious edifices. Among the latter the most famous was the great church of the Holy Wisdom (St. Sophia), which took the place of an older building destroyed in the Nika riot. Transformed into a Mohammedan mosque, it remains to the present day as the greatest architectural monument of the eastern Roman empire. The execution of grandiose works of this sort augmented the heavy expenditures necessitated by Justinian’s foreign policy, and required the continual wringing of fresh contributions from the already overburdened taxpayers. In raising the revenues needed to meet the demands upon the fiscus, the emperor found the prefect John an invaluable agent.

Justinian’s religious policy. Throughout the whole of his reign Justinian strove with unflagging zeal to secure a united Christian church within the empire. To this end he did not hesitate to make use of the autocratic power which he claimed in religious as well as secular affairs and which was formally admitted by the synod of 536, which declared that “Nothing whatsoever may occur in the church contrary to the wishes and orders of the emperor.” His own views Justinian set forth in extensive writings on dogmatic questions. The reconciliation with Rome in 519, so necessary for the recovery of the West, had alienated the Monophysites, who were predominant in Egypt, Syria and Mesopotamia, especially among the lower classes of society. For the rest of his reign Justinian strove indefatigably to heal this breach, a policy in which he was largely influenced by Theodora, who was personally sympathetic with the Monophysites and saw the danger to the empire in the continued hostility of the eastern peoples. An ecumenical council summoned by him at Constantinople in 553 accepted a formula of belief upon which he hoped both orthodox and monophysites could unite. The Pope Vergilius was forced to submit to Justinian’s will, but the clergy of Italy and Africa regarded the new doctrine as heretical, and some openly condemned it. Nor was the desired end attained, for the Monophysites still refused to be conciliated. A final edict, issued in 565, went still further in its recognition of the tenets of this sect, but the emperor’s death forestalled its enforcement and saved the orthodox clergy from the alternative of submission or persecution.

A far harsher treatment was meted out to the Arians, who were treated as hereticals and punished as criminals. A rebellion of the Samaritans, occasioned by their persecution, was stamped out in blood. A determined effort was made to eradicate the last remains of the old Hellenic faith which still claimed many adherents of note. In 529 the endowment of Plato’s Academy was confiscated and the teaching of philosophy forbidden at Athens. The persecution of heretics and unbelievers was accompanied by a vigorous missionary movement which carried the Christian gospel to the peoples of southern Russia, the Caucasus, Arabia, the Soudan and the oases of the Sahara.

*The **condition** of the empire at the death of Justinian.* Justinian died on 14 November, 565 A. D. He left the empire completely exhausted by the conquest of the western provinces. The national antagonism between Greeks and Romans which was coming more and more clearly to light was not effectively bridged by a formal church

union, and a mistaken religious policy had fostered the growth of national ambitions among the native populations of Syria and Egypt and led to further disunion with the empire. Under Justinian the annual consulship, for a thousand years identified with the life of the Roman state, was abolished (540 A. D.). In the government of the provinces Justinian took the initial steps towards abandoning the principle of the division of civil and military authority, which was so marked a feature of Diocletian's organization, and thus prepared the way for the later form of the _themes_, or military districts, in which the military commanders were at the head of the civil government as well. It was in his reign also that the culture of the silkworm was introduced into the empire by Persian monks, who had lived in China, learned the jealously guarded secrets of this art, and brought some eggs of the silkworm out of the country concealed in hollow canes. The manufacture of silk goods had long been a flourishing industry in certain cities of the Greek East and was made an imperial monopoly by Justinian. The introduction of the silkworm rendered this trade to a large degree independent of the importation of raw silk from the Orient.

As Justinian was the last emperor whose native tongue was Latin, so he was the last who maintained that language as the language of government at Constantinople and upheld the traditions of the Roman imperial policy.

CHAPTER XXV

RELIGIOUS AND INTELLECTUAL LIFE IN THE LATE EMPIRE

I. THE END OF PAGANISM

The paganism of the late empire. In spite of the tremendous impulse given to the spread of Christianity by Constantine's policy of toleration and by its adoption as the religion of the imperial house, the extinction of paganism was by no means rapid. While the chief pagan religions during the fourth century were the Oriental cults and the Orphic mysteries of Eleusis, which strongly resembled them in character, the worship of the Graeco-Roman Olympic divinities still attracted numerous followers. But, although paganism persisted in many and divers forms, these, by a process of religious syncretism, had come to find their place in a common theological system. This development had its basis in the common characteristics of the Oriental cults, each of which inculcated the belief in a supreme deity, and received its stimulus through the conscious opposition of all forms of paganism to Christianity, which they had come to recognize as their common, implacable foe. The chief characteristic of later paganism was its tendency to monotheism—a belief in one abstract divinity of whom the various gods were but so many separate manifestations. The development of a harmonious system of pagan theology was greatly aided by Neoplatonic philosophy, which may be regarded as the ultimate expression of ancient paganism. Neoplatonism was essentially a pantheism, in which all forms of life were regarded as emanations of the divine mind. But Neoplatonism was more than a philosophical

system; it was a religion, and, like the Oriental cults, preached a doctrine of salvation for the souls of men. Such was the paganism by which the Christians of the late empire were confronted, and which, because of its many points of resemblance to their own beliefs and practices, they admitted to be a dangerous rival. At the same time, this similarity made the task of conversion less difficult.

Causes of the persistence of paganism. There were several reasons for the persistence of paganism. The Oriental and Orphic cults exercised a powerful hold over their votaries, and made an appeal very similar to that of Christianity. Stoicism, with its high ideal of conduct, remained a strong tradition among the upper classes of society; and Neoplatonism had a special attraction for men of intelligence and culture. Roman patriotism, too, fostered loyalty to the gods under whose aegis Rome had grown great, and until the close of the fourth century the Roman Senate was an indefatigable champion of the ancient faith. But more potent than all these causes was the fact that, apart from some works of a theological character, the whole literature of the day was pagan in origin and in spirit. This was the only material available for instruction in the schools, and formed the basis of the rhetorical studies which constituted the higher education of the time. Thus, throughout the whole period of their intellectual training, the minds of the young were subjected to pagan influences.

The persecution of paganism. Constantine the Great adhered strictly to his policy of religious toleration and, although an active supporter of Christianity, took no measures against the pagan cults except to forbid the private sacrifices and practice of certain types of magical rites. He held the title of pontifex maximus and consequently was at the head of the official pagan worship. With his sons, Constantius and Constans, the Christian persecution of the pagan began. In 341 they prohibited public performance of pagan sacrifices, and they permitted the confiscation of temples and their conversion into Christian places of worship. With the accession of Julian this persecution came to an end, and there was in the main a return to the policy of religious toleration, although Christians were prohibited from interpreting classical literature in the schools. The attempt of Julian to create a universal pagan church proved abortive and his scheme did not survive his death. His successors, Jovian, Valentinian I and Valens, adhered to the policy of Constantine the Great.

Gratian was the first emperor to refuse the title of pontifex maximus, and to deprive paganism of its status as an official religion of Rome. In 382 he withdrew the state support of the priesthoods of Rome, and removed from the Senate house the altar and statue of Victory, which Julian had restored after its temporary removal by Constantius. This altar was for many of the senators the symbol of the life of the state itself, and their spokesman Symmachus made an eloquent plea for its restoration. However, owing to the influence of Ambrose, the bishop of Milan, the emperor remained obdurate, and a second appeal to Valentinian II was equally in vain. Although the brief reign of Eugenius produced a pagan revival in Rome, the cause of paganism was lost forever in the imperial city. In the fifth century the Senate of Rome was thoroughly Christian.

Theodosius the Great was even more energetic than his colleague Gratian in the suppression of paganism. In 380 he issued an edict requiring all his subjects to embrace Christianity. In 391 he ordered the destruction of the great temple of Serapis at Alexandria, an event which sounded the death knell of the pagan cause in the East. The following year Theodosius absolutely forbade the practice of heathen worship under the penalties for treason and sacrilege. Theodosius II continued the vigorous persecution of the heathen. Adherence to pagan beliefs constituted a crime, and in the Theodosian Code of 438 the laws against pagans find their place among the laws regulating civic life. It was during the reign of Theodosius II, in 415, that the pagan philosopher and mathematician, Hypatia, fell a victim to the fanaticism of the Christian mob of Alexandria.

Still, many persons of prominence continued to be secret devotees of pagan beliefs, and pagan philosophy was openly taught at Athens until the closing of the schools by Justinian. The acceptance of Christianity was more rapid in the cities than in the rural districts. This gave rise to the use of the term pagan (from the Latin _paganus_, “rural”) to designate non-Christian; a usage which became official about 370. And it was among the rural population that pagan beliefs and practices persisted longest. However, between the fifth and the ninth centuries paganism practically disappeared within the lands of the empire.

The long association with paganism and the rapid incorporation of large numbers of new converts into the ranks of the church were not without influence upon the character of Christianity itself. The ancient belief in magic contributed largely to the spread of the belief in miracles, and the development of the cult of the saints was stimulated by the pagan conception of inferior divinities, demigods, and daemons, while many pagan festivals were Christianized and made festivals of the church.

II. THE CHURCH IN THE CHRISTIAN EMPIRE

The emperor and the church. The religious policy of Constantine the Great had the effect of making Christianity a religion of state and incorporating the Christian church in the state organism. Thereby the clergy gained the support of the imperial authority in spreading the belief of the church and in enforcing its ordinances throughout the empire. Yet this support was won at the price of the recognition of the autocratic power of the emperor over the church as well as in the political sphere. Subsequently, however, this recognition was only accorded to orthodox emperors; that is those who supported the traditional doctrine of the church as sanctioned in its general councils.

Constantine made use of his supremacy over the church to enforce unity within its ranks. However, he did not champion any particular creed but limited his interference to carrying into effect the decisions of the church councils or synods which he summoned to pass judgment upon questions which threatened the unity of the church and the peace of the state.

These councils were a development from the provincial synods, which had previously met to decide church matters of local importance. Procedure in the

councils was modelled upon that of the Roman Senate; the meetings were conducted by imperial legates, their decisions were issued in the form of imperial edicts, and it was to the emperor that appeals from these decrees were made. The first of the great councils was the Synod of Arles, a council of the bishops of the western church, summoned by Constantine in 314 to settle the Donatist schism in the church in Africa. This was followed in 325 by the first universal or ecumenical council of the whole Christian church which met at Nicaea to decide upon the orthodoxy of the teachings of Arius of Alexandria.

Constantine's successors followed his example of summoning church councils to settle sectarian controversies, though, unlike him, many of them sought to force upon the church the doctrines of their particular sect. As the general councils accentuated rather than allayed antagonisms, the eastern emperor Zeno substituted a referendum of the bishops by provinces. But this precedent was not followed. Justinian was the emperor who asserted most effectively his authority over the church. He issued edicts upon purely theological questions and upon matters of church discipline without reference to church councils, and he received from the populace of Constantinople the salutation of "High Priest and King."(18) The decision of the council of 553 provoked an attack upon the sacerdotal power of the emperor by Facundus, bishop of Hermiana in Africa, who declared that not the emperor but the priests should rule the church. Nevertheless, this opposition had no immediate effect, and Justinian remained the successful embodiment of "Caesaro-papism."

The growth of the papacy. The late empire witnessed a rapid extension of the authority of the bishopric of Rome, which had even previously laid claim to the primacy among the episcopal sees. In the West the title "pope" (from the Greek _pappas_, "father") became the exclusive prerogative of the bishop of Rome. The papacy was the sole western patriarchate, or bishopric, with jurisdiction over the metropolitan and provincial bishops, and was the sole representative of the western church in its dealings with the bishops of the East. At the council of Serdica (343 A. D.) it was decided that bishops deposed as a result of the Arian controversy might refer their cases to the Pope Julius for final decision, and, in the course of the fifth century, eastern bishops frequently appealed to the decision of the pope on questions of orthodoxy. However, the eastern church never fully admitted the religious jurisdiction of the papacy. The ideal of the papacy became the organization of the church on the model of the empire, with the pope as its religious head.

The claims of the papacy were pushed with vigor by Innocent I (402–417 A. D.) and Leo I (440–461 A. D.). The latter laid particular stress upon the primacy of Peter among the Apostles and taught that this had descended to his apostolic successors. It was Leo also who induced the western emperor Valentinian III in 455 to order the whole western church to obey the bishop of Rome as the heir to the primacy of Peter. The Pope Gelasius (492–496 A. D.) asserted the power of the priests to be superior to the imperial authority, but the establishment of the Ostrogothic kingdom in Italy and the reconquest of the peninsula by the eastern emperor weakened the independence of the Roman bishopric. Justinian was able to compel the popes to submit to his authority in religious matters.

The patriarchate of Constantinople. A rival to the papacy developed in the patriarchate of Constantinople, which at the Council of Constantinople in 381 was recognized as taking precedence over the other eastern bishoprics and ranking next to that of Rome, “because Constantinople is New Rome.” However, the primacy of the bishop of Constantinople in the eastern church was challenged by the older patriarchates of Ephesus, Antioch and Alexandria, all of which had been apostolic foundations, while the claims of Constantinople to that honor were more than dubious. Between 381 and 451 the bishops of Alexandria successfully disputed the doctrinal authority of the see of Constantinople, but at the council of Chalcedon (451 A. D.) Pulcheria and Marcian reasserted the primacy of the patriarch of the capital. At this time also the bishopric of Jerusalem was recognized as a patriarchate. The patriarch of Constantinople was now placed on an equality with the pope, a recognition against which the Pope Leo protested in vain. However, the patriarchs of Constantinople never acquired the power and independence of the popes. Situated as they were in the shadow of the imperial palace, and owing their ecclesiastical authority to the support of the throne, they rarely ventured to oppose the will of the emperor. Under Justinian the patriarch held the position of a “minister of state in the department of religion.”

The temporal power of the clergy. When Christianity became a religion of state it was inevitable that the Christian clergy should occupy a privileged position. This recognition was accorded them by Constantine the Great when he exempted them from personal services (_munera_) in 313 and taxation in 319 A. D. Those who entered the ranks of the clergy were expected to abandon all worldly pursuits, and an imperial edict of 452 excluded them from all gainful occupations. In addition to their ecclesiastical authority in matters of belief and church discipline, the bishops also acquired considerable power in secular affairs. In the days of persecution the Christians had regularly submitted legal differences among themselves to the arbitration of their bishops, rather than resort to the tribunals of state. Constantine the Great gave legal sanction to this episcopal arbitration in civil cases; Arcadius, however, restricted its use to cases in which the litigants voluntarily submitted to the bishop’s judgment. The bishops enjoyed no direct criminal jurisdiction, although since the right of sanctuary was accorded to the churches, they were frequently able to intercede with effect for those who sought asylum with them. In the enforcement of moral and humanitarian legislation the state called for the coöperation of the bishops.

The influential position of the bishops as the religious heads of the municipalities led to their being accorded a definite place in the municipal administration. In protecting the impoverished taxpayers against the imperial officers they were more effective than the “_defensores plebis_.” And in the days of the barbarian invasions, when the representatives of the imperial authority were driven from the provinces, the bishops became the leaders of the Roman population in their contact with the barbarian conquerors.

III. SECTARIAN STRIFE

Sectarianism. The history of the church from Constantine to Justinian is largely the history of sectarian strife, which had its origin in doctrinal controversies. While the western church in general abstained from acute theological discussions and adhered strictly to the orthodox or established creed, devoting its energies to the development of church organization, the church of the East, imbued with the Greek philosophic spirit, busied itself with attempts to solve the mysteries of the Christian faith and was a fruitful source of heterodoxy. Strife between the adherents of the various sects was waged with extreme bitterness and frequently culminated in riots and bloodshed. Toleration was unknown and heretics, like pagans, were classed as criminals and excluded from communion with the orthodox church. Of the many sects which arose in the fourth and fifth centuries, two were of outstanding importance. These were the Arians and the monophysites.

Arianism. Arianism had its rise in an attempt to express with philosophical precision the relation of the three members of the Holy Trinity; God the Father, the Son, and the Spirit. About 318 A. D., Arius, a presbyter of Alexandria, taught that God was from eternity but that the Son and the Spirit were his creations. Over the teaching of Arius, a controversy arose which threatened the unity of the church. Accordingly, Constantine intervened and summoned the ecumenical council of Nicaea to decide upon the orthodoxy of Arius. The council accepted the formula of Athanasius that the Son was of the same substance (_homo-ousion_) as the Father, which was the doctrine of the West. Arius was exiled.

The struggle, however, was by no means over, for the Nicene creed found many opponents among the eastern bishops who did not wish to exclude the Arians from the church. The leader of this party was Eusebius of Caesarea. In 335 they brought about the deposition of Athanasius, who had been bishop of Alexandria since 328. After the death of Constantine, Athanasius was permitted to return to his see, only to be expelled again in 339 by Constantius, who was under the influence of Eusebius. He took refuge in the West, where the Pope Julius gave him his support. At a general council of the church held at Serdica (Sofia) in 343 there was a sharp division between East and West, but the supporters of Athanasius were in the majority, and he and the other orthodox eastern bishops were reinstated in their sees (345 A. D.).

When Constantius became sole ruler of the empire (353 A. D.) the enemies of Athanasius once more gained the upper hand. The emperor forced a general council convoked at Milan in 353 to condemn and depose Athanasius, while the Pope Liberius, who supported him, was exiled to Macedonia. A new council held at Sirmium in 357 tried to secure religious peace by forbidding the use of the word “substance” in defining the relation of the Father and the Son, and sanctioned only the term _homoios_ (like). The adherents of this creed were called Homoeans. Although they were not Arians, their solution was rejected by the conservatives in both East and West. In 359 a double council was held, the western bishops meeting at Ariminum, the eastern at Seleucia. The result was the acceptance of the Sirmian creed, although the western council had to be almost starved before it yielded. Under Julian and Jovian the Arians enjoyed full toleration, and while Valentinian I pursued a similar policy, Valens went further and gave Arianism his support.

In the meantime, however, the labors of the three great Cappadocians,—Basil of Caesarea, Gregory of Nazianzus and Gregory of Nyssa—had already done much to reconcile the eastern bishops to the Nicaean confession and, with the accession of Theodosius I, the fate of Arianism was sealed. A council of the eastern church met at Constantinople in 381 and accepted the Nicene creed. The Arian bishops were deposed and assemblies of the heretics forbidden by imperial edicts. Among the subjects of the empire Arianism rapidly died out, although it existed for a century and a half as the faith of several Germanic peoples.

The monophysite controversy. While the point at issue in the dogmatic controversies of the fourth century was the relation of God to the Son and the Holy Spirit, the burning question of the fifth and sixth centuries was the nature of Christ. And, like the former, the latter dispute arose in the East, having its origin in the divergent views of the theological schools of Antioch and Alexandria. The former laid stress upon the two natures in Christ—the divine and the human; the latter emphasized his divinity to the exclusion of his humanity, and hence its adherents received the name of monophysites. The Antiochene position was the orthodox or traditional view of the church, and was held universally in the West, where the duality of Christ was accepted without any attempt to determine the relationship of his divine and human qualities. Beneath the doctrinal controversy lay the rivalry between the patriarchates of Alexandria and Constantinople, and the awakening national antagonism of the native Egyptian and Syrian peoples towards the Greeks. The conflict began in 429 with an attack of Cyril, patriarch of Alexandria, upon the teachings of Nestorius, the patriarch of Constantinople. Cyril, taking the view that the nature of Christ was human made fully divine, justified the use of the word _Theotokos_ (Mother of God), which was coming to be applied generally to the Virgin Mary. Nestorius criticized its use, and argued in favor of the term Mother of Christ. In the controversy which ensued, Cyril won the support of the bishop of Rome, who desired to weaken the authority of the see of Constantinople, and Nestorius was condemned at the council of Ephesus in 431.

The next phase of the struggle opened in 448, when Dioscorus, the occupant of the Alexandrine see, assailed Flavian, the patriarch of the capital, for having deposed Eutyches, a monophysite abbot of Constantinople. At the so-called “Robber Council” of Ephesus (449 A. D.) Dioscorus succeeded in having Flavian deprived of his see. But the pope, Leo I. pronounced in favor of the doctrine of the duality of Christ, and in 451 the new emperor Marcian called an ecumenical council at Chalcedon which definitely reasserted the primacy of the see of Constantinople in the East, approved the use of _Theotokos_, and declared that Christ is of two natures. The attempt to enforce the decisions of this council provoked disturbances in Egypt, Palestine and the more easterly countries. In Palestine it required the use of armed force to suppress a usurping monophysite bishop. In Egypt the enforcement led to a split between the orthodox Greek and the monophysite Coptic churches.

As the opposition to the decree of Chalcedon still disturbed the peace of the church, the emperor Zeno in 482, at the instigation of the patriarchs Acacius of Constantinople and Peter of Alexandria, sought to settle the dispute by exercise of

the imperial authority. He issued a letter to the church of Egypt called the _Henoticon_, which, while acknowledging the councils of Nicaea and Constantinople, condemned that of Chalcedon, and declared that “Christ is one and not two.” This doctrine was at once condemned by the Pope Silvanus. The rupture with Rome lasted until 519, when a reconciliation was effected at the price of complete submission by the East and the rehabilitation of the council of Chalcedon. This in turn antagonized the monophysites of Syria and Egypt and caused Justinian to embark upon his hopeless task of reëstablishing complete religious unity within the empire by holding the western and winning back the eastern church.

Justinian hoped to reconcile the monophysites by an interpretation of the discussions of the council of Chalcedon which would be acceptable to them. This led him, in 544, to condemn the so-called Three Chapters, which were the doctrines of the opponents of the monophysites. And although this step implied a condemnation of the council of Chalcedon itself, and was consequently opposed in the West, he forced the fifth ecumenical council of Constantinople in 553 to sanction it. However, neither this concession nor the still greater one of the edict of 565 availed to win back the extreme monophysites of Egypt and Syria, where opposition to the religious jurisdiction of Constantinople had taken a national form, and the religious disunion in the East continued until these lands were lost to the empire.

IV. MONASTICISM

The origin of monasticism. Monasticism (from the Greek _monos_, “single”), which became so marked a feature of the religious life of the Middle Ages, had its origin in the ascetic tendencies of the early Christian church, which harmonized with the eastern religious and philosophic ideal of a life of pure contemplation. The chief characteristics of early Christian asceticism were celibacy, fasting, prayer, surrender of worldly goods, and the adoption of a hermit’s life. This renouncement of a worldly life was practised by large numbers of both men and women, especially in Egypt. It was there that organized monastic life began early in the fourth century under the influence of St. Anthony in northern and Pachomius in southern Egypt.

Anthony and Pachomius in Egypt. Anthony was the founder of a monastic colony, which was a direct development from the eremitical life. He laid down no rule for the guidance of the lives of the monks, but permitted the maximum of individual freedom. It was Pachomius who first established a truly cenobitical monastery, in which the monks lived a common life under the direction of a single head, the abbot, according to a prescribed rule with fixed religious exercises and daily labor. The organization of convents for women accompanied the foundation of the monasteries. However, the Antonian type of monkhood continued to be the more popular in Egypt, where monasticism flourished throughout the fourth, but began to decline in the fifth, century.

Eastern monasticism. From Egypt the movement spread to Palestine, but in Syria and Mesopotamia there was an independent development from the local eremitical ideals. Characteristic of Syrian asceticism were the pillar hermits who passed their

lives upon the top of lofty pillars. The founder of the Greek monasticism was Basil (c. 360 A. D.), who copied Pachomius in organizing a fully cenobitical life. He discouraged excessive asceticism and emphasized the value of useful toil. The eastern monks were noted for their fanaticism and they took a very prominent part in the religious disorders of the time. The abuses of the early, unregulated monastic life led to the formulation of monastic rules and the subjection of the monks to the authority of the bishops.

Monasticism in the west: Benedict. Monasticism was introduced in the West by Athanasius, who came from Egypt to Rome in 339. From Italy it spread to the rest of western Europe. The great organizer of western monasticism was Benedict, who lived in the early sixth century, and founded the monastery at Monte Cassino about 520 A. D. His monastic rule definitely abandoned the eremitical ideal in favor of the cenobitical. In addition to worship and work, the Benedictine rule made reading a monastic duty. This stimulated the collection of libraries in the monasteries and made the monks the guardians of literary culture throughout the Middle Ages.

As yet no distinct monastic orders had developed, but each monastery was autonomous under the direction of its own abbot.

V. LITERATURE AND ART

General characteristics. The period between the accession of Diocletian and the death of Justinian saw the gradual disappearance of the ancient Graeco-Roman culture. In spite of Diocletian’s reëstablishment of the empire, there was a steady lowering of the general cultural level. This was due chiefly to the progressive barbarization of the empire and to the decline of paganism which lay at the roots of ancient civilization. The one creative force of the time was Christianity, but, save in the fields of religion and ethics, it did little to stem the ebbing tide of old world culture.

Literature. The dying out of this culture is clearly to be seen in the history of the Greek and Roman literatures of the period, each of which shows the same general traits. In the fourth century, under the impulse of the restoration of Diocletian, there is a brief revival of productivity in pagan literature. But this is characterized by archaism and lack of creative power. The imitation of the past produces not only an artificiality of style, but also of language, so that literature loses touch with contemporary life and the language of the literary world is that of previous centuries, no longer that of the people. Rhetorical studies are the sole form of higher education, and are in part responsible for the archaism and artificiality of contemporary literature, owing to the emphasis which they laid upon literary form to the neglect of substance. In the fifth century, following the complete triumph of Christianity, pagan literature comes to an end.

The recognition of Christianity as an imperial religion by Constantine, its subsequent victorious assault upon paganism, and the intensity of sectarian strife gave to Christian literature a freshness and vigor lacking in the works of pagan writers, and produced a wealth of apologetic, dogmatic and theological writings. But

the Christian authors followed the accepted categories of the pagan literature, and while producing polemic writings, works of translation and of religious exegesis, they entered the fields of history, biography, oratory and epistolography. Thus arose a profane, as well as a sacred, Christian literature. And since Christian writers were themselves men of education and appealed to educated circles, their works are dominated by the current rhetorical standards of literary taste. Yet in some aspects, in particular in sacred poetry and popular religious biography, they break away from classical traditions and develop new literary types.

But after the first half of the fifth century originality and productivity in Christian literature also are on the wane. This is in part due to the effects of the struggle of the empire with barbarian peoples; in part to the suppression of freedom of religious thought by the orthodox church. Even after the extinction of paganism the classical literatures of Greece and Rome afforded the only material for a non-religious education. And since they no longer constituted a menace to Christianity, the church became reconciled to their use for purposes of instruction, and it was to the church, and especially to the monasteries, that the pagan literature owes its preservation throughout the Dark Ages.

A symptom of the general intellectual decline of the later empire is the dying out of Greek in the western empire. While up to the middle of the third Christian century the world of letters had been bi-lingual, from that time onwards, largely as a result of the political conditions which led to a separation of the eastern and western parts of the empire, the knowledge of Greek began to disappear in the West until in the late empire it was the exception for a Latin-speaking man of letters to be versed in the Greek tongue.

Pagan Latin literature. A wide gulf separated the pagan Latin literature of the fourth century from that of the early principate. Poetry had degenerated to learned tricks, historical writing had taken the form of epitomies, while published speeches and letters were but empty exhibitions of rhetorical skill. The influence of rhetorical studies made itself felt in legal phraseology, which now lost its former clarity, directness and simplicity. Still there are a few outstanding literary figures who deserve mention because they are so expressive of the tendencies of the time or because they have been able to attain a higher level.

Ausonius and Symmachus (c. 345–405 A. D.). The career of Ausonius, a professor of grammar and rhetoric at Bordeaux, whose life covers the fourth century, shows how highly rhetorical instruction was valued. His ability procured him imperial recognition, and he became the tutor of Gratian, from whom he received the honor of the consulate in 379. His poetical works are chiefly clever verbal plays, but one, the _Mosella_, which describes a voyage down the river Moselle, is noteworthy for its description of contemporary life and its appreciation of the beauty of nature. Quintus Aurelius Symmachus, city prefect, and the leader of the pagan party in Rome under Gratian and Valentinian II, is a typical representative of the educated society of the time which strove to keep alive a knowledge of classical literature. He left a collection of orations and letters, poor in thought, but rich in empty phrase.

Ammianus Marcellinus, fl. 350–400 A. D. A man of far different stamp was Ammianus Marcellinus, by birth a Greek of Antioch, and an officer of high rank in the imperial army. Taking Tacitus as his model, he wrote in Latin a history which continued the former's work for the period from 96 to 378 A. D. Of this only the part covering the years 353 to 378 has survived. His history is characterized by sound judgment and objectivity, but is marred by the introduction of frequent digressions extraneous to the subject in hand and by a strained rhetorical style. However, it remains the one considerable pagan work in Latin prose from the late empire.

Claudius Claudianus and Rutilius Namatianus (both fl. 400 A. D.). The "last eminent man of letters who was a professed pagan" in the western empire was Claudius Claudianus. Claudian was by birth an Egyptian Greek who took up his residence in Rome about 395 A. D. and attached himself to the military dictator, Stilicho. He chose to write in Latin, and composed hexameter epics which celebrated the military exploits of his patron. He also wrote mythological epics and elegiacs. Claudian found his inspiration in Ovid and reawakened the charm of Augustan poetry. A contemporary of Claudian, and, like him a pagan, was Rutilius Namatianus, who was a native of southern Gaul but a resident of Rome where he attained the highest senatorial offices. His literary fame rests upon the elegiac poem in which he described his journey from Rome to Gaul in 416 A. D., and revealed the hold which the imperial city still continued to exercise upon men's minds.

Christian Latin literature: Lactantius (d. about 325 A. D.). It is among the writers of Christian literature that the few great Latin authors of the time are to be found. At the beginning of the fourth century stood Lactantius, an African, who became a teacher of rhetoric in Nicomedia, where he was converted to Christianity. His chief work was the _Divinae Institutiones_, an introduction to Christian doctrine, which was an attempt to create a philosophical Christianity. His purity of style has caused him to be called the "Christian Cicero."

Ambrose, (d. 397 A. D.). Ambrose, the powerful bishop of Milan, who exercised such great influence with Gratian and Theodosius the Great, also displayed great literary activity. In general, his writings are developments of his sermons, and display no very great learning. Their power depended upon the strength of his personality. More important from a literary standpoint are the hymns which he composed for use in church services to combat in popular form the Arian doctrines. In his verses Ambrose adhered to the classic metrical forms, but in the course of the next two centuries these were abandoned for the use of the rhymed verse, which itself was a development of the current rhetorical prose.

Jerome, 335–420 A. D. The most learned of the Latin Christian writers of antiquity was Jerome (Hieronymus), a native of northern Bosnia, whose retired, studious life was in striking contrast to the public, official career of Ambrose. A Greek and Hebrew scholar, in addition to his dogmatic writings he made a Latin translation of the Old Testament from the Hebrew (the basis of the later _Vulgate_), and another of the Greek _Church History_ of Eusebius.

Augustine, 354–430 A. D. The long line of notable literary figures of the African church is closed by Augustine, the bishop of Hippo who died during the siege of his city by the Vandals in 430 A. D. In his early life a pagan, he found inspiration and guidance in the philosophy of Plato and Aristotle. But while Jerome was still dominated by Greek religious thought, Augustine was the first Latin Christian writer to emancipate himself from this dependence and display originality of form and ideas in his works. Of these the two most significant are the _Confessions_ and _On the City of God_. The _Confessions_ reveal the story of his inner life, the struggle of good and evil in his own soul. The work _On the City of God_ was inspired by the sack of Rome by Alaric in 410 and the accusation of the pagans that this was a punishment for the abandonment of the ancient deities. In answer to this charge Augustine develops a philosophical interpretation of history as the conflict of good and evil forces, in which the Heavenly City is destined to triumph over that of this world. His work prepared the way for the conception of the Roman Catholic Church as the city of God.

Boethius (d. 524 A. D.) and Cassiodorus (c. 480–575 A. D.). Between the death of Augustine and the death of Justinian the West produced no ecclesiastical literary figure worthy of note. However, under the Ostrogothic régime in Italy, profane literature is represented by two outstanding personalities—Boethius and Cassiodorus. The patrician Boethius while in prison awaiting his death sentence from Theoderic composed his work _On the Consolation of Philosophy_, a treatise embued with the finest spirit of Greek intellectual life. Cassiodorus, who held the posts of quaestor and master of the offices under Theoderic, has left valuable historical material in his _Variae_, a collection of official letters drawn up by him in the course of his administrative duties. His chief literary work was a history of the Goths, of which unfortunately only a few excerpts have remained. In his later years Cassiodorus retired to a monastery which he founded and organized according to the Benedictine rule. There he performed an inestimable service in fostering the preservation of secular as well as ecclesiastical knowledge among the brethren, thus giving to the Benedictine monks the impulse to intellectual work for which they were so distinguished in medieval times.

Greek Christian literature; Religious prose. It was in the fourth century that Greek Christian prose literature reached its height. Among its leading representatives were Athanasius, the bishop of Alexandria who fought the Arian heresy; Eusebius, bishop of Caesarea, the founder of church history; Gregory of Nazianzus, church orator and poet; and Basil, bishop of Caesarea in Cappadocia, the organizer of Greek monasticism. Above them all in personality and literary ability stood John Chrysostom (the Golden-mouth), patriarch of Constantinople under Arcadius. With the fifth century came a decline in theological prose; men resorted to excerpts and collections. But at this time began the development of the popular monastic narratives and lives of the saints which served as the novels and romances of the time.

Religious poetry. It was subsequent to the fourth century also that Christian religious poetry attained its bloom. Here a break was made with classical tradition in the adoption of accentual in place of quantitative verse. This was in harmony with the

disappearance of distinctions of syllabic quantity from popular speech. The use of rhythm in verse was introduced by Gregory of Nazianzus, but the chief and most productive representative of the new poetry was Romanus, a converted Syrian Jew whose activity falls in the reign of Justinian.

Greek profane literature. Contemporary profane Greek literature exhibits less originality and interest. Historical writing was continued in strict imitation of classical models by both Christian and pagan writers. Of exceptional historical value are the works of Procopius, the historian of the wars of Justinian, who like Ammianus Marcellinus shared in an official capacity in the events which he described. A more popular form of historical writing was the compilation of chronicles of world history, collections of excerpts put together for the most part by men who failed to understand their sources. The profane verse of the time is represented by narrative poems, such as the _Dionysiaca_ and the metrical version of the Gospel of St. John composed by Nonnus in Egypt (c. 400 A. D.), and by a rich epigrammatic literature.

In the eastern empire literary productivity continued, although on the decline, slightly longer than in the West, but by the middle of the sixth century there also it had come to an end.

Art. The art of the late empire exhibits the same general characteristics as the literature. Not only was there a general lack of originality and creative capacity, but even the power of imitating the masterpieces of earlier times was conspicuously lacking. The Arch of Constantine erected in 312 A. D. affords a good illustration of the situation. Its decoration mainly consists of sculptures appropriated from monuments of the first and second century, beside which the new work is crude and unskilful. A comparison of the imperial portraits on the coins of the fourth century with those of the principate up to the dynasty of the Severi reveals the same decline in taste and artistic ability.

In the realm of art as in literature Christianity supplied a new creative impulse, which made itself felt in the adaptation of pagan artistic forms to Christian purposes. The earliest traces of Christian art are to be found in the mural paintings of the underground burial vaults and chapels of the Roman catacombs, and in the sculptured reliefs which adorned the sarcophagi of the wealthy. These were popular branches of contemporary art and the influence of Christianity consisted in the artistic representation of biblical subjects and the employment of Christian symbolical motives. These forms of Christian art decayed with the general cultural decline that followed the third century.

The most important and original contribution of Christianity to the art of the late empire was in the development of church architecture. To meet the needs of the Christian church service, which included the opportunity to address large audiences, there arose the Christian basilica, which took its name from the earlier profane structures erected to serve as places for the conduct of public business, but which differed considerably from them in its construction. In general the basilica was a long rectangular building, divided by rows of columns into a central hall or nave and two side halls or aisles. The walls of the nave rose above the roof of the aisles, and

allowed space for windows. The roof was flat or gabled, and, like the wall spaces, covered with paintings or mosaics. The rear of the structure was a semicircular apse which held the seats of the bishop and the lower clergy. To the original plan there came to be added the transept, a hall at right angles to the main structure between it and the apse. This gave the basilica its later customary crosslike form.

While the basilica became the almost universal form of church architecture in Italy and the West, in the East preference was shown for round or polygonal structures with a central dome, an outgrowth of the Roman rotunda, which was first put to Christian uses in tombs and grave chapels. A rich variety of types, combining the central dome with other architectural features arose in the cities of Asia and Egypt. The masterpiece of this style was the church of St. Sophia erected by Justinian in Constantinople in 537 A. D. Another notable example from the same period is the church of San Vitale at Ravenna.

In the mosaics which adorn these and other structures of the time are to be seen the traces of a Christian Hellenistic school of painting which gave pictorial expression to the whole biblical narrative. These mosaics and the miniature paintings employed in the illuminated manuscripts survived as prominent features of Byzantine art.

EPILOGUE

The Lombard and Slavic invasions. In 568 A. D., three years after the death of Justinian, the Lombards descended upon Italy from Pannonia and wrested from the empire the Po valley and part of central Italy. The Romans were confined to Ravenna, Rome, and the southern part of the peninsula. Towards the close of the sixth century (after 581 A. D.) occurred the migrations of the Bulgars and Slavs across the Danube which resulted in the Slavic occupation of Illyricum and the interposition of a barbarous, heathen people between the eastern empire and western Europe. Early in the seventh century the Roman possessions in Spain were lost to the Goths.

The papacy and the Holy Roman Empire. The weakness of the imperial authority in the West led to the strengthening of the papacy and its acquisition of political power in Italy. It was the papacy also which kept alive in western Europe the ideal of a universal imperial church, for the whole of western Christendom came to acknowledge the supremacy of the Roman see. Nor was the conception of a reëstablished western empire lost to view; and it was destined to find realization in the Holy Roman empire of Charlemagne and his successors. Of great importance for the future development of European civilization was the fact that the western part of the Roman empire had passed under the control of peoples either already Christianized or soon to become so, and that the church, chiefly through the monasteries, was thus enabled to become the guardian of the remnants of ancient culture.

The Byzantine empire. The loss of the western provinces and Illyricum transferred the center of gravity in the empire from the Latin to the Greek element and accelerated the transformation of the eastern Roman empire into an essentially Greek state—the Byzantine empire. The Byzantine empire inherited from the Roman

its organization and the name _Romaioi_ (Romans) for its citizens, but before the close of the sixth century Greek had supplanted Latin as the language of government. This transformation further accentuated the religious differences between East and West, which led ultimately to the separation of the Greek and Roman Catholic Churches.

The Mohammedan invasion. Before the middle of the seventh century Egypt and Syria were occupied by the Saracens, whose conquest was facilitated by the animosity of the monophysite native populations towards the rule of an orthodox emperor. However, the loss of these territories gave fresh solidarity to the empire in the East by restricting its authority to the religiously and linguistically homogeneous, and thoroughly loyal, population of Asia Minor and the eastern Balkan peninsula. This solidarity enabled the Byzantine empire to fulfill its historic mission of forming the eastern bulwark of Christian Europe against the Turk throughout the Middle Ages.

CHRONOLOGICAL TABLE

NOTE. Owing to the uncertainty of the chronological record of early Roman history it must be admitted that little reliance can be placed upon the accuracy of most of the traditional dates prior to 281 B. C. For this period I have followed, in the main, Diodorus.

B. C. ? Paleolithic Age. ? Neolithic Age. Ligurian settlement in Italy. 2500–2000 Beginning of the Age of Bronze. Palafitte Lake Villages. Terramare villages. 1000 Beginning of the Iron Age. IX–VIII cent. Etruscan settlement in Etruria. 814 Founding of Carthage. VIII cent. Greek colonization of Sicily and South Italy begins. VII–VI cent. Etruscan expansion in the Po Valley, Campania and Latium. 508 Overthrow of Etruscan supremacy at Rome. End of the early monarchy. The first consuls appointed. Dedication of the Capitoline temple. Commercial treaty with Carthage. 486 Alliance of Rome and the Latins. 466 Four tribunes of the plebs appointed. 444–2 The Decemvirate. Codification of the Law. 437 Lex Canuleia. 436 Office of military tribune with consular powers established. 435 Censorship established. 392 Capture of Veii. 387 Battle of the Allia. Sack of Rome by the Gauls. 362 The praetorship established. 339 Lex Publilia. 338–6 The Latin War. 334 Alliance of Rome and the Campanians. 325–304 Samnite War. 318 The Caudine Forks. 309–7 War with the Etruscans. 310 Appius Claudius Censor. 300 Lex Ogulnia. 298–290 War with Samnites, Etruscans and Gauls. 295 Battle of Sentinum. 290 Subjugation of Samnium. 287 Secession of the Plebs. Lex Hortensia. 285 Occupation of the Ager Gallicus. Defeat of Gauls and Etruscans at Lake Vadimo. 281–272 War with Tarentum and Pyrrhus. 280 Battle of Heraclea. 279 Battle of Ausculum. Alliance of Rome and Carthage. 278 Pyrrhus invades Sicily. 275 Battle of Beneventum. 264–241 First Punic War. 263 Alliance of Rome and Syracuse. 260 Naval Victory at Mylae. 256–5 Roman invasion of Africa. 250 Roman naval disaster at Drepana. 242 Battle of the Aegates Is. Office of _praetor peregrinus_ established. 241 Sicily ceded to Rome. 241–238 Revolt of the Carthaginian mercenaries. Sardinia and Corsica ceded to Rome. 237 Hamilcar in Spain. 232 Colonization of the _ager Gallicus_. 229–8 First Illyrian War. 229 Hasdrubal succeeds Hamilcar in Spain. 227 Provinces of Sicily, and Sardinia and

Corsica organized. 226 Roman treaty with Hasdrubal. 225 Gauls defeated at Telamon. 224–22 Conquest of Boii and Insubres. 221 Hannibal Carthaginian commander in Spain. 220 ? Reform of the Centuriate Assembly. 220–19 Second Illyrian War. 219 Siege of Saguntum. 218–201 Second Punic War. 218 Hannibal's passage of the Pyrenees and the Alps. Roman invasion of Spain. 217 Battle of Trasimene Lake. Q. Fabius dictator. 216 Cannae. Revolt of Capua. 215 Alliance of Hannibal and Philip V of Macedon. First Macedonian War. 214 Revolt of Syracuse. 212 Syracuse recovered. Roman Alliance with the Aetolians. 211 Capua reconquered. Roman disasters in Spain. 210 P. Cornelius Scipio Roman commander in Spain. 207 Battle of the Metaurus. 205 Peace between Philip of Macedon and Rome. 204 Scipio invades Africa. 202 Zama. 200–196 Second Macedonian War. 201 Annexation of Carthaginian Spain. Provinces of Hither and Farther Spain organized. 197 Battle of Cynoscephalae. 196 Flamininus proclaims the "freedom of the Hellenes." 192–189 War with Antiochus the Great and the Aetolians. 191 Antiochus defeated at Thermopylae. 190 Battle of Magnesia. 186 Dissolution of the Bacchanalian societies. 184 Cato the Elder censor. 181 _Lex Villia annalis._ 171–167 Third Macedonian War. 168 Battle of Pydna. 166 Achaean political prisoners held in Italy. 149–146 Third Punic War. 149 _Lex Calpurnia._ 149–148 Fourth Macedonian War. 148 Macedonia a Roman province. 147–139 War with Viriathus in Spain. 146 Revolt of the Achaeans. Sack of Corinth. Dissolution of the Achaean Confederacy. Destruction of Carthage. Africa a Roman province. 143–133 Numantine War. 136–132 Slave War in Sicily. 133 Kingdom of Pergamon willed to Rome. Tribunate of Tiberius Gracchus. 129 Province of Asia organized. 123–122 C. Gracchus tribune. 121 Province of Narbonese Gaul organized. 113 Siege of Cirta. 111–105 Jugurthine War. 105 Romans defeated by Cimbri and Teutones at Arausio. 104–100 Successive consulships of Marius. Slave war in Sicily. 104 _Lex Domitia._ 102 Teutones defeated at Aquae Sextiae. 101 Cimbri defeated at Vercellae. 100 Affair of Saturninus and Glaucia. 91 Tribunate of Livius Drusus. 90–88 Italian or Marsic War. 90 _Lex Julia._ 89 _Lex Plautia Papiria. Lex Pompeia._ 89–85 First Mithradatic War. 88 Massacre of Italians in Asia. Mithradates invades Greece. 87 Marian revolt at Rome. 87–6 Siege of Athens and Peiraeus. 86 Seventh consulship of Marius. Chaeronea and Orchomenus. 83 Sulla's return to Italy. 82–79 Sulla dictator. 77–71 Pompey's command in Spain. 75 Bithynia a Roman province. 74–63 Second Mithradatic War. 74–66 Command of Lucullus in the East. 73–71 Revolt of the gladiators. 70 First consulate of Pompey and Crassus. Trial of Verres. 67 _Lex Gabinia._ 66 _Lex Manilia._ 63 Cicero consul. The conspiracy of Cataline. Annexation of Syria. Death of Mithradates. 60 Coalition of Pompey, Caesar and Crassus. 59 Caesar consul. _Lex Vatinia._ 58 Cicero exiled. 58–56 Subjugation of Gaul. 57 Cicero recalled. Pompey _curator annonae_. 56 Conference at Luca. 55 Second consulate of Pompey and Crassus. 55–54 Caesar's invasions of Britain. 53 Death of Crassus at Carrhae. 52–1 Revolt of Vercingetorix. 52 Pompey sole consul. 49–46 War between Caesar and the Senatorial faction. 48 Pharsalus. Death of Pompey. 48–7 Alexandrine War. 47 War with Pharnaces. 46 Thapsus. 45 Munda. _Lex Julia municipalis._ 44 Assassination of Julius Caesar (15 Mar.). 44–3 War at Mutina. 43 Octavian consul. Antony, Lepidus and Octavian triumvirs. 42 Battles of Philippi. 41 War at Perusia. 40 Treaty of Brundisium. 39 Treaty of Misenum. 37 Treaty of Tarentum. The second term of the Triumvirate begins. 36 Defeat of Sextus Pompey.

Lepidus deposed. Parthian War. 31 Battle of Actium. 30 Death of Antony and Cleopatra. Annexation of Egypt. 27 Octavian princeps and Augustus. 27 B. C.–14 A. D. AUGUSTUS. 25 Annexation of Galatia. 23 Augustus assumes the _tribunicia potestas_. 20 Agreement with Parthia. 18 _Lex Julia de maritandis ordinibus._ 16 Conquest of Noricum. 15 Subjugation of the Raeti and Vindelici. 14–9 Conquest of Pannonia. 12 Augustus pontifex maximus. _Ara Romae et Augusti_ at Lugdunum. Invasion of Germany. Death of M. Agrippa. 9 Death of Drusus. 6 Subjugation of the Alpine peoples completed. A. D. 6–9 Revolt of Pannonia. 9 Revolt of Arminius. _Lex Papia Poppaea._ 14–37 TIBERIUS. 14–17 Campaigns of Germanicus. 19 Death of Germanicus. 26 Tiberius retires to Capri. 31 Fall of Seianus. 37–41 CAIUS CALIGULA. 40 Annexation of Mauretania. 41–54 CLAUDIUS. 43 Invasion and annexation of southern Britain. 48 Aedui receive the _ius honorum_. 54–68 NERO. 58–63 Parthian War. 59–60 Rebellion of Boudicca. 64 Great Fire in Rome. 65 Conspiracy of Piso. Death of Seneca. 66–67 Nero in Greece. 66 Rebellion of the Jews. 68 Rebellion of Vindex. 68 June–69 Jan. GALBA. 69 Jan.–March OTHO. 69 April–Dec. VITELLIUS. 69 Dec.–79 VESPASIANUS. 69 Revolt of Civilis and the Batavi. 70 Destruction of Jerusalem. End of the Jewish Rebellion. 79–81 TITUS. 79 Eruption of Vesuvius. Destruction of Pompeii and Herculaneum. 81–96 DOMITIANUS. 83 Battle of Mons Graupius. War with the Chatti. 84 Domitian perpetual censor. 85–89 Dacian Wars. 88–89 Revolt of Saturninus. 96–98 NERVA. 98–117 TRAJAN. 101–102 First Dacian War. 105–106 Second Dacian War. Annexation of Dacia. 106 Annexation of Arabia Petrea. 114–117 Parthian War. 114 Occupation of Armenia and Upper Mesopotamia. 115 Jewish Rebellion in Cyrene. 116 Annexation of Assyria and Lower Mesopotamia. Revolt in Mesopotamia. 117–138 HADRIANUS. 117 Abandonment of Assyria and Mesopotamia. Armenia a client kingdom. 121–126 Hadrian’s first tour of the provinces. 129–134 Second tour of the provinces. 132–134 Revolt of the Jews in the East. 138–161 ANTONINUS PIUS. 161–180 MARCUS AURELIUS. 161–169 LUCIUS VERUS. 161–166 Parthian War. 166 Great plague spreads throughout the empire. 167–75 War with Marcomanni, Quadi and Iazyges. 175 Revolt of Avidius Cassius. 177–192 COMMODUS. 177–180 War with Quadi and Marcomanni. 180 Death of Marcus Aurelius, Commodus sole emperor. 193 Jan.–Mar. PERTINAX. 193 Mar.–June DIDIUS JULIANUS. 193 Revolts of Septimius Severus, Pescennius Niger, Clodius Albinus. 193–211 SEPTIMIUS SEVERUS. 194 Defeat of Pescennius Niger. 195–6 Invasion of Parthia. 197 Defeat of Albinus at Lugdunum. 197–99 Parthian War renewed. Conquest of Upper Mesopotamia. 208 Caledonians invade Britain. 211–217 CARACALLA and 211–212 GETA. 212 _Constitutio Antoniniana._ 214 Parthian War. 217–218 MACRINUS. 218–222 ELAGABALUS. 222–235 SEVERUS ALEXANDER. 227 Establishment of the Persian Sassanid Kingdom. 230–233 War with Persia. 234 War on the Rhine frontier. 235–238 MAXIMINUS. 238 GORDIANUS I and GORDIANUS II. BALBINUS and PUPIENUS. 238–244 GORDIANUS III. 243–249 PHILIPPUS ARABS. 247–249 PHILIPPUS JUNIOR. 249–251 DECIUS. 249 Persecution of the Christians. 251–253 GALLUS and VOLUSIANUS. 253 AEMILLIANUS. 253–258 VALERIANUS and 253–268 GALLIENUS. 257 Persecution of the Christians renewed. 258 Valerian defeated and captured by the Persians. Postumus establishes an _imperium Galliarum_. 259 Valerian dies in captivity. Gallienus sole emperor. 267 Sack of Athens by the Goths. 268–270 CLAUDIUS GOTHICUS. 270 QUINTILLUS. 270–275

AURELIANUS. 271 Revolt of Palmyra. 272 Reconquest of Palmyra and the East. 274 Recovery of Gaul and Britain. 275–276 TACITUS. 276 FLORIANUS. 276–282 PROBUS. 282–283 CARUS. 283–285 CARINUS. 284–305 DIOCLETIANUS and 286–305 MAXIMIANUS. 286 Revolt of Carausius in Britain. 293 Galerius and Constantine Caesars. 296 Recovery of Britain. 297 Persian invasion. 301 Edict of Prices. 302–304 Edicts against the Christians. 305 Abdication of Diocletian and Maximian. Galerius and Constantius. Severus and Daia Caesars. 306 GALERIUS and SEVERUS. Constantinus Caesar. Revolt of Maxentius. 307 GALERIUS, LICINIUS, CONSTANTINUS, DAIA and MAXENTIUS. 311 Edict of Toleration. 312 Battle of Saxa Rubra. 313 Edict of Milan. Fall of Daia. 324 Battle of Chrysopolis. 324–337 CONSTANTINUS sole Augustus. 325 Council of Nicaea. 330 Constantinople the imperial residence. 337–340 CONSTANTINUS II. 337–350 CONSTANS. 337–361 CONSTANTIUS. 342 Council of Serdica. 350 Revolt of Magnentius. 351 Gallus Caesar. Battle of Mursa. 354 Death of Gallus. 355 Julian Caesar. 357 Julian’s victory over the Alemanni at Strassburg. 359 War with Persia. 360–363 JULIANUS. 363 Invasion of Persia. Death of Julian. 363–364 JOVIANUS. 364–375 VALENTINIANUS I. 364–378 VALENS. 367–383 GRATIANUS. 375–392 VALENTINIANUS II. 376 Visigoths cross the Danube. 378 Battle of Hadrianople. 378–395 THEODOSIUS I. 380–82 Settlement of Visigoths as _foederati_ in Moesia. 381 Council of Constantinople. 382 Altar of Victory removed from the Senate. 383 Revolt of Maximus in Britain. Death of Gratian. 383–408 ARCADIUS. 388 Maximus defeated and killed. 390 Massacre at Thessalonica. 391 Edicts against Paganism. Destruction of the Serapaeum. 392 Revolt of Arbogast. Murder of Valentinian II. Eugenius proclaimed Augustus. 394 Battle of Frigidus. Death of Arbogast and Eugenius. 394–423 HONORIUS. 395 Death of Theodosius I. Division of the Empire. ARCADIUS emperor in the East, HONORIUS in the West, Revolt of Alaric and the Visigoths. 396 Alaric defeated by Stilicho in Greece. 406 Barbarian invasion of Gaul. Roman garrison leaves Britain. 408 Murder of Stilicho. Alaric invades Italy. 408–450 THEODOSIUS II eastern emperor. 409 Vandals, Alans and Sueves invade Spain. 410 Visigoths capture Rome. Death of Alaric. 412 Visigoths enter Gaul. 415 Visigoths cross into Spain. 418 Visigoths settled in Aquitania. 423–455 VALENTINIANUS III western emperor, 427 Aetius _magister militum_. 429 Vandal invasion of Africa. 438 The Theodosian Code. 439 Vandals seize Carthage. 450 MARCIANUS eastern emperor. 451 Battle of the Mauriac Plains. Council of Chalcedon. 453 Death of Attila. 454 Aetius assassinated. Ostrogoths settled in Pannonia. 455 MAXIMUS western emperor. Vandals sack Rome. 455–456 AVITUS western emperor. Ricimer _magister militum_. 457–474 LEO I eastern emperor. 457–461 MARJORIANUS western emperor. 461–465 SEVERUS western emperor. 465–467 No emperor in the West. 467–472 ANTHEMIUS western emperor. 472 OLYBRIUS western emperor. Death of Ricimer. 473–474 GLYCERUS western emperor. LEO II eastern emperor. 474–475 (480) NEPOS western emperor. 474–491 ZENO eastern emperor. 475–476 ROMULUS AUGUSTULUS western emperor. 476 Odovacar king in Italy. 477 Death of Gaiseric. 486 Clovis conquers Syagrius and the Romans in Gaul. 488 Theoderic and the Ostrogoths invade Italy. 491–518 ANASTASIUS eastern emperor. 493 Defeat and death of Odovacar. 506 _Lex Romana Visigothorum._ 507 Clovis defeats the Visigoths. 518–527 JUSTINUS I eastern emperor. 526 Death of Theoderic. 527–565 JUSTINIANUS eastern emperor.

532 The “Nika” riot. 533–534 Reconquest of Africa. 534 Franks overthrow the Burgundian kingdom. 529–534 Publication of the _Corpus Iuris Civilis_. 535–554 Wars for the recovery of Italy. 554 Re-occupation of the coast of Spain. 565 Death of Justinian.

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FOOTNOTES

1 The several elements in the Roman military federation may be seen at a glance from the following scheme:

I. Roman citizens— (a) with full civic rights (_optimo iure_). (b) with private rights only (_sine suffragio_). II. Roman allies— (a) Latins. (b) Federate peoples of Italy.

2 Another, but apparently later, Roman tradition placed the establishment of the tribunate in 494, when two tribunes were elected, and merely attributes an increase in their number to 466.

3 One explanation of the origin of this tribunate offered in antiquity and still held in some quarters is that it was created to take the place of the consulship as an office

to which plebeians might be admitted while they were still excluded from the regular presidency. Against this view, besides the existence of another explanation equally old which has been adopted above, it may be urged that although the military tribunate first appeared in 436 B. C. it was not until 40 years later that plebeians were elected to it. And further, plebeians only appear in six of the fifty-one colleges of military tribunes elected between 436 and 362.

4 To the Romans the Carthaginians were known as _Poeni_, _i. e._, Phoenicians, whence comes the adjective “Punic,” used in such phrases as the “Punic Wars.”

5 This alliance was renewed in 248 B. C.

6 See W. W. Tarn, “The Fleets of the First Punic War,” _Journal of Hellenic Studies_, 1907, p. 51, n. 19.

7 Authorities differ as to the pass which Hannibal used in crossing the Alps, arguing variously for the Little St. Bernard, Mont Genèvre or Mont Cenis. Polybius, our best authority, seems to indicate the Little St. Bernard. A recent discussion of the problem is Spencer Wilkinson’s _Hannibal’s March across the Alps_, London, 1917.

8 See Kromeyer und Veith, _Antike Schlachtfelder_, iii. 2.

9 The details of this re-organization are uncertain. From our sources it is clear that each of the first two classes had 70 centuries, one of seniors and one of juniors from each of the 35 tribes. But we are left in the dark with regard to the other classes. Botsford, in his _Roman Assemblies_, would assign 70 centuries to each class; making a total of 350, plus the 18 equestrian and 5 supernumerary centuries, in all 373. Cavaignac, _Histoire dé l’Antiquité_, vol. III, gives 10 centuries to each of the three lower classes, thus keeping the old number of 193 centuries in all.

10 Seymour, P. A., _English Historical Review_, 1914, pp. 417 ff.

11 The details of this arrangement have not been preserved; for a suggestion see Heitland, _Roman Republic_, II, pp. 447 ff.

12 On the much disputed date of the end of Caesar’s second term, see Hardy, E. G., _Journal of Philology_, 1918, pp. 161 ff.

13 After the adoption his full name was Caius Julius Caesar Octavianus. Although he was known as Caesar by his contemporaries, it is more convenient to refer to him henceforth as Octavian, to distinguish him from his adoptive father.

_ 14 Laudandum adulescentem, ornandum, tolendum_, Cicero, _Fam._, xi, 20, 1.

15 In this I follow Dio. xlix, 15, 6; li, 19, 6 and liii, 32, 5 and 6.

_ 16 Provinces of the Roman Empire_, I, 5, trans. Dickson, Scribner’s, 1906.

17 The distribution of the dioceses among the prefectures was as follows:

Prefecture of Gaul—dioceses of Britain, Gaul, Spain; Prefecture of Italy—suburban diocese of the city of Rome, and the dioceses of Italy, Africa, Illyricum; Prefecture of Illyricum—dioceses of Eastern Illyricum, Thrace, Macedonia; Prefecture of the Orient—dioceses of Asia, Pontus, the Orient and Egypt.

_ 18 ἀρχίερευς βασιλεύς_. The title Basileus (King) was in common use in the eastern part of the empire from the fourth century, but was not assumed officially by the emperors till 629 A. D.

TRANSCRIBER'S NOTE

The following changes have been made to the text:

page 9, "terramara" changed to "terramare" page 21, "ascendency" changed to "ascendancy" page 49, period added after "units" page 54, "plebians" changed to "plebeians" page 55, "wthout" changed to "without" page 60, comma added after "attacks" page 71, "militry" changed to "military" page 85, "Cathaginians" changed to "Carthaginians" page 89, "sieze" changed to "seize" page 94, "forcd" changed to "forced", "B. C." added in heading page 97, "Perma" changed to "Parma" page 104, period added after "129" page 114, comma changed to period after "plantations" page 131, "Balaeric" changed to "Balearic" page 134, "Arpimum" changed to "Arpinum" page 137, "Aequilius" changed to "Aquillius" page 138, period removed after heading "V. Saturninus and Glaucia" page 163, period changed to comma after "Optimates", "Pontifix" chanted to "Pontifex" (twice) page 167, "Narbonesis" changed to "Narbonensis" page 169, "preconsular" changed to "proconsular" page 176, "beseiged" changed to "besieged" page 177, "Pharanaces" changed to "Pharnaces" page 188, "constituandae" changed to "constituendae" page 213, "dieties" changed to "deities" page 215, "freedom" changed to "freedmen" page 217, "harrassed" changed to "harassed" page 228, "Marcomani" changed to "Marcomanni", comma removed after "now" page 231, comma added after "Plautius" page 234, "Seutonius" changed to "Suetonius" page 237, period added after "princeps" page 242, "dominius" changed to "dominus" page 253, "victorius" changed to "victorious", "beleagured" changed to "beleaguered" page 256, "Carcalla" changed to "Caracalla" page 263, "advancd" changed to "advanced" page 266, "superceded" changed to "superseded" page 269, "cognitionibius" changed to "cognitionibus" (twice) page 289, "argricultural" changed to "agricultural" page 299, "elegaic" changed to "elegiac" page 302, period added after heading "Plutarch (c. 50–120 A. D.) and Lucian (c. 125–200 A. D.)" page 325, period added after "(350 A. D.)", "th" changed to "the" page 329, "o" changed to "or" page 330, "Aequileia" changed to "Aquileia" page 343, "prefectissimate" changed to "perfectissimate" page 344, period changed to comma after "coin" page 346, "civatatium" changed to "civitatium" page 360, "Valetinian" changed to "Valentinian" page 366, comma changed to period after "_status quo ante_" page 376, "Tignitana" changed to "Tingitana" page 387, "Chistianity" changed to "Christianity" page 389, "of" added after "embodiment" page 392, "Theododius" changed to "Theodosius" page 402, "represenation" changed to "representation" page 406, "Trasemene" changed to "Trasimene", "Flaminius" changed to "Flamininus" page 409, period removed after "March" and "79" page 410, period removed after "June", smallcaps added to "Gallus" and "Volusianus" page 416, italics added to "Hermes" page 417, comma added after "Mommsen" page 418, comma added after "1" and "_Religion und Kultur_" page 419, italics added to "Bonner Jahrbücher" page 424, "Selucid" changed

to “Seleucid”, “M.” changed to “M’.” page 430, “Ptolemic” changed to “Ptolemaic” page 431, “Contantius” changed to “Constantius” page 432, “Catigula” changed to “Caligula”, “Elogabalus” changed to “Elagabalus” page 435, “Majoriamus” changed to “Majorianus”, “Numentines” changed to “Numantines” page 437, “excuted” changed to “executed”, “Antoninus” changed to “Antonius” page 438, “peregrinius” changed to “peregrinus” (twice) page 439, “Proprietorship” changed to “Propraetorship”, “231” changed to “213” page 441, “Achæns” changed to “Achæans” page 442, “P” changed to “P.” page 443, “Q.” changed to “L.”

The capitalization of headings has been normalized on page 4, 5, 57, 129, 138, 139 (twice), 142, 182, 192, 245, 251, 252, 253, 384. The formatting of the index has been normalized in several places.

Variations in hyphenation (e. g. “body-guard” and “bodyguard”; “taxgatherers” and “tax gatherers”; “re-establish” and “reëstablish”), capitalization (“Senate” and “senate”) and the spelling of names (“Cataline” and “Catiline”: “Gaius” and “Caius”; “Mithridates” and “Mithradates”; “Perpena”, “Perperna” and “Perpenna”; “Theoderic” and “Theodoric”) and some other words (e. g. “centurion” and “centurian”; “dispatch” and “despatch”; “manœuver” and “maneuver”; “praetor(ian)” and “pretorian”) have not been changed. Both “ae” (predominantly in the main text) and the ligature “æ” (mostly in the index) are used. Errors in quotations from foreign languages and names have not been corrected.